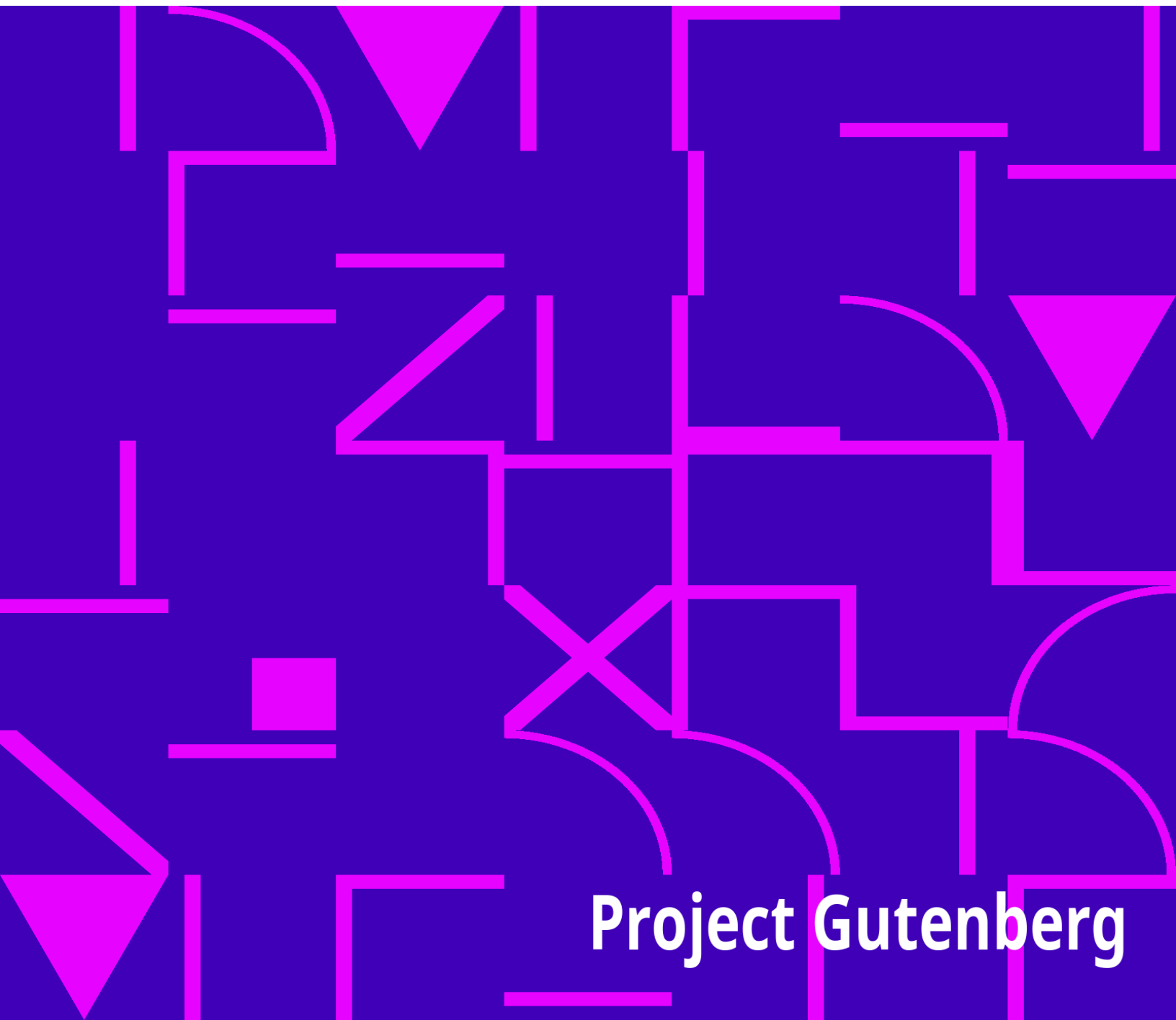


History of the English People, Volume II

John Richard Green

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History of the English People, Volume II

John Richard Green

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HISTORY OF THE ENGLISH PEOPLE

VOLUME II

BY

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**THE CHARTER, 1216-1307
THE PARLIAMENT, 1307-1400**

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VOLUME II

BOOK III

THE CHARTER

1216-1307

CHAPTER II

HENRY THE THIRD

1216-1232

William Marshal

The death of John changed the whole face of English affairs. His son, Henry of Winchester, was but nine years old, and the pity which was stirred by the child's helplessness was aided by a sense of injustice in burthening him with the iniquity of his father. At his death John had driven from his side even the most loyal of his barons; but William Marshal had clung to him to the last, and with him was Gualo, the Legate of Innocent's successor, Honorius the Third. The position of Gualo as representative of the Papal overlord of the realm was of the highest importance, and his action showed the real attitude of Rome towards English freedom. The boy-king was hardly crowned at Gloucester when Legate and Earl issued in his name the very Charter against which his father had died fighting. Only the clauses which regulated taxation and the summoning of parliament were as yet declared to be suspended. The choice of William Marshal as "governor of King and kingdom" gave weight to this step; and its effect was seen when the contest was renewed in 1217. Lewis was at first successful in the eastern counties, but the political reaction was aided by jealousies which broke out between the English and French nobles in his force, and the first drew gradually away from him. So general was the defection that at the opening of summer William Marshal felt himself strong enough for a blow at his foes. Lewis himself was investing Dover, and a joint army of French and English barons under the Count of Perche and Robert Fitz-Walter was besieging Lincoln, when gathering troops rapidly from the royal castles the regent marched to the relief of the latter town. Cooped up in its narrow streets and attacked at once by the Earl and the garrison, the barons fled in utter rout; the Count of Perche fell on the field, Robert Fitz-Walter was taken prisoner. Lewis at once retreated on London and called for aid from France. But a more terrible defeat crushed his remaining hopes. A small

English fleet which set sail from Dover under Hubert de Burgh fell boldly on the reinforcements which were crossing under escort of Eustace the Monk, a well-known freebooter of the Channel. Some incidents of the fight light up for us the naval warfare of the time. From the decks of the English vessels bowmen poured their arrows into the crowded transports, others hurled quicklime into their enemies' faces, while the more active vessels crashed with their armed prows into the sides of the French ships. The skill of the mariners of the Cinque Ports turned the day against the larger forces of their opponents, and the fleet of Eustace was utterly destroyed. The royal army at once closed upon London, but resistance was really at an end. By a treaty concluded at Lambeth in September Lewis promised to withdraw from England on payment of a sum which he claimed as debt; his adherents were restored to their possessions, the liberties of London and other towns confirmed, and the prisoners on either side set at liberty. A fresh issue of the Charter, though in its modified form, proclaimed yet more clearly the temper and policy of the Earl Marshal.

Hubert de Burgh

His death at the opening of 1219, after a year spent in giving order to the realm, brought no change in the system he had adopted. The control of affairs passed into the hands of a new legate, Pandulf, of Stephen Langton who had just returned forgiven from Rome, and of the Justiciar, Hubert de Burgh. It was a time of transition, and the temper of the Justiciar was eminently transitional. Bred in the school of Henry the Second, Hubert had little sympathy with national freedom, and though resolute to maintain the Charter he can have had small love for it; his conception of good government, like that of his master, lay in a wise personal administration, in the preservation of order and law. But he combined with this a thoroughly English desire for national independence, a hatred of foreigners, and a reluctance to waste English blood and treasure in Continental struggles. Able as he proved himself, his task was one of no common difficulty. He was hampered by the constant interference of Rome. A Papal legate resided at the English court, and claimed a share in the administration of the realm as the representative of its overlord and as guardian of the young sovereign. A foreign party too had still a footing in the kingdom, for William Marshal had been unable to rid himself of men like Peter des Roches or Faukes de Breauté, who had fought on the royal side in the struggle against Lewis.

Hubert had to deal too with the anarchy which that struggle left behind it. From the time of the Conquest the centre of England had been covered with the domains of great houses, whose longings were for feudal independence and whose spirit of revolt had been held in check partly by the stern rule of the kings and partly by the rise of a baronage sprung from the Court and settled for the most part in the North. The oppression of John united both the earlier and these newer houses in the struggle for the Charter. But the character of each remained unchanged, and the close of the struggle saw the feudal party break out in their old lawlessness and defiance of the Crown.

Order restored

For a time the anarchy of Stephen's days seemed to revive. But the Justiciar was resolute to crush it, and he was backed by the strenuous efforts of Stephen Langton. A new and solemn coronation of the young king in 1220 was followed by a demand for the restoration of the royal castles which had been seized by the barons and foreigners. The Earl of Chester, the head of the feudal baronage, though he rose in armed rebellion, quailed before the march of Hubert and the Primate's threats of excommunication. A more formidable foe remained in the Frenchman, Faukes de Breauté, the sheriff of six counties, with six royal castles in his hands, and allied both with the rebel barons and Llewelyn of Wales. But in 1224 his castle of Bedford was besieged for two months; and on its surrender the stern justice of Hubert hung the twenty-four knights and their retainers who formed the garrison before its walls. The blow was effectual; the royal castles were surrendered by the barons, and the land was once more at peace. Freed from foreign soldiery, the country was freed also from the presence of the foreign legate. Langton wrested a promise from Rome that so long as he lived no future legate should be sent to England, and with Pandulf's resignation in 1221 the direct interference of the Papacy in the government of the realm came to an end. But even these services of the Primate were small compared with his services to English freedom. Throughout his life the Charter was the first object of his care. The omission of the articles which restricted the royal power over taxation in the Charter which was published at Henry's accession in 1216 was doubtless due to the Archbishop's absence and disgrace at Rome. The suppression of disorder seems to have revived the older spirit of resistance among the royal ministers; for when Langton demanded a fresh confirmation of the Charter in Parliament at London

William Brewer, one of the King's councillors, protested that it had been extorted by force and was without legal validity. "If you loved the King, William," the Primate burst out in anger, "you would not throw a stumbling-block in the way of the peace of the realm." The young king was cowed by the Archbishop's wrath, and promised observance of the Charter. But it may have been their consciousness of such a temper among the royal councillors that made Langton and the baronage demand two years later a fresh promulgation of the Charter as the price of a subsidy, and Henry's assent established the principle, so fruitful of constitutional results, that redress of wrongs precedes a grant to the Crown.

State of the Church

These repeated sanctions of the Charter and the government of the realm year after year in accordance with its provisions were gradually bringing the new freedom home to the mass of Englishmen. But the sense of liberty was at this time quickened and intensified by a religious movement which stirred English society to its depths. Never had the priesthood wielded such boundless power over Christendom as in the days of Innocent the Third and his immediate successors. But its religious hold on the people was loosening day by day. The old reverence for the Papacy was fading away before the universal resentment at its political ambition, its lavish use of interdict and excommunication for purely secular ends, its degradation of the most sacred sentences into means of financial extortion. In Italy the struggle that was opening between Rome and Frederick the Second disclosed a spirit of scepticism which among the Epicurean poets of Florence denied the immortality of the soul and attacked the very foundations of the faith itself. In Southern Gaul, Languedoc and Provence had embraced the heresy of the Albigenses and thrown off all allegiance to the Papacy. Even in England, though there were no signs as yet of religious revolt, and though the political action of Rome had been in the main on the side of freedom, there was a spirit of resistance to its interference with national concerns which broke out in the struggle against John. "The Pope has no part in secular matters," had been the reply of London to the interdict of Innocent. And within the English Church itself there was much to call for reform. Its attitude in the strife for the Charter as well as the after work of the Primate had made it more popular than ever; but its spiritual energy was less than its political. The disuse of preaching, the decline of the monastic

orders into rich landowners, the non-residence and ignorance of the parish priests, lowered the religious influence of the clergy. The abuses of the time foiled even the energy of such men as Bishop Grosseteste of Lincoln. His constitutions forbid the clergy to haunt taverns, to gamble, to share in drinking bouts, to mix in the riot and debauchery of the life of the baronage. But such prohibitions witness to the prevalence of the evils they denounce. Bishops and deans were still withdrawn from their ecclesiastical duties to act as ministers, judges, or ambassadors. Benefices were heaped in hundreds at a time on royal favourites like John Mansel. Abbeys absorbed the tithes of parishes and then served them by half-starved vicars, while exemptions purchased from Rome shielded the scandalous lives of canons and monks from all episcopal discipline. And behind all this was a group of secular statesmen and scholars, the successors of such critics as Walter Map, waging indeed no open warfare with the Church, but noting with bitter sarcasm its abuses and its faults.

The Friars

To bring the world back again within the pale of the Church was the aim of two religious orders which sprang suddenly to life at the opening of the thirteenth century. The zeal of the Spaniard Dominic was roused at the sight of the lordly prelates who sought by fire and sword to win the Albigensian heretics to the faith. "Zeal," he cried, "must be met by zeal, lowliness by lowliness, false sanctity by real sanctity, preaching lies by preaching truth." His fiery ardour and rigid orthodoxy were seconded by the mystical piety, the imaginative enthusiasm of Francis of Assisi. The life of Francis falls like a stream of tender light across the darkness of the time. In the frescoes of Giotto or the verse of Dante we see him take Poverty for his bride. He strips himself of all, he flings his very clothes at his father's feet, that he may be one with Nature and God. His passionate verse claims the moon for his sister and the sun for his brother, he calls on his brother the Wind, and his sister the Water. His last faint cry was a "Welcome, Sister Death!" Strangely as the two men differed from each other, their aim was the same--to convert the heathen, to extirpate heresy, to reconcile knowledge with orthodoxy, above all to carry the Gospel to the poor. The work was to be done by an utter reversal of the older monasticism, by seeking personal salvation in effort for the salvation of their fellow-men, by exchanging the solitary of the cloister for the preacher, the monk for the "brother" or friar.

To force the new "brethren" into entire dependence on those among whom they laboured their vow of Poverty was turned into a stern reality; the "Begging Friars" were to subsist solely on alms, they might possess neither money nor lands, the very houses in which they lived were to be held in trust for them by others. The tide of popular enthusiasm which welcomed their appearance swept before it the reluctance of Rome, the jealousy of the older orders, the opposition of the parochial priesthood. Thousands of brethren gathered in a few years round Francis and Dominic; and the begging preachers, clad in coarse frock of serge with a girdle of rope round their waist, wandered barefooted as missionaries over Asia, battled with heresy in Italy and Gaul, lectured in the Universities, and preached and toiled among the poor.

The Friars and the Towns

To the towns especially the coming of the Friars was a religious revolution. They had been left for the most part to the worst and most ignorant of the clergy, the mass-priest, whose sole subsistence lay in his fees. Burgher and artizan were left to spell out what religious instruction they might from the gorgeous ceremonies of the Church's ritual or the scriptural pictures and sculptures which were graven on the walls of its minsters. We can hardly wonder at the burst of enthusiasm which welcomed the itinerant preacher whose fervid appeal, coarse wit, and familiar story brought religion into the fair and the market place. In England, where the Black Friars of Dominic arrived in 1221, the Grey Friars of Francis in 1224, both were received with the same delight. As the older orders had chosen the country, the Friars chose the town. They had hardly landed at Dover before they made straight for London and Oxford. In their ignorance of the road the first two Grey Brothers lost their way in the woods between Oxford and Baldon, and fearful of night and of the floods turned aside to a grange of the monks of Abingdon. Their ragged clothes and foreign gestures, as they prayed for hospitality, led the porter to take them for jongleurs, the jesters and jugglers of the day, and the news of this break in the monotony of their lives brought prior, sacrist, and cellarer to the door to welcome them and witness their tricks. The disappointment was too much for the temper of the monks, and the brothers were kicked roughly from the gate to find their night's lodging under a tree. But the welcome of the townsmen made up everywhere for the ill-will and opposition of both

clergy and monks. The work of the Friars was physical as well as moral. The rapid progress of population within the boroughs had outstripped the sanitary regulations of the Middle Ages, and fever or plague or the more terrible scourge of leprosy festered in the wretched hovels of the suburbs. It was to haunts such as these that Francis had pointed his disciples, and the Grey Brethren at once fixed themselves in the meanest and poorest quarters of each town. Their first work lay in the noisome lazar-houses; it was amongst the lepers that they commonly chose the site of their homes. At London they settled in the shambles of Newgate; at Oxford they made their way to the swampy ground between its walls and the streams of Thames. Huts of mud and timber, as mean as the huts around them, rose within the rough fence and ditch that bounded the Friary. The order of Francis made a hard fight against the taste for sumptuous buildings and for greater personal comfort which characterized the time. "I did not enter into religion to build walls," protested an English provincial when the brethren pressed for a larger house; and Albert of Pisa ordered a stone cloister which the burgesses of Southampton had built for them to be razed to the ground. "You need no little mountains to lift your heads to heaven," was his scornful reply to a claim for pillows. None but the sick went shod. An Oxford Friar found a pair of shoes one morning, and wore them at matins. At night he dreamed that robbers leapt on him in a dangerous pass between Gloucester and Oxford with, shouts of "Kill, kill!" "I am a friar," shrieked the terror-stricken brother. "You lie," was the instant answer, "for you go shod." The Friar lifted up his foot in disproof, but the shoe was there. In an agony of repentance he woke and flung the pair out of window.

Revival of Theology

It was with less success that the order struggled against the passion of the time for knowledge. Their vow of poverty, rigidly interpreted as it was by their founders, would have denied them the possession of books or materials for study. "I am your breviary, I am your breviary," Francis cried passionately to a novice who asked for a psalter. When the news of a great doctor's reception was brought to him at Paris, his countenance fell. "I am afraid, my son," he replied, "that such doctors will be the destruction of my vineyard. They are the true doctors who with the meekness of wisdom show forth good works for the edification of their neighbours." One kind of knowledge indeed their work almost forced on them. The popularity of their

preaching soon led them to the deeper study of theology; within a short time after their establishment in England we find as many as thirty readers or lecturers appointed at Hereford, Leicester, Bristol, and other places, and a regular succession of teachers provided at each University. The Oxford Dominicans lectured on theology in the nave of their new church while philosophy was taught in the cloister. The first provincial of the Grey Friars built a school in their Oxford house and persuaded Grosseteste to lecture there. His influence after his promotion to the see of Lincoln was steadily exerted to secure theological study among the Friars, as well as their establishment in the University; and in this work he was ably seconded by his scholar, Adam Marsh, or de Marisco, under whom the Franciscan school at Oxford attained a reputation throughout Christendom. Lyons, Paris, and Koln borrowed from it their professors: it was through its influence indeed that Oxford rose to a position hardly inferior to that of Paris itself as a centre of scholasticism. But the result of this powerful impulse was soon seen to be fatal to the wider intellectual activity which had till now characterized the Universities. Theology in its scholastic form resumed its supremacy in the schools. Its only efficient rivals were practical studies such as medicine and law. The last, as he was by far the greatest, instance of the freer and wider culture which had been the glory of the last century, was Roger Bacon, and no name better illustrates the rapidity and completeness with which it passed away.

Roger Bacon

Roger Bacon was the child of royalist parents who were driven into exile and reduced to poverty by the civil wars. From Oxford, where he studied under Edmund of Abingdon to whom he owed his introduction to the works of Aristotle, he passed to the University of Paris, and spent his whole heritage there in costly studies and experiments. "From my youth up," he writes, "I have laboured at the sciences and tongues. I have sought the friendship of all men among the Latins who had any reputation for knowledge. I have caused youths to be instructed in languages, geometry, arithmetic, the construction of tables and instruments, and many needful things besides." The difficulties in the way of such studies as he had resolved to pursue were immense. He was without instruments or means of experiment. "Without mathematical instruments no science can be mastered," he complains afterwards, "and these instruments are not to be

found among the Latins, nor could they be made for two or three hundred pounds. Besides, better tables are indispensably necessary, tables on which the motions of the heavens are certified from the beginning to the end of the world without daily labour, but these tables are worth a king's ransom and could not be made without a vast expense. I have often attempted the composition of such tables, but could not finish them through failure of means and the folly of those whom I had to employ." Books were difficult and sometimes even impossible to procure. "The scientific works of Aristotle, of Avicenna, of Seneca, of Cicero, and other ancients cannot be had without great cost; their principal works have not been translated into Latin, and copies of others are not to be found in ordinary libraries or elsewhere. The admirable books of Cicero de Republica are not to be found anywhere, so far as I can hear, though I have made anxious enquiry for them in different parts of the world, and by various messengers. I could never find the works of Seneca, though I made diligent search for them during twenty years and more. And so it is with many more most useful books connected with the science of morals." It is only words like these of his own that bring home to us the keen thirst for knowledge, the patience, the energy of Roger Bacon. He returned as a teacher to Oxford, and a touching record of his devotion to those whom he taught remains in the story of John of London, a boy of fifteen, whose ability raised him above the general level of his pupils. "When he came to me as a poor boy," says Bacon in recommending him to the Pope, "I caused him to be nurtured and instructed for the love of God, especially since for aptitude and innocence I have never found so towardly a youth. Five or six years ago I caused him to be taught in languages, mathematics, and optics, and I have gratuitously instructed him with my own lips since the time that I received your mandate. There is no one at Paris who knows so much of the root of philosophy, though he has not produced the branches, flowers, and fruit because of his youth, and because he has had no experience in teaching. But he has the means of surpassing all the Latins if he live to grow old and goes on as he has begun."

The pride with which he refers to his system of instruction was justified by the wide extension which he gave to scientific teaching in Oxford. It is probably of himself that he speaks when he tells us that "the science of optics has not hitherto been lectured on at Paris or elsewhere among the

Latins, save twice at Oxford." It was a science on which he had laboured for ten years. But his teaching seems to have fallen on a barren soil. From the moment when the Friars settled in the Universities scholasticism absorbed the whole mental energy of the student world. The temper of the age was against scientific or philosophical studies. The older enthusiasm for knowledge was dying down; the study of law was the one source of promotion, whether in Church or state; philosophy was discredited, literature in its purer forms became almost extinct. After forty years of incessant study, Bacon found himself in his own words "unheard, forgotten, buried." He seems at one time to have been wealthy, but his wealth was gone. "During the twenty years that I have specially laboured in the attainment of wisdom, abandoning the path of common men, I have spent on these pursuits more than two thousand pounds, not to mention the cost of books, experiments, instruments, tables, the acquisition of languages, and the like. Add to all this the sacrifices I have made to procure the friendship of the wise and to obtain well-instructed assistants." Ruined and baffled in his hopes, Bacon listened to the counsels of his friend Grosseteste and renounced the world. He became a friar of the order of St. Francis, an order where books and study were looked upon as hindrances to the work which it had specially undertaken, that of preaching among the masses of the poor. He had written little. So far was he from attempting to write that his new superiors prohibited him from publishing anything under pain of forfeiture of the book and penance of bread and water. But we can see the craving of his mind, the passionate instinct of creation which marks the man of genius, in the joy with which he seized a strange opportunity that suddenly opened before him. "Some few chapters on different subjects, written at the entreaty of friends," seem to have got abroad, and were brought by one of the Pope's chaplains under the notice of Clement the Fourth. The Pope at once invited Bacon to write. But difficulties stood in his way. Materials, transcription, and other expenses for such a work as he projected would cost at least, £60, and the Pope sent not a penny. Bacon begged help from his family, but they were ruined like himself. No one would lend to a mendicant friar, and when his friends raised the money he needed it was by pawning their goods in the hope of repayment from Clement. Nor was this all; the work itself, abstruse and scientific as was its subject, had to be treated in a clear and popular form to gain the Papal ear. But difficulties which would have crushed another man only roused Roger Bacon to an almost superhuman energy. By

the close of 1267 the work was done. The "greater work," itself in modern form a closely-printed folio, with its successive summaries and appendices in the "lesser" and the "third" works (which make a good octavo more), were produced and forwarded to the Pope within fifteen months.

The Opus Majus

No trace of this fiery haste remains in the book itself. The "Opus Majus" is alike wonderful in plan and detail. Bacon's main purpose, in the words of Dr. Whewell, is "to urge the necessity of a reform in the mode of philosophizing, to set forth the reasons why knowledge had not made a greater progress, to draw back attention to sources of knowledge which had been unwisely neglected, to discover other sources which were yet wholly unknown, and to animate men to the undertaking by a prospect of the vast advantages which it offered." The developement of his scheme is on the largest scale; he gathers together the whole knowledge of his time on every branch of science which it possessed, and as he passes them in review he suggests improvements in nearly all. His labours, both here and in his after works, in the field of grammar and philology, his perseverance in insisting on the necessity of correct texts, of an accurate knowledge of languages, of an exact interpretation, are hardly less remarkable than his scientific investigations. From grammar he passes to mathematics, from mathematics to experimental philosophy. Under the name of mathematics indeed was included all the physical science of the time. "The neglect of it for nearly thirty or forty years," pleads Bacon passionately, "hath nearly destroyed the entire studies of Latin Christendom. For he who knows not mathematics cannot know any other sciences; and what is more, he cannot discover his own ignorance or find its proper remedies." Geography, chronology, arithmetic, music, are brought into something of scientific form, and like rapid sketches are given of the question of climate, hydrography, geography, and astrology. The subject of optics, his own especial study, is treated with greater fulness; he enters into the question of the anatomy of the eye besides discussing problems which lie more strictly within the province of optical science. In a word, the "Greater Work," to borrow the phrase of Dr. Whewell, is "at once the Encyclopedia and the Novum Organum of the thirteenth century." The whole of the after-works of Roger Bacon--and treatise after treatise has of late been disinterred from our

libraries--are but developements in detail of the magnificent conception he laid before Clement. Such a work was its own great reward.

From the world around Roger Bacon could look for and found small recognition. No word of acknowledgement seems to have reached its author from the Pope. If we may credit a more recent story, his writings only gained him a prison from his order. "Unheard, forgotten, buried," the old man died as he had lived, and it has been reserved for later ages to roll away the obscurity that had gathered round his memory, and to place first in the great roll of modern science the name of Roger Bacon.

Scholasticism

The failure of Bacon shows the overpowering strength of the drift towards the practical studies, and above all towards theology in its scholastic guise. Aristotle, who had been so long held at bay as the most dangerous foe of mediæval faith, was now turned by the adoption of his logical method in the discussion and definition of theological dogma into its unexpected ally. It was this very method that led to "that unprofitable subtlety and curiosity" which Lord Bacon notes as the vice of the scholastic philosophy. But "certain it is"--to continue the same great thinker's comment on the Friars--"that if these schoolmen to their great thirst of truth and unwearied travel of wit had joined variety of reading and contemplation, they had proved excellent lights to the great advancement of all learning and knowledge." What, amidst all their errors, they undoubtedly did was to insist on the necessity of rigid demonstration and a more exact use of words, to introduce a clear and methodical treatment of all subjects into discussion, and above all to substitute an appeal to reason for unquestioning obedience to authority. It was by this critical tendency, by the new clearness and precision which scholasticism gave to enquiry, that in spite of the trivial questions with which it often concerned itself it trained the human mind through the next two centuries to a temper which fitted it to profit by the great disclosure of knowledge that brought about the Renaissance. And it is to the same spirit of fearless enquiry as well as to the strong popular sympathies which their very constitution necessitated that we must attribute the influence which the Friars undoubtedly exerted in the coming struggle between the people and the Crown. Their position is clearly and strongly marked throughout the whole contest. The University

of Oxford, which soon fell under the direction of their teaching, stood first in its resistance to Papal exactions and its claim of English liberty. The classes in the towns, on whom the influence of the Friars told most directly, were steady supporters of freedom throughout the Barons' Wars.

Its Political Influence

Politically indeed the teaching of the schoolmen was of immense value, for it set on a religious basis and gave an intellectual form to the constitutional theory of the relations between king and people which was slowly emerging from the struggle with the Crown. In assuming the responsibility of a Christian king to God for the good government of his realm, in surrounding the pledges whether of ruler or ruled with religious sanctions, the mediæval Church entered its protest against any personal despotism. The schoolmen pushed further still to the doctrine of a contract between king and people; and their trenchant logic made short work of the royal claims to irresponsible power and unquestioning obedience. "He who would be in truth a king," ran a poem which embodies their teaching at this time in pungent verse--"he is a 'free king' indeed if he rightly rule himself and his realm. All things are lawful to him for the government of his realm, but nothing is lawful to him for its destruction. It is one thing to rule according to a king's duty, another to destroy a kingdom by resisting the law." "Let the community of the realm advise, and let it be known what the generality, to whom their laws are best known, think on the matter. They who are ruled by the laws know those laws best; they who make daily trial of them are best acquainted with them; and since it is their own affairs which are at stake they will take the more care and will act with an eye to their own peace." "It concerns the community to see what sort of men ought justly to be chosen for the weal of the realm." The constitutional restrictions on the royal authority, the right of the whole nation to deliberate and decide on its own affairs and to have a voice in the selection of the administrators of government, had never been so clearly stated before. But the importance of the Friar's work lay in this, that the work of the scholar was supplemented by that of the popular preacher. The theory of government wrought out in cell and lecture-room was carried over the length and breadth of the land by the mendicant brother, begging his way from town to town, chatting with farmer or housewife at the cottage door, and setting up his portable pulpit in village green or market-place. His open-air sermons,

ranging from impassioned devotion to coarse story and homely mother wit, became the journals as well as the homilies of the day; political and social questions found place in them side by side with spiritual matters; and the rudest countryman learned his tale of a king's oppression or a patriot's hopes as he listened to the rambling, passionate, humorous discourse of the begging friar.

Henry the Third

Never had there been more need of such a political education of the whole people than at the moment we have reached. For the triumph of the Charter, the constitutional government of Governor and Justiciar, had rested mainly on the helplessness of the king. As boy or youth, Henry the Third had bowed to the control of William Marshal or Langton or Hubert de Burgh. But he was now grown to manhood, and his character was from this hour to tell on the events of his reign. From the cruelty, the lust, the impiety of his father the young king was absolutely free. There was a geniality, a vivacity, a refinement in his temper which won a personal affection for him even in his worst days from some who bitterly censured his rule. The Abbey-church of Westminster, with which he replaced the ruder minster of the Confessor, remains a monument of his artistic taste. He was a patron and friend of men of letters, and himself skilled in the "gay science" of the troubadour. But of the political capacity which was the characteristic of his house he had little or none. Profuse, changeable, false from sheer meanness of spirit, impulsive alike in good and ill, unbridled in temper and tongue, reckless in insult and wit, Henry's delight was in the display of an empty and prodigal magnificence, his one notion of government was a dream of arbitrary power. But frivolous as the king's mood was, he clung with a weak man's obstinacy to a distinct line of policy; and this was the policy not of Hubert or Langton but of John. He cherished the hope of recovering his heritage across the sea. He believed in the absolute power of the Crown; and looked on the pledges of the Great Charter as promises which force had wrested from the king and which force could wrest back again. France was telling more and more on English opinion; and the claim which the French kings were advancing to a divine and absolute power gave a sanction in Henry's mind to the claim of absolute authority which was still maintained by his favourite advisers in the royal council. Above all he clung to the alliance with the Papacy. Henry was personally devout; and his devotion

only bound him the more firmly to his father's system of friendship with Rome. Gratitude and self-interest alike bound him to the Papal See. Rome had saved him from ruin as a child; its legate had set the crown on his head; its threats and excommunications had foiled Lewis and built up again a royal party. Above all it was Rome which could alone free him from his oath to the Charter, and which could alone defend him if like his father he had to front the baronage in arms.

England and Rome

His temper was now to influence the whole system of government. In 1227 Henry declared himself of age; and though Hubert still remained Justiciar every year saw him more powerless in his struggle with the tendencies of the king. The death of Stephen Langton in 1228 was a yet heavier blow to English freedom. In persuading Rome to withdraw her Legate the Primate had averted a conflict between the national desire for self-government and the Papal claims of overlordship. But his death gave the signal for a more serious struggle, for it was in the oppression of the Church of England by the Popes through the reign of Henry that the little rift first opened which was destined to widen into the gulf that parted the one from the other at the Reformation. In the mediæval theory of the Papacy, as Innocent and his successors held it, Christendom, as a spiritual realm of which the Popes were the head, took the feudal form of the secular realms which lay within its pale. The Pope was its sovereign, the Bishops were his barons, and the clergy were his under vassals. As the king demanded aids and subsidies in case of need from his liegemen, so in the theory of Rome might the head of the Church demand aid in need from the priesthood. And at this moment the need of the Popes was sore. Rome had plunged into her desperate conflict with the Emperor, Frederick the Second, and was looking everywhere for the means of recruiting her drained exchequer. On England she believed herself to have more than a spiritual claim for support. She regarded the kingdom as a vassal kingdom, and as bound to aid its overlord. It was only by the promise of a heavy subsidy that Henry in 1229 could buy the Papal confirmation of Langton's successor. But the baronage was of other mind than Henry as to this claim of overlordship, and the demand of an aid to Rome from the laity was at once rejected by them. Her spiritual claim over the allegiance of the clergy however remained to fall back upon, and the clergy were in the Pope's hand.

Gregory the Ninth had already claimed for the Papal See a right of nomination to some prebends in each cathedral church; he now demanded a tithe of all the moveables of the priesthood, and a threat of excommunication silenced their murmurs. Exaction followed exaction as the needs of the Papal treasury grew greater. The very rights of lay patrons were set aside, and under the name of "reserves" presentations to English benefices were sold in the Papal market, while Italian clergy were quartered on the best livings of the Church.

Fall of Hubert de Burgh

The general indignation at last found vent in a wide conspiracy. In 1231 letters from "the whole body of those who prefer to die rather than be ruined by the Romans" were scattered over the kingdom by armed men; tithes gathered for the Pope or the foreign priests were seized and given to the poor; the Papal collectors were beaten and their bulls trodden under foot. The remonstrances of Rome only made clearer the national character of the movement; but as enquiry went on the hand of the Justiciar himself was seen to have been at work. Sheriffs had stood idly by while violence was done; royal letters had been shown by the rioters as approving their acts; and the Pope openly laid the charge of the outbreak on the secret connivance of Hubert de Burgh. No charge could have been more fatal to Hubert in the mind of the king. But he was already in full collision with the Justiciar on other grounds. Henry was eager to vindicate his right to the great heritage his father had lost: the Gascons, who still clung to him, not because they loved England but because they hated France, spurred him to war; and in 1229 a secret invitation came from the Norman barons. But while Hubert held power no serious effort was made to carry on a foreign strife. The Norman call was rejected through his influence, and when a great armament gathered at Portsmouth for a campaign in Poitou it dispersed for want of transport and supplies. The young king drew his sword and rushed madly on the Justiciar, charging him with treason and corruption by the gold of France. But the quarrel was appeased and the expedition deferred for the year. In 1230 Henry actually took the field in Brittany and Poitou, but the failure of the campaign was again laid at the door of Hubert whose opposition was said to have prevented a decisive engagement. It was at this moment that the Papal accusation filled up the measure of Henry's wrath against his minister. In the summer of 1232 he

was deprived of his office of Justiciar, and dragged from a chapel at Brentwood where threats of death had driven him to take sanctuary. A smith who was ordered to shackle him stoutly refused. "I will die any death," he said, "before I put iron on the man who freed England from the stranger and saved Dover from France." The remonstrances of the Bishop of London forced the king to replace Hubert in sanctuary, but hunger compelled him to surrender; he was thrown a prisoner into the Tower, and though soon released he remained powerless in the realm. His fall left England without a check to the rule of Henry himself.

CHAPTER III

THE BARON'S WAR

1232-1272

The Aliens

Once master of his realm, Henry the Third was quick to declare his plan of government. The two great checks on a merely personal rule lay as yet in the authority of the great ministers of State and in the national character of the administrative body which had been built up by Henry the Second. Both of these checks Henry at once set himself to remove. He would be his own minister. The Justiciar ceased to be the Lieutenant-General of the king and dwindled into a presiding judge of the law-courts. The Chancellor had grown into a great officer of State, and in 1226 this office had been conferred on the Bishop of Chichester by the advice and consent of the Great Council. But Henry succeeded in wresting the seal from him and naming to this as to other offices at his pleasure. His policy was to entrust all high posts of government to mere clerks of the royal chapel; trained administrators, but wholly dependent on the royal will. He found equally dependent agents of administration by surrounding himself with foreigners. The return of Peter des Roches to the royal councils was the first sign of the new system; and hosts of hungry Poitevins and Bretons were summoned over to occupy the royal castles and fill the judicial and administrative posts about the Court. The king's marriage in 1236 to Eleanor of Provence was followed by the arrival in England of the new queen's uncles. The "Savoy," as his house in the Strand was named, still recalls Peter of Savoy who arrived five years later to take for a while the chief place at Henry's council-board; another brother, Boniface, was consecrated on Archbishop Edmund's death to the highest post in the realm save the Crown itself, the Archbishopric of Canterbury. The young Primate, like his brother, brought with him foreign fashions strange enough to English folk. His armed retainers pillaged the markets. His own archiepiscopal fist felled to the ground the prior of St. Bartholomew-by-Smithfield who opposed his

visitation. London was roused by the outrage; on the king's refusal to do justice a noisy crowd of citizens surrounded the Primate's house at Lambeth with cries of vengeance, and the "handsome archbishop," as his followers styled him, was glad to escape over sea. This brood of Provençals was followed in 1243 by the arrival of the Poitevin relatives of John's queen, Isabella of Angoulême. Aymer was made Bishop of Winchester; William of Valence received at a later time the earldom of Pembroke. Even the king's jester was a Poitevin. Hundreds of their dependants followed these great nobles to find a fortune in the English realm. The Poitevin lords brought in their train a bevy of ladies in search of husbands, and three English earls who were in royal wardship were wedded by the king to foreigners. The whole machinery of administration passed into the hands of men who were ignorant and contemptuous of the principles of English government or English law. Their rule was a mere anarchy; the very retainers of the royal household turned robbers and pillaged foreign merchants in the precincts of the Court; corruption invaded the judicature; at the close of this period of misrule Henry de Bath, a justiciary, was proved to have openly taken bribes and to have adjudged to himself disputed estates.

Henry and the Baronage

That misgovernment of this kind should have gone on unchecked in defiance of the provisions of the Charter was owing to the disunion and sluggishness of the English baronage. On the first arrival of the foreigners Richard, the Earl Marshal, a son of the great Regent, stood forth as their leader to demand the expulsion of the strangers from the royal Council. Though deserted by the bulk of the nobles he defeated the foreign troops sent against him and forced the king to treat for peace. But at this critical moment the Earl was drawn by an intrigue of Peter des Roches to Ireland; he fell in a petty skirmish, and the barons were left without a head. The interposition of a new primate, Edmund of Abingdon, forced the king to dismiss Peter from court; but there was no real change of system, and the remonstrances of the Archbishop and of Robert Grosseteste, the Bishop of Lincoln, remained fruitless. In the long interval of misrule the financial straits of the king forced him to heap exaction on exaction. The Forest Laws were used as a means of extortion, sees and abbeys were kept vacant, loans were wrested from lords and prelates, the Court itself lived at free quarters wherever it moved. Supplies of this kind however were utterly insufficient

to defray the cost of the king's prodigality. A sixth of the royal revenue was wasted in pensions to foreign favourites. The debts of the Crown amounted to four times its annual income. Henry was forced to appeal for aid to the great Council of the realm, and aid was granted in 1237 on promise of control in its expenditure and on condition that the king confirmed the Charter. But Charter and promise were alike disregarded; and in 1242 the resentment of the barons expressed itself in a determined protest and a refusal of further subsidies. In spite of their refusal however Henry gathered money enough for a costly expedition for the recovery of Poitou. The attempt ended in failure and shame. At Taillebourg the king's force fled in disgraceful rout before the French as far as Saintes, and only the sudden illness of Lewis the Ninth and a disease which scattered his army saved Bordeaux from the conquerors. The treasury was utterly drained, and Henry was driven in 1244 to make a fresh appeal with his own mouth to the baronage. But the barons had now rallied to a plan of action, and we can hardly fail to attribute their union to the man who appears at their head. This was the Earl of Leicester, Simon of Montfort.

Simon of Montfort

Simon was the son of another Simon of Montfort, whose name had become memorable for his ruthless crusade against the Albigenian heretics in Southern Gaul, and who had inherited the Earldom of Leicester through his mother, a sister and co-heiress of the last Earl of the house of Beaumont. But as Simon's tendencies were for the most part French John had kept the revenues of the earldom in his own hands, and on his death the claim of his elder son, Amaury, was met by the refusal of Henry the Third to accept a divided allegiance. The refusal marks the rapid growth of that sentiment of nationality which the loss of Normandy had brought home. Amaury chose to remain French, and by a family arrangement with the king's sanction the honour of Leicester passed in 1231 to his younger brother Simon. His choice made Simon an Englishman, but his foreign blood still moved the jealousy of the barons, and this jealousy was quickened by a secret match in 1238 with Eleanor, the king's sister and widow of the second William Marshal. The match formed probably part of a policy which Henry pursued throughout his reign of bringing the great earldoms into closer connexion with the Crown. That of Chester had fallen to the king through the extinction of the family of its earls; Cornwall was held by his brother,

Richard; Salisbury by his cousin. Simon's marriage linked the Earldom of Leicester to the royal house. But it at once brought Simon into conflict with the nobles and the Church. The baronage, justly indignant that such a step should have been taken without their consent, for the queen still remained childless and Eleanor's children by one whom they looked on as a stranger promised to be heirs of the Crown, rose in a revolt which failed only through the desertion of their head, Earl Richard of Cornwall, who was satisfied with Earl Simon's withdrawal from the Royal Council. The censures of the Church on Eleanor's breach of a vow of chaste widowhood which she had made at her first husband's death were averted with hardly less difficulty by a journey to Rome. It was after a year of trouble that Simon returned to England to reap as it seemed the fruits of his high alliance. He was now formally made Earl of Leicester and re-entered the Royal Council. But it is probable that he still found there the old jealousy which had forced from him a pledge of retirement after his marriage; and that his enemies now succeeded in winning over the king. In a few months, at any rate, he found the changeable king alienated from him, he was driven by a burst of royal passion from the realm, and was forced to spend seven months in France.

Simon's early action

Henry's anger passed as quickly as it had risen, and in the spring of 1240 the Earl was again received with honour at court. It was from this moment however that his position changed. As yet it had been that of a foreigner, confounded in the eyes of the nation at large with the Poitevins and Provençals who swarmed about the court. But in the years of retirement which followed Simon's return to England his whole attitude was reversed. There was as yet no quarrel with the king: he followed him in a campaign across the Channel, and shared in his defeat at Saintes. But he was a friend of Grosseteste and a patron of the Friars, and became at last known as a steady opponent of the misrule about him. When prelates and barons chose twelve representatives to confer with Henry in 1244 Simon stood with Earl Richard of Cornwall at the head of them. A definite plan of reform disclosed his hand. The confirmation of the Charter was to be followed by the election of Justiciar, Chancellor, Treasurer, in the Great Council. Nor was this restoration of a responsible ministry enough; a perpetual Council was to attend the king and devise further reforms. The plan broke against

Henry's resistance and a Papal prohibition; but from this time the Earl took his stand in the front rank of the patriot leaders. The struggle of the following years was chiefly with the exactions of the Papacy, and Simon was one of the first to sign the protest which the Parliament in 1246 addressed to the court of Rome. He was present at the Lent Parliament of 1248, and we can hardly doubt that he shared in its bold rebuke of the king's misrule and its renewed demand for the appointment of the higher officers of state by the Council. It was probably a sense of the danger of leaving at home such a centre of all efforts after reform that brought Henry to send him in the autumn of 1248 as Seneschal of Gascony to save for the Crown the last of its provinces over sea.

Simon in Gascony

Threatened by France and by Navarre without as well as by revolt within, the loss of Gascony seemed close at hand; but in a few months the stern rule of the new Seneschal had quelled every open foe within or without its bounds. To bring the province to order proved a longer and a harder task. Its nobles were like the robber-nobles of the Rhine: "they rode the country by night," wrote the Earl, "like thieves, in parties of twenty or thirty or forty," and gathered in leagues against the Seneschal, who set himself to exact their dues to the Crown and to shield merchant and husbandman from their violence. For four years Earl Simon steadily warred down these robber bands, storming castles where there was need, and bridling the wilder country with a chain of forts. Hard as the task was, his real difficulty lay at home. Henry sent neither money nor men; and the Earl had to raise both from his own resources, while the men whom he was fighting found friends in Henry's council-chamber. Again and again Simon was recalled to answer charges of tyranny and extortion made by the Gascon nobles and pressed by his enemies at home on the king. Henry's feeble and impulsive temper left him open to pressure like this; and though each absence of the Earl from the province was a signal for fresh outbreaks of disorder which only his presence repressed, the deputies of its nobles were still admitted to the council-table and commissions sent over to report on the Seneschal's administration. The strife came to a head in 1252, when the commissioners reported that stern as Simon's rule had been the case was one in which sternness was needful. The English barons supported Simon, and in the face of their verdict Henry was powerless. But the king was now wholly with his

enemies; and his anger broke out in a violent altercation. The Earl offered to resign his post if the money he had spent was repaid him, and appealed to Henry's word. Henry hotly retorted that he was bound by no promise to a false traitor. Simon at once gave Henry the lie; "and but that thou bearest the name of king it had been a bad hour for thee when thou utterdest such a word!" A formal reconciliation was brought about, and the Earl once more returned to Gascony, but before winter had come he was forced to withdraw to France. The greatness of his reputation was shown in an offer which its nobles made him of the regency of their realm during the absence of King Lewis from the land. But the offer was refused; and Henry, who had himself undertaken the pacification of Gascony, was glad before the close of 1253 to recall its old ruler to do the work he had failed to do.

Simon's temper

The Earl's character had now thoroughly developed. He inherited the strict and severe piety of his father; he was assiduous in his attendance on religious services whether by night or day. In his correspondence with Adam Marsh we see him finding patience under his Gascon troubles in a perusal of the Book of Job. His life was pure and singularly temperate; he was noted for his scant indulgence in meat, drink, or sleep. Socially he was cheerful and pleasant in talk; but his natural temper was quick and ardent, his sense of honour keen, his speech rapid and trenchant. His impatience of contradiction, his fiery temper, were in fact the great stumbling-blocks in his after career. His best friends marked honestly this fault, and it shows the greatness of the man that he listened to their remonstrances. "Better is a patient man," writes honest Friar Adam, "than a strong man, and he who can rule his own temper than he who storms a city." But the one characteristic which overmastered all was what men at that time called his "constancy," the firm immovable resolve which trampled even death under foot in its loyalty to the right. The motto which Edward the First chose as his device, "Keep troth," was far truer as the device of Earl Simon. We see in his correspondence with what a clear discernment of its difficulties both at home and abroad he "thought it unbecoming to decline the danger of so great an exploit" as the reduction of Gascony to peace and order; but once undertaken, he persevered in spite of the opposition he met with, the failure of all support or funds from England, and the king's desertion of his cause, till the work was done. There was the same steadiness of will and purpose

in his patriotism. The letters of Robert Grosseteste show how early Simon had learned to sympathize with the Bishop in his resistance to Rome, and at the crisis of the contest he offered him his own support and that of his associates. But Robert passed away, and as the tide of misgovernment mounted higher and higher the Earl silently trained himself for the day of trial. The fruit of his self-discipline was seen when the crisis came. While other men wavered and faltered and fell away, the enthusiastic love of the people clung to the grave, stern soldier who "stood like a pillar," unshaken by promise or threat or fear of death, by the oath he had sworn.

Matthew Paris

While Simon had been warring with Gascon rebels affairs in England had been going from bad to worse. The scourge of Papal taxation fell heavier on the clergy. After vain appeals to Rome and to the king, Archbishop Edmund retired to an exile of despair at Pontigny, and tax-gatherer after tax-gatherer with powers of excommunication, suspension from orders, and presentation to benefices, descended on the unhappy priesthood. The wholesale pillage kindled a wide spirit of resistance. Oxford gave the signal by hunting a Papal legate out of the city amid cries of "usurer" and "simoniac" from the mob of students. Fulk Fitz-Warrenne in the name of the barons bade a Papal collector begone out of England. "If you tarry here three days longer," he added, "you and your company shall be cut to pieces." For a time Henry himself was swept away by the tide of national indignation. Letters from the king, the nobles, and the prelates, protested against the Papal exactions, and orders were given that no money should be exported from the realm. But the threat of interdict soon drove Henry back on a policy of spoliation in which he went hand in hand with Rome. The temper which this oppression begot among even the most sober churchmen has been preserved for us by an annalist whose pages glow with the new outburst of patriotic feeling. Matthew Paris is the greatest, as he in reality is the last, of our monastic historians. The school of St. Alban's survived indeed till a far later time, but its writers dwindle into mere annalists whose view is bounded by the abbey precincts and whose work is as colourless as it is jejune. In Matthew the breadth and precision of the narrative, the copiousness of his information on topics whether national or European, the general fairness and justice of his comments, are only surpassed by the patriotic fire and enthusiasm of the whole. He had succeeded Roger of Wendover as chronicler at St. Alban's;

and the Greater Chronicle with an abridgement of it which long passed under the name of Matthew of Westminster, a "History of the English," and the "Lives of the Earlier Abbots," are only a few among the voluminous works which attest his prodigious industry. He was an artist as well as an historian, and many of the manuscripts which are preserved are illustrated by his own hand. A large circle of correspondents--bishops like Grosseteste, ministers like Hubert de Burgh, officials like Alexander de Swereford--furnished him with minute accounts of political and ecclesiastical proceedings. Pilgrims from the East and Papal agents brought news of foreign events to his scriptorium at St. Alban's. He had access to and quotes largely from state documents, charters, and exchequer rolls. The frequency of royal visits to the abbey brought him a store of political intelligence, and Henry himself contributed to the great chronicle which has preserved with so terrible a faithfulness the memory of his weakness and misgovernment. On one solemn feast-day the king recognized Matthew, and bidding him sit on the middle step between the floor and the throne begged him to write the story of the day's proceedings. While on a visit to St. Alban's he invited him to his table and chamber, and enumerated by name two hundred and fifty of the English baronies for his information. But all this royal patronage has left little mark on his work. "The case," as Matthew says, "of historical writers is hard, for if they tell the truth they provoke men, and if they write what is false they offend God." With all the fulness of the school of court historians, such as Benedict and Hoveden, to which in form he belonged, Matthew Paris combines an independence and patriotism which is strange to their pages. He denounces with the same unsparing energy the oppression of the Papacy and of the king. His point of view is neither that of a courtier nor of a churchman but of an Englishman, and the new national tone of his chronicle is but the echo of a national sentiment which at last bound nobles and yeomen and churchmen together into a people resolute to wrest freedom from the Crown.

Wales

The nation was outraged like the Church. Two solemn confirmations of the Charter failed to bring about any compliance with its provisions. In 1248, in 1249, and again in 1255 the great Council fruitlessly renewed its demand for a regular ministry, and the growing resolve of the nobles to enforce good government was seen in their offer of a grant on condition that

the great officers of the Crown were appointed in the Council of the Baronage. But Henry refused their offer with scorn and sold his plate to the citizens of London to find payment for his household. A spirit of mutinous defiance broke out on the failure of all legal remedy. When the Earl of Norfolk refused him aid Henry answered with a threat. "I will send reapers and reap your fields for you," he said. "And I will send you back the heads of your reapers," replied the Earl. Hampered by the profusion of the court and the refusal of supplies, the Crown was in fact penniless; and yet never was money more wanted, for a trouble which had long pressed upon the English kings had now grown to a height that called for decisive action. Even his troubles at home could not blind Henry to the need of dealing with the difficulty of Wales. Of the three Welsh states into which all that remained unconquered of Britain had been broken by the victories of Deorham and Chester, two had long ceased to exist. The country between the Clyde and the Dee had been gradually absorbed by the conquests of Northumbria and the growth of the Scot monarchy. West Wales, between the British Channel and the estuary of the Severn, had yielded to the sword of Ecgberht. But a fiercer resistance prolonged the independence of the great central portion which alone in modern language preserves the name of Wales. Comprising in itself the largest and most powerful of the British kingdoms, it was aided in its struggle against Mercia by the weakness of its assailant, the youngest and feeblest of the English states, as well as by an internal warfare which distracted the energies of the invaders. But Mercia had no sooner risen to supremacy among the English kingdoms than it took the work of conquest vigorously in hand. Offa tore from Wales the borderland between the Severn and the Wye; the raids of his successors carried fire and sword into the heart of the country; and an acknowledgement of the Mercian overlordship was wrested from the Welsh princes. On the fall of Mercia this overlordship passed to the West-Saxon kings, and the Laws of Howel Dda own the payment of a yearly tribute by "the prince of Aberffraw" to "the King of London." The weakness of England during her long struggle with the Danes revived the hopes of British independence; it was the co-operation of the Welsh on which the northmen reckoned in their attack on the house of Ecgberht. But with the fall of the Danelaw the British princes were again brought to submission, and when in the midst of the Confessor's reign the Welsh seized on a quarrel between the houses of Leofric and Godwine to cross the border and carry their attacks into

England itself, the victories of Harold reasserted the English supremacy. Disembarking on the coast his light-armed troops he penetrated to the heart of the mountains, and the successors of the Welsh prince Gruffydd, whose head was the trophy of the campaign, swore to observe the old fealty and render the old tribute to the English Crown.

Wales and the Normans

A far more desperate struggle began when the wave of Norman conquest broke on the Welsh frontier. A chain of great earldoms, settled by William along the border-land, at once bridled the old marauding forays. From his county palatine of Chester Hugh the Wolf harried Flintshire into a desert, Robert of Belesme in his earldom of Shrewsbury "slew the Welsh," says a chronicler, "like sheep, conquered them, enslaved them and flayed them with nails of iron." The earldom of Gloucester curbed Britain along the lower Severn. Backed by these greater baronies a horde of lesser adventurers obtained the royal "licence to make conquest on the Welsh." Monmouth and Abergavenny were seized and guarded by Norman castellans; Bernard of Neufmarché won the lordship of Brecknock; Roger of Montgomery raised the town and fortress in Powysland which still preserves his name. A great rising of the whole people in the days of the second William won back some of this Norman spoil. The new castle of Montgomery was burned, Brecknock and Cardigan were cleared of the invaders, and the Welsh poured ravaging over the English border. Twice the Red King carried his arms fruitlessly among the mountains against enemies who took refuge in their fastnesses till famine and hardship drove his broken host into retreat. The wiser policy of Henry the First fell back on his father's system of gradual conquest. A new tide of invasion flowed along the southern coast, where the land was level and open and accessible from the sea. The attack was aided by strife in the country itself. Robert Fitz-Hamo, the lord of Gloucester, was summoned to his aid by a Welsh chieftain; and his defeat of Rhys ap Tewdor, the last prince under whom Southern Wales was united, produced an anarchy which enabled Robert to land safely on the coast of Glamorgan, to conquer the country round, and to divide it among his soldiers. A force of Flemings and Englishmen followed the Earl of Clare as he landed near Milford Haven and pushing back the British inhabitants settled a "Little England" in the present Pembrokeshire. A few daring adventurers accompanied the Norman Lord of Kemeys into Cardigan,

where land might be had for the winning by any one who would "wage war on the Welsh."

The Welsh Revival

It was at this moment, when the utter subjugation of the British race seemed at hand, that a new outburst of energy rolled back the tide of invasion and changed the fitful resistance of the separate Welsh provinces into a national effort to regain independence. To all outer seeming Wales had become utterly barbarous. Stripped of every vestige of the older Roman civilization by ages of bitter warfare, of civil strife, of estrangement from the general culture of Christendom, the unconquered Britons had sunk into a mass of savage herdsmen, clad in the skins and fed by the milk of the cattle they tended. Faithless, greedy, and revengeful, retaining no higher political organization than that of the clan, their strength was broken by ruthless feuds, and they were united only in battle or in raid against the stranger. But in the heart of the wild people there still lingered a spark of the poetic fire which had nerved it four hundred years before through Aneurin and Llywarch Hen to its struggle with the earliest Englishmen. At the hour of its lowest degradation the silence of Wales was suddenly broken by a crowd of singers. The song of the twelfth century burst forth, not from one bard or another, but from the nation at large. The Welsh temper indeed was steeped in poetry. "In every house," says the shrewd Gerald de Barri, "strangers who arrived in the morning were entertained till eventide with the talk of maidens and the music of the harp." A romantic literature, which was destined to leaven the fancy of western Europe, had grown up among this wild people and found an admirable means of utterance in its tongue. The Welsh language was as real a developement of the old Celtic language heard by Cæsar as the Romance tongues are developements of Cæsar's Latin, but at a far earlier date than any other language of modern Europe it had attained to definite structure and to settled literary form. No other mediæval literature shows at its outset the same elaborate and completed organization as that of the Welsh. But within these settled forms the Celtic fancy played with a startling freedom. In one of the later poems Gwion the Little transforms himself into a hare, a fish, a bird, a grain of wheat; but he is only the symbol of the strange shapes in which the Celtic fancy embodies itself in the romantic tales which reached their highest perfection in the legends of Arthur.

The Welsh Poetry

The gay extravagance of these "Mabinogion" flings defiance to all fact, tradition, probability, and revels in the impossible and unreal. When Arthur sails into the unknown world it is in a ship of glass. The "descent into hell," as a Celtic poet paints it, shakes off the mediæval horror with the mediæval reverence, and the knight who achieves the quest spends his years of infernal durance in hunting and minstrelsy, and in converse with fair women. The world of the Mabinogion is a world of pure phantasy, a new earth of marvels and enchantments, of dark forests whose silence is broken by the hermit's bell and sunny glades where the light plays on the hero's armour. Each figure as it moves across the poet's canvas is bright with glancing colour. "The maiden was clothed in a robe of flame-coloured silk, and about her neck was a collar of ruddy gold in which were precious emeralds and rubies. Her head was of brighter gold than the flower of the broom, her skin was whiter than the foam of the wave, and fairer were her hands and her fingers than the blossoms of the wood-anemone amidst the spray of the meadow fountain. The eye of the trained hawk, the glance of the falcon, was not brighter than hers. Her bosom was more snowy than the breast of the white swan, her cheek was redder than the reddest roses." Everywhere there is an Oriental profusion of gorgeous imagery, but the gorgeousness is seldom oppressive. The sensibility of the Celtic temper, so quick to perceive beauty, so eager in its thirst for life, its emotions, its adventures, its sorrows, its joys, is tempered by a passionate melancholy that expresses its revolt against the impossible, by an instinct of what is noble, by a sentiment that discovers the weird charm of nature. The wildest extravagance of the tale-teller is relieved by some graceful play of pure fancy, some tender note of feeling, some magical touch of beauty. As Kulwch's greyhounds bound from side to side of their master's steed, they "sport round him like two sea-swallows." His spear is "swifter than the fall of the dewdrop from the blade of reed-grass upon the earth when the dew of June is at the heaviest." A subtle, observant love of nature and natural beauty takes fresh colour from the passionate human sentiment with which it is imbued. "I love the birds" sings Gwalchmai "and their sweet voices in the lulling songs of the wood"; he watches at night beside the fords "among the untrodden grass" to hear the nightingale and watch the play of the seaweed. Even patriotism takes the same picturesque form. The Welsh poet

hates the flat and sluggish land of the Saxon; as he dwells on his own he tells of "its sea-coast and its mountains, its towns on the forest border, its fair landscape, its dales, its waters, and its valleys, its white sea-mews, its beauteous women." Here as everywhere the sentiment of nature passes swiftly and subtly into the sentiment of a human tenderness: "I love its fields clothed with tender trefoil" goes on the song; "I love the marches of Merioneth where my head was pillowed on a snow-white arm." In the Celtic love of woman there is little of the Teutonic depth and earnestness, but in its stead a childlike spirit of delicate enjoyment, a faint distant flush of passion like the rose-light of dawn on a snowy mountain peak, a playful delight in beauty. "White is my love as the apple-blossom, as the ocean's spray; her face shines like the pearly dew on Eryri; the glow of her cheeks is like the light of sunset." The buoyant and elastic temper of the French *trouveur* was spiritualized in the Welsh singers by a more refined poetic feeling. "Whoso beheld her was filled with her love. Four white trefoils sprang up wherever she trod." A touch of pure fancy such as this removes its object out of the sphere of passion into one of delight and reverence.

The Bards

It is strange to pass from the world of actual Welsh history into such a world as this. But side by side with this wayward, fanciful stream of poesy and romance ran a torrent of intenser song. The spirit of the earlier bards, their joy in battle, their love of freedom, broke out anew in ode after ode, in songs extravagant, monotonous, often prosaic, but fused into poetry by the intense fire of patriotism which glowed within them. Every fight, every hero had its verse. The names of older singers, of Taliesin, Aneurin, and Llywarch Hen, were revived in bold forgeries to animate the national resistance and to prophesy victory. It was in North Wales that the spirit of patriotism received its strongest inspiration from this burst of song. Again and again Henry the Second was driven to retreat from the impregnable fastnesses where the "Lords of Snowdon," the princes of the house of Gruffydd ap Conan, claimed supremacy over the whole of Wales. Once in the pass of Consilt a cry arose that the king was slain, Henry of Essex flung down the royal standard, and the king's desperate efforts could hardly save his army from utter rout. The bitter satire of the Welsh singers bade him knight his horse, since its speed had alone saved him from capture. In a later campaign the invaders were met by storms of rain, and forced to

abandon their baggage in a headlong flight to Chester. The greatest of the Welsh odes, that known to English readers in Gray's translation as "The Triumph of Owen," is Gwalchmai's song of victory over the repulse of an English fleet from Abermenai.

Llewelyn ap Jorwerth

The long reign of Llewelyn the son of Jorwerth seemed destined to realize the hopes of his countrymen. The homage which he succeeded in extorting from the whole of the Welsh chieftains during a reign which lasted from 1194 to 1246 placed him openly at the head of his race, and gave a new character to its struggle with the English king. In consolidating his authority within his own domains, and in the assertion of his lordship over the princes of the south, Llewelyn ap Jorwerth aimed steadily at securing the means of striking off the yoke of the Saxon. It was in vain that John strove to buy his friendship by the hand of his natural daughter Johanna. Fresh raids on the Marches forced the king to enter Wales in 1211; but though his army reached Snowdon it fell back like its predecessors, starved and broken before an enemy it could never reach. A second attack in the same year had better success. The chieftains of South Wales were drawn from their new allegiance to join the English forces, and Llewelyn, prisoned in his fastnesses, was at last driven to submit. But the ink of the treaty was hardly dry before Wales was again on fire; a common fear of the English once more united its chieftains, and the war between John and his barons soon removed all dread of a new invasion. Absolved from his allegiance to an excommunicated king, and allied with the barons under Fitz-Walter--too glad to enlist in their cause a prince who could hold in check the nobles of the border country where the royalist cause was strongest--Llewelyn seized his opportunity to reduce Shrewsbury, to annex Powys, the central district of Wales where the English influence had always been powerful, to clear the royal garrisons from Caermarthen and Cardigan, and to force even the Flemings of Pembroke to do him homage.

Llewelyn and the Bards

England watched these efforts of the subject race with an anger still mingled with contempt. "Who knows not," exclaims Matthew Paris as he dwells on the new pretensions of the Welsh ruler, "who knows not that the

Prince of Wales is a petty vassal of the King of England?" But the temper of Llewelyn's own people was far other than the temper of the English chronicler. The hopes of Wales rose higher and higher with each triumph of the Lord of Snowdon. His court was crowded with bardic singers. "He pours," sings one of them, "his gold into the lap of the bard as the ripe fruit falls from the trees." Gold however was hardly needed to wake their enthusiasm. Poet after poet sang of "the Devastator of England," the "Eagle of men that loves not to lie nor sleep," "towering above the rest of men with his long red lance," his "red helmet of battle crested with a fierce wolf." "The sound of his coming is like the roar of the wave as it rushes to the shore, that can neither be stayed nor hushed." Lesser bards strung together Llewelyn's victories in rough jingle of rime and hounded him on to the slaughter. "Be of good courage in the slaughter," sings Elidir, "cling to thy work, destroy England, and plunder its multitudes." A fierce thirst for blood runs through the abrupt, passionate verses of the court singers. "Swansea, that tranquil town, was broken in heaps," bursts out a triumphant bard; "St. Clears, with its bright white lands, it is not Saxons who hold it now!" "In Swansea, the key of Lloegria, we made widows of all the wives." "The dread Eagle is wont to lay corpses in rows, and to feast with the leader of wolves and with hovering ravens glutted with flesh, butchers with keen scent of carcasses." "Better," closes the song, "better the grave than the life of man who sighs when the horns call him forth, to the squares of battle."

The Welsh hopes

But even in bardic verse Llewelyn rises high out of the mere mob of chieftains who live by rapine, and boast as the Hirlas-horn passes from hand to hand through the hall that "they take and give no quarter." "Tender-hearted, wise, witty, ingenious," he was "the great Caesar" who was to gather beneath his sway the broken fragments of the Celtic race. Mysterious prophecies, the prophecies of Merlin the Wise which floated from lip to lip and were heard even along the Seine and the Rhine, came home again to nerve Wales to its last struggle with the stranger. Medrawd and Arthur, men whispered, would appear once more on earth to fight over again the fatal battle of Camlan in which the hero-king perished. The last conqueror of the Celtic race, Cadwallon, still lived to combat for his people. The supposed verses of Taliesin expressed the undying hope of a restoration of the Cymry. "In their hands shall be all the land from Brittany to Man: ... a rumour shall

arise that the Germans are moving out of Britain back again to their fatherland." Gathered up in the strange work of Geoffry of Monmouth, these predictions had long been making a deep impression not on Wales only but on its conquerors. It was to meet the dreams of a yet living Arthur that the grave of the legendary hero-king at Glastonbury was found and visited by Henry the Second. But neither trick nor conquest could shake the firm faith of the Celt in the ultimate victory of his race. "Think you," said Henry to a Welsh chieftain who joined his host, "that your people of rebels can withstand my army?" "My people," replied the chieftain, "may be weakened by your might, and even in great part destroyed, but unless the wrath of God be on the side of its foe it will not perish utterly. Nor deem I that other race or other tongue will answer for this corner of the world before the Judge of all at the last day save this people and tongue of Wales." So ran the popular rime, "Their Lord they will praise, their speech they shall keep, their land they shall lose--except wild Wales."

The Provisions of Oxford

Faith and prophecy seemed justified by the growing strength of the British people. The weakness and dissensions which characterized the reign of Henry the Third enabled Llewelyn ap Iorwerth to preserve a practical independence till the close of his life, when a fresh acknowledgement of the English supremacy was wrested from him by Archbishop Edmund. But the triumphs of his arms were renewed by Llewelyn the son of Gruffydd, who followed him in 1246. The raids of the new chieftain swept the border to the very gates of Chester, while his conquest of Glamorgan seemed to bind the whole people together in a power strong enough to meet any attack from the stranger. So pressing was the danger that it called the king's eldest son, Edward, to the field; but his first appearance in arms ended in a crushing defeat. The defeat however remained unavenged. Henry's dreams were of mightier enterprises than the reduction of the Welsh. The Popes were still fighting their weary battle against the House of Hohenstaufen, and were offering its kingdom of Sicily, which they regarded as a forfeited fief of the Holy See, to any power that would aid them in the struggle. In 1254 it was offered to the king's second son, Edmund. With imbecile pride Henry accepted the offer, prepared to send an army across the Alps, and pledged England to repay the sums which the Pope was borrowing for the purposes of his war. In a Parliament at the opening of 1257 he demanded an aid and a

tenth from the clergy. A fresh demand was made in 1258. But the patience of the realm was at last exhausted. Earl Simon had returned in 1253 from his government of Gascony, and the fruit of his meditations during the four years of his quiet stay at home, a quiet broken only by short embassies to France and Scotland which showed there was as yet no open quarrel with Henry, was seen in a league of the baronage and in their adoption of a new and startling policy. The past half-century had shown both the strength and weakness of the Charter: its strength as a rallying-point for the baronage and a definite assertion of rights which the king could be made to acknowledge; its weakness in providing no means for the enforcement of its own stipulations. Henry had sworn again and again to observe the Charter and his oath was no sooner taken than it was unscrupulously broken. The barons had secured the freedom of the realm; the secret of their long patience during the reign of Henry lay in the difficulty of securing its right administration. It was this difficulty which Earl Simon was prepared to solve when action was forced on him by the stir of the realm. A great famine added to the sense of danger from Wales and from Scotland and to the irritation at the new demands from both Henry and Rome with which the year 1258 opened. It was to arrange for a campaign against Wales that Henry called a parliament in April. But the baronage appeared in arms with Gloucester and Leicester at their head. The king was forced to consent to the appointment of a committee of twenty-four to draw up terms for the reform of the state. The Twenty-four again met the Parliament at Oxford in June, and although half the committee consisted of royal ministers and favourites it was impossible to resist the tide of popular feeling. Hugh Bigod, one of the firmest adherents of the two Earls, was chosen as Justiciar. The claim to elect this great officer was in fact the leading point in the baronial policy. But further measures were needed to hold in check such arbitrary misgovernment as had prevailed during the last twenty years. By the "Provisions of Oxford" it was agreed that the Great Council should assemble thrice in the year, whether summoned by the king or no; and on each occasion "the Commonalty shall elect twelve honest men who shall come to the Parliaments, and at other times when occasion shall be when the King and his Council shall send for them, to treat of the wants of the king and of his kingdom. And the Commonalty shall hold as established that which these Twelve shall do." Three permanent committees of barons and prelates were named to carry out the work of reform and

administration. The reform of the Church was left to the original Twenty-four; a second Twenty-four negotiated the financial aids; a Permanent Council of Fifteen advised the king in the ordinary work of government. The complexity of such an arrangement was relieved by the fact that the members of each of these committees were in great part the same persons. The Justiciar, Chancellor, and the guardians of the king's castles swore to act only with the advice and assent of the Permanent Council, and the first two great officers, with the Treasurer, were to give account of their proceedings to it at the end of the year. Sheriffs were to be appointed for a single year only, no doubt by the Council, from among the chief tenants of the county, and no undue fees were to be exacted for the administration of justice in their court.

Government of the Barons

A royal proclamation in the English tongue, the first in that tongue since the Conquest which has reached us, ordered the observance of these Provisions. The king was in fact helpless, and resistance came only from the foreign favourites, who refused to surrender the castles and honours which had been granted to them. But the Twenty-four were resolute in their action; and an armed demonstration of the barons drove the foreigners in flight over sea. The whole royal power was now in fact in the hands of the committees appointed by the Great Council. But the measures of the barons showed little of the wisdom and energy which the country had hoped for. In October 1259 the knighthood complained that the barons had done nothing but seek their own advantage in the recent changes. This protest produced the Provisions of Westminster, which gave protection to tenants against their feudal lords, regulated legal procedure in the feudal courts, appointed four knights in each shire to watch the justice of the sheriffs, and made other temporary enactments for the furtherance of justice. But these Provisions brought little fruit, and a tendency to mere feudal privilege showed itself in an exemption of all nobles and prelates from attendance at the Sheriff's courts. Their foreign policy was more vigorous and successful. All further payment to Rome, whether secular or ecclesiastical, was prohibited, formal notice was given to the Pope of England's withdrawal from the Sicilian enterprise, peace put an end to the incursions of the Welsh, and negotiations on the footing of a formal abandonment of the king's claim

to Normandy, Anjou, Maine, Touraine, and Poitou ended in October 1259 in a peace with France.

Simon and the Baronage

This peace, the triumph of that English policy which had been struggling ever since the days of Hubert de Burgh with the Continental policy of Henry and his foreign advisers, was the work of the Earl of Leicester. The revolution had doubtless been mainly Simon's doing. In the summer of 1258, while the great change was going on, a thunderstorm drove the king as he passed along the river to the house of the Bishop of Durham where the Earl was then sojourning. Simon bade Henry take shelter with him and have no fear of the storm. The king refused with petulant wit. "If I fear the thunder, I fear you, Sir Earl, more than all the thunder in the world." But Simon had probably small faith in the cumbrous system of government which the Barons devised, and it was with reluctance that he was brought to swear to the Provisions of Oxford which embodied it. With their home government he had little to do, for from the autumn of 1258 to that of 1259 he was chiefly busied in negotiation in France. But already his breach with Gloucester and the bulk of his fellow councillors was marked. In the Lent Parliament of 1259 he had reproached them, and Gloucester above all, with faithlessness to their trust. "The things we are treating of," he cried, "we have sworn to carry out. With such feeble and faithless men I care not to have ought to do!" The peace with France was hardly signed when his distrust of his colleagues was verified. Henry's withdrawal to the French court at the close of the year for the formal signature of the treaty was the signal for a reactionary movement. From France the king forbade the summoning of a Lent Parliament in 1260 and announced his resumption of the enterprise against Sicily. Both acts were distinct breaches of the Provisions of Oxford, but Henry trusted to the divisions of the Twenty-four. Gloucester was in open feud with Leicester; the Justiciar, Hugh Bigod, resigned his office in the spring; and both of these leaders drew cautiously to the king. Roger Mortimer and the Earls of Hereford and Norfolk more openly espoused the royal cause, and in February 1260 Henry had gained confidence enough to announce that as the barons had failed to keep their part of the Provisions he should not keep his.

The Counter Revolution

Earl Simon almost alone remained unshaken. But his growing influence was seen in the appointment of his supporter, Hugh Despenser, as Justiciar in Bigod's place, while his strength was doubled by the accession of the King's son Edward to his side. In the moment of the revolution Edward had vehemently supported the party of the foreigners. But he had sworn to observe the Provisions, and the fidelity to his pledge which remained throughout his life the chief note of his temper at once showed itself. Like Simon he protested against the faithlessness of the barons in the carrying out of their reforms, and it was his strenuous support of the petition of the knighthood that brought about the additional Provisions of 1259. He had been brought up with Earl Simon's sons, and with the Earl himself his relations remained friendly even at the later time of their fatal hostilities. But as yet he seems to have had no distrust of Simon's purposes or policy. His adhesion to the Earl recalled Henry from France; and the king was at once joined by Gloucester in London while Edward and Simon remained without the walls. But the love of father and son proved too strong to bear political severance, and Edward's reconciliation foiled the Earl's plans. He withdrew to the Welsh border, where fresh troubles were breaking out, while Henry prepared to deal his final blow at the government which, tottering as it was, still held him in check. Rome had resented the measures which had put an end to her extortions, and it was to Rome that Henry looked for a formal absolution from his oath to observe the Provisions. In June 1261 he produced a Bull annulling the Provisions and freeing him from his oath in a Parliament at Winchester. The suddenness of the blow forbade open protest and Henry quickly followed up his victory. Hugh Bigod, who had surrendered the Tower and Dover in the spring, surrendered the other castles he held in the autumn. Hugh Despenser was deposed from the Justiciarship and a royalist, Philip Basset, appointed in his place.

Simon's rising

The news of this counter-revolution reunited for a moment the barons. Gloucester joined Earl Simon in calling an autumn Parliament at St. Alban's, and in summoning to it three knights from every shire south of Trent. But the union was a brief one. Gloucester consented to refer the quarrel with the king to arbitration and the Earl of Leicester withdrew in August to France. He saw that for the while there was no means of withstanding Henry, even in his open defiance of the Provisions. Foreign

soldiers were brought into the land; the king won back again the appointment of sheriffs. For eighteen months of this new rule Simon could do nothing but wait. But his long absence lulled the old jealousies against him. The confusion of the realm and a fresh outbreak of troubles in Wales renewed the disgust at Henry's government, while his unswerving faithfulness to the Provisions fixed the eyes of all Englishmen upon the Earl as their natural leader. The death of Gloucester in the summer of 1262 removed the one barrier to action; and in the spring of 1263 Simon landed again in England as the unquestioned head of the baronial party. What immediately forced him to action was a march of Edward with a body of foreign troops against Llewelyn, who was probably by this time in communication if not in actual alliance with the Earl. The chief opponents of Llewelyn among the Marcher Lords were ardent supporters of Henry's misgovernment, and when a common hostility drew the Prince and Earl together, the constitutional position of Llewelyn as an English noble gave formal justification for co-operation with him. At Whitsuntide the barons met Simon at Oxford and finally summoned Henry to observe the Provisions. His refusal was met by an appeal to arms. Throughout the country the younger nobles flocked to Simon's standard, and the young Earl of Gloucester, Gilbert of Clare, became his warmest supporter. His rapid movements foiled all opposition. While Henry vainly strove to raise money and men, Simon swept the Welsh border, marched through Reading on Dover, and finally appeared before London.

Mise of Amiens

The Earl's triumph was complete. Edward after a brief attempt at resistance was forced to surrender Windsor and disband his foreign troops. The rising of London in the cause of the barons left Henry helpless. But at the moment of triumph the Earl saw himself anew forsaken. The bulk of the nobles again drew towards the king; only six of the twelve barons who had formed the patriot half of the committee of 1258, only four of the twelve representatives of the community at that date, were now with the Earl. The dread too of civil war gave strength to the cry for a compromise, and at the end of the year it was agreed that the strife should be left to the arbitration of the French king, Lewis the Ninth. But saint and just ruler as he was, the royal power was in the conception of Lewis a divine thing, which no human power could limit or fetter, and his decision, which was given in January

1264, annulled the whole of the Provisions. Only the Charters granted before the Provisions were to be observed. The appointment and removal of all officers of state was to be wholly with the king, and he was suffered to call aliens to his councils if he would. The Mise of Amiens was at once confirmed by the Pope, and, crushing blow as it was, the barons felt themselves bound by the award. It was only the exclusion of aliens--a point which they had not purposed to submit to arbitration--which they refused to concede. Luckily Henry was as inflexible on this point as on the rest, and the mutual distrust prevented any real accommodation.

Battle of Lewes

But Henry had to reckon on more than the baronage. Deserted as he was by the greater nobles, Simon was far from standing alone. Throughout the recent struggle the new city governments of the craft-gilds, which were known by the name of "Communes," had shown an enthusiastic devotion to his cause. The queen was stopped in her attempt to escape from the Tower by an angry mob, who drove her back with stones and foul words. When Henry attempted to surprise Leicester in his quarters at Southwark, the Londoners burst the gates which had been locked by the richer burghers against him, and rescued him by a welcome into the city. The clergy and the universities went in sympathy with the towns, and in spite of the taunts of the royalists, who accused him of seeking allies against the nobility in the common people, the popular enthusiasm gave a strength to the Earl which sustained him even in this darkest hour of the struggle. He at once resolved on resistance. The French award had luckily reserved the rights of Englishmen to the liberties they had enjoyed before the Provisions of Oxford, and it was easy for Simon to prove that the arbitrary power it gave to the Crown was as contrary to the Charter as to the Provisions themselves. London was the first to reject the decision; in March 1264 its citizens mustered at the call of the town-bell at Saint Paul's, seized the royal officials, and plundered the royal parks. But an army had already mustered in great force at the king's summons, while Leicester found himself deserted by the bulk of the baronage. Every day brought news of ill. A detachment from Scotland joined Henry's forces. The younger De Montfort was taken prisoner. Northampton was captured, the king raised the siege of Rochester, and a rapid march of Earl Simon's only saved London itself from a surprise by Edward. But, betrayed as he was, the Earl remained firm to the cause.

He would fight to the end, he said, even were he and his sons left to fight alone. With an army reinforced by 15,000 Londoners, he marched in May to the relief of the Cinque Ports which were now threatened by the king. Even on the march he was forsaken by many of the nobles who followed him. Halting at Fletching in Sussex, a few miles from Lewes, where the royal army was encamped, Earl Simon with the young Earl of Gloucester offered the king compensation for all damage if he would observe the Provisions. Henry's answer was one of defiance, and though numbers were against him, the Earl resolved on battle. His skill as a soldier reversed the advantages of the ground; marching at dawn on the 14th of May he seized the heights eastward of the town, and moved down these slopes to an attack. His men with white crosses on back and breast knelt in prayer before the battle opened, and all but reached the town before their approach was perceived. Edward however opened the fight by a furious charge which broke the Londoners on Leicester's left. In the bitterness of his hatred for the insult to his mother he pursued them for four miles, slaughtering three thousand men. But he returned to find the battle lost. Crowded in the narrow space between the heights and the river Ouse, a space broken by marshes and by the long street of the town, the royalist centre and left were crushed by Earl Simon. The Earl of Cornwall, now King of the Romans, who, as the mocking song of the victors ran, "makede him a castel of a mulne post" ("he weened that the mill-sails were mangonels" goes on the sarcastic verse), was taken prisoner, and Henry himself captured. Edward cut his way into the Priory only to join in his father's surrender.

Simon's rule

The victory of Lewes placed Earl Simon at the head of the state. "Now England breathes in the hope of liberty," sang a poet of the time; "the English were despised like dogs, but now they have lifted up their head and their foes are vanquished." But the moderation of the terms agreed upon in the Mise of Lewes, a convention between the king and his captors, shows Simon's sense of the difficulties of his position. The question of the Provisions was again to be submitted to arbitration; and a parliament in June, to which four knights were summoned from every county, placed the administration till this arbitration was complete in the hands of a new council of nine to be nominated by the Earls of Leicester and Gloucester and the patriotic Bishop of Chichester. Responsibility to the community was

provided for by the declaration of a right in the body of barons and prelates to remove either of the Three Electors, who in turn could displace or appoint the members of the Council. Such a constitution was of a different order from the cumbrous and oligarchical committees of 1258. But it had little time to work in. The plans for a fresh arbitration broke down. Lewis refused to review his decision, and all schemes for setting fresh judges between the king and his people were defeated by a formal condemnation of the barons' cause issued by the Pope. Triumphant as he was indeed Earl Simon's difficulties thickened every day. The queen with Archbishop Boniface gathered an army in France for an invasion; Roger Mortimer with the border barons was still in arms and only held in check by Llewelyn. It was impossible to make binding terms with an imprisoned king, yet to release Henry without terms was to renew the war. The imprisonment too gave a shock to public feeling which thinned the Earl's ranks. In the new Parliament which he called at the opening of 1265 the weakness of the patriotic party among the baronage was shown in the fact that only twenty-three earls and barons could be found to sit beside the hundred and twenty ecclesiastics.

Summons of the Commons

But it was just this sense of his weakness which prompted the Earl to an act that has done more than any incident of this struggle to immortalize his name. Had the strife been simply a strife for power between the king and the baronage the victory of either would have been equally fatal in its results. The success of the one would have doomed England to a royal despotism, that of the other to a feudal aristocracy. Fortunately for our freedom the English baronage had been brought too low by the policy of the kings to be able to withstand the crown single-handed. From the first moment of the contest it had been forced to make its cause a national one. The summons of two knights from each county, elected in its county court, to a Parliament in 1254, even before the opening of the struggle, was a recognition of the political weight of the country gentry which was confirmed by the summons of four knights from every county to the Parliament assembled after the battle of Lewes. The Provisions of Oxford, in stipulating for attendance and counsel on the part of twelve delegates of the "commonalty," gave the first indication of a yet wider appeal to the people at large. But it was the weakness of his party among the baronage at

this great crisis which drove Earl Simon to a constitutional change of mighty issue in our history. As before, he summoned two knights from every county. But he created a new force in English politics when he summoned to sit beside them two citizens from every borough. The attendance of delegates from the towns had long been usual in the county courts when any matter respecting their interests was in question; but it was the writ issued by Earl Simon that first summoned the merchant and the trader to sit beside the knight of the shire, the baron, and the bishop in the parliament of the realm.

Simon's difficulties

It is only this great event however which enables us to understand the large and prescient nature of Earl Simon's designs. Hardly a few months had passed away since the victory of Lewes when the burghers took their seats at Westminster, yet his government was tottering to its fall. We know little of the Parliament's acts. It seems to have chosen Simon as Justiciar and to have provided for Edward's liberation, though he was still to live under surveillance at Hereford and to surrender his earldom of Chester to Simon, who was thus able to communicate with his Welsh allies. The Earl met the dangers from without with complete success. In September 1264 a general muster of the national forces on Barham Down and a contrary wind put an end to the projects of invasion entertained by the mercenaries whom the queen had collected in Flanders; the threats of France died away into negotiations; the Papal Legate was forbidden to cross the Channel, and his bulls of excommunication were flung into the sea. But the difficulties at home grew more formidable every day. The restraint upon Henry and Edward jarred against the national feeling of loyalty, and estranged the mass of Englishmen who always side with the weak. Small as the patriotic party among the barons had been from the first, it grew smaller as dissensions broke out over the spoils of victory. The Earl's justice and resolve to secure the public peace told heavily against him. John Giffard left him because he refused to allow him to exact ransom from a prisoner, contrary to the agreement made after Lewes. A greater danger opened when the young Earl of Gloucester, though enriched with the estates of the foreigners, held himself aloof from the Justiciar, and resented Leicester's prohibition of a tournament, his naming the wardens of the royal castles by

his own authority, his holding Edward's fortresses on the Welsh marches by his own garrisons.

Edward and Gloucester

Gloucester's later conduct proves the wisdom of Leicester's precautions. In the spring Parliament of 1265 he openly charged the Earl with violating the Mise of Lewes, with tyranny, and with aiming at the crown. Before its close he withdrew to his own lands in the west and secretly allied himself with Roger Mortimer and the Marcher Barons. Earl Simon soon followed him to the west, taking with him the king and Edward. He moved along the Severn, securing its towns, advanced westward to Hereford, and was marching at the end of May along bad roads into the heart of South Wales to attack the fortresses of Earl Gilbert in Glamorgan when Edward suddenly made his escape from Hereford and joined Gloucester at Ludlow. The moment had been skilfully chosen, and Edward showed a rare ability in the movements by which he took advantage of the Earl's position. Moving rapidly along the Severn he seized Gloucester and the bridges across the river, destroyed the ships by which Leicester strove to escape across the Channel to Bristol, and cut him off altogether from England. By this movement too he placed himself between the Earl and his son Simon, who was advancing from the east to his father's relief. Turning rapidly on this second force Edward surprised it at Kenilworth and drove it with heavy loss within the walls of the castle. But the success was more than compensated by the opportunity which his absence gave to the Earl of breaking the line of the Severn. Taken by surprise and isolated as he was, Simon had been forced to seek for aid and troops in an avowed alliance with Llewelyn, and it was with Welsh reinforcements that he turned to the east. But the seizure of his ships and of the bridges of the Severn held him a prisoner in Edward's grasp, and a fierce attack drove him back, with broken and starving forces, into the Welsh hills. In utter despair he struck northward to Hereford; but the absence of Edward now enabled him on the 2nd of August to throw his troops in boats across the Severn below Worcester. The news drew Edward quickly back in a fruitless counter-march to the river, for the Earl had already reached Evesham by a long night march on the morning of the 4th, while his son, relieved in turn by Edward's counter-march, had pushed in the same night to the little town of Alcester. The two armies were now but some ten miles apart, and their junction seemed secured. But both were

spent with long marching, and while the Earl, listening reluctantly to the request of the King who accompanied him, halted at Evesham for mass and dinner, the army of the younger Simon halted for the same purpose at Alcester.

Battle of Evesham

"Those two dinners doleful were, alas!" sings Robert of Gloucester; for through the same memorable night Edward was hurrying back from the Severn by country cross-lanes to seize the fatal gap that lay between them. As morning broke his army lay across the road that led northward from Evesham to Alcester. Evesham lies in a loop of the river Avon where it bends to the south; and a height on which Edward ranged his troops closed the one outlet from it save across the river. But a force had been thrown over the river under Mortimer to seize the bridges, and all retreat was thus finally cut off. The approach of Edward's army called Simon to the front, and for the moment he took it for his son's. Though the hope soon died away a touch of soldierly pride moved him as he recognised in the orderly advance of his enemies a proof of his own training. "By the arm of St. James," he cried, "they come on in wise fashion, but it was from me that they learnt it." A glance however satisfied him of the hopelessness of a struggle; it was impossible for a handful of horsemen with a mob of half-armed Welshmen to resist the disciplined knighthood of the royal army. "Let us commend our souls to God," Simon said to the little group around him, "for our bodies are the foe's." He bade Hugh Despenser and the rest of his comrades fly from the field. "If he died," was the noble answer, "they had no will to live." In three hours the butchery was over. The Welsh fled at the first onset like sheep, and were cut ruthlessly down in the cornfields and gardens where they sought refuge. The little group of knights around Simon fought desperately, falling one by one till the Earl was left alone. So terrible were his sword-strokes that he had all but gained the hill-top when a lance-thrust brought his horse to the ground, but Simon still rejected the summons to yield till a blow from behind felled him mortally wounded to the ground. Then with a last cry of "It is God's grace," the soul of the great patriot passed away.

The Royalist reaction

The triumphant blare of trumpets which welcomed the rescued king into Evesham, "his men weeping for joy," rang out in bitter contrast to the mourning of the realm. It sounded like the announcement of a reign of terror. The rights and laws for which men had toiled and fought so long seemed to have been swept away in an hour. Every town which had supported Earl Simon was held to be at the king's mercy, its franchises to be forfeited. The Charter of Lynn was annulled; London was marked out as the special object of Henry's vengeance, and the farms and merchandise of its citizens were seized as first-fruits of its plunder. The darkness which on that fatal morning hid their books from the monks of Evesham as they sang in choir was but a presage of the gloom which fell on the religious houses. From Ramsey, from Evesham, from St. Alban's rose the same cry of havoc and rapine. But the plunder of monk and burgess was little to the vast sentence of confiscation which the mere fact of rebellion was held to have passed on all the adherents of Earl Simon. To "disinherit" these of their lands was to confiscate half the estates of the landed gentry of England; but the hotter royalists declared them disinherited, and Henry was quick to lavish their lands away on favourites and foreigners. The very chroniclers of their party recall the pillage with shame. But all thought of resistance lay hushed in a general terror. Even the younger Simon "saw no other rede" than to release his prisoners. His army, after finishing its meal, was again on its march to join the Earl when the news of his defeat met it, heralded by a strange darkness that, rising suddenly in the north-west and following as it were on Edward's track, served to shroud the mutilations and horrors of the battle-field. The news was soon fatally confirmed. Simon himself could see from afar his father's head borne off on a spear-point to be mocked at Wigmore. But the pursuit streamed away southward and westward through the streets of Tewkesbury, heaped with corpses of the panic-struck Welshmen whom the townsmen slaughtered without pity; and there was no attack as the little force fell back through the darkness and big thunder-drops in despair upon Kenilworth. "I may hang up my axe," are the bitter words which a poet attributes to their leader, "for feebly have I gone"; and once within the castle he gave way to a wild sorrow, day after day tasting neither meat nor drink.

Edward

He was roused into action again by news of the shameful indignities which the Marcher Lords had offered to the body of the great Earl before whom they had trembled so long. The knights around him broke out at the tidings in a passionate burst of fury, and clamoured for the blood of Richard of Cornwall and his son, who were prisoners in the castle. But Simon had enough nobleness left to interpose. "To God and him alone was it owing" Richard owned afterwards, "that I was snatched from death." The captives were not only saved, but set free. A Parliament had been called at Winchester at the opening of September, and its mere assembly promised an end to the reign of utter lawlessness. A powerful party, too, was known to exist in the royal camp which, hostile as it had shown itself to Earl Simon, shared his love for English liberties, and the liberation of Richard was sure to aid its efforts. At the head of this party stood the young Earl of Gloucester, Gilbert of Clare, to whose action above all the Earl's overthrow was due. And with Gilbert stood Edward himself. The passion for law, the instinct of good government, which were to make his reign so memorable in our history, had declared themselves from the first. He had sided with the barons at the outset of their struggle with Henry; he had striven to keep his father true to the Provisions of Oxford. It was only when the figure of Earl Simon seemed to tower above that of Henry himself, when the Crown seemed falling into bondage, that Edward passed to the royal side; and now that the danger which he dreaded was over he returned to his older attitude. In the first flush of victory, while the doom of Simon was as yet unknown, Edward had stood alone in desiring his captivity against the cry of the Marcher Lords for his blood. When all was done he wept over the corpse of his cousin and playfellow, Henry de Montfort, and followed the Earl's body to the tomb. But great as was Edward's position after the victory of Evesham, his moderate counsels were as yet of little avail. His efforts in fact were met by those of Henry's second son, Edmund, who had received the lands and earldom of Earl Simon, and whom the dread of any restoration of the house of De Montfort set at the head of the ultra-royalists. Nor was any hope of moderation to be found in the Parliament which met in September 1265. It met in the usual temper of a restoration-Parliament to legalize the outrages of the previous month. The prisoners who had been released from the dungeons of the barons poured into Winchester to add fresh violence to the demands of the Marchers. The wives of the captive loyalists and the widows of the slain were summoned to give fresh impulse

to the reaction. Their place of meeting added fuel to the fiery passions of the throng, for Winchester was fresh from its pillage by the younger Simon on his way to Kenilworth, and its stubborn loyalty must have been fanned into a flame by the losses it had endured. In such an assembly no voice of moderation could find a hearing. The four bishops who favoured the national cause, the bishops of London and Lincoln, of Worcester and Chichester, were excluded from it, and the heads of the religious houses were summoned for the mere purpose of extortion. Its measures were but a confirmation of the violence which had been wrought. All grants made during the king's "captivity" were revoked. The house of De Montfort was banished from the realm. The charter of London was annulled. The adherents of Earl Simon were disinherited and seizin of their lands was given to the king.

Simon's Miracles

Henry at once appointed commissioners to survey and take possession of his spoil while he moved to Windsor to triumph in the humiliation of London. Its mayor and forty of its chief citizens waited in the castle yard only to be thrown into prison in spite of a safe-conduct, and Henry entered his capital in triumph as into an enemy's city. The surrender of Dover came to fill his cup of joy, for Richard and Amaury of Montfort had sailed with the Earl's treasure to enlist foreign mercenaries, and it was by this port that their force was destined to land. But a rising of the prisoners detained there compelled its surrender in October, and the success of the royalists seemed complete. In reality their difficulties were but beginning. Their triumph over Earl Simon had been a triumph over the religious sentiment of the time, and religion avenged itself in its own way. Everywhere the Earl's death was looked upon as a martyrdom; and monk and friar united in praying for the souls of the men who fell at Evesham as for soldiers of Christ. It was soon whispered that heaven was attesting the sanctity of De Montfort by miracles at his tomb. How great was the effect of this belief was seen in the efforts of King and Pope to suppress the miracles, and in their continuance not only through the reign of Edward the First but even in the days of his successor. But its immediate result was a sudden revival of hope. "Sighs are changed into songs of praise," breaks out a monk of the time, "and the greatness of our former joy has come to life again!" Nor was it in miracles alone that the "faithful," as they proudly styled themselves, began to look for relief "from

the oppression of the malignants." A monk of St. Alban's who was penning a eulogy of Earl Simon in the midst of this uproar saw the rise of a new spirit of resistance in the streets of the little town. In dread of war it was guarded and strongly closed with bolts and bars, and refused entrance to all strangers, and above all to horsemen, who wished to pass through. The Constable of Hertford, an old foe of the townsmen, boasted that spite of bolts and bars he would enter the place and carry off four of the best villeins captive. He contrived to make his way in; but as he loitered idly about a butcher who passed by heard him ask his men how the wind stood. The butcher guessed his design to burn the town, and felled him to the ground. The blow roused the townsmen. They secured the Constable and his followers, struck off their heads, and fixed them at the four corners of the borough.

The Younger Simon

The popular reaction gave fresh heart to the younger Simon. Quitting Kenilworth, he joined in November John D'Eyvill and Baldewin Wake in the Isle of Axholme where the Disinherited were gathering in arms. So fast did horse and foot flow in to him that Edward himself hurried into Lincolnshire to meet this new danger. He saw that the old strife was just breaking out again. The garrison of Kenilworth scoured the country; the men of the Cinque Ports, putting wives and children on board their barks, swept the Channel and harried the coasts; while Llewelyn, who had brought about the dissolution of Parliament by a raid upon Chester, butchered the forces sent against him and was master of the border. The one thing needed to link the forces of resistance together was a head, and such a head the appearance of Simon at Axholme seemed to promise. But Edward was resolute in his plan of conciliation. Arriving before the camp at the close of 1265, he at once entered into negotiations with his cousin, and prevailed on him to quit the island and appear before the king. Richard of Cornwall welcomed Simon at the court, he presented him to Henry as the saviour of his life, and on his promise to surrender Kenilworth Henry gave him the kiss of peace. In spite of the opposition of Roger Mortimer and the Marcher Lords success seemed to be crowning this bold stroke of the peace party when the Earl of Gloucester interposed. Desirous as he was of peace, the blood of De Montfort lay between him and the Earl's sons, and the safety of the one lay in the ruin of the other. In the face of this danger Earl Gilbert

threw his weight into the scale of the ultra-royalists, and peace became impossible. The question of restitution was shelved by a reference to arbitrators; and Simon, detained in spite of a safe-conduct, moved in Henry's train at Christmas to witness the surrender of Kenilworth which had been stipulated as the price of his full reconciliation with the king. But hot blood was now stirred again on both sides. The garrison replied to the royal summons by a refusal to surrender. They had received ward of the castle, they said, not from Simon but from the Countess, and to none but her would they give it up. The refusal was not likely to make Simon's position an easier one. On his return to London the award of the arbitrators bound him to quit the realm and not to return save with the assent of king and baronage when all were at peace. He remained for a while in free custody at London; but warnings that he was doomed to lifelong imprisonment drove him to flight, and he finally sought a refuge over sea.

Ban of Kenilworth

His escape set England again on fire. Llewelyn wasted the border; the Cinque Ports held the sea; the garrison of Kenilworth pushed their raids as far as Oxford; Baldewin Wake with a band of the Disinherited threw himself into the woods and harried the eastern counties; Sir Adam Gurdon, a knight of gigantic size and renowned prowess, wasted with a smaller party the shires of the south. In almost every county bands of outlaws were seeking a livelihood in rapine and devastation, while the royal treasury stood empty and the enormous fine imposed upon London had been swept into the coffers of French usurers. But a stronger hand than the king's was now at the head of affairs, and Edward met his assailants with untiring energy. King Richard's son, Henry of Almaine, was sent with a large force to the north; Mortimer hurried to hold the Welsh border; Edmund was despatched to Warwick to hold Kenilworth in check; while Edward himself marched at the opening of March to the south. The Berkshire woods were soon cleared, and at Whitsuntide Edward succeeded in dispersing Adam Gurdon's band and in capturing its renowned leader in single combat. The last blow was already given to the rising in the north, where Henry of Almaine surprised the Disinherited at Chesterfield and took their leader, the Earl of Derby, in his bed. Though Edmund had done little but hold the Kenilworth knights in check, the submission of the rest of the country now enabled the royal army to besiege it in force. But the king was penniless,

and the Parliament which he called to replenish his treasury in August showed the resolve of the nation that the strife should cease. They would first establish peace, if peace were possible, they said, and then answer the king's demand. Twelve commissioners, with Earl Gilbert at their head, were appointed on Henry's assent to arrange terms on reconciliation. They at once decided that none should be utterly disinherited for their part in the troubles, but that liberty of redemption should be left open to all. Furious at the prospect of being forced to disgorge their spoil, Mortimer and the ultra-royalists broke out in mad threats of violence, even against the life of the Papal legate who had pressed for the reconciliation. But the power of the ultra-royalists was over. The general resolve was not to be shaken by the clamour of a faction, and Mortimer's rout at Brecknock by Llewelyn, the one defeat that chequered the tide of success, had damaged that leader's influence. Backed by Edward and Earl Gilbert, the legate met their opposition with a threat of excommunication, and Mortimer withdrew sullenly from the camp. Fresh trouble in the country and the seizure of the Isle of Ely by a band of the Disinherited quickened the labours of the Twelve. At the close of September they pronounced their award, restoring the lands to all who made submission on a graduated scale of redemption, promising indemnity for all wrong done during the troubles, and leaving the restoration of the house of De Montfort to the royal will. But to these provisions was added an emphatic demand that "the king fully keep and observe those liberties of the Church, charters of liberties, and forest charters, which he is expressly and by his own mouth bound to preserve and keep." "Let the King," they add, "establish on a lasting foundation those concessions which he has hitherto made of his own will and not on compulsion, and those needful ordinances which have been devised by his subjects and by his own good pleasure."

Close of the Struggle

With this Award the struggle came to an end. The garrison of Kenilworth held out indeed till November, and the full benefit of the Ban was only secured when Earl Gilbert in the opening of the following year suddenly appeared in arms and occupied London. But the Earl was satisfied, the Disinherited were at last driven from Ely, and Llewelyn was brought to submission by the appearance of an army at Shrewsbury. All was over by the close of 1267. His father's age and weakness, his own brilliant military

successes, left Edward practically in possession of the royal power; and his influence at once made itself felt. There was no attempt to return to the misrule of Henry's reign, to his projects of continental aggrandizement or internal despotism. The constitutional system of government for which the Barons had fought was finally adopted by the Crown, and the Parliament of Marlborough which assembled in November 1267 renewed the provisions by which the baronage had remedied the chief abuses of the time in their Provisions of Oxford and Westminster. The appointment of all officers of state indeed was jealously reserved to the crown. But the royal expenditure was brought within bounds. Taxation was only imposed with the assent of the Great Council. So utterly was the land at rest that Edward felt himself free to take the cross in 1268 and to join the Crusade which was being undertaken by St. Lewis of France. He reached Tunis only to find Lewis dead and his enterprise a failure, wintered in Sicily, made his way to Acre in the spring of 1271, and spent more than a year in exploits which want of force prevented from growing into a serious campaign. He was already on his way home when the death of Henry the Third in November 1272 called him to the throne.

CHAPTER IV

EDWARD THE FIRST

1272-1307

Edward's Temper

In his own day and among his own subjects Edward the First was the object of an almost boundless admiration. He was in the truest sense a national king. At the moment when the last trace of foreign conquest passed away, when the descendants of those who won and those who lost at Senlac blended for ever into an English people, England saw in her ruler no stranger but an Englishman. The national tradition returned in more than the golden hair or the English name which linked him to our earlier kings. Edward's very temper was English to the core. In good as in evil he stands out as the typical representative of the race he ruled, like them wilful and imperious, tenacious of his rights, indomitable in his pride, dogged, stubborn, slow of apprehension, narrow in sympathy, but like them, too, just in the main, unselfish, laborious, conscientious, haughtily observant of truth and self-respect, temperate, reverent of duty, religious. It is this oneness with the character of his people which parts the temper of Edward from what had till now been the temper of his house. He inherited indeed from the Angevins their fierce and passionate wrath; his punishments, when he punished in anger, were without pity; and a priest who ventured at a moment of storm into his presence with a remonstrance dropped dead from sheer fright at his feet. But his nature had nothing of the hard selfishness, the vindictive obstinacy which had so long characterized the house of Anjou. His wrath passed as quickly as it gathered; and for the most part his conduct was that of an impulsive, generous man, trustful, averse from cruelty, prone to forgive. "No man ever asked mercy of me," he said in his old age, "and was refused." The rough soldierly nobleness of his nature broke out in incidents like that at Falkirk where he lay on the bare ground among his men, or in his refusal during a Welsh campaign to drink of the one cask of wine which had been saved from marauders. "It is I who have

brought you into this strait," he said to his thirsty fellow-soldiers, "and I will have no advantage of you in meat or drink." Beneath the stern imperiousness of his outer bearing lay in fact a strange tenderness and sensitiveness to affection. Every subject throughout his realm was drawn closer to the king who wept bitterly at the news of his father's death though it gave him a crown, whose fiercest burst of vengeance was called out by an insult to his mother, whose crosses rose as memorials of his love and sorrow at every spot where his wife's bier rested. "I loved her tenderly in her lifetime," wrote Edward to Eleanor's friend, the Abbot of Cluny; "I do not cease to love her now she is dead." And as it was with mother and wife, so it was with his people at large. All the self-concentrated isolation of the foreign kings disappeared in Edward. He was the first English ruler since the Conquest who loved his people with a personal love and craved for their love back again. To his trust in them we owe our Parliament, to his care for them the great statutes which stand in the forefront of our laws. Even in his struggles with her England understood a temper which was so perfectly her own, and the quarrels between king and people during his reign are quarrels where, doggedly as they fought, neither disputant doubted for a moment the worth or affection of the other. Few scenes in our history are more touching than a scene during the long contest over the Charter, when Edward stood face to face with his people in Westminster Hall, and with a sudden burst of tears owned himself frankly in the wrong.

Influence of Chivalry

But it was just this sensitiveness, this openness to outer impressions and outer influences, that led to the strange contradictions which meet us in Edward's career. His reign was a time in which a foreign influence told strongly on our manners, our literature, our national spirit, for the sudden rise of France into a compact and organized monarchy was now making its influence dominant in Western Europe. The "chivalry" so familiar to us in the pages of Froissart, that picturesque mimicry of high sentiment, of heroism, love, and courtesy before which all depth and reality of nobleness disappeared to make room for the coarsest profligacy, the narrowest caste-spirit, and a brutal indifference to human suffering, was specially of French creation. There was a nobleness in Edward's nature from which the baser influences of this chivalry fell away. His life was pure, his piety, save when it stooped to the superstition of the time, manly and sincere, while his high

sense of duty saved him from the frivolous self-indulgence of his successors. But he was far from being wholly free from the taint of his age. His passionate desire was to be a model of the fashionable chivalry of his day. His frame was that of a born soldier--tall, deep-chested, long of limb, capable alike of endurance or action, and he shared to the full his people's love of venture and hard fighting. When he encountered Adam Gurdon after Evesham he forced him single-handed to beg for mercy. At the opening of his reign he saved his life by sheer fighting in a tournament at Challon. It was this love of adventure which lent itself to the frivolous unreality of the new chivalry. His fame as a general seemed a small thing to Edward when compared with his fame as a knight. At his "Round Table of Kenilworth" a hundred lords and ladies, "clad all in silk," renewed the faded glories of Arthur's Court. The false air of romance which was soon to turn the gravest political resolutions into outbursts of sentimental feeling appeared in his "Vow of the Swan," when rising at the royal board he swore on the dish before him to avenge on Scotland the murder of Comyn. Chivalry exerted on him a yet more fatal influence in its narrowing of his sympathy to the noble class and in its exclusion of the peasant and the craftsman from all claim to pity. "Knight without reproach" as he was, he looked calmly on at the massacre of the burghers of Berwick, and saw in William Wallace nothing but a common robber.

Influence of Legality

The French notion of chivalry had hardly more power over Edward's mind than the French conception of kingship, feudality, and law. The rise of a lawyer class was everywhere hardening customary into written rights, allegiance into subjection, loose ties such as commendation into a definite vassalage. But it was specially through French influence, the influence of St. Lewis and his successors, that the imperial theories of the Roman Law were brought to bear upon this natural tendency of the time. When the "sacred majesty" of the Cæsars was transferred by a legal fiction to the royal head of a feudal baronage every constitutional relation was changed. The "defiance" by which a vassal renounced service to his lord became treason, his after resistance "sacrilege." That Edward could appreciate what was sound and noble in the legal spirit around him was shown in his reforms of our judicature and our Parliament; but there was something as congenial to his mind in its definiteness, its rigidity, its narrow

technicalities. He was never wilfully unjust, but he was too often captious in his justice, fond of legal chicanery, prompt to take advantage of the letter of the law. The high conception of royalty which he borrowed from St. Lewis united with this legal turn of mind in the worst acts of his reign. Of rights or liberties unregistered in charter or roll Edward would know nothing, while his own good sense was overpowered by the majesty of his crown. It was incredible to him that Scotland should revolt against a legal bargain which made her national independence conditional on the terms extorted from a claimant of her throne; nor could he view in any other light but as treason the resistance of his own baronage to an arbitrary taxation which their fathers had borne.

His Moral Grandeur

It is in the anomalies of such a character as this, in its strange mingling of justice and wrong-doing, of grandeur and littleness, that we must look for any fair explanation of much that has since been bitterly blamed in Edward's conduct and policy. But what none of these anomalies can hide from us is the height of moral temper which shows itself in the tenor of his rule. Edward was every inch a king; but his notion of kingship was a lofty and a noble one. He loved power; he believed in his sovereign rights and clung to them with a stubborn tenacity. But his main end in clinging to them was the welfare of his people. Nothing better proves the self-command which he drew from the purpose he set before him than his freedom from the common sin of great rulers--the lust of military glory. He was the first of our kings since William the Conqueror who combined military genius with political capacity; but of the warrior's temper, of the temper that finds delight in war, he had little or none. His freedom from it was the more remarkable that Edward was a great soldier. His strategy in the campaign before Evesham marked him as a consummate general. Earl Simon was forced to admire the skill of his advance on the fatal field, and the operations by which he met the risings that followed it were a model of rapidity and military grasp. In his Welsh campaigns he was soon to show a tenacity and force of will which wrested victory out of the midst of defeat. He could head a furious charge of horse as at Lewes, or organize a commissariat which enabled him to move army after army across the harried Lowlands. In his old age he was quick to discover the value of the English archery and to employ it as a means of victory at Falkirk. But

master as he was of the art of war, and forced from time to time to show his mastery in great campaigns, in no single instance was he the assailant. He fought only when he was forced to fight; and when fighting was over he turned back quietly to the work of administration and the making of laws.

His Political Genius

War in fact was with Edward simply a means of carrying out the ends of statesmanship, and it was in the character of his statesmanship that his real greatness made itself felt. His policy was an English policy; he was firm to retain what was left of the French dominion of his race, but he abandoned from the first all dreams of recovering the wider dominions which his grandfather had lost. His mind was not on that side of the Channel, but on this. He concentrated his energies on the consolidation and good government of England itself. We can only fairly judge the annexation of Wales or his attempt to annex Scotland if we look on his efforts in either quarter as parts of the same scheme of national administration to which we owe his final establishment of our judicature, our legislation, our parliament. The character of his action was no doubt determined in great part by the general mood of his age, an age whose special task and aim seemed to be that of reducing to distinct form the principles which had sprung into a new and vigorous life during the age which preceded it. As the opening of the thirteenth century had been an age of founders, creators, discoverers, so its close was an age of lawyers, of rulers such as St. Lewis of France or Alfonso the Wise of Castille, organizers, administrators, framers of laws and institutions. It was to this class that Edward himself belonged. He had little of creative genius, of political originality, but he possessed in a high degree the passion for order and good government, the faculty of organization, and a love of law which broke out even in the legal chicanery to which he sometimes stooped. In the judicial reforms to which so much of his attention was directed he showed himself, if not an "English Justinian," at any rate a clear-sighted and judicious man of business, developing, reforming, bringing into a shape which has borne the test of five centuries' experience the institutions of his predecessors. If the excellence of a statesman's work is to be measured by its duration and the faculty it has shown of adapting itself to the growth and developement of a nation, then the work of Edward rises to the highest standard of excellence. Our law courts preserve to this very day the form which he gave them.

Mighty as has been the growth of our Parliament, it has grown on the lines which he laid down. The great roll of English Statutes reaches back in unbroken series to the Statutes of Edward. The routine of the first Henry, the administrative changes which had been imposed on the nation by the clear head and imperious will of the second, were transformed under Edward into a political organization with carefully-defined limits, directed not by the king's will alone but by the political impulse of the people at large. His social legislation was based in the same fashion on principles which had already been brought into practical working by Henry the Second. It was no doubt in great measure owing to this practical sense of its financial and administrative value rather than to any foresight of its political importance that we owe Edward's organization of our Parliament. But if the institutions which we commonly associate with his name owe their origin to others, they owe their form and their perpetuity to him.

Constitutional Aspect of his Reign

The king's English policy, like his English name, was in fact the sign of a new epoch. England was made. The long period of national formation had come practically to an end. With the reign of Edward begins the constitutional England in which we live. It is not that any chasm separates our history before it from our history after it as the chasm of the Revolution divides the history of France, for we have traced the rudiments of our constitution to the first moment of the English settlement in Britain. But it is with these as with our language. The tongue of Ælfred is the very tongue we speak, but in spite of its identity with modern English it has to be learned like the tongue of a stranger. On the other hand, the English of Chaucer is almost as intelligible as our own. In the first the historian and philologist can study the origin and development of our national speech, in the last a schoolboy can enjoy the story of Troilus and Cressida or listen to the gay chat of the Canterbury Pilgrims. In precisely the same way a knowledge of our earliest laws is indispensable for the right understanding of later legislation, its origin and its development, while the principles of our Parliamentary system must necessarily be studied in the Meetings of Wise Men before the Conquest or the Great Council of barons after it. But the Parliaments which Edward gathered at the close of his reign are not merely illustrative of the history of later Parliaments, they are absolutely identical with those which still sit at St. Stephen's. At the close of his reign

King, Lords, Commons, the Courts of Justice, the forms of public administration, the relations of Church and State, all local divisions and provincial jurisdictions, in great measure the framework of society itself, have taken the shape which they essentially retain. In a word the long struggle of the constitution for actual existence has come to an end. The contests which follow are not contests that tell, like those that preceded them, on the actual fabric of our institutions; they are simply stages in the rough discipline by which England has learned and is still learning how best to use and how wisely to develop the latent powers of its national life, how to adjust the balance of its social and political forces, how to adapt its constitutional forms to the varying conditions of the time.

The Earlier Finance

The news of his father's death found Edward at Capua in the opening of 1273; but the quiet of his realm under a regency of which Roger Mortimer was the practical head left him free to move slowly homewards. Two of his acts while thus journeying through Italy show that his mind was already dwelling on the state of English finance and of English law. His visit to the Pope at Orvieto was with a view of gaining permission to levy from the clergy a tenth of their income for the three coming years, while he drew from Bologna its most eminent jurist, Francesco Accursi, to aid in the task of legal reform. At Paris he did homage to Philip the Third for his French possessions, and then turning southward he devoted a year to the ordering of Gascony. It was not till the summer of 1274 that the king reached England. But he had already planned the work he had to do, and the measures which he laid before the Parliament of 1275 were signs of the spirit in which he was to set about it. The First Statute of Westminster was rather a code than a statute. It contained no less than fifty-one clauses, and was an attempt to summarize a number of previous enactments contained in the Great Charter, the Provisions of Oxford, and the Statute of Marlborough, as well as to embody some of the administrative measures of Henry the Second and his son. But a more pressing need than that of a codification of the law was the need of a reorganization of finance. While the necessities of the Crown were growing with the widening of its range of administrative action, the revenues of the Crown admitted of no corresponding expansion. In the earliest times of our history the outgoings of the Crown were as small as its income. All local expenses, whether for

justice or road-making or fortress-building, were paid by local funds; and the national "fyrd" served at its own cost in the field. The produce of a king's private estates with the provisions due to him from the public lands scattered over each county, whether gathered by the king himself as he moved over his realm, or as in later days fixed at a stated rate and collected by his sheriff, were sufficient to defray the mere expenses of the Court. The Danish wars gave the first shock to this simple system. To raise a ransom which freed the land from the invader, the first land-tax, under the name of the Danegeld, was laid on every hide of ground; and to this national taxation the Norman kings added the feudal burthens of the new military estates created by the Conquest, reliefs paid on inheritance, profits of marriages and wardship, and the three feudal aids. But foreign warfare soon exhausted these means of revenue; the barons and bishops in their Great Council were called on at each emergency for a grant from their lands, and at each grant a corresponding demand was made by the king as a landlord on the towns, as lying for the most part in the royal demesne. The cessation of Danegeld under Henry the Second and his levy of scutage made little change in the general incidence of taxation: it still fell wholly on the land, for even the townsmen paid as holders of their tenements. But a new principle of taxation was disclosed in the tithe levied for a Crusade at the close of Henry's reign. Land was no longer the only source of wealth. The growth of national prosperity, of trade and commerce, was creating a mass of personal property which offered irresistible temptations to the Angevin financiers. The old revenue from landed property was restricted and lessened by usage and compositions. Scutage was only due for foreign campaigns: the feudal aids only on rare and stated occasions: and though the fines from the shire-courts grew with the growth of society the dues from the public lands were fixed and incapable of developement. But no usage fettered the Crown in dealing with personal property, and its growth in value promised a growing revenue. From the close of Henry the Second's reign therefore this became the most common form of taxation. Grants of from a seventh to a thirtieth of moveables, household-property, and stock were demanded; and it was the necessity of procuring their assent to these demands which enabled the baronage through the reign of Henry the Third to bring a financial pressure to bear on the Crown.

Indirect Taxation

But in addition to these two forms of direct taxation indirect taxation also was coming more and more to the front. The right of the king to grant licences to bring goods into or to trade within the realm, a right springing from the need for his protection felt by the strangers who came there for purposes of traffic, laid the foundation of our taxes on imports. Those on exports were only a part of the general system of taxing personal property which we have already noticed. How tempting this source of revenue was proving we see from a provision of the Great Charter which forbids the levy of more than the ancient customs on merchants entering or leaving the realm. Commerce was in fact growing with the growing wealth of the people. The crowd of civil and ecclesiastical buildings which date from this period shows the prosperity of the country. Christian architecture reached its highest beauty in the opening of Edward's reign; a reign marked by the completion of the abbey church of Westminster and of the cathedral church at Salisbury. An English noble was proud to be styled "an incomparable builder," while some traces of the art which was rising into life across the Alps flowed in, it may be, with the Italian ecclesiastics whom the Papacy forced on the English Church. The shrine of the Confessor at Westminster, the mosaic pavement beside the altar of the abbey, the paintings on the walls of its chapterhouse remind us of the schools which were springing up under Giotto and the Pisans. But the wealth which this art progress shows drew trade to English shores. England was as yet simply an agricultural country. Gascony sent her wines; her linens were furnished by the looms of Ghent and Liège; Genoese vessels brought to her fairs the silks, the velvets, the glass of Italy. In the barks of the Hanse merchants came fur and amber from the Baltic, herrings, pitch, timber, and naval stores from the countries of the north. Spain sent us iron and war-horses. Milan sent armour. The great Venetian merchant-galleys touched the southern coasts and left in our ports the dates of Egypt, the figs and currants of Greece, the silk of Sicily, the sugar of Cyprus and Crete, the spices of the Eastern seas. Capital too came from abroad. The bankers of Florence and Lucca were busy with loans to the court or vast contracts with the wool-growers. The bankers of Cahors had already dealt a death-blow to the usury of the Jew. Against all this England had few exports to set. The lead supplied by the mines of Derbyshire, the salt of the Worcestershire springs, the iron of the Weald, were almost wholly consumed at home. The one metal export of any worth was that of tin from the tin-mines of Cornwall. But the production of wool

was fast becoming a main element of the nation's wealth. Flanders, the great manufacturing country of the time, lay fronting our eastern coast; and with this market close at hand the pastures of England found more and more profit in the supply of wool. The Cistercian order which possessed vast ranges of moorland in Yorkshire became famous as wool-growers; and their wool had been seized for Richard's ransom. The Florentine merchants were developing this trade by their immense contracts; we find a single company of merchants contracting for the purchase of the Cistercian wool throughout the year. It was after counsel with the Italian bankers that Edward devised his scheme for drawing a permanent revenue from this source. In the Parliament of 1275 he obtained the grant of half a mark, or six shillings and eightpence, on each sack of wool exported; and this grant, a grant memorable as forming the first legal foundation of our customs-revenue, at once relieved the necessities of the Crown.

Welsh Campaign

The grant of the wool tax enabled Edward in fact to deal with the great difficulty of his realm. The troubles of the Barons' war, the need which Earl Simon felt of Llewelyn's alliance to hold in check the Marcher Barons, had all but shaken off from Wales the last traces of dependence. Even at the close of the war the threat of an attack from the now united kingdom only forced Llewelyn to submission on a practical acknowledgement of his sovereignty. Although the title which Llewelyn ap Iorwerth claimed of Prince of North Wales was recognized by the English court in the earlier days of Henry the Third, it was withdrawn after 1229 and its claimant known only as Prince of Aberffraw. But the loftier title of Prince of Wales which Llewelyn ap Gruffydd assumed in 1256 was formally conceded to him in 1267, and his right to receive homage from the other nobles of his principality was formally sanctioned. Near however as he seemed to the final realization of his aims, Llewelyn was still a vassal of the English Crown, and the accession of Edward to the throne was at once followed by the demand of homage. But the summons was fruitless; and the next two years were wasted in as fruitless negotiation. The kingdom, however, was now well in hand. The royal treasury was filled again, and in 1277 Edward marched on North Wales. The fabric of Welsh greatness fell at a single blow. The chieftains who had so lately sworn fealty to Llewelyn in the southern and central parts of the country deserted him to join his English

enemies in their attack; an English fleet reduced Anglesea; and the Prince was cooped up in his mountain fastnesses and forced to throw himself on Edward's mercy. With characteristic moderation the conqueror contented himself with adding to the English dominions the coast-district as far as Conway and with providing that the title of Prince of Wales should cease at Llewelyn's death. A heavy fine which he had incurred by his refusal to do homage was remitted; and Eleanor, a daughter of Earl Simon of Montfort whom he had sought as his wife but who had been arrested on her way to him, was wedded to the Prince at Edward's court.

Judicial Reforms

For four years all was quiet across the Welsh Marches, and Edward was able again to turn his attention to the work of internal reconstruction. It is probably to this time, certainly to the earlier years of his reign, that we may attribute his modification of our judicial system. The King's Court was divided into three distinct tribunals, the Court of Exchequer which took cognizance of all causes in which the royal revenue was concerned; the Court of Common Pleas for suits between private persons; and the King's Bench, which had jurisdiction in all matters that affected the sovereign as well as in "pleas of the crown" or criminal causes expressly reserved for his decision. Each court was now provided with a distinct staff of judges.

Of yet greater importance than this change, which was in effect but the completion of a process of severance that had long been going on, was the establishment of an equitable jurisdiction side by side with that of the common law. In his reform of 1178 Henry the Second broke up the older King's Court, which had till then served as the final Court of Appeal, by the severance of the purely legal judges who had been gradually added to it from the general body of his councillors. The judges thus severed from the Council retained the name and the ordinary jurisdiction of "the King's Court," but the mere fact of their severance changed in an essential way the character of the justice they dispensed. The King in Council wielded a power which was not only judicial but executive; his decisions though based upon custom were not fettered by it, they wore the expressions of his will, and it was as his will that they were carried out by officers of the Crown. But the separate bench of judges had no longer this unlimited power at their command. They had not the king's right as representative of the

community to make the law for the redress of a wrong. They professed simply to declare what the existing law was, even if it was insufficient for the full purpose of redress. The authority of their decision rested mainly on their adhesion to ancient custom or as it was styled the "common law" which had grown up in the past. They could enforce their decisions only by directions to an independent officer, the sheriff, and here again their right was soon rigidly bounded by set form and custom. These bonds in fact became tighter every day, for their decisions were now beginning to be reported, and the cases decided by one bench of judges became authorities for their successors. It is plain that such a state of things has the utmost value in many ways, whether in creating in men's minds that impersonal notion of a sovereign law which exercises its imaginative force on human action, or in furnishing by the accumulation and sacredness of precedents a barrier against the invasion of arbitrary power. But it threw a terrible obstacle in the way of the actual redress of wrong. The increasing complexity of human action as civilization advanced outstripped the efforts of the law. Sometimes ancient custom furnished no redress for a wrong which sprang from modern circumstances. Sometimes the very pedantry and inflexibility of the law itself became in individual cases the highest injustice.

Equitable Jurisdiction

It was the consciousness of this that made men cling even from the first moment of the independent existence of these courts to the judicial power which still remained inherent in the Crown itself. If his courts fell short in any matter the duty of the king to do justice to all still remained, and it was this obligation which was recognized in the provision of Henry the Second by which all cases in which his judges failed to do justice were reserved for the special cognizance of the royal Council itself. To this final jurisdiction of the King in Council Edward gave a wide developement. His assembly of the ministers, the higher permanent officials, and the law officers of the Crown for the first time reserved to itself in its judicial capacity the correction of all breaches of the law which the lower courts had failed to repress, whether from weakness, partiality, or corruption, and especially of those lawless outbreaks of the more powerful baronage which defied the common authority of the judges. Such powers were of course capable of terrible abuse, and it shows what real need there was felt to be for their

exercise that though regarded with jealousy by Parliament the jurisdiction of the royal Council appears to have been steadily put into force through the two centuries which followed. In the reign of Henry the Seventh it took legal and statutory form in the shape of the Court of Star Chamber, and its powers are still exercised in our own day by the Judicial Committee of the Privy Council. But the same duty of the Crown to do justice where its courts fell short of giving due redress for wrong expressed itself in the jurisdiction of the Chancellor. This great officer of State, who had perhaps originally acted only as President of the Council when discharging its judicial functions, acquired at a very early date an independent judicial position of the same nature. It is by remembering this origin of the Court of Chancery that we understand the nature of the powers it gradually acquired. All grievances of the subject, especially those which sprang from the misconduct of government officials or of powerful oppressors, fell within its cognizance as they fell within that of the Royal Council, and to these were added disputes respecting the wardship of infants, dower, rent-charges, or tithes. Its equitable jurisdiction sprang from the defective nature and the technical and unbending rules of the common law. As the Council had given redress in cases where law became injustice, so the Court of Chancery interfered without regard to the rules of procedure adopted by the common law courts on the petition of a party for whose grievance the common law provided no adequate remedy. An analogous extension of his powers enabled the Chancellor to afford relief in cases of fraud, accident, or abuse of trust, and this side of his jurisdiction was largely extended at a later time by the results of legislation on the tenure of land by ecclesiastical bodies. The separate powers of the Chancellor, whatever was the original date at which they were first exercised, seem to have been thoroughly established under Edward the First.

Law and the Baronage

What reconciled the nation to the exercise of powers such as these by the Crown and its council was the need which was still to exist for centuries of an effective means of bringing the baronage within the reach of the law. Constitutionally the position of the English nobles had now become established. A king could no longer make laws or levy taxes or even make war without their assent. The nation reposed in them an unwavering trust, for they were no longer the brutal foreigners from whose violence the

strong hand of a Norman ruler had been needed to protect his subjects; they were as English as the peasant or the trader. They had won English liberty by their swords, and the tradition of their order bound them to look on themselves as its natural guardians. The close of the Barons' War solved the problem which had so long troubled the realm, the problem how to ensure the government of the realm in accordance with the provisions of the Great Charter, by the transfer of the business of administration into the hands of a standing committee of the greater barons and prelates, acting as chief officers of state in conjunction with specially appointed ministers of the Crown. The body thus composed was known as the Continual Council; and the quiet government of the kingdom by this body in the long interval between the death of Henry the Third and his son's return shows how effective this rule of the nobles was. It is significant of the new relation which they were to strive to establish between themselves and the Crown that in the brief which announced Edward's accession the Council asserted that the new monarch mounted his throne "by the will of the peers." But while the political influence of the baronage as a leading element in the whole nation thus steadily mounted, the personal and purely feudal power of each individual baron on his own estates as steadily fell. The hold which the Crown gained on every noble family by its rights of wardship and marriage, the circuits of the royal judges, the ever-narrowing bounds within which baronial justice saw itself circumscribed, the blow dealt by scutage at their military power, the prompt intervention of the Council in their feuds, lowered the nobles more and more to the common level of their fellow subjects. Much yet remained to be done; for within the general body of the baronage there existed side by side with the nobles whose aims were purely national nobles who saw in the overthrow of the royal despotism simply a chance of setting up again their feudal privileges; and different as the English baronage, taken as a whole, was from a feudal *noblesse* like that of Germany or France there is in every military class a natural drift towards violence and lawlessness. Throughout Edward's reign his strong hand was needed to enforce order on warring nobles. Great earls, such as those of Gloucester and Hereford, carried on private war; in Shropshire the Earl of Arundel waged his feud with Fulk Fitz Warine. To the lesser and poorer nobles the wealth of the trader, the long wain of goods as it passed along the highway, remained a tempting prey. Once, under cover of a mock tournament of monks against canons, a band of country gentlemen

succeeded in introducing themselves into the great merchant fair at Boston; at nightfall every booth was on fire, the merchants robbed and slaughtered, and the booty carried off to ships which lay ready at the quay. Streams of gold and silver, ran the tale of popular horror, flowed melted down the gutters to the sea; "all the money in England could hardly make good the loss." Even at the close of Edward's reign lawless bands of "trail-bastons," or club-men, maintained themselves by general outrage, aided the country nobles in their feuds, and wrested money and goods from the great tradesmen.

Edward and the Baronage

The king was strong enough to face and imprison the warring earls, to hang the chiefs of the Boston marauders, and to suppress the outlaws by rigorous commissions. But the repression of baronial outrage was only a part of Edward's policy in relation to the Baronage. Here, as elsewhere, he had to carry out the political policy of his house, a policy defined by the great measures of Henry the Second, his institution of scutage, his general assize of arms, his extension of the itinerant judicature of the royal judges. Forced by the first to an exact discharge of their military duties to the Crown, set by the second in the midst of a people trained equally with the nobles to arms, their judicial tyranny curbed and subjected to the king's justice by the third, the barons had been forced from their old standpoint of an isolated class to the new and nobler position of a people's leaders. Edward watched jealously over the ground which the Crown had gained. Immediately after his landing he appointed a commission of enquiry into the judicial franchises then existing, and on its report (of which the existing "Hundred-Rolls" are the result) itinerant justices were sent in 1278 to discover by what right these franchises were held. The writs of "quo warrantum" were roughly met here and there. Earl Warenne bared a rusty sword and flung it on the justices' table. "This, sirs," he said, "is my warrant. By the sword our fathers won their lands when they came over with the Conqueror, and by the sword we will keep them." But the king was far from limiting himself to the mere carrying out of the plans of Henry the Second. Henry had aimed simply at lowering the power of the great feudatories; Edward aimed rather at neutralizing their power by raising the whole body of landowners to the same level. We shall see at a later time the measures which were the issues of this policy, but in the very opening of his

reign a significant step pointed to the king's drift. In the summer of 1278 a royal writ ordered all freeholders who held lands to the value of twenty pounds to receive knighthood at the king's hands.

Edward and the Church

Acts as significant announced Edward's purpose of carrying out another side of Henry's policy, that of limiting in the same way the independent jurisdiction of the Church. He was resolute to force it to become thoroughly national by bearing its due part of the common national burthens, and to break its growing dependence upon Rome. But the ecclesiastical body was jealous of its position as a power distinct from the power of the Crown, and Edward's policy had hardly declared itself when in 1279 Archbishop Peckham obtained a canon from the clergy by which copies of the Great Charter, with its provisions in favour of the liberties of the Church, were to be affixed to the doors of churches. The step was meant as a defiant protest against all interference, and it was promptly forbidden. An order issued by the Primate to the clergy to declare to their flocks the sentences of excommunication directed against all who obtained royal writs to obstruct suits in church courts, or who, whether royal officers or no, neglected to enforce their sentences, was answered in a yet more emphatic way. By falling into the "dead hand" or "mortmain" of the Church land ceased to render its feudal services; and in 1279 the Statute "de Religiosis," or as it is commonly called "of Mortmain," forbade any further alienation of land to religious bodies in such wise that it should cease to render its due service to the king. The restriction was probably no beneficial one to the country at large, for Churchmen were the best landlords, and it was soon evaded by the ingenuity of the clerical lawyers; but it marked the growing jealousy of any attempt to set aside what was national from serving the general need and profit of the nation. Its immediate effect was to stir the clergy to a bitter resentment. But Edward remained firm, and when the bishops proposed to restrict the royal courts from dealing with cases of patronage or causes which touched the chattels of Churchmen he met their proposals by an instant prohibition.

Conquest of Wales

The resentment of the clergy had soon the means of showing itself during a new struggle with Wales. The persuasions of his brother David, who had deserted him in the previous war but who deemed his desertion insufficiently rewarded by an English lordship, roused Llewelyn to a fresh revolt. A prophecy of Merlin was said to promise that when English money became round a Prince of Wales should be crowned in London; and at this moment a new coinage of copper money, coupled with a prohibition to break the silver penny into halves and quarters, as had been commonly done, was supposed to fulfil the prediction. In 1282 Edward marched in overpowering strength into the heart of Wales. But Llewelyn held out in Snowdon with the stubbornness of despair, and the rout of an English force which had crossed into Anglesea prolonged the contest into the winter. The cost of the war fell on the king's treasury. Edward had called for but one general grant through the past eight years of his reign; but he was now forced to appeal to his people, and by an expedient hitherto without precedent two provincial Councils were called for this purpose. That for Southern England met at Northampton, that for Northern at York; and clergy and laity were summoned, though in separate session, to both. Two knights came from every shire, two burgesses from every borough, while the bishops brought their archdeacons, abbots, and the proctors of their cathedral clergy. The grant of the laity was quick and liberal. But both at York and Northampton the clergy showed their grudge at Edward's measures by long delays in supplying his treasury. Pinched however as were his resources and terrible as were the sufferings of his army through the winter Edward's firmness remained unbroken; and rejecting all suggestions of retreat he issued orders for the formation of a new army at Caermarthen to complete the circle of investment round Llewelyn. But the war came suddenly to an end. The Prince sallied from his mountain hold for a raid upon Radnorshire and fell in a petty skirmish on the banks of the Wye. With him died the independence of his race. After six months of flight his brother David was made prisoner; and a Parliament summoned at Shrewsbury in the autumn of 1283, to which each county again sent its two knights and twenty boroughs their two burgesses, sentenced him to a traitor's death. The submission of the lesser chieftains soon followed; and the country was secured by the building of strong castles at Conway and Caernarvon, and the settlement of English barons on the confiscated soil. The Statute of Wales which Edward promulgated at Rhuddlan in 1284

proposed to introduce English law and the English administration of justice and government into Wales. But little came of the attempt; and it was not till the time of Henry the Eighth that the country was actually incorporated with England and represented in the English Parliament. What Edward had really done was to break the Welsh resistance. The policy with which he followed up his victory (for the "massacre of the bards" is a mere fable) accomplished its end, and though two later rebellions and a ceaseless strife of the natives with the English towns in their midst showed that the country was still far from being reconciled to its conquest, it ceased to be any serious danger to England for a hundred years.

New Legislation

From the work of conquest Edward again turned to the work of legislation. In the midst of his struggle with Wales he had shown his care for the commercial classes by a Statute of Merchants in 1283, which provided for the registration of the debts of traders and for their recovery by distraint of the debtor's goods and the imprisonment of his person. The close of the war saw two measures of even greater importance. The second Statute of Westminster which appeared in 1285 is a code of the same sort as the first, amending the Statutes of Mortmain, of Merton, and of Gloucester, as well as the laws of dower and advowson, remodelling the system of justices of assize, and curbing the abuses of manorial jurisdiction. In the same year appeared the greatest of Edward's measures for the enforcement of public order. The Statute of Winchester revived and reorganized the old institutions of national police and national defence. It regulated the action of the hundred, the duty of watch and ward, and the gathering of the fyrd or militia of the realm as Henry the Second had moulded it into form in his Assize of Arms. Every man was bound to hold himself in readiness, duly armed, for the king's service in case of invasion or revolt, and to pursue felons when hue and cry was made after them. Every district was held responsible for crimes committed within its bounds; the gates of each town were to be shut at nightfall; and all strangers were required to give an account of themselves to the magistrates of any borough which they entered. By a provision which illustrates at once the social and physical condition of the country at the time all brushwood was ordered to be destroyed within a space of two hundred feet on either side of the public highway as a security for travellers against sudden attacks from robbers. To

enforce the observance of this act knights were appointed in every shire under the name of Conservators of the Peace, a name which as the benefit of these local magistrates was more sensibly felt and their powers were more largely extended was changed into that which they still retain of Justices of the Peace. So orderly however was the realm that Edward was able in 1286 to pass over sea to his foreign dominions, and to spend the next three years in reforming their government. But the want of his guiding hand was at last felt; and the Parliament of 1289 refused a new tax till the king came home again.

"Quia Emptores"

He returned to find the Earls of Gloucester and Hereford at war, and his judges charged with violence and corruption. The two Earls were brought to peace, and Earl Gilbert allied closely to the royal house by a marriage with the king's daughter Johanna. After a careful investigation the judicial abuses were recognized and amended. Two of the chief justices were banished from the realm and their colleagues imprisoned and fined. But these administrative measures were only preludes to a great legislative act which appeared in 1290. The Third Statute of Westminster, or, to use the name by which it is more commonly known, the Statute "Quia Emptores," is one of those legislative efforts which mark the progress of a wide social revolution in the country at large. The number of the greater barons was diminishing every day, while the number of the country gentry and of the more substantial yeomanry was increasing with the increase of the national wealth. The increase showed itself in a growing desire to become proprietors of land. Tenants of the barons received under-tenants on condition of their rendering them similar services to those which they themselves rendered to their lords; and the baronage, while duly receiving the services in compensation for which they had originally granted their lands in fee, saw with jealousy the feudal profits of these new under-tenants, the profits of wardships or of reliefs and the like, in a word the whole increase in the value of the estate consequent on its subdivision and higher cultivation, passing into other hands than their own. The purpose of the statute "Quia Emptores" was to check this process by providing that in any case of alienation the sub-tenant should henceforth hold, not of the tenant, but directly of the superior lord. But its result was to promote instead of hindering the transfer and subdivision of land. The tenant who

was compelled before the passing of the statute to retain in any case so much of the estate as enabled him to discharge his feudal services to the overlord of whom he held it, was now enabled by a process analogous to the modern sale of "tenant-right," to transfer both land and services to new holders. However small the estates thus created might be, the bulk were held directly of the Crown; and this class of lesser gentry and freeholders grew steadily from this time in numbers and importance.

The Crown and the Jews

The year which saw "Quia Emptores" saw a step which remains the great blot upon Edward's reign. The work abroad had exhausted the royal treasury, and he bought a grant from his Parliament by listening to their wishes in the matter of the Jews. Jewish traders had followed William the Conqueror from Normandy, and had been enabled by his protection to establish themselves in separate quarters or "Jewries" in all larger English towns. The Jew had no right or citizenship in the land. The Jewry in which he lived was exempt from the common law. He was simply the king's chattel, and his life and goods were at the king's mercy. But he was too valuable a possession to be lightly thrown away. If the Jewish merchant had no standing-ground in the local court the king enabled him to sue before a special justiciary; his bonds were deposited for safety in a chamber of the royal palace at Westminster; he was protected against the popular hatred in the free exercise of his religion and allowed to build synagogues and to manage his own ecclesiastical affairs by means of a chief rabbi. The royal protection was dictated by no spirit of tolerance or mercy. To the kings the Jew was a mere engine of finance. The wealth which he accumulated was wrung from him whenever the crown had need, and torture and imprisonment were resorted to when milder means failed. It was the gold of the Jew that filled the royal treasury at the outbreak of war or of revolt. It was in the Hebrew coffers that the foreign kings found strength, to hold their baronage at bay.

Popular Hatred of the Jews

That the presence of the Jew was, at least in the earlier years of his settlement, beneficial to the nation at large there can be little doubt. His arrival was the arrival of a capitalist; and heavy as was the usury he

necessarily exacted in the general insecurity of the time his loans gave an impulse to industry. The century which followed the Conquest witnessed an outburst of architectural energy which covered the land with castles and cathedrals; but castle and cathedral alike owed their erection to the loans of the Jew. His own example gave a new vigour to domestic architecture. The buildings which, as at Lincoln and Bury St. Edmund's, still retain their name of "Jews' Houses" were almost the first houses of stone which superseded the mere hovels of the English burghers. Nor was their influence simply industrial. Through their connexion with the Jewish schools in Spain and the East they opened a way for the revival of physical sciences. A Jewish medical school seems to have existed at Oxford; Roger Bacon himself studied under English rabbis. But the general progress of civilization now drew little help from the Jew, while the coming of the Cahorsine and Italian bankers drove him from the field of commercial finance. He fell back on the petty usury of loans to the poor, a trade necessarily accompanied with much of extortion and which roused into fiercer life the religious hatred against their race. Wild stories floated about of children carried off to be circumcised or crucified, and a Lincoln boy who was found slain in a Jewish house was canonized by popular reverence as "St. Hugh." The first work of the Friars was to settle in the Jewish quarters and attempt their conversion, but the popular fury rose too fast for these gentler means of reconciliation. When the Franciscans saved seventy Jews from hanging by their prayer to Henry the Third the populace angrily refused the brethren alms.

The Jewish Defiance

But all this growing hate was met with a bold defiance. The picture which is commonly drawn of the Jew as timid, silent, crouching under oppression, however truly it may represent the general position of his race throughout mediæval Europe, is far from being borne out by historical fact on this side the Channel. In England the attitude of the Jew, almost to the very end, was an attitude of proud and even insolent defiance. He knew that the royal policy exempted him from the common taxation, the common justice, the common obligations of Englishmen. Usurer, extortioner as the realm held him to be, the royal justice would secure him the repayment of his bonds. A royal commission visited with heavy penalties any outbreak of violence against the king's "chattels." The Red King actually forbade the

conversion of a Jew to the Christian faith; it was a poor exchange, he said, that would rid him of a valuable property and give him only a subject. We see in such a case as that of Oxford the insolence that grew out of this consciousness of the royal protection. Here as elsewhere the Jewry was a town within a town, with its own language, its own religion and law, its peculiar commerce, its peculiar dress. No city bailiff could penetrate into the square of little alleys which lay behind the present Town Hall; the Church itself was powerless to prevent a synagogue from rising in haughty rivalry over against the cloister of St. Frideswide. Prior Philip of St. Frideswide complains bitterly of a certain Hebrew who stood at his door as the procession of the saint passed by, mocking at the miracles which were said to be wrought at her shrine. Halting and then walking firmly on his feet, showing his hands clenched as if with palsy and then flinging open his fingers, the Jew claimed gifts and oblations from the crowd that flocked to St. Frideswide's shrine on the ground that such recoveries of life and limb were quite as real as any that Frideswide ever wrought. Sickness and death in the prior's story avenge the saint on her blasphemer, but no earthly power, ecclesiastical or civil, seems to have ventured to deal with him. A more daring act of fanaticism showed the temper of the Jews even at the close of Henry the Third's reign. As the usual procession of scholars and citizens returned from St. Frideswide's on the Ascension Day of 1268 a Jew suddenly burst from a group of his comrades in front of the synagogue, and wrenching the crucifix from its bearer trod it under foot. But even in presence of such an outrage as this the terror of the Crown sheltered the Oxford Jews from any burst of popular vengeance. The sentence of the king condemned them to set up a cross of marble on the spot where the crime was committed, but even this sentence was in part remitted, and a less offensive place was found for the cross in an open plot by Merton College.

Expulsion of the Jews

Up to Edward's day indeed the royal protection had never wavered. Henry the Second granted the Jews a right of burial outside every city where they dwelt. Richard punished heavily a massacre of the Jews at York, and organized a mixed court of Jews and Christians for the registration of their contracts. John suffered none to plunder them save himself, though he once wrested from them a sum equal to a year's revenue of his realm. The troubles of the next reign brought in a harvest greater than even the royal

greed could reap; the Jews grew wealthy enough to acquire estates; and only a burst of popular feeling prevented a legal decision which would have enabled them to own freeholds. But the sack of Jewry after Jewry showed the popular hatred during the Barons' war, and at its close fell on the Jews the more terrible persecution of the law. To the cry against usury and the religious fanaticism which threatened them was now added the jealousy with which the nation that had grown up round the Charter regarded all exceptional jurisdictions or exemptions from the common law and the common burthens of the realm. As Edward looked on the privileges of the Church or the baronage, so his people looked on the privileges of the Jews. The growing weight of the Parliament told against them. Statute after statute hemmed them in. They were forbidden to hold real property, to employ Christian servants, to move through the streets without the two white tablets of wool on their breasts which distinguished their race. They were prohibited from building new synagogues or eating with Christians or acting as physicians to them. Their trade, already crippled by the rivalry of the bankers of Cahors, was annihilated by a royal order which bade them renounce usury under pain of death. At last persecution could do no more, and Edward, eager at the moment to find supplies for his treasury and himself swayed by the fanaticism of his subjects, bought the grant of a fifteenth from clergy and laity by consenting to drive the Jews from his realm. No share of the enormities which accompanied this expulsion can fall upon the king, for he not only suffered the fugitives to take their personal wealth with them but punished with the halter those who plundered them at sea. But the expulsion was none the less cruel. Of the sixteen thousand who preferred exile to apostasy few reached the shores of France. Many were wrecked, others robbed and flung overboard. One shipmaster turned out a crew of wealthy merchants on to a sandbank and bade them call a new Moses to save them from the sea.



Scotland

From the expulsion of the Jews, as from his nobler schemes of legal and administrative reforms, Edward was suddenly called away to face complex questions which awaited him in the North. At the moment which we have reached the kingdom of the Scots was still an aggregate of four distinct countries, each with its different people, its different tongue, its different history. The old Pictish kingdom across the Firth of Forth, the original Scot

kingdom in Argyle, the district of Cumbria or Strathclyde, and the Lowlands which stretched from the Firth of Forth to the English border, had become united under the kings of the Scots; Pictland by inheritance, Cumbria by a grant from the English king Eadmund, the Lowlands by conquest, confirmed as English tradition alleged by a grant from Cnut. The shadowy claim of dependence on the English Crown which dated from the days when a Scotch king "commended" himself and his people to Ælfred's son Eadward, a claim strengthened by the grant of Cumbria to Malcolm as a "fellow worker" of the English sovereign "by sea and land," may have been made more real through this last convention. But whatever change the acquisition of the Lowlands made in the relation of the Scot kings to the English sovereigns, it certainly affected in a very marked way their relation both to England and to their own realm. Its first result was the fixing of the royal residence in their new southern dominion at Edinburgh; and the English civilization which surrounded them from the moment of this settlement on what was purely English ground changed the Scot kings in all but blood into Englishmen. The marriage of King Malcolm with Margaret, the sister of Eadgar Ætheling, not only hastened this change but opened a way to the English crown. Their children were regarded by a large party within England as representatives of the older royal race and as claimants of the throne, and this danger grew as William's devastation of the North not only drove fresh multitudes of Englishmen to settle in the Lowlands but filled the Scotch court with English nobles who fled thither for refuge. So formidable indeed became the pretensions of the Scot kings that they forced the ablest of our Norman sovereigns into a complete change of policy. The Conqueror and William the Red had met the threats of the Scot sovereigns by invasions which ended again and again in an illusory homage, but the marriage of Henry the First with the Scottish Matilda robbed the claims of the Scottish line of much of their force while it enabled him to draw their kings into far closer relations with the Norman throne. King David not only abandoned the ambitious dreams of his predecessors to place himself at the head of his niece Matilda's party in her contest with Stephen, but as Henry's brother-in-law he figured as the first noble of the English Court and found English models and English support in the work of organization which he attempted within his own dominions. As the marriage with Margaret had changed Malcolm from a Celtic chieftain into an English king, so that of Matilda brought about the conversion of David into a Norman and feudal

sovereign. His court was filled with Norman nobles from the South, such as the Balliols and Bruces who were destined to play so great a part afterwards but who now for the first time obtained fiefs in the Scottish realm, and a feudal jurisprudence modelled on that of England was introduced into the Lowlands.

Scotch and English Crowns

A fresh connexion between Scotland and the English sovereigns began with the grant of lordships within England itself to the Scot kings or their sons. The Earldom of Northumberland was held by David's son Henry, that of Huntingdon by David, brother of William the Lion. Homage was sometimes rendered, whether for these lordships, for the Lowlands, or for the whole Scottish realm, but it was the capture of William the Lion during the revolt of the English baronage which first suggested to the ambition of Henry the Second the project of a closer dependence of Scotland on the English Crown. To gain his freedom William consented to hold his kingdom of Henry and his heirs. The prelates and lords of Scotland did homage to Henry as to their direct lord, and a right of appeal in all Scotch causes was allowed to the superior court of the English suzerain. From this bondage however Scotland was freed by the prodigality of Richard who allowed her to buy back the freedom she had forfeited. Both sides fell into their old position, but both were ceasing gradually to remember the distinctions between the various relations in which the Scot king stood for his different provinces to the English Crown. Scotland had come to be thought of as a single country; and the court of London transferred to the whole of it those claims of direct feudal suzerainty which at most applied only to Strathclyde, while the court of Edinburgh looked on the English Lowlands as holding no closer relation to England than the Pictish lands beyond the Forth. Any difficulties which arose were evaded by a legal compromise. The Scot kings repeatedly did homage to the English sovereign but with a reservation of rights which were prudently left unspecified. The English king accepted the homage on the assumption that it was rendered to him as overlord of the Scottish realm, and this assumption was neither granted nor denied. For nearly a hundred years the relations of the two countries were thus kept peaceful and friendly, and the death of Alexander the Third seemed destined to remove even the necessity of protests by a closer union of the two kingdoms. Alexander had wedded his only daughter to the King of Norway,

and after long negotiation the Scotch Parliament proposed the marriage of Margaret, "The Maid of Norway," the girl who was the only issue of this marriage and so heiress of the kingdom, with the son of Edward the First. It was however carefully provided in the marriage treaty which was concluded at Brigham in 1290 that Scotland should remain a separate and free kingdom, and that its laws and customs should be preserved inviolate. No military aid was to be claimed by the English king, no Scotch appeal to be carried to an English court. But this project was abruptly frustrated by the child's death during her voyage to Scotland in the following October, and with the rise of claimant after claimant of the vacant throne Edward was drawn into far other relations to the Scottish realm.

The Scotch Succession

Of the thirteen pretenders to the throne of Scotland only three could be regarded as serious claimants. By the extinction of the line of William the Lion the right of succession passed to the daughters of his brother David. The claim of John Balliol, Lord of Galloway, rested on his descent from the elder of these; that of Robert Bruce, Lord of Annandale, on his descent from the second; that of John Hastings, Lord of Abergavenny, on his descent from the third. It is clear that at this crisis every one in Scotland or out of it recognized some sort of overlordship in Edward, for the Norwegian king, the Primate of St. Andrews, and seven of the Scotch Earls had already appealed to him before Margaret's death; and her death was followed by the consent both of the claimants and the Council of Regency to refer the question of the succession to his decision in a Parliament at Norham. But the overlordship which the Scots acknowledged was something far less direct and definite than the superiority which Edward claimed at the opening of this conference in May 1291. His claim was supported by excerpts from monastic chronicles and by the slow advance of an English army; while the Scotch lords, taken by surprise, found little help in the delay which was granted them. At the opening of June therefore in common with nine of the claimants they formally admitted Edward's direct suzerainty. To the nobles in fact the concession must have seemed a small one, for like the principal claimants they were for the most part Norman in blood, with estates in both countries, and looking for honours and pensions from the English Court. From the Commons who were gathered with the nobles at Norham no such admission of Edward's claims could be extorted;

but in Scotland, feudalized as it had been by David, the Commons were as yet of little weight and their opposition was quietly passed by. All the rights of a feudal suzerain were at once assumed by the English king; he entered into the possession of the country as into that of a disputed fief to be held by its overlord till the dispute was settled, his peace was sworn throughout the land, its castles delivered into his charge, while its bishops and nobles swore homage to him directly as their lord superior. Scotland was thus reduced to the subjection which she had experienced under Henry the Second; but the full discussion which followed over the various claims to the throne showed that while exacting to the full what he believed to be his right Edward desired to do justice to the country itself. The body of commissioners which the king named to report on the claims to the throne were mainly Scotch. A proposal for the partition of the realm among the claimants was rejected as contrary to Scotch law. On the report of the commissioners after a twelvemonth's investigation in favour of Balliol as representative of the elder branch at the close of the year 1292, his homage was accepted for the whole kingdom of Scotland with a full acknowledgement of the services due from him to its overlord. The castles were at once delivered to the new monarch, and for a time there was peace.

Edward and Scotland

With the accession of Balliol and the rendering of his homage for the Scottish realm the greatness of Edward reached its height. He was lord of Britain as no English king had been before. The last traces of Welsh independence were trodden under foot. The shadowy claims of supremacy over Scotland were changed into a direct overlordship. Across the one sea Edward was lord of Guienne, across the other of Ireland, and in England itself a wise and generous policy had knit the whole nation round his throne. Firmly as he still clung to prerogatives which the baronage were as firm not to own, the main struggle for the Charter was over. Justice and good government were secured. The personal despotism which John had striven to build up, the imperial autocracy which had haunted the imagination of Henry the Third, were alike set aside. The rule of Edward, vigorous and effective as it was, was a rule of law, and of law enacted not by the royal will, but by the common council of the realm. Never had English ruler reached a greater height of power, nor was there any sign to warn the king of the troubles which awaited him. France, jealous as it was

of his greatness and covetous of his Gascon possessions, he could hold at bay. Wales was growing tranquil. Scotland gave few signs of discontent or restlessness in the first year that followed the homage of its king. Under John Balliol it had simply fallen back into the position of dependence which it held under William the Lion; and Edward had no purpose of pushing further his rights as suzerain than Henry the Second had done. One claim of the English Crown indeed was soon a subject of dispute between the lawyers of the Scotch and of the English Council boards. Edward would have granted as freely as Balliol himself that though Scotland was a dependent kingdom it was far from being an ordinary fief of the English Crown. By feudal custom a distinction had always been held to exist between the relations of a dependent king to a superior lord and those of a vassal noble to his sovereign. At Balliol's homage indeed Edward had disclaimed any right to the ordinary feudal incidents of a fief, those of wardship or marriage, and in this disclaimer he was only repeating the reservations of the marriage treaty of Brigham. There were other customs of the Scotch realm as incontestable as these. Even after the treaty of Falaise the Scotch king had not been held bound to attend the council of the English baronage, to do service in English warfare, or to contribute on the part of his Scotch realm to English aids. If no express acknowledgement of these rights had been made by Edward, for some time after his acceptance of Balliol's homage they were practically observed. The claim of independent justice was more doubtful, as it was of higher import than these. The judicial independence of Scotland had been expressly reserved in the marriage treaty. It was certain that no appeal from a Scotch King's Court to that of his overlord had been allowed since the days of William the Lion. But in the jurisprudence of the feudal lawyers the right of ultimate appeal was the test of sovereignty, and Edward regarded Balliol's homage as having placed him precisely in the position of William the Lion and subjected his decisions to those of his overlord. He was resolute therefore to assert the supremacy of his court and to receive Scotch appeals.

The French Attack

Even here however the quarrel seemed likely to end only in legal bickering. Balliol at first gave way, and it was not till 1293 that he alleged himself forced by the resentment both of his Baronage and his people to take up an attitude of resistance. While appearing therefore formally at

Westminster he refused to answer an appeal before the English courts save by advice of his Council. But real as the resentment of his barons may have been, it was not Scotland which really spurred Balliol to this defiance. His wounded pride had made him the tool of a power beyond the sea. The keenness with which France had watched every step of Edward's success in the north sprang not merely from a natural jealousy of his greatness but from its bearing on a great object of French ambition. One fragment of Eleanor's inheritance still remained to her descendants, Guienne and Gascony, the fair lands along the Garonne and the territory which stretched south of that river to the Pyrenees. It was this territory that now tempted the greed of Philip the Fair, and it was in feeding the strife between England and the Scotch king that Philip saw an opening for winning it. French envoys therefore brought promises of aid to the Scotch Court; and no sooner had these intrigues moved Balliol to resent the claims of his overlord than Philip found a pretext for open quarrel with Edward in the frays which went constantly on in the Channel between the mariners of Normandy and those of the Cinque Ports. They culminated at this moment in a great sea-fight which proved fatal to eight thousand Frenchmen, and for this Philip haughtily demanded redress. Edward saw at once the danger of his position. He did his best to allay the storm by promise of satisfaction to France, and by addressing threats of punishment to the English seamen. But Philip still clung to his wrong, while the national passion which was to prove for a hundred years to come strong enough to hold down the royal policy of peace showed itself in a characteristic defiance with which the seamen of the Cinque Ports met Edward's menaces. "Be the King's Council well advised," ran this remonstrance, "that if wrong or grievance be done them in any fashion against right, they will sooner forsake wives, children, and all that they have, and go seek through the seas where they shall think to make their profit." In spite therefore of Edward's efforts the contest continued, and Philip found in it an opportunity to cite the king before his court at Paris for wrongs done to him as suzerain. It was hard for Edward to dispute the summons without weakening the position which his own sovereign courts had taken up towards the Scotch king, and in a final effort to avert the conflict the king submitted to a legal decision of the question, and to a formal cession of Guienne into Philip's hands for forty days in acknowledgement of his supremacy. Bitter as the sacrifice must have been it failed to win peace. The forty days had no sooner passed than Philip

refused to restore the fortresses which had been left in pledge. In February 1294 he declared the English king contumacious, and in May declared his fiefs forfeited to the French Crown. Edward was driven to take up arms, but a revolt in Wales deferred the expedition to the following year. No sooner however was it again taken in hand than it became clear that a double danger had to be met. The summons which Edward addressed to the Scotch barons to follow him in arms to Guienne was disregarded. It was in truth, as we have seen, a breach of customary law, and was probably meant to force Scotland into an open declaration of its connexion with France. A second summons was followed by a more formal refusal. The greatness of the danger threw Edward on England itself. For a war in Guienne and the north he needed supplies; but he needed yet more the firm support of his people in a struggle which, little as he foresaw its ultimate results, would plainly be one of great difficulty and danger. In 1295 he called a Parliament to counsel with him on the affairs of the realm, but with the large statesmanship which distinguished him he took this occasion of giving the Parliament a shape and organization which has left its assembly the most important event in English history.

The Great Council

To realize its importance we must briefly review the changes by which the Great Council of the Norman kings had been gradually transforming itself into what was henceforth to be known as the English Parliament. Neither the Meeting of the Wise Men before the Conquest nor the Great Council of the Barons after it had been in any legal or formal way representative bodies. The first theoretically included all free holders of land, but it shrank at an early time into a gathering of earls, higher nobles, and bishops, with the officers and thegns of the royal household. Little change was made in the composition of this assembly by the Conquest, for the Great Council of the Norman kings was supposed to include all tenants who held directly of the Crown, the bishops and greater abbots (whose character as independent spiritual members tended more and more to merge in their position as barons), and the high officers of the Court. But though its composition remained the same, the character of the assembly was essentially altered; from a free gathering of "Wise Men" it sank to a Royal Court of feudal vassals. Its functions too seem to have become almost nominal and its powers to have been restricted to the sanctioning, without

debate or possibility of refusal, all grants demanded from it by the Crown. But nominal as such a sanction might be, the "counsel and consent" of the Great Council was necessary for the legal validity of every considerable fiscal or political measure. Its existence therefore remained an effectual protest against the imperial theories advanced by the lawyers of Henry the Second which declared all legislative power to reside wholly in the sovereign. It was in fact under Henry that these assemblies became more regular, and their functions more important. The reforms which marked his reign were issued in the Great Council, and even financial matters were suffered to be debated there. But it was not till the grant of the Great Charter that the powers of this assembly over taxation were formally recognized, and the principle established that no burthen beyond the customary feudal aids might be imposed "save by the Common Council of the Realm."

Greater and Lesser Barons

The same document first expressly regulated its form. In theory, as we have seen, the Great Council consisted of all who held land directly of the Crown. But the same causes which restricted attendance at the Witenagemot to the greater nobles told on the actual composition of the Council of Barons. While the attendance of the ordinary tenants in chief, the Knights or "Lesser Barons" as they were called, was burthensome from its expense to themselves, their numbers and their dependence on the higher nobles made the assembly of these knights dangerous to the Crown. As early therefore as the time of Henry the First we find a distinction recognized between the "Greater Barons," of whom the Council was usually composed, and the "Lesser Barons" who formed the bulk of the tenants of the Crown. But though the attendance of the latter had become rare their right of attendance remained intact. While enacting that the prelates and greater barons should be summoned by special writs to each gathering of the Council a remarkable provision of the Great Charter orders a general summons to be issued through the Sheriff to all direct tenants of the Crown. The provision was probably intended to rouse the lesser Baronage to the exercise of rights which had practically passed into desuetude, but as the clause is omitted in later issues of the Charter we may doubt whether the principle it embodied ever received more than a very limited application. There are traces of the attendance of a few of the lesser knighthood, gentry perhaps of the

neighbourhood where the assembly was held, in some of its meetings under Henry the Third, but till a late period in the reign of his successor the Great Council practically remained a gathering of the greater barons, the prelates, and the high officers of the Crown.

Constitutional Influence of Finance

The change which the Great Charter had failed to accomplish was now however brought about by the social circumstances of the time. One of the most remarkable of these was a steady decrease in the number of the greater nobles. The bulk of the earldoms had already lapsed to the Crown through the extinction of the families of their possessors; of the greater baronies, many had practically ceased to exist by their division among female co-heiresses, many through the constant struggle of the poorer nobles to rid themselves of their rank by a disclaimer so as to escape the burthen of higher taxation and attendance in Parliament which it involved. How far this diminution had gone we may see from the fact that hardly more than a hundred barons sat in the earlier Councils of Edward's reign. But while the number of those who actually exercised the privilege of assisting in Parliament was rapidly diminishing, the numbers and wealth of the "lesser baronage," whose right of attendance had become a mere constitutional tradition, was as rapidly increasing. The long peace and prosperity of the realm, the extension of its commerce and the increased export of wool, were swelling the ranks and incomes of the country gentry as well as of the freeholders and substantial yeomanry. We have already noticed the effects of the increase of wealth in begetting a passion for the possession of land which makes this reign so critical a period in the history of the English freeholder; but the same tendency had to some extent existed in the preceding century, and it was a consciousness of the growing importance of this class of rural proprietors which induced the barons at the moment of the Great Charter to make their fruitless attempt to induce them to take part in the deliberations of the Great Council. But while the barons desired their presence as an aid against the Crown, the Crown itself desired it as a means of rendering taxation more efficient. So long as the Great Council remained a mere assembly of magnates it was necessary for the King's ministers to treat separately with the other orders of the state as to the amount and assessment of their contributions. The grant made in the Great Council was binding only on the barons and prelates who made it; but before the aids of

the boroughs, the Church, or the shires could reach the royal treasury, a separate negotiation had to be conducted by the officers of the Exchequer with the reeves of each town, the sheriff and shire-court of each county, and the archdeacons of each diocese. Bargains of this sort would be the more tedious and disappointing as the necessities of the Crown increased in the later years of Edward, and it became a matter of fiscal expediency to obtain the sanction of any proposed taxation through the presence of these classes in the Great Council itself.

The effort however to revive the old personal attendance of the lesser baronage which had broken down half a century before could hardly be renewed at a time when the increase of their numbers made it more impracticable than ever; but a means of escape from this difficulty was fortunately suggested by the very nature of the court through which alone a summons could be addressed to the landed knighthood. Amidst the many judicial reforms of Henry or Edward the Shire Court remained unchanged. The haunted mound or the immemorial oak round which the assembly gathered (for the court was often held in the open air) were the relics of a time before the free kingdom had sunk into a shire and its Meetings of the Wise into a County Court. But save that the king's reeve had taken the place of the king and that the Norman legislation had displaced the Bishop and set four Coroners by the Sheriff's side, the gathering of the freeholders remained much as of old. The local knighthood, the yeomanry, the husbandmen of the county, were all represented in the crowd that gathered round the Sheriff, as guarded by his liveried followers he published the king's writs, announced his demand of aids, received the presentment of criminals and the inquest of the local jurors, assessed the taxation of each district, or listened solemnly to appeals for justice, civil and criminal, from all who held themselves oppressed in the lesser courts of the hundred or the soke. It was in the County Court alone that the Sheriff could legally summon the lesser baronage to attend the Great Council, and it was in the actual constitution of this assembly that the Crown found a solution of the difficulty which we have stated. For the principle of representation by which it was finally solved was coeval with the Shire Court itself. In all cases of civil or criminal justice the twelve sworn assessors of the Sheriff, as members of a class, though not formally deputed for that purpose, practically represented the judicial opinion of the county at large. From

every hundred came groups of twelve sworn deputies, the "jurors" through whom the presentments of the district were made to the royal officer and with whom the assessment of its share in the general taxation was arranged. The husbandmen on the outskirts of the crowd, clad in the brown smock frock which still lingers in the garb of our carters and ploughmen, were broken up into little knots of five, a reeve and four assistants, each of which knots formed the representative of a rural township. If in fact we regard the Shire Courts as lineally the descendants of our earliest English Witenagemots, we may justly claim the principle of parliamentary representation as among the oldest of our institutions.

Knights of the Shire

It was easy to give this principle a further extension by the choice of representatives of the lesser barons in the shire courts to which they were summoned; but it was only slowly and tentatively that this process was applied to the reconstitution of the Great Council. As early as the close of John's reign there are indications of the approaching change in the summons of "four discreet knights" from every county. Fresh need of local support was felt by both parties in the conflict of the succeeding reign, and Henry and his barons alike summoned knights from each shire "to meet on the common business of the realm." It was no doubt with the same purpose that the writs of Earl Simon ordered the choice of knights in each shire for his famous Parliament of 1265. Something like a continuous attendance may be dated from the accession of Edward, but it was long before the knights were regarded as more than local deputies for the assessment of taxation or admitted to a share in the general business of the Great Council. The statute "Quia Emptores," for instance, was passed in it before the knights who had been summoned could attend. Their participation in the deliberative power of Parliament, as well as their regular and continuous attendance, dates only from the Parliament of 1295. But a far greater constitutional change in their position had already taken place through the extension of electoral rights to the freeholders at large. The one class entitled to a seat in the Great Council was, as we have seen, that of the lesser baronage; and it was of the lesser baronage alone that the knights were in theory the representatives. But the necessity of holding their election in the County Court rendered any restriction of the electoral body physically impossible. The court was composed of the whole body of freeholders, and no sheriff could distinguish

the "aye, aye" of the yeoman from the "aye, aye" of the lesser baron. From the first moment therefore of their attendance we find the knights regarded not as mere representatives of the baronage but as knights of the shire, and by this silent revolution the whole body of the rural freeholders were admitted to a share in the government of the realm.

Boroughs and the Crown

The financial difficulties of the Crown led to a far more radical revolution in the admission into the Great Council of representatives from the boroughs. The presence of knights from each shire was the recognition of an older right, but no right of attendance or share in the national "counsel and assent" could be pleaded for the burgesses of the towns. On the other hand the rapid development of their wealth made them every day more important as elements in the national taxation. From all payment of the dues or fines exacted by the king as the original lord of the soil on which they had in most cases grown up the towns had long since freed themselves by what was called the purchase of the "farm of the borough"; in other words, by the commutation of these uncertain dues for a fixed sum paid annually to the Crown and apportioned by their own magistrates among the general body of the burghers. All that the king legally retained was the right enjoyed by every great proprietor of levying a corresponding taxation on his tenants in demesne under the name of "a free aid" whenever a grant was made for the national necessities by the barons of the Great Council. But the temptation of appropriating the growing wealth of the mercantile class proved stronger than legal restrictions, and we find both Henry the Third and his son assuming a right of imposing taxes at pleasure and without any authority from the Council even over London itself. The burgesses could refuse indeed the invitation to contribute to the "free aids" demanded by the royal officers, but the suspension of their markets or trading privileges brought them in the end to submission. Each of these "free aids" however had to be extorted after a long wrangle between the borough and the officers of the Exchequer; and if the towns were driven to comply with what they considered an extortion they could generally force the Crown by evasions and delays to a compromise and abatement of its original demands.

Burgesses in Parliament

The same financial reasons therefore existed for desiring the presence of borough representatives in the Great Council as existed in the case of the shires; but it was the genius of Earl Simon which first broke through the older constitutional tradition and summoned two burgesses from each town to the Parliament of 1265. Time had indeed to pass before the large and statesmanlike conception of the great patriot could meet with full acceptance. Through the earlier part of Edward's reign we find a few instances of the presence of representatives from the towns, but their scanty numbers and the irregularity of their attendance show that they were summoned rather to afford financial information to the Great Council than as representatives in it of an Estate of the Realm. But every year pleaded stronger and stronger for their inclusion, and in the Parliament of 1295 that of 1265 found itself at last reproduced. "It was from me that he learnt it," Earl Simon had cried, as he recognized the military skill of Edward's onset at Evesham; "it was from me that he learnt it," his spirit might have exclaimed as he saw the king gathering at last two burgesses "from every city, borough, and leading town" within his realm to sit side by side with the knights, nobles, and barons of the Great Council. To the Crown the change was from the first an advantageous one. The grants of subsidies by the burgesses in Parliament proved more profitable than the previous extortions of the Exchequer. The proportions of their grant generally exceeded that of the other estates. Their representatives too proved far more compliant with the royal will than the barons or knights of the shire; only on one occasion during Edward's reign did the burgesses waver from their general support of the Crown.

Reluctance to attend

It was easy indeed to control them, for the selection of boroughs to be represented remained wholly in the king's hands, and their numbers could be increased or diminished at the king's pleasure. The determination was left to the sheriff, and at a hint from the royal Council a sheriff of Wilts would cut down the number of represented boroughs in his shire from eleven to three, or a sheriff of Bucks declare he could find but a single borough, that of Wycombe, within the bounds of his county. Nor was this exercise of the prerogative hampered by any anxiety on the part of the towns to claim representative privileges. It was hard to suspect that a power before which the Crown would have to bow lay in the ranks of soberly-clad

traders, summoned only to assess the contributions of their boroughs, and whose attendance was as difficult to secure as it seemed burthensome to themselves and the towns who sent them. The mass of citizens took little or no part in their choice, for they were elected in the county court by a few of the principal burghers deputed for the purpose; but the cost of their maintenance, the two shillings a day paid to the burgess by his town as four were paid to the knight by his county, was a burden from which the boroughs made desperate efforts to escape. Some persisted in making no return to the sheriff. Some bought charters of exemption from the troublesome privilege. Of the 165 who were summoned by Edward the First more than a third ceased to send representatives after a single compliance with the royal summons. During the whole time from the reign of Edward the Third to the reign of Henry the Sixth the sheriff of Lancashire declined to return the names of any boroughs at all within that county "on account of their poverty." Nor were the representatives themselves more anxious to appear than their boroughs to send them. The busy country squire and the thrifty trader were equally reluctant to undergo the trouble and expense of a journey to Westminster. Legal measures were often necessary to ensure their presence. Writs still exist in abundance such as that by which Walter le Rous is "held to bail in eight oxen and four cart-horses to come before the King on the day specified" for attendance in Parliament. But in spite of obstacles such as these the presence of representatives from the boroughs may be regarded as continuous from the Parliament of 1295. As the representation of the lesser barons had widened through a silent change into that of the shire, so that of the boroughs--restricted in theory to those in the royal demesne--seems practically from Edward's time to have been extended to all who were in a condition to pay the cost of their representatives' support. By a change as silent within the Parliament itself the burgess, originally summoned to take part only in matters of taxation, was at last admitted to a full share in the deliberations and authority of the other orders of the State.

Parliament and the Clergy

The admission of the burgesses and knights of the shire to the assembly of 1295 completed the fabric of our representative constitution. The Great Council of the Barons became the Parliament of the Realm. Every order of the state found itself represented in this assembly, and took part in the grant

of supplies, the work of legislation, and in the end the control of government. But though in all essential points the character of Parliament has remained the same from that time to this, there were some remarkable particulars in which the assembly of 1295 differed widely from the present Parliament at St. Stephen's. Some of these differences, such as those which sprang from the increased powers and changed relations of the different orders among themselves, we shall have occasion to consider at a later time. But a difference of a far more startling kind than these lay in the presence of the clergy. If there is any part in the parliamentary scheme of Edward the First which can be regarded as especially his own, it is his project for the representation of the ecclesiastical order. The King had twice at least summoned its "proctors" to Great Councils before 1295, but it was then only that the complete representation of the Church was definitely organized by the insertion of a clause in the writ which summoned a bishop to Parliament requiring the personal attendance of all archdeacons, deans, or priors of cathedral churches, of a proctor for each cathedral chapter, and two for the clergy within his diocese. The clause is repeated in the writs of the present day, but its practical effect was foiled almost from the first by the resolute opposition of those to whom it was addressed. What the towns failed in doing the clergy actually did. Even when forced to comply with the royal summons, as they seem to have been forced during Edward's reign, they sat jealously by themselves, and their refusal to vote supplies in any but their own provincial assemblies, or convocations, of Canterbury and York left the Crown without a motive for insisting on their continued attendance. Their presence indeed, though still at times granted on some solemn occasions, became so pure a formality that by the end of the fifteenth century it had sunk wholly into desuetude. In their anxiety to preserve their existence as an isolated and privileged order the clergy flung away a power which, had they retained it, would have ruinously hampered the healthy developement of the state. To take a single instance, it is difficult to see how the great changes of the Reformation could have been brought about had a good half of the House of Commons consisted purely of churchmen, whose numbers would have been backed by the weight of their property as possessors of a third of the landed estates of the realm.

Parliament at Westminster

A hardly less important difference may be found in the gradual restriction of the meetings of Parliament to Westminster. The names of Edward's statutes remind us of its convocation at the most various quarters, at Winchester, Acton Burnell, Northampton. It was at a later time that Parliament became settled in the straggling village which had grown up in the marshy swamp of the Isle of Thorns beside the palace whose embattled pile towered over the Thames and the new Westminster which was still rising in Edward's day on the site of the older church of the Confessor. It is possible that, while contributing greatly to its constitutional importance, this settlement of the Parliament may have helped to throw into the background its character as a supreme court of appeal. The proclamation by which it was called together invited "all who had any grace to demand of the King in Parliament, or any plaint to make of matters which could not be redressed or determined by ordinary course of law, or who had been in any way aggrieved by any of the King's ministers or justices or sheriffs, or their bailiffs, or any other officer, or have been unduly assessed, rated, charged, or surcharged to aids, subsidies, or taxes," to deliver their petitions to receivers who sat in the Great Hall of the Palace of Westminster. The petitions were forwarded to the King's Council, and it was probably the extension of the jurisdiction of that body and the rise of the Court of Chancery which reduced this ancient right of the subject to the formal election of "Triers of Petitions" at the opening of every new Parliament by the House of Lords, a usage which is still continued. But it must have been owing to some memory of the older custom that the subject always looked for redress against injuries from the Crown or its ministers to the Parliament of the realm.

Conquest of Scotland

The subsidies granted by the Parliament of 1295 furnished the king with the means of warfare with both Scotland and France while they assured him of the sympathy of his people in the contest. But from the first the reluctance of Edward to enter on the double war was strongly marked. The refusal of the Scotch baronage to obey his summons had been followed on Balliol's part by two secret steps which made a struggle inevitable, by a request to Rome for absolution from his oath of fealty and by a treaty of alliance with Philip the Fair. As yet however no open breach had taken place, and while Edward in 1296 summoned his knighthood to meet him in

the north he called a Parliament at Newcastle in the hope of bringing about an accommodation with the Scot king. But all thought of accommodation was roughly ended by the refusal of Balliol to attend the Parliament, by the rout of a small body of English troops, and by the Scotch investment of Carlisle. Taken as he was by surprise, Edward showed at once the vigour and rapidity of his temper. His army marched upon Berwick. The town was a rich and well-peopled one, and although a wooden stockade furnished its only rampart the serried ranks of citizens behind it gave little hope of an easy conquest. Their taunts indeed stung the king to the quick. As his engineers threw up rough entrenchments for the besieging army the burghers bade him wait till he won the town before he began digging round it. "Kynge Edward," they shouted, "waune thou havest Berwick, pike thee; waune thou havest gotten, dike thee." But the stockade was stormed with the loss of a single knight, nearly eight thousand of the citizens were mown down in a ruthless carnage, and a handful of Flemish traders who held the town-hall stoutly against all assailants were burned alive in it. The massacre only ceased when a procession of priests bore the host to the king's presence, praying for mercy. Edward with a sudden and characteristic burst of tears called off his troops; but the town was ruined for ever, and the greatest merchant city of northern Britain sank from that time into a petty seaport.

At Berwick Edward received Balliol's formal defiance. "Has the fool done this folly?" the king cried in haughty scorn; "if he will not come to us, we will come to him." The terrible slaughter however had done its work, and his march northward was a triumphal progress. Edinburgh, Stirling, and Perth opened their gates, Bruce joined the English army, and Balliol himself surrendered and passed without a blow from his throne to an English prison. No further punishment however was exacted from the prostrate realm. Edward simply treated it as a fief, and declared its forfeiture to be the legal consequence of Balliol's treason. It lapsed in fact to its suzerain; and its earls, barons, and gentry swore homage in Parliament at Berwick to Edward as their king. The sacred stone on which its older sovereigns had been installed, an oblong block of limestone which legend asserted to have been the pillow of Jacob as angels ascended and descended upon him, was removed from Scone and placed in Westminster by the shrine of the Confessor. It was enclosed by Edward's order in a stately seat, which

became from that hour the coronation chair of English kings. To the king himself the whole business must have seemed another and easier conquest of Wales, and the mercy and just government which had followed his first success followed his second also. The government of the new dependency was entrusted to John of Warenne, Earl of Surrey, at the head of an English Council of Regency. Pardon was freely extended to all who had resisted the invasion, and order and public peace were rigidly enforced.

Confirmation of the Charters

But the triumph, rapid and complete as it was, had more than exhausted the aids granted by the Parliament. The treasury was utterly drained. The struggle indeed widened as every month went on; the costly fight with the French in Gascony called for supplies, while Edward was planning a yet costlier attack on northern France with the aid of Flanders. Need drove him on his return from Scotland in 1297 to measures of tyrannical extortion which seemed to recall the times of John. His first blow fell on the Church. At the close of 1294 he had already demanded half their annual income from the clergy, and so terrible was his wrath at their resistance that the Dean of St. Paul's, who stood forth to remonstrate, dropped dead of sheer terror at his feet. "If any oppose the King's demand," said a royal envoy in the midst of the Convocation, "let him stand up that he may be noted as an enemy to the King's peace." The outraged Churchmen fell back on an untenable plea that their aid was due solely to Rome, and alleged the bull of "Clericis Laicos," issued by Boniface the Eighth at this moment, a bull which forbade the clergy to pay secular taxes from their ecclesiastical revenues, as a ground for refusing to comply with further taxation. In 1297 Archbishop Winchelsey refused on the ground of this bull to make any grant, and Edward met his refusal by a general outlawry of the whole order. The King's Courts were closed, and all justice denied to those who refused the king aid. By their actual plea the clergy had put themselves formally in the wrong, and the outlawry soon forced them to submission; but their aid did little to recruit the exhausted treasury. The pressure of the war steadily increased, and far wider measures of arbitrary taxation were needful to equip an expedition which Edward prepared to lead in person to Flanders. The country gentlemen were compelled to take up knighthood or to compound for exemption from the burthensome honour, and forced contributions of cattle and corn were demanded from the counties. Edward

no doubt purposed to pay honestly for these supplies, but his exactions from the merchant class rested on a deliberate theory of his royal rights. He looked on the customs as levied absolutely at his pleasure, and the export duty on wool--now the staple produce of the country--was raised to six times its former amount. Although he infringed no positive provision of charter or statute in his action, it was plain that his course really undid all that had been gained by the Barons' war. But the blow had no sooner been struck than Edward found stout resistance within his realm. The barons drew together and called a meeting for the redress of their grievances. The two greatest of the English nobles, Humfrey de Bohun, Earl of Hereford, and Roger Bigod, Earl of Norfolk, placed themselves at the head of the opposition. The first was Constable, the second Earl Marshal, and Edward bade them lead a force to Gascony as his lieutenants while he himself sailed to Flanders. Their departure would have left the Baronage without leaders, and the two earls availed themselves of a plea that they were not bound to foreign service save in attendance on the king to refuse obedience to the royal orders. "By God, Sir Earl," swore the king to the Earl Marshal, "you shall either go or hang!" "By God, Sir King," was the cool reply, "I will neither go nor hang!" Both parties separated in bitter anger; the king to seize fresh wool, to outlaw the clergy, and to call an army to his aid; the barons to gather in arms, backed by the excommunication of the Primate. But the strife went no further than words. Ere the Parliament he had convened could meet, Edward had discovered his own powerlessness; Winchelsey offered his mediation; and Edward confirmed the Great Charter and the Charter of Forests as the price of a grant from the clergy and a subsidy from the Commons. With one of those sudden revulsions of feeling of which his nature was capable the king stood before his people in Westminster Hall and owned with a burst of tears that he had taken their substance without due warrant of law. His passionate appeal to their loyalty wrested a reluctant assent to the prosecution, of the war, and in August Edward sailed for Flanders, leaving his son regent of the realm. But the crisis had taught the need of further securities against the royal power, and as Edward was about to embark the barons demanded his acceptance of additional articles to the Charter, expressly renouncing his right of taxing the nation without its own consent. The king sailed without complying, but Winchelsey joined the two earls and the citizens of London in forbidding any levy of supplies till the Great Charter with these clauses was again

confirmed, and the trouble in Scotland as well as the still pending strife with France left Edward helpless in the barons' hands. The Great Charter and the Charter of the Forests were solemnly confirmed by him at Ghent in November; and formal pardon was issued to the Earls of Hereford and Norfolk.

Revolt of Scotland

The confirmation of the Charter, the renunciation of any right to the exactions by which the people were aggrieved, the pledge that the king would no more take "such aids, tasks, and prizes but by common assent of the realm," the promise not to impose on wool any heavy customs or "maltôte" without the same assent, was the close of the great struggle which had begun at Runnymede. The clauses so soon removed from the Great Charter were now restored; and, evade them as they might, the kings were never able to free themselves from the obligation to seek aid solely from the general consent of their subjects. It was Scotland which had won this victory for English freedom. At the moment when Edward and the earls stood face to face the king saw his work in the north suddenly undone. Both the justice and injustice of the new rule proved fatal to it. The wrath of the Scots, already kindled by the intrusion of English priests into Scotch livings and by the grant of lands across the border to English barons, was fanned to fury by the strict administration of law and the repression of feuds and cattle-lifting. The disbanding too of troops, which was caused by the penury of the royal exchequer, united with the licence of the soldiery who remained to quicken the national sense of wrong. The disgraceful submission of their leaders brought the people themselves to the front. In spite of a hundred years of peace the farmer of Fife or the Lowlands and the artizan of the towns remained stout-hearted Northumbrian Englishmen. They had never consented to Edward's supremacy, and their blood rose against the insolent rule of the stranger. The genius of an outlaw knight, William Wallace, saw in their smouldering discontent a hope of freedom for his country, and his daring raids on outlying parties of the English soldiery roused the country at last into revolt.

Wallace

Of Wallace himself, of his life or temper, we know little or nothing; the very traditions of his gigantic stature and enormous strength are dim and unhistorical. But the instinct of the Scotch people has guided it aright in choosing him for its national hero. He was the first to assert freedom as a national birthright, and amidst the despair of nobles and priests to call the people itself to arms. At the head of an army drawn principally from the coast districts north of the Tay, which were inhabited by a population of the same blood as that of the Lowlands, Wallace in September 1297 encamped near Stirling, the pass between the north and the south, and awaited the English advance. It was here that he was found by the English army. The offers of John of Warenne were scornfully rejected: "We have come," said the Scottish leader, "not to make peace, but to free our country." The position of Wallace behind a loop of Forth was in fact chosen with consummate skill. The one bridge which crossed the river was only broad enough to admit two horsemen abreast; and though the English army had been passing from daybreak but half its force was across at noon when Wallace closed on it and cut it after a short combat to pieces in sight of its comrades. The retreat of the Earl of Surrey over the border left Wallace head of the country he had freed, and for a few months he acted as "Guardian of the Realm" in Balliol's name, and headed a wild foray into Northumberland in which the barbarous cruelties of his men left a bitter hatred behind them which was to wreak its vengeance in the later bloodshed of the war. His reduction of Stirling Castle at last called Edward to the field. In the spring of 1298 the king's diplomacy had at last wrung a truce for two years from Philip the Fair; and he at once returned to England to face the troubles in Scotland. Marching northward with a larger host than had ever followed his banner, he was enabled by treachery to surprise Wallace as he fell back to avoid an engagement, and to force him on the twenty-second of July to battle near Falkirk. The Scotch force consisted almost wholly of foot, and Wallace drew up his spearmen in four great hollow circles or squares, the outer ranks kneeling and the whole supported by bowmen within, while a small force of horse were drawn up as a reserve in the rear. It was the formation of Waterloo, the first appearance in our history since the day of Senlac of "that unconquerable British infantry" before which chivalry was destined to go down. For a moment it had all Waterloo's success. "I have brought you to the ring, hop (dance) if you can," are words of rough humour that reveal the very soul of the patriot leader, and the

serried ranks answered well to his appeal. The Bishop of Durham who led the English van shrank wisely from the look of the squares. "Back to your mass, Bishop," shouted the reckless knights behind him, but the body of horse dashed itself vainly on the wall of spears. Terror spread through the English army, and its Welsh auxiliaries drew off in a body from the field. But the generalship of Wallace was met by that of the king. Drawing his bowmen to the front, Edward riddled the Scottish ranks with arrows and then hurled his cavalry afresh on the wavering line. In a moment all was over, the maddened knights rode in and out of the broken ranks, slaying without mercy. Thousands fell on the field, and Wallace himself escaped with difficulty, followed by a handful of men.

Second Conquest of Scotland

But ruined as the cause of freedom seemed, his work was done. He had roused Scotland into life, and even a defeat like Falkirk left her unconquered. Edward remained master only of the ground he stood on: want of supplies forced him at last to retreat; and in the summer of the following year, 1299, when Balliol, released from his English prison, withdrew into France, a regency of the Scotch nobles under Robert Bruce and John Comyn continued the struggle for independence. Troubles at home and danger from abroad stayed Edward's hand. The barons still distrusted his sincerity, and though at their demand he renewed the Confirmation in the spring of 1299, his attempt to add an evasive clause saving the right of the Crown proved the justice of their distrust. In spite of a fresh and unconditional renewal of it a strife over the Forest Charter went on till the opening of 1301 when a new gathering of the barons in arms with the support of Archbishop Winchelsey wrested from him its full execution. What aided freedom within was as of old the peril without. France was still menacing, and a claim advanced by Pope Boniface the Eighth at its suggestion to the feudal superiority over Scotland arrested a new advance of the king across the border. A quarrel however which broke out between Philip le Bel and the Papacy removed all obstacles. It enabled Edward to defy Boniface and to wring from France a treaty in which Scotland was abandoned. In 1304 he resumed the work of invasion, and again the nobles flung down their arms as he marched to the North. Comyn, at the head of the Regency, acknowledged his sovereignty, and the surrender of Stirling completed the conquest of Scotland. But the triumph of Edward was only

the prelude to the carrying out of his designs for knitting the two countries together by a generosity and wisdom which reveal the greatness of his statesmanship. A general amnesty was extended to all who had shared in the resistance. Wallace, who refused to avail himself of Edward's mercy, was captured and condemned to death at Westminster on charges of treason, sacrilege, and robbery. The head of the great patriot, crowned in mockery with a circlet of laurel, was placed upon London Bridge. But the execution of Wallace was the one blot on Edward's clemency. With a masterly boldness he entrusted the government of the country to a council of Scotch nobles, many of whom were freshly pardoned for their share in the war, and anticipated the policy of Cromwell by allotting ten representatives to Scotland in the Common Parliament of his realm. A Convocation was summoned at Perth for the election of these representatives, and a great judicial scheme which was promulgated in this assembly adopted the amended laws of King David as the base of a new legislation, and divided the country for judicial purposes into four districts, Lothian, Galloway, the Highlands, and the land between the Highlands and the Forth, at the head of each of which were placed two justiciaries, the one English and the other Scotch.

Rising of Bruce

With the conquest and settlement of Scotland the glory of Edward seemed again complete. The bitterness of his humiliation at home indeed still preyed upon him, and in measure after measure we see his purpose of renewing the strife with the baronage. In 1303 he found a means of evading his pledge to levy no new taxes on merchandise save by assent of the realm in a consent of the foreign merchants, whether procured by royal pressure or no, to purchase by stated payments certain privileges of trading. In this "New Custom" lay the origin of our import duties. A formal absolution from his promises which he obtained from Pope Clement the Fifth in 1305 showed that he looked on his triumph in the North as enabling him to reopen the questions which he had yielded. But again Scotland stayed his hand. Only four months had passed since its submission, and he was preparing for a joint Parliament of the two nations at Carlisle, when the conquered country suddenly sprang again to arms. Its new leader was Robert Bruce, a grandson of one of the original claimants of the crown. The Norman house of Bruce formed a part of the Yorkshire baronage, but it had

acquired through intermarriages the Earldom of Carrick and the Lordship of Annandale. Both the claimant and his son had been pretty steadily on the English side in the contest with Balliol and Wallace, and Robert had himself been trained in the English court and stood high in the king's favour. But the withdrawal of Balliol gave a new force to his claims upon the crown, and the discovery of an intrigue which he had set on foot with the Bishop of St. Andrews so roused Edward's jealousy that Bruce fled for his life across the border. Early in 1306 he met Comyn, the Lord of Badenoch, to whose treachery he attributed the disclosure of his plans, in the church of the Grey Friars at Dumfries, and after the interchange of a few hot words struck him with his dagger to the ground. It was an outrage that admitted of no forgiveness, and Bruce for very safety was forced to assume the crown six weeks after in the Abbey of Scone. The news roused Scotland again to arms, and summoned Edward to a fresh contest with his unconquerable foe. But the murder of Comyn had changed the king's mood to a terrible pitilessness. He threatened death against all concerned in the outrage, and exposed the Countess of Buchan, who had set the crown on Bruce's head, in a cage or open chamber built for the purpose in one of the towers of Berwick. At the solemn feast which celebrated his son's knighthood Edward vowed on the swan which formed the chief dish at the banquet to devote the rest of his days to exact vengeance from the murderer himself. But even at the moment of the vow Bruce was already flying for his life to the western islands. "Henceforth" he said to his wife at their coronation "thou art Queen of Scotland and I King." "I fear" replied Mary Bruce "we are only playing at royalty like children in their games." The play was soon turned into bitter earnest. A small English force under Aymer de Valence sufficed to rout the disorderly levies which gathered round the new monarch, and the flight of Bruce left his followers at Edward's mercy. Noble after noble was sent to the block. The Earl of Athole pleaded kindred with royalty. "His only privilege," burst forth the king, "shall be that of being hanged on a higher gallows than the rest." Knights and priests were strung up side by side by the English justiciaries; while the wife and daughters of Robert Bruce were flung into Edward's prisons. Bruce himself had offered to capitulate to Prince Edward. But the offer only roused the old king to fury. "Who is so bold," he cried, "as to treat with our traitors without our knowledge?" and rising from his sick-bed he led his army northwards in the summer of 1307

to complete the conquest. But the hand of death was upon him, and in the very sight of Scotland the old man breathed his last at Burgh-upon-Sands.

BOOK IV
THE PARLIAMENT
1307-1461

AUTHORITIES FOR BOOK IV

For Edward the Second we have three important contemporaries: Thomas de la More, Trokelowe's Annals, and the life by a monk of Malmesbury printed by Hearne. The sympathies of the first are with the King, those of the last two with the Barons. Murimuth's short Chronicle is also contemporary. John Barbour's "Bruce," the great legendary storehouse for his hero's adventures, is historically worthless.

Important as it is, the reign of Edward the Third is by no means fortunate in its annalists. The concluding part of the Chronicle of Walter of Hemingford or Heminburgh seems to have been jotted down as news of the passing events reached its author: it ends at the battle of Crécy. Hearne has published another contemporary account, that of Robert of Avesbury, which closes in 1356. A third account by Knyghton, a canon of Leicester, will be found in the collection of Twysden. At the end of this century and the beginning of the next the annals which had been carried on in the Abbey of St. Albans were thrown together by Walsingham in the "Historia Anglicana" which bears his name, a compilation whose history may be found in the prefaces to the "Chronica Monasterii S. Albani" issued in the Rolls Series. An anonymous chronicler whose work is printed in the 22nd volume of the "Archæologia" has given us the story of the Good Parliament, another account is preserved in the "Chronica Angliæ from 1328 to 1388," published in the Rolls Series, and fresh light has been recently thrown on the time by the publication of a Chronicle by Adam of Usk which extends from 1377 to 1404. Fortunately the scantiness of historical narrative is compensated by the growing fulness and abundance of our State papers. Rymer's Foedera is rich in diplomatic and other documents for this period, and from this time we have a storehouse of political and social information in the Parliamentary Rolls.

For the French war itself our primary authority is the Chronicle of Jehan le Bel, a canon of the church of St. Lambert of Liége, who himself served in Edward's campaign against the Scots and spent the rest of his life at the

court of John of Hainault. Up to the Treaty of Brétigny, where it closes, Froissart has done little more than copy this work, making however large additions from his own enquiries, especially in the Flemish and Breton campaigns and in the account of Crécy. Froissart was himself a Hainaulter of Valenciennes; he held a post in Queen Philippa's household from 1361 to 1369, and under this influence produced in 1373 the first edition of his well-known Chronicle. A later edition is far less English in tone, and a third version, begun by him in his old age after long absence from England, is distinctly French in its sympathies. Froissart's vivacity and picturesqueness blind us to the inaccuracy of his details; as an historical authority he is of little value. The "Fasciculi Zizaniorum" in the Rolls Series with the documents appended to it is a work of primary authority for the history of Wyclif and his followers: a selection from his English tracts has been made by Mr. T. Arnold for the University of Oxford, which has also published his "Trias." The version of the Bible that bears his name has been edited with a valuable preface by the Rev. J. Forshall and Sir F. Madden. William Langland's poem, "The Complaint of Piers the Ploughman" (edited by Mr. Skeat for the Early English Text Society), throws a flood of light on the social state of England after the Treaty of Brétigny.

The "Annals of Richard the Second and Henry the Fourth," now published by the Master of the Rolls, are our main authority for the period which follows Edward's death. They serve as the basis of the St. Albans compilation which bears the name of Walsingham, and from which the "Life of Richard" by a monk of Evesham is for the most part derived. The same violent Lancastrian sympathy runs through Walsingham and the fifth book of Knyghton's Chronicle. The French authorities on the other hand are vehemently on Richard's side. Froissart, who ends at this time, is supplemented by the metrical history of Creton ("Archæologia," vol. xx.), and by the "Chronique de la Traison et Mort de Richart" (English Historical Society), both works of French authors and published in France in the time of Henry the Fourth, probably with the aim of arousing French feeling against the House of Lancaster and the war-policy which it had revived. The popular feeling in England may be seen in "Political Songs from Edward III. to Richard III." (Rolls Series). A poem on "The Deposition of Richard II." which has been published by the Camden Society is now ascribed to William Langland.

With Henry the Fifth our historic materials become more abundant. We have the "Gesta Henrici Quinti" by Titus Livius, a chaplain in the royal army; a life by Elmham, prior of Lenton, simpler in style but identical in arrangement and facts with the former work; a biography by Robert Redman; a metrical chronicle by Elmham (published in Rolls Series in "Memorials of Henry the Fifth"); and the meagre chronicles of Hardyng and Otterbourne. The King's Norman campaigns may be studied in M. Puisieux's "Siège de Rouen" (Caen, 1867). The "Wars of the English in France" and Blondel's work "De Reductione Normanniæ" (both in Rolls Series) give ample information on the military side of this and the next reign. But with the accession of Henry the Sixth we again enter on a period of singular dearth in its historical authorities. The "Procès de Jeanne d'Arc" (published by the Société de l'Histoire de France) is the only real authority for her history. For English affairs we are reduced to the meagre accounts of William of Worcester, of the Continuator of the Crowland Chronicle, and of Fabyan. Fabyan is a London alderman with a strong bias in favour of the House of Lancaster, and his work is useful for London only. The Continuator is one of the best of his class; and though connected with the house of York, the date of his work, which appeared soon after Bosworth Field, makes him fairly impartial; but he is sketchy and deficient in information. The more copious narrative of Polydore Vergil is far superior to these in literary ability, but of later date, and strongly Lancastrian in tone. For the struggle between Edward and Warwick, the valuable narrative of "The Arrival of Edward the Fourth" (Camden Society) may be taken as the official account on the royal side. The Paston Letters are the first instance in English history of a family correspondence, and throw great light on the social condition of the time.

CHAPTER I

EDWARD II

1307-1327

Parliament and the Kings

In his calling together the estates of the realm Edward the First determined the course of English history. From the first moment of its appearance the Parliament became the centre of English affairs. The hundred years indeed which follow its assembly at Westminster saw its rise into a power which checked and overawed the Crown.

Of the kings in whose reigns the Parliament gathered this mighty strength not one was likely to look with indifference on the growth of a rival authority, and the bulk of them were men who in other times would have roughly checked it. What held their hand was the need of the Crown. The century and a half that followed the gathering of the estates at Westminster was a time of almost continual war, and of the financial pressure that springs from war. It was indeed war that had gathered them. In calling his Parliament Edward the First sought mainly an effective means of procuring supplies for that policy of national consolidation which had triumphed in Wales and which seemed to be triumphing in Scotland. But the triumph in Scotland soon proved a delusive one, and the strife brought wider strifes in its train. When Edward wrung from Balliol an acknowledgement of his suzerainty he foresaw little of the war with France, the war with Spain, the quarrel with the Papacy, the upgrowth of social, of political, of religious revolution within England itself, of which that acknowledgement was to be the prelude. But the thicker troubles gathered round England the more the royal treasury was drained, and now that arbitrary taxation was impossible the one means of filling it lay in a summons of the Houses. The Crown was chained to the Parliament by a tie of absolute need. From the first moment of parliamentary existence the life and power of the estates assembled at Westminster hung on the question of supplies. So long as war went on no

ruler could dispense with the grants which fed the war and which Parliament alone could afford. But it was impossible to procure supplies save by redressing the grievances of which Parliament complained and by granting the powers which Parliament demanded. It was in vain that king after king, conscious that war bound them to the Parliament, strove to rid themselves of the war. So far was the ambition of our rulers from being the cause of the long struggle that, save in the one case of Henry the Fifth, the desperate effort of every ruler was to arrive at peace. Forced as they were to fight, their restless diplomacy strove to draw from victory as from defeat a means of escape from the strife that was enslaving the Crown. The royal Council, the royal favourites, were always on the side of peace. But fortunately for English freedom peace was impossible. The pride of the English people, the greed of France, foiled every attempt at accommodation. The wisest ministers sacrificed themselves in vain. King after king patched up truces which never grew into treaties, and concluded marriages which brought fresh discord instead of peace. War went ceaselessly on, and with the march of war went on the ceaseless growth of the Parliament.

Robert Bruce

The death of Edward the First arrested only for a moment the advance of his army to the north. The Earl of Pembroke led it across the border, and found himself master of the country without a blow. Bruce's career became that of a desperate adventurer, for even the Highland chiefs in whose fastnesses he found shelter were bitterly hostile to one who claimed to be king of their foes in the Lowlands. It was this adversity that transformed the murderer of Comyn into the noble leader of a nation's cause. Strong and of commanding presence, brave and genial in temper, Bruce bore the hardships of his career with a courage and hopefulness that never failed. In the legends that clustered round his name we see him listening in Highland glens to the bay of the bloodhounds on his track, or holding a pass single-handed against a crowd of savage clansmen. Sometimes the small band which clung to him were forced to support themselves by hunting and fishing, sometimes to break up for safety as their enemies tracked them to their lair. Bruce himself had more than once to fling off his coat-of-mail and scramble barefoot for very life up the crags. Little by little, however, the dark sky cleared. The English pressure relaxed. James Douglas, the darling

of Scottish story, was the first of the Lowland Barons to rally to the Bruce, and his daring gave heart to the king's cause. Once he surprised his own house, which had been given to an Englishman, ate the dinner which was prepared for its new owner, slew his captives, and tossed their bodies on to a pile of wood at the castle gate. Then he staved in the wine-vats that the wine might mingle with their blood, and set house and wood-pile on fire.

Edward the Second

A ferocity like this degraded everywhere the work of freedom; but the revival of the country went steadily on. Pembroke and the English forces were in fact paralyzed by a strife which had broken out in England between the new king and his baronage. The moral purpose which had raised his father to grandeur was wholly wanting in Edward the Second; he was showy, idle, and stubborn in temper; but he was far from being destitute of the intellectual quickness which seemed inborn in the Plantagenets. He had no love for his father, but he had seen him in the later years of his reign struggling against the pressure of the baronage, evading his pledges as to taxation, and procuring absolution from his promise to observe the clauses added to the Charter. The son's purpose was the same, that of throwing off what he looked on as the yoke of the baronage; but the means by which he designed to bring about his purpose was the choice of a minister wholly dependent on the Crown. We have already noticed the change by which the "clerks of the King's chapel," who had been the ministers of arbitrary government under the Norman and Angevin sovereigns, had been quietly superseded by the prelates and lords of the Continual Council. At the close of the late reign a direct demand on the part of the barons to nominate the great officers of state had been curtly rejected, but the royal choice had been practically limited in the selection of its ministers to the class of prelates and nobles, and however closely connected with royalty they might be such officers always to a great extent shared the feelings and opinions of their order. The aim of the young king seems to have been to undo the change which had been silently brought about, and to imitate the policy of the contemporary sovereigns of France by choosing as his ministers men of an inferior position, wholly dependent on the Crown for their power, and representatives of nothing but the policy and interests of their master. Piers Gaveston, a foreigner sprung from a family of Guienne, had been his friend and companion during his father's reign, at the close of which he had been

banished from the realm for his share in intrigues which divided Edward from his son. At the accession of the new king he was at once recalled, created Earl of Cornwall, and placed at the head of the administration. When Edward crossed the sea to wed Isabella of France, the daughter of Philip the Fair, a marriage planned by his father to provide against any further intervention of France in his difficulties with Scotland, the new minister was left as Regent in his room. The offence given by this rapid promotion was embittered by his personal temper. Gay, genial, thriftless, Gaveston showed in his first acts the quickness and audacity of Southern Gaul. The older ministers were dismissed, all claims of precedence or inheritance were set aside in the distribution of offices at the coronation, while taunts and defiances goaded the proud baronage to fury. The favourite was a fine soldier, and his lance unhorsed his opponents in tourney after tourney. His reckless wit flung nicknames about the Court, the Earl of Lancaster was "the Actor," Pembroke "the Jew," Warwick "the Black Dog." But taunt and defiance broke helplessly against the iron mass of the baronage. After a few months of power the formal demand of the Parliament for his dismissal could not be resisted, and in May 1308 Gaveston was formally banished from the realm.

Thomas of Lancaster

But Edward was far from abandoning his favourite. In Ireland he was unfettered by the baronage, and here Gaveston found a refuge as the King's Lieutenant while Edward sought to obtain his recall by the intervention of France and the Papacy. But the financial pressure of the Scotch war again brought the king and his Parliament together in the spring of 1309. It was only by conceding the rights which his father had sought to establish of imposing import duties on the merchants by their own assent that he procured a subsidy. The firmness of the baronage sprang from their having found a head. In no point had the policy of Henry the Third more utterly broken down than in his attempt to weaken the power of the nobles by filling the great earldoms with kinsmen of the royal house. He had made Simon of Montfort his brother-in-law only to furnish a leader to the nation in the Barons' war. In loading his second son, Edmund Crouchback, with honours and estates he raised a family to greatness which overawed the Crown. Edmund had been created Earl of Lancaster; after Evesham he had received the forfeited Earldom of Leicester; he had been made Earl of

Derby on the extinction of the house of Ferrers. His son, Thomas of Lancaster, was the son-in-law of Henry de Lacy, and was soon to add to these lordships the Earldom of Lincoln. And to the weight of these great baronies was added his royal blood. The father of Thomas had been a titular king of Sicily. His mother was dowager queen of Navarre. His half-sister by the mother's side was wife of the French king Philip le Bel and mother of the English queen Isabella. He was himself a grandson of Henry the Third and not far from the succession to the throne. Had Earl Thomas been a wiser and a nobler man, his adhesion to the cause of the baronage might have guided the king into a really national policy. As it was his weight proved irresistible. When Edward at the close of the Parliament recalled Gaveston the Earl of Lancaster withdrew from the royal Council, and a Parliament which met in the spring of 1310 resolved that the affairs of the realm should be entrusted for a year to a body of twenty-one "Ordainers" with Archbishop Winchelsey at their head.

Edward and the Ordainers

Edward with Gaveston withdrew sullenly to the North. A triumph in Scotland would have given him strength to baffle the Ordainers, but he had little of his father's military skill, the wasted country made it hard to keep an army together, and after a fruitless campaign he fell back to his southern realm to meet the Parliament of 1311 and the "Ordinances" which the twenty-one laid before it. By this long and important statute Gaveston was banished, other advisers were driven from the Council, and the Florentine bankers whose loans had enabled Edward to hold the baronage at bay sent out of the realm. The customs duties imposed by Edward the First were declared to be illegal. Its administrative provisions showed the relations which the barons sought to establish between the new Parliament and the Crown. Parliaments were to be called every year, and in these assemblies the king's servants were to be brought, if need were, to justice. The great officers of state were to be appointed with the counsel and consent of the baronage, and to be sworn in Parliament. The same consent of the barons in Parliament was to be needful ere the king could declare war or absent himself from the realm. As the Ordinances show, the baronage still looked on Parliament rather as a political organization of the nobles than as a gathering of the three Estates of the realm. The lower clergy pass unnoticed; the Commons are regarded as mere taxpayers whose part was still confined

to the presentation of petitions of grievances and the grant of money. But even in this imperfect fashion the Parliament was a real representation of the country. The barons no longer depended for their force on the rise of some active leader, or gathered in exceptional assemblies to wrest reforms from the Crown by threat of war. Their action was made regular and legal. Even if the Commons took little part in forming decisions, their force when formed hung on the assent of the knights and burgesses to them; and the grant which alone could purchase from the Crown the concessions which the Baronage demanded lay absolutely within the control of the Third Estate. It was this which made the king's struggles so fruitless. He assented to the Ordinances, and then withdrawing to the North recalled Gaveston and annulled them. But Winchelsey excommunicated the favourite, and the barons, gathering in arms, besieged him in Scarborough. His surrender in May 1312 ended the strife. The "Black Dog" of Warwick had sworn that the favourite should feel his teeth; and Gaveston flung himself in vain at the feet of the Earl of Lancaster, praying for pity "from his gentle lord." In defiance of the terms of his capitulation he was beheaded on Blacklow Hill.

Bannockburn

The king's burst of grief was as fruitless as his threats of vengeance; a feigned submission of the conquerors completed the royal humiliation, and the barons knelt before Edward in Westminster Hall to receive a pardon which seemed the deathblow of the royal power. But if Edward was powerless to conquer the baronage he could still by evading the observance of the Ordinances throw the whole realm into confusion. The two years that follow Gaveston's death are among the darkest in our history. A terrible succession of famines intensified the suffering which sprang from the utter absence of all rule as dissension raged between the barons and the king. At last a common peril drew both parties together. The Scots had profited by the English troubles, and Bruce's "harrying of Buchan" after his defeat of its Earl, who had joined the English army, fairly turned the tide of success in his favour. Edinburgh, Roxburgh, Perth, and most of the Scotch fortresses fell one by one into King Robert's hands. The clergy met in council and owned him as their lawful lord. Gradually the Scotch barons who still held to the English cause were coerced into submission, and Bruce found himself strong enough to invest Stirling, the last and the most important of the Scotch fortresses which held out for Edward. Stirling was in fact the key

of Scotland, and its danger roused England out of its civil strife to an effort for the recovery of its prey. At the close of 1313 Edward recognized the Ordinances, and a liberal grant from the Parliament enabled him to take the field. Lancaster indeed still held aloof on the ground that the king had not sought the assent of Parliament to the war, but thirty thousand men followed Edward to the North, and a host of wild marauders were summoned from Ireland and Wales. The army which Bruce gathered to oppose this inroad was formed almost wholly of footmen, and was stationed to the south of Stirling on a rising ground flanked by a little brook, the Bannockburn, which gave its name to the engagement. The battle took place on the twenty-fourth of June 1314. Again two systems of warfare were brought face to face as they had been brought at Falkirk, for Robert like Wallace drew up his forces in hollow squares or circles of spearmen. The English were dispirited at the very outset by the failure of an attempt to relieve Stirling and by the issue of a single combat between Bruce and Henry de Bohun, a knight who bore down upon him as he was riding peacefully along the front of his army. Robert was mounted on a small hackney and held only a light battle-axe in his hand, but warding off his opponent's spear he cleft his skull with so terrible a blow that the handle of his axe was shattered in his grasp. At the opening of the battle the English archers were thrown forward to rake the Scottish squares, but they were without support and were easily dispersed by a handful of horse whom Bruce held in reserve for the purpose. The body of men-at-arms next flung themselves on the Scottish front, but their charge was embarrassed by the narrow space along which the line was forced to move, and the steady resistance of the squares soon threw the knighthood into disorder. "The horses that were stickit," says an exulting Scotch writer, "rushed and reeled right rudely." In the moment of failure the sight of a body of camp-followers, whom they mistook for reinforcements to the enemy, spread panic through the English host. It broke in a headlong rout. Its thousands of brilliant horsemen were soon floundering in pits which guarded the level ground to Bruce's left, or riding in wild haste for the border. Few however were fortunate enough to reach it. Edward himself, with a body of five hundred knights, succeeded in escaping to Dunbar and the sea. But the flower of his knighthood fell into the hands of the victors, while the Irishry and the footmen were ruthlessly cut down by the country folk as they fled. For centuries to come the rich plunder of the English camp left its traces on

the treasure-rolls and the vestment-rolls of castle and abbey throughout the Lowlands.

Fall of Lancaster

Bannockburn left Bruce the master of Scotland: but terrible as the blow was England could not humble herself to relinquish her claim on the Scottish crown. Edward was eager indeed for a truce, but with equal firmness Bruce refused all negotiation while the royal title was withheld from him and steadily pushed on the recovery of his southern dominions. His progress was unhindered. Bannockburn left Edward powerless, and Lancaster at the head of the Ordainers became supreme. But it was still impossible to trust the king or to act with him, and in the dead-lock of both parties the Scots plundered as they would. Their ravages in the North brought shame on England such as it had never known. At last Bruce's capture of Berwick in the spring of 1318 forced the king to give way. The Ordinances were formally accepted, an amnesty granted, and a small number of peers belonging to the barons' party added to the great officers of state. Had a statesman been at the head of the baronage the weakness of Edward might have now been turned to good purpose. But the character of the Earl of Lancaster seems to have fallen far beneath the greatness of his position. Distrustful of his cousin, yet himself incapable of governing, he stood sullenly aloof from the royal Council and the royal armies, and Edward was able to lay his failure in recovering Berwick during the campaign of 1319 to the Earl's charge. His influence over the country was sensibly weakened; and in this weakness the new advisers on whom the king was leaning saw a hope of destroying his power. These were a younger and elder Hugh Le Despenser, son and grandson of the Justiciar who had fallen beside Earl Simon at Evesham. Greedy and ambitious as they may have been, they were able men, and their policy was of a higher stamp than the wilful defiance of Gaveston. It lay, if we may gather it from the faint indications which remain, in a frank recognition of the power of the three Estates as opposed to the separate action of the baronage. The rise of the younger Hugh, on whom the king bestowed the county of Glamorgan with the hand of one of its coheirresses, a daughter of Earl Gilbert of Gloucester, was rapid enough to excite general jealousy; and in 1321 Lancaster found little difficulty in extorting by force of arms his exile from the kingdom. But the tide of popular sympathy was already wavering, and it was turned to the

royal cause by an insult offered to the queen, against whom Lady Badlesmere closed the doors of Ledes Castle. The unexpected energy shown by Edward in avenging this insult gave fresh strength to his cause. At the opening of 1322 he found himself strong enough to recall Despenser, and when Lancaster convoked the baronage to force him again into exile, the weakness of their party was shown by some negotiations into which the Earl entered with the Scots and by his precipitate retreat to the north on the advance of the royal army. At Boroughbridge his forces were arrested and dispersed, and Thomas himself, brought captive before Edward at Pontefract, was tried and condemned to death as a traitor. "Have mercy on me, King of Heaven," cried Lancaster, as, mounted on a grey pony without a bridle, he was hurried to execution, "for my earthly king has forsaken me." His death was followed by that of a number of his adherents and by the captivity of others; while a Parliament at York annulled the proceedings against the Despensers and repealed the Ordinances.

The Despensers

It is to this Parliament however, and perhaps to the victorious confidence of the royalists, that we owe the famous provision which reveals the policy of the Despensers, the provision that all laws concerning "the estate of our Lord the King and his heirs or for the estate of the realm and the people shall be treated, accorded, and established in Parliaments by our Lord the King and by the consent of the prelates, earls, barons, and commonalty of the realm according as hath been hitherto accustomed." It would seem from the tenor of this remarkable enactment that much of the sudden revulsion of popular feeling had been owing to the assumption of all legislative action by the baronage alone. The same policy was seen in a reissue in the form of a royal Ordinance of some of the most beneficial provisions of the Ordinances which had been formally repealed. But the arrogance of the Despensers gave new offence; and the utter failure of a fresh campaign against Scotland again weakened the Crown. The barbarous forays in which the borderers under Earl Douglas were wasting Northumberland woke a general indignation; and a grant from the Parliament at York enabled Edward to march with a great army to the North. But Bruce as of old declined an engagement till the wasted Lowlands starved the invaders into a ruinous retreat. The failure forced England in the spring of 1323 to stoop to a truce for thirteen years, in the negotiation of which Bruce was suffered to

take the royal title. We see in this act of the Despensers the first of a series of such attempts by which minister after minister strove to free the Crown from the bondage under which the war-pressure laid it to the growing power of Parliament; but it ended, as these after attempts ended, only in the ruin of the counsellors who planned it. The pride of the country had been roused by the struggle, and the humiliation of such a truce robbed the Crown of its temporary popularity. It led the way to the sudden catastrophe which closed this disastrous reign.

Isabella

In his struggle with the Scots Edward, like his father, had been hampered not only by internal divisions but by the harassing intervention of France. The rising under Bruce had been backed by French aid as well as by a revival of the old quarrel over Guienne, and on the accession of Charles the Fourth in 1322 a demand of homage for Ponthieu and Gascony called Edward over sea. But the Despensers dared not let him quit the realm, and a fresh dispute as to the right of possession in the Agénois brought about the seizure of the bulk of Gascony by a sudden attack on the part of the French. The quarrel verged upon open war, and to close it Edward's queen, Isabella, a sister of the French king, undertook in 1325 to revisit her home and bring about a treaty of peace between the two countries. Isabella hated the Despensers; she was alienated from her husband; but hatred and alienation were as yet jealously concealed. At the close of the year the terms of peace seemed to be arranged; and though declining to cross the sea, Edward evaded the difficulty created by the demand for personal homage by investing his son with the Duchies of Aquitaine and Gascony, and despatching him to join his mother at Paris. The boy did homage to King Charles for the two Duchies, the question of the Agénois being reserved for legal decision, and Edward at once recalled his wife and son to England. Neither threats nor prayers however could induce either wife or child to return to his court. Roger Mortimer, the most powerful of the Marcher barons and a deadly foe to the Despensers, had taken refuge in France; and his influence over the queen made her the centre of a vast conspiracy. With the young Edward in her hands she was able to procure soldiers from the Count of Hainault by promising her son's hand to his daughter; the Italian bankers supplied funds; and after a year's preparation the Queen set sail in the autumn of 1326. A secret conspiracy of the baronage was revealed when

the primate and nobles hurried to her standard on her landing at Orwell. Deserted by all and repulsed by the citizens of London whose aid he implored, the king fled hastily to the west and embarked with the Despensers for Lundy Island, which Despenser had fortified as a possible refuge; but contrary winds flung him again on the Welsh coast, where he fell into the hands of Earl Henry of Lancaster, the brother of the Earl whom they had slain. The younger Despenser, who accompanied him, was at once hung on a gibbet fifty feet high, and the king placed in ward at Kenilworth till his fate could be decided by a Parliament summoned for that purpose at Westminster in January 1327.

Deposition of Edward

The peers who assembled fearlessly revived the constitutional usage of the earlier English freedom, and asserted their right to depose a king who had proved himself unworthy to rule. Not a voice was raised in Edward's behalf, and only four prelates protested when the young Prince was proclaimed king by acclamation and presented as their sovereign to the multitudes without. The revolution took legal form in a bill which charged the captive monarch with indolence, incapacity, the loss of Scotland, the violation of his coronation oath and oppression of the Church and baronage; and on the approval of this it was resolved that the reign of Edward of Caernarvon had ceased and that the crown had passed to his son, Edward of Windsor. A deputation of the Parliament proceeded to Kenilworth to procure the assent of the discrowned king to his own deposition, and Edward "clad in a plain black gown" bowed quietly to his fate. Sir William Trussel at once addressed him in words which better than any other mark the nature of the step which the Parliament had taken. "I, William Trussel, proctor of the earls, barons, and others, having for this full and sufficient power, do render and give back to you, Edward, once King of England, the homage and fealty of the persons named in my procuracy; and acquit and discharge them thereof in the best manner that law and custom will give. And I now make protestation in their name that they will no longer be in your fealty and allegiance, nor claim to hold anything of you as king, but will account you hereafter as a private person, without any manner of royal dignity." A significant act followed these emphatic words. Sir Thomas Blount, the steward of the household, broke his staff of office, a ceremony used only at a king's death, and declared that all persons engaged in the

royal service were discharged. The act of Blount was only an omen of the fate which awaited the miserable king. In the following September he was murdered in Berkeley Castle.

CHAPTER II

EDWARD THE THIRD

1327-1347

Estate of the Commons

The deposition of Edward the Second proclaimed to the world the power which the English Parliament had gained. In thirty years from their first assembly at Westminster the Estates had wrested from the Crown the last relic of arbitrary taxation, had forced on it new ministers and a new system of government, had claimed a right of confirming the choice of its councillors and of punishing their misconduct, and had established the principle that redress of grievances precedes a grant of supply. Nor had the time been less important in the internal growth of Parliament. Step by step the practical sense of the Houses themselves completed the work of Edward by bringing about change after change in its composition. The very division into a House of Lords and a House of Commons formed no part of the original plan of Edward the First; in the earlier Parliaments each of the four orders of clergy, barons, knights, and burgesses met, deliberated, and made their grants apart from each other. This isolation however of the Estates soon showed signs of breaking down. Though the clergy held steadily aloof from any real union with its fellow-orders, the knights of the shire were drawn by the similarity of their social position into a close connexion with the lords. They seem in fact to have been soon admitted by the baronage to an almost equal position with themselves, whether as legislators or counsellors of the Crown. The burgesses on the other hand took little part at first in Parliamentary proceedings, save in those which related to the taxation of their class. But their position was raised by the strifes of the reign of Edward the Second when their aid was needed by the baronage in its struggle with the Crown; and their right to share fully in all legislative action was asserted in the statute of 1322. From this moment no proceedings can have been considered as formally legislative save those conducted in full Parliament of all the estates. In subjects of public policy

however the barons were still regarded as the sole advisers of the Crown, though the knights of the shire were sometimes consulted with them. But the barons and knighthood were not fated to be drawn into a single body whose weight would have given an aristocratic impress to the constitution. Gradually, through causes with which we are imperfectly acquainted, the knights of the shire drifted from their older connexion with the baronage into so close and intimate a union with the representatives of the towns that at the opening of the reign of Edward the Third the two orders are found grouped formally together, under the name of "The Commons." It is difficult to overestimate the importance of this change. Had Parliament remained broken up into its four orders of clergy, barons, knights, and citizens, its power would have been neutralized at every great crisis by the jealousies and difficulty of co-operation among its component parts. A permanent union of the knighthood and the baronage on the other hand would have converted Parliament into the mere representative of an aristocratic caste, and would have robbed it of the strength which it has drawn from its connexion with the great body of the commercial classes. The new attitude of the knighthood, their social connexion as landed gentry with the baronage, their political union with the burgesses, really welded the three orders into one, and gave that unity of feeling and action to our Parliament on which its power has ever since mainly depended.

Scotch War

The weight of the two Houses was seen in their settlement of the new government by the nomination of a Council with Earl Henry of Lancaster at its head. The Council had at once to meet fresh difficulties in the North. The truce so recently made ceased legally with Edward's deposition; and the withdrawal of his royal title in further offers of peace warned Bruce of the new temper of the English rulers. Troops gathered on either side, and the English Council sought to pave the way for an attack by dividing Scotland against itself. Edward Balliol, a son of the former king John, was solemnly received as a vassal-king of Scotland at the English court. Robert was disabled by leprosy from taking the field in person, but the insult roused him to hurl his marauders again over the border under Douglas and Sir Thomas Randolph. The Scotch army has been painted for us by an eye-witness whose description is embodied in the work of Jehan le Bel. "It consisted of four thousand men-at-arms, knights, and esquires, well

mounted, besides twenty thousand men bold and hardy, armed after the manner of their country, and mounted upon little hackneys that are never tied up or dressed, but turned immediately after the day's march to pasture on the heath or in the fields.... They bring no carriages with them on account of the mountains they have to pass in Northumberland, neither do they carry with them any provisions of bread or wine, for their habits of sobriety are such in time of war that they will live for a long time on flesh half-sodden without bread, and drink the river water without wine. They have therefore no occasion for pots or pans, for they dress the flesh of the cattle in their skins after they have flayed them, and being sure to find plenty of them in the country which they invade they carry none with them. Under the flaps of his saddle each man carries a broad piece of metal, behind him a little bag of oatmeal: when they have eaten too much of the sodden flesh and their stomach appears weak and empty, they set this plate over the fire, knead the meal with water, and when the plate is hot put a little of the paste upon it in a thin cake like a biscuit, which they eat to warm their stomachs. It is therefore no wonder that they perform a longer day's march than other soldiers." Though twenty thousand horsemen and forty thousand foot marched under their boy-king to protect the border, the English troops were utterly helpless against such a foe as this. At one time the whole army lost its way in the border wastes: at another all traces of the enemy disappeared, and an offer of knighthood and a hundred marks was made to any who could tell where the Scots were encamped. But when they were found their position behind the Wear proved unassailable, and after a bold sally on the English camp Douglas foiled an attempt at intercepting him by a clever retreat. The English levies broke hopelessly up, and a fresh foray into Northumberland forced the English Court in 1328 to submit to peace. By the treaty of Northampton which was solemnly confirmed by Parliament in September the independence of Scotland was recognized, and Robert Bruce owned as its king. Edward formally abandoned his claim of feudal superiority over Scotland; while Bruce promised to make compensation for the damage done in the North, to marry his son David to Edward's sister Joan, and to restore their forfeited estates to those nobles who had sided with the English king.

Fall of Mortimer

But the pride of England had been too much roused by the struggle with the Scots to bear this defeat easily, and the first result of the treaty of Northampton was the overthrow of the government which concluded it. This result was hastened by the pride of Roger Mortimer, who was now created Earl of March, and who had made himself supreme through his influence over Isabella and his exclusion of the rest of the nobles from all practical share in the administration of the realm. The first efforts to shake Roger's power were unsuccessful. The Earl of Lancaster stood, like his brother, at the head of the baronage; the parliamentary settlement at Edward's accession had placed him first in the royal Council; and it was to him that the task of defying Mortimer naturally fell. At the close of 1328 therefore Earl Henry formed a league with the Archbishop of Canterbury and with the young king's uncles, the Earls of Norfolk and Kent, to bring Mortimer to account for the peace with Scotland and the usurpation of the government as well as for the late king's murder, a murder which had been the work of his private partizans and which had profoundly shocked the general conscience. But the young king clave firmly to his mother, the Earls of Norfolk and Kent deserted to Mortimer, and powerful as it seemed the league broke up without result. A feeling of insecurity however spurred the Earl of March to a bold stroke at his opponents. The Earl of Kent, who was persuaded that his brother, Edward the Second, still lived a prisoner in Corfe Castle, was arrested on a charge of conspiracy to restore him to the throne, tried before a Parliament filled with Mortimer's adherents, and sent to the block. But the death of a prince of the royal blood roused the young king to resentment at the greed and arrogance of a minister who treated Edward himself as little more than a state-prisoner. A few months after his uncle's execution the king entered the Council chamber in Nottingham Castle with a force which he had introduced through a secret passage in the rock on which it stands, and arrested Mortimer with his own hands. A Parliament which was at once summoned condemned the Earl of March to a traitor's death, and in November 1330 he was beheaded at Tyburn, while the queen-mother was sent for the rest of her life into confinement at Castle Rising.

Edward and France

Young as he was, and he had only reached his eighteenth year, Edward at once assumed the control of affairs. His first care was to restore good order

throughout the country, which under the late government had fallen into ruin, and to free his hands by a peace with France for further enterprises in the North. A formal peace had been concluded by Isabella after her husband's fall; but the death of Charles the Fourth soon brought about new jealousies between the two courts. The three sons of Philip the Fair had followed him on the throne in succession, but all had now died without male issue, and Isabella, as Philip's daughter, claimed the crown for her son. The claim in any case was a hard one to make out. Though her brothers had left no sons, they had left daughters, and if female succession were admitted these daughters of Philip's sons would precede a son of Philip's daughter. Isabella met this difficulty by a contention that though females could transmit the right of succession they could not themselves possess it, and that her son, as the nearest living male descendant of Philip the Fair, and born in the lifetime of the king from whom he claimed, could claim in preference to females who were related to Philip in as near a degree. But the bulk of French jurists asserted that only male succession gave right to the French throne. On such a theory the right inheritable from Philip the Fair was exhausted; and the crown passed to the son of Philip's younger brother, Charles of Valois, who in fact peacefully mounted the throne as Philip the Sixth. Purely formal as the claim which Isabella advanced seems to have been, it revived the irritation between the two courts, and though Edward's obedience to a summons which Philip addressed to him to do homage for Aquitaine brought about an agreement that both parties should restore the gains they had made since the last treaty the agreement was never carried out. Fresh threats of war ended in the conclusion of a new treaty of peace, but the question whether liege or simple homage was due for the duchies remained unsettled when the fall of Mortimer gave the young king full mastery of affairs. His action was rapid and decisive. Clad as a merchant, and with but fifteen horsemen at his back, Edward suddenly made his appearance in 1331 at the French court and did homage as fully as Philip required. The question of the Agénois remained unsettled, though the English Parliament insisted that its decision should rest with negotiation and not with war, but on all other points a complete peace was made; and the young king rode back with his hands free for an attack which he was planning on the North.

New Scotch War

The provisions of the Treaty of Northampton for the restitution of estates had never been fully carried out. Till this was done the English court held that the rights of feudal superiority over Scotland which it had yielded in the treaty remained in force; and at this moment an opening seemed to present itself for again asserting these rights with success. Fortune seemed at last to have veered to the English side. The death of Robert Bruce only a year after the Treaty of Northampton left the Scottish throne to his son David, a child of but eight years old. The death of the king was followed by the loss of Randolph and Douglas; and the internal difficulties of the realm broke out in civil strife. To the great barons on either side the border the late peace involved serious losses, for many of the Scotch houses held large estates in England as many of the English lords held large estates in Scotland, and although the treaty had provided for their claims they had in each case been practically set aside. It is this discontent of the barons at the new settlement which explains the sudden success of Edward Balliol in a snatch which he made at the Scottish throne. Balliol's design was known at the English court, where he had found shelter for some years; and Edward, whether sincerely or no, forbade his barons from joining him and posted troops on the border to hinder his crossing it. But Balliol found little difficulty in making his attack by sea. He sailed from England at the head of a body of nobles who claimed estates in the North, landed in August 1332 on the shores of Fife, and after repulsing with immense loss an army which attacked him near Perth was crowned at Scone two months after his landing, while David Bruce fled helplessly to France. Edward had given no open aid to this enterprise, but the crisis tempted his ambition, and he demanded and obtained from Balliol an acknowledgement of the English suzerainty. The acknowledgement however was fatal to Balliol himself. Surprised at Annan by a party of Scottish nobles, their sudden attack drove him in December over the border after a reign of but five months; and Berwick, which he had agreed to surrender to Edward, was strongly garrisoned against an English attack. The sudden breakdown of his vassal-king left Edward face to face with a new Scotch war. The Parliament which he summoned to advise on the enforcement of his claim showed no wish to plunge again into the contest and met him only with evasions and delays. But Edward had gone too far to withdraw. In March 1333 he appeared before Berwick, and besieged the town. A Scotch army under the regent, Sir Archibald Douglas, brother to the famous Sir James, advanced to its relief

in July and attacked a covering force which was encamped on the strong position of Halidon Hill. The English bowmen however vindicated the fame they had first won at Falkirk and were soon to crown in the victory of Crécy. The Scotch only struggled through the marsh which covered the English front to be riddled with a storm of arrows and to break in utter rout. The battle decided the fate of Berwick. From that time the town has remained English territory. It was in fact the one part of Edward's conquests which was preserved in the end by the English crown. But fragment as it was, it was always viewed legally as representing the realm of which it once formed a part. As Scotland, it had its chancellor, chamberlain, and other officers of State: and the peculiar heading of Acts of Parliament enacted for England "and the town of Berwick-upon-Tweed" still preserves the memory of its peculiar position. But the victory did more than give Berwick to England. The defeat of Douglas was followed by the submission of a large part of the Scotch nobles, by the flight of the boy-king David, and by the return of Balliol unopposed to the throne. Edward exacted a heavy price for his aid. All Scotland south of the Firth of Forth was ceded to England, and Balliol did homage as vassal-king for the rest.

Scotland freed

It was at the moment of this submission that the young king reached the climax of his success. A king at fourteen, a father at seventeen, he had carried out at eighteen a political revolution in the overthrow of Mortimer, and restored at twenty-two the ruined work of his grandfather. The northern frontier was carried to its old line under the Northumbrian kings. His kingdom within was peaceful and orderly; and the strife with France seemed at an end. During the next three years Edward persisted in the line of policy he had adopted, retaining his hold over Southern Scotland, aiding his sub-king Balliol in campaign after campaign against the despairing efforts of the nobles who still adhered to the house of Bruce, a party who were now headed by Robert the Steward of Scotland and by Earl Randolph of Moray. His perseverance was all but crowned with success, when Scotland was again saved by the intervention of France. The successes of Edward roused anew the jealousy of the French court. David Bruce found a refuge with Philip; French ships appeared off the Scotch coast and brought aid to the patriot nobles; and the old legal questions about the Agénois and Aquitaine were mooted afresh by the French council. For a time Edward

staved off the contest by repeated embassies; but his refusal to accept Philip as a mediator between England and the Scots stirred France to threats of war. In 1335 fleets gathered on its coast; descents were made on the English shores; and troops and galleys were hired in Italy and the north for an invasion of England. The mere threat of war saved Scotland. Edward's forces there were drawn to the south to meet the looked-for attack from across the Channel; and the patriot party freed from their pressure at once drew together again. The actual declaration of war against France at the close of 1337 was the knell of Balliol's greatness; he found himself without an adherent and withdrew two years later to the court of Edward, while David returned to his kingdom in 1342 and won back the chief fastnesses of the Lowlands. From that moment the freedom of Scotland was secured. From a war of conquest and patriotic resistance the struggle died into a petty strife between two angry neighbours, which became a mere episode in the larger contest which it had stirred between England and France.

The Hundred Years War

Whether in its national or in its European bearings it is difficult to overestimate the importance of the contest which was now to open between these two nations. To England it brought a social, a religious, and in the end a political revolution. The Peasant Revolt, Lollardry, and the New Monarchy were direct issues of the Hundred Years War. With it began the military renown of England; with it opened her struggle for the mastery of the seas. The pride begotten by great victories and a sudden revelation of warlike prowess roused the country not only to a new ambition, a new resolve to assert itself as a European power, but to a repudiation of the claims of the Papacy and an assertion of the ecclesiastical independence both of Church and Crown which paved the way for and gave its ultimate form to the English Reformation. The peculiar shape which English warfare assumed, the triumph of the yeoman and archer over noble and knight, gave new force to the political advance of the Commons. On the other hand the misery of the war produced the first great open feud between labour and capital. The glory of Crécy or Poitiers was dearly bought by the upgrowth of English pauperism. The warlike temper nursed on foreign fields begot at home a new turbulence and scorn of law, woke a new feudal spirit in the baronage, and sowed in the revolution which placed a new house on the throne the seeds of that fatal strife over the succession which troubled

England to the days of Elizabeth. Nor was the contest of less import in the history of France. If it struck her for the moment from her height of pride, it raised her in the end to the front rank among the states of Europe. It carried her boundaries to the Rhone and the Pyrenees. It wrecked alike the feudal power of her *noblesse* and the hopes of constitutional liberty which might have sprung from the emancipation of the peasant or the action of the burgher. It founded a royal despotism which reached its height in Richelieu and finally plunged France into the gulf of the Revolution.

The Imperial Alliance

Of these mighty issues little could be foreseen at the moment when Philip and Edward declared war. But from the very first the war took European dimensions. The young king saw clearly the greater strength of France. The weakness of the Empire, the captivity of the Papacy at Avignon, left her without a rival among European powers. The French chivalry was the envy of the world, and its military fame had just been heightened by a victory over the Flemish communes at Cassel. In numbers, in wealth, the French people far surpassed their neighbours over the Channel. England can hardly have counted more than four millions of inhabitants, France boasted of twenty. The clinging of our kings to their foreign dominions is explained by the fact that their subjects in Gascony, Aquitaine, and Poitou must have equalled in number their subjects in England. There was the same disproportion in the wealth of the two countries and, as men held then, in their military resources. Edward could bring only eight thousand men-at-arms to the field. Philip, while a third of his force was busy elsewhere, could appear at the head of forty thousand. Of the revolution in warfare which was to reverse this superiority, to make the footman rather than the horseman the strength of an army, the world and even the English king, in spite of Falkirk and Halidon, as yet recked little. Edward's whole energy was bent on meeting the strength of France by a coalition of powers against her, and his plans were helped by the dread which the great feudatories of the empire who lay nearest to him, the Duke of Brabant, the Counts of Hainault and Gelders, the Markgrave of Juliers, felt of French annexation. They listened willingly enough to his offers. Sixty thousand crowns purchased the alliance of Brabant. Lesser subsidies bought that of the two counts and the Markgrave. The king's work was helped indeed by his domestic relations. The Count of Hainault was Edward's father-in-law; he

was also the father-in-law of the Count of Gelders. But the marriage of a third of the Count's daughters brought the English king a more important ally. She was wedded to the Emperor, Lewis of Bavaria, and the connexion that thus existed between the English and Imperial Courts facilitated the negotiations which ended in a formal alliance.

Its Relation to the Papacy

But the league had a more solid ground. The Emperor, like Edward, had his strife with France. His strife sprang from the new position of the Papacy. The removal of the Popes to Avignon which followed on the quarrel of Boniface the Eighth with Philip le Bel and the subjection to the French court which resulted from it affected the whole state of European politics. In the ever-recurring contest between the Papacy and the Empire France had of old been the lieutenant of the Roman See. But with the settlement at Avignon the relation changed, and the Pope became the lieutenant of France. Instead of the Papacy using the French kings in its war of ideas against the Empire the French kings used the Papacy as an instrument in their political rivalry with the Emperors. But if the position of the Pope drew Lewis to the side of England, it had much to do with drawing Edward to the side of Lewis. It was this that made the alliance, fruitless as it proved in a military sense, so memorable in its religious results. Hitherto England had been mainly on the side of the Popes in their strife against the Emperors. Now that the Pope had become a tool in the hands of a power which was to be its great enemy, the country was driven to close alliances with the Empire and to an evergrowing alienation from the Roman See. In Scotch affairs the hostility of the Popes had been steady and vexatious ever since Edward the First's time, and from the moment that this fresh struggle commenced they again showed their French partizanship. When Lewis made a last appeal for peace, Philip of Valois made Benedict XII. lay down as a condition that the Emperor should form no alliance with an enemy of France. The quarrel of both England and Germany with the Papacy at once grew ripe. The German Diet met to declare that the Imperial power came from God alone, and that the choice of an Emperor needed no Papal confirmation, while Benedict replied by a formal excommunication of Lewis. England on the other hand entered on a religious revolution when she stood hand in hand with an excommunicated power. It was significant

that though worship ceased in Flanders on the Pope's interdict, the English priests who were brought over set the interdict at nought.

Failure of the Alliance

The negotiation of this alliance occupied the whole of 1337; it ended in a promise of the Emperor on payment of 3000 gold florins to furnish two thousand men-at-arms. In the opening of 1338 an attack of Philip on the Agénois forced Edward into open war. His profuse expenditure however brought little fruit. Though Edward crossed to Antwerp in the summer, the year was spent in negotiations with the princes of the Lower Rhine and in an interview with the Emperor at Coblenz, where Lewis appointed him Vicar-General of the Emperor for all territories on the left bank of the Rhine. The occupation of Cambray, an Imperial fief, by the French king gave a formal ground for calling the princes of this district to Edward's standard. But already the great alliance showed signs of yielding. Edward, uneasy at his connexion with an Emperor under the ban of the Church and harassed by vehement remonstrances from the Pope, entered again into negotiations with France in the winter of 1338; and Lewis, alarmed in his turn, listened to fresh overtures from Benedict, who held out vague hopes of reconciliation while he threatened a renewed excommunication if Lewis persisted in invading France. The non-arrival of the English subsidy decided the Emperor to take no personal part in the war, and the attitude of Lewis told on the temper of Edward's German allies. Though all joined him in the summer of 1339 on his formal summons of them as Vicar-General of the Empire, and his army when it appeared before Cambray numbered forty thousand men, their ardour cooled as the town held out. Philip approached it from the south, and on Edward's announcing his resolve to cross the river and attack him he was at once deserted by the two border princes who had most to lose from a contest with France, the Counts of Hainault and Namur. But the king was still full of hope. He pushed forward to the country round St. Quentin between the head waters of the Somme and the Oise with the purpose of forcing a decisive engagement. But he found Philip strongly encamped, and declaring their supplies exhausted his allies at once called for a retreat. It was in vain that Edward moved slowly for a week along the French border. Philip's position was too strongly guarded by marshes and entrenchments to be attacked, and at last the allies would stay no longer. At

the news that the French king had withdrawn to the south the whole army in turn fell back upon Brussels.

England and the Papacy

The failure of the campaign dispelled the hopes which Edward had drawn from his alliance with the Empire. With the exhaustion of his subsidies the princes of the Low Countries became inactive. The Duke of Brabant became cooler in his friendship. The Emperor himself, still looking to an accommodation with the Pope and justly jealous of Edward's own intrigues at Avignon, wavered and at last fell away. But though the alliance ended in disappointment it had given a new impulse to the grudge against the Papacy which began with its extortions in the reign of Henry the Third. The hold of Rome on the loyalty of England was sensibly weakening. Their transfer from the Eternal City to Avignon robbed the Popes of half the awe which they had inspired among Englishmen. Not only did it bring them nearer and more into the light of common day, but it dwarfed them into mere agents of French policy. The old bitterness at their exactions was revived by the greed to which they were driven through their costly efforts to impose a French and Papal Emperor on Germany as well as to secure themselves in their new capital on the Rhone. The mighty building, half fortress, half palace, which still awes the traveller at Avignon has played its part in our history. Its erection was to the rise of Lollardry what the erection of St. Peter's was to the rise of Lutheranism. Its massive walls, its stately chapel, its chambers glowing with the frescoes of Simone Memmi, the garden which covered its roof with a strange verdure, called year by year for fresh supplies of gold; and for this as for the wider and costlier schemes of Papal policy gold could be got only by pressing harder and harder on the national churches the worst claims of the Papal court, by demands of first-fruits and annates from rectory and bishoprick, by pretensions to the right of bestowing all benefices which were in ecclesiastical patronage and by the sale of these presentations, by the direct taxation of the clergy, by the intrusion of foreign priests into English livings, by opening a mart for the disposal of pardons, dispensations, and indulgences, and by encouraging appeals from every ecclesiastical jurisdiction to the Papal court. No grievance was more bitterly felt than this grievance of appeals. Cases of the most trifling importance were called for decision out of the realm to a tribunal whose delays were proverbial and whose fees were enormous. The envoy of an Oxford College

which sought only a formal licence to turn a vicarage into a rectory had not only to bear the expense and toil of a journey which then occupied some eighteen days but was kept dangling at Avignon for three-and-twenty weeks. Humiliating and vexatious however as these appeals were, they were but one among the means of extortion which the Papal court multiplied as its needs grew greater. The protest of a later Parliament, exaggerated as its statements no doubt are, shows the extent of the national irritation, if not of the grievances which produced it. It asserted that the taxes levied by the Pope amounted to five times the amount of those levied by the king; that by reservations during the life of actual holders the Pope disposed of the same bishoprick four or five times over, receiving each time the first-fruits. "The brokers of the sinful city of Rome promote for money unlearned and unworthy caitiffs to benefices to the value of a thousand marks, while the poor and learned hardly obtain one of twenty. So decays sound learning. They present aliens who neither see nor care to see their parishioners, despise God's services, convey away the treasure of the realm, and are worse than Jews or Saracens. The Pope's revenue from England alone is larger than that of any prince in Christendom. God gave his sheep to be pastured, not to be shaven and shorn." At the close of this reign indeed the deaneries of Lichfield, Salisbury, and York, the archdeaconry of Canterbury, which was reputed the wealthiest English benefice, together with a host of prebends and preferments, were held by Italian cardinals and priests, while the Pope's collector from his office in London sent twenty thousand marks a year to the Papal treasury.

Protest of the Parliament

But the greed of the Popes was no new grievance, though the increase of these exactions since the removal to Avignon gave it a new force. What alienated England most was their connexion with and dependence on France. From the first outset of the troubles in the North their attitude had been one of hostility to the English projects. France was too useful a supporter of the Papal court to find much difficulty in inducing it to aid in hampering the growth of English greatness. Boniface the Eighth released Balliol from his oath of fealty, and forbade Edward to attack Scotland on the ground that it was a fief of the Roman See. His intervention was met by a solemn and emphatic protest from the English Parliament; but it none the less formed a terrible obstacle in Edward's way. The obstacle was at last

removed by the quarrel of Boniface with Philip the Fair; but the end of this quarrel only threw the Papacy more completely into the hands of France. Though Avignon remained imperial soil, the removal of the Popes to this city on the verge of their dominions made them mere tools of the French kings. Much no doubt of the endless negotiation which the Papal court carried on with Edward the Third in his strife with Philip of Valois was an honest struggle for peace. But to England it seemed the mere interference of a dependant on behalf of "our enemy of France." The people scorned a "French Pope," and threatened Papal legates with stoning when they landed on English shores. The alliance of Edward with an excommunicated Emperor, the bold defiance with which English priests said mass in Flanders when an interdict reduced the Flemish priests to silence, were significant tokens of the new attitude which England was taking up in the face of Popes who were leagued with its enemy. The old quarrel over ecclesiastical wrongs was renewed in a formal and decisive way. In 1343 the Commons petitioned for the redress of the grievance of Papal appointments to vacant livings in despite of the rights of patrons or the Crown; and Edward formally complained to the Pope of his appointing "foreigners, most of them suspicious persons, who do not reside on their benefices, who do not know the faces of the flocks entrusted to them, who do not understand their language, but, neglecting the cure of souls, seek as hirelings only their worldly hire." In yet sharper words the king rebuked the Papal greed. "The successor of the Apostles was set over the Lord's sheep to feed and not to shear them." The Parliament declared "that they neither could nor would tolerate such things any longer"; and the general irritation moved slowly towards those statutes of Provisors and Praemunire which heralded the policy of Henry the Eighth.

Flanders

But for the moment the strife with the Papacy was set aside in the efforts which were needed for a new struggle with France. The campaign of 1339 had not only ended in failure, it had dispelled the trust of Edward in an Imperial alliance. But as this hope faded away a fresh hope dawned on the king from another quarter. Flanders, still bleeding from the defeat of its burghers by the French knighthood, was his natural ally. England was the great wool-producing country of the west, but few woollen fabrics were woven in England. The number of weavers' gilds shows that the trade was

gradually extending, and at the very outset of his reign Edward had taken steps for its encouragement. He invited Flemish weavers to settle in his country, and took the new immigrants, who chose the eastern counties for the seat of their trade, under his royal protection. But English manufactures were still in their infancy and nine-tenths of the English wool went to the looms of Bruges or of Ghent. We may see the rapid growth of this export trade in the fact that the king received in a single year more than £30,000 from duties levied on wool alone. The woolsack which forms the Chancellor's seat in the House of Lords is said to witness to the importance which the government attached to this new source of wealth. A stoppage of this export threw half the population of the great Flemish towns out of work, and the irritation caused in Flanders by the interruption which this trade sustained through the piracies that Philip's ships were carrying on in the Channel showed how effective the threat of such a stoppage would be in securing their alliance. Nor was this the only ground for hoping for aid from the Flemish towns. Their democratic spirit jostled roughly with the feudalism of France. If their counts clung to the French monarchy, the towns themselves, proud of their immense population, their thriving industry, their vast wealth, drew more and more to independence. Jacques van Artevelde, a great brewer of Ghent, wielded the chief influence in their councils, and his aim was to build up a confederacy which might hold France in check along her northern border.

The Flemish Alliance

His plans had as yet brought no help from the Flemish towns, but at the close of 1339 they set aside their neutrality for open aid. The great plan of Federation which Van Artevelde had been devising as a check on the aggression of France was carried out in a treaty concluded between Edward, the Duke of Brabant, the cities of Brussels, Antwerp, Louvain, Ghent, Bruges, Ypres, and seven others. By this remarkable treaty it was provided that war should be begun and ended only by mutual consent, free commerce be encouraged between Flanders and Brabant, and no change made in their commercial arrangements save with the consent of the whole league. By a subsequent treaty the Flemish towns owned Edward as King of France, and declared war against Philip of Valois. But their voice was decisive on the course of the campaign which opened in 1340. As Philip held the Upper Scheldt by the occupation of Cambray, so he held the Lower Scheldt by that

of Tournay, a fortress which broke the line of commerce between Flanders and Brabant. It was a condition of the Flemish alliance therefore that the war should open with the capture of Tournay. It was only at the cost of a fight however that Edward could now cross the Channel to undertake the siege. France was as superior in force at sea as on land; and a fleet of two hundred vessels gathered at Sluys to intercept him. But the fine seamanship of the English sailors justified the courage of their king in attacking this fleet with far smaller forces; the French ships were utterly destroyed and twenty thousand Frenchmen slain in the encounter. It was with the lustre of this great victory about him that Edward marched upon Tournay. Its siege however proved as fruitless as that of Cambray in the preceding year, and after two months of investment his vast army of one hundred thousand men broke up without either capturing the town or bringing Philip when he approached it to an engagement. Want of money forced Edward to a truce for a year, and he returned beggared and embittered to England.

Edward's distress

He had been worsted in war as in diplomacy. One naval victory alone redeemed years of failure and expense. Guienne was all but lost, England was suffering from the terrible taxation, from the ruin of commerce, from the ravages of her coast. Five years of constant reverses were hard blows for a king of twenty-eight who had been glorious and successful at twenty-three. His financial difficulties indeed were enormous. It was in vain that, availing himself of an Act which forbade the exportation of wool "till by the King and his Council it is otherwise provided," he turned for the time the wool-trade into a royal monopoly and became the sole wool exporter, buying at £3 and selling at £20 the sack. The campaign of 1339 brought with it a crushing debt: that of 1340 proved yet more costly. Edward attributed his failure to the slackness of his ministers in sending money and supplies, and this to their silent opposition to the war. But wroth as he was on his return, a short struggle between the ministers and the king ended in a reconciliation, and preparations for renewed hostilities went on. Abroad indeed nothing could be done. The Emperor finally withdrew from Edward's friendship. A new Pope, Clement the Sixth, proved even more French in sentiment than his predecessor. Flanders alone held true of all England's foreign allies. Edward was powerless to attack Philip in the realm he claimed for his own; what strength he could gather was needed to

prevent the utter ruin of the English cause in Scotland on the return of David Bruce. Edward's soldiers had been driven from the open country and confined to the fortresses of the Lowlands. Even these were at last reft away. Perth was taken by siege, and the king was too late to prevent the surrender of Stirling. Edinburgh was captured by a stratagem. Only Roxburgh and Berwick were saved by a truce which Edward was driven to conclude with the Scots.

Progress of Parliament

But with the difficulties of the Crown the weight of the two Houses made itself more and more sensibly felt. The almost incessant warfare which had gone on since the accession of Edward the Third consolidated and developed the power which they had gained from the dissensions of his father's reign. The need of continual grants brought about an assembly of Parliament year by year, and the subsidies that were accorded to the king showed the potency of the financial engine which the Crown could now bring into play. In a single year the Parliament granted twenty thousand sacks, or half the wool of the realm. Two years later the Commons voted an aid of thirty thousand sacks. In 1339 the barons granted the tenth sheep and fleece and lamb. The clergy granted two tenths in one year, and a tenth for three years in the next. But with each supply some step was made to greater political influence. In his earlier years Edward showed no jealousy of the Parliament. His policy was to make the struggle with France a national one by winning for it the sympathy of the people at large; and with this view he not only published in the County Courts the efforts he had made for peace, but appealed again and again for the sanction and advice of Parliament in his enterprise. In 1331 he asked the Estates whether they would prefer negotiation or war: in 1338 he declared that his expedition to Flanders was made by the assent of the Lords and at the prayer of the Commons. The part of the last in public affairs grew greater in spite of their own efforts to remain obscure. From the opening of the reign a crowd of enactments for the regulation of trade, whether wise or unwise, shows the influence of the burgesses. But the final division of Parliament into two Houses, a change which was completed by 1341, necessarily increased the weight of the Commons. The humble trader who shrank from counselling the Crown in great matters of policy gathered courage as he found himself sitting side by side with the knights of the shire. It was at the moment when this great

change was being brought about that the disasters of the war spurred the Parliament to greater activity. The enormous grants of 1340 were bought by the king's assent to statutes which provided remedies for grievances of which the Commons complained. The most important of these put an end to the attempts which Edward had made like his grandfather to deal with the merchant class apart from the Houses. No charge or aid was henceforth to be made save by the common assent of the Estates assembled in Parliament. The progress of the next year was yet more important. The strife of the king with his ministers, the foremost of whom was Archbishop Stratford, ended in the Primate's refusal to make answer to the royal charges save in full Parliament, and in the assent of the king to a resolution of the Lords that none of their number, whether ministers of the Crown or no, should be brought to trial elsewhere than before his peers. The Commons demanded and obtained the appointment of commissioners elected in Parliament to audit the grants already made. Finally it was enacted that at each Parliament the ministers should hold themselves accountable for all grievances; that on any vacancy the king should take counsel with his lords as to the choice of the new minister; and that, when chosen, each minister should be sworn in Parliament.

Close of the truce

At the moment which we have reached therefore the position of the Parliament had become far more important than at Edward's accession. Its form was settled. The third estate had gained a fuller parliamentary power. The principle of ministerial responsibility to the Houses had been established by formal statute. But the jealousy of Edward was at last completely roused, and from this moment he looked on the new power as a rival to his own. The Parliament of 1341 had no sooner broken up than he revoked by Letters Patent the statutes it had passed as done in prejudice of his prerogative and only assented to for the time to prevent worse confusion. The regular assembly of the estates was suddenly interrupted, and two years passed without a Parliament. It was only the continual presence of war which from this time drove Edward to summon the Houses at all. Though the truce still held good between England and France a quarrel of succession to the Duchy of Brittany which broke out in 1341 and called Philip to the support of one claimant, his cousin Charles of Blois, and Edward to the support of a rival claimant, John of Montfort, dragged on

year after year. In Flanders things went ill for the English cause. The dissensions between the great and the smaller towns, and in the greater towns themselves between the weavers and fullers, dissensions which had taxed the genius of Van Arteveldt through the nine years of his wonderful rule, broke out in 1345 into a revolt at Ghent in which the great statesman was slain. With him fell a design for the deposition of the Count of Flanders and the reception of the Prince of Wales in his stead which he was ardently pressing, and whose political results might have been immense. Deputies were at once sent to England to excuse Van Arteveldt's murder and to promise loyalty to Edward; but the king's difficulties had now reached their height. His loans from the Florentine bankers amounted to half a million. His claim on the French crown found not a single adherent save among the burghers of the Flemish towns. The overtures which he made for peace were contemptuously rejected, and the expiration of the truce in 1345 found him again face to face with France.

Edward marches on Paris

But it was perhaps this breakdown of all foreign hope that contributed to Edward's success in the fresh outbreak of war. The war opened in Guienne, and Henry of Lancaster, who was now known as the Earl of Derby, and who with the Hainaulter Sir Walter Maunay took the command in that quarter, at once showed the abilities of a great general. The course of the Garonne was cleared by his capture of La Réole and Aiguillon, that of the Dordogne by the reduction of Bergerac, and a way opened for the reconquest of Poitou by the capture of Angoulême. These unexpected successes roused Philip to strenuous efforts, and a hundred thousand men gathered under his son, John, Duke of Normandy, for the subjugation of the South. Angoulême was won back, and Aiguillon besieged when Edward sailed to the aid of his hard-pressed lieutenant. It was with an army of thirty thousand men, half English, half Irish and Welsh, that he commenced a march which was to change the whole face of the war. His aim was simple. Flanders was still true to Edward's cause, and while Derby was pressing on in the south a Flemish army besieged Bouvines and threatened France from the north. The king had at first proposed to land in Guienne and relieve the forces in the south; but suddenly changing his design he disembarked at La Hogue and advanced through Normandy. By this skilful movement Edward not only relieved Derby but threatened Paris, and left himself able to co-operate with

either his own army in the south or the Flemings in the north. Normandy was totally without defence, and after the sack of Caen, which was then one of the wealthiest towns in France, Edward marched upon the Seine. His march threatened Rouen and Paris, and its strategical value was seen by the sudden panic of the French king. Philip was wholly taken by surprise. He attempted to arrest Edward's march by an offer to restore the Duchy of Aquitaine as Edward the Second had held it, but the offer was fruitless. Philip was forced to call his son to the rescue. John at once raised the siege of Aiguillon, and the French army moved rapidly to the north, its withdrawal enabling Derby to capture Poitiers and make himself thorough master of the south. But John was too distant from Paris for his forces to avail Philip in his emergency, for Edward, finding the bridges on the Lower Seine broken, pushed straight on Paris, rebuilt the bridge of Poissy, and threatened the capital.

Crécy

At this crisis however France found an unexpected help in a body of German knights. The long strife between Lewis of Bavaria and the Papacy had ended at last in Clement's carrying out his sentence of deposition by the nomination and coronation as emperor of Charles of Luxemburg, a son of King John of Bohemia, the well-known Charles IV. of the Golden Bull. But against this Papal assumption of a right to bestow the German Crown Germany rose as one man. Not a town opened its gates to the Papal claimant, and driven to seek help and refuge from Philip of Valois he found himself at this moment on the eastern frontier of France with his father and 500 knights. Hurrying to Paris this German force formed the nucleus of an army which assembled at St. Denys; and which was soon reinforced by 15,000 Genoese cross-bowmen who had been hired from among the soldiers of the Lord of Monaco on the sunny Riviera and arrived at this hour of need. With this host rapidly gathering in his front Edward abandoned his march on Paris, which had already served its purpose in relieving Derby, and threw himself across the Seine to carry out the second part of his programme by a junction with the Flemings at Gravelines and a campaign in the north. But the rivers in his path were carefully guarded, and it was only by surprising the ford of Blanche-Taque on the Somme that the king escaped the necessity of surrendering to the vast host which was now hastening in pursuit. His communications however were no sooner secured

than he halted on the twenty-sixth of August at the little village of Crécy in Ponthieu and resolved to give battle. Half of his army, which had been greatly reduced in strength by his rapid marches, consisted of light-armed footmen from Ireland and Wales; the bulk of the remainder was composed of English bowmen. The king ordered his men-at-arms to dismount, and drew up his forces on a low rise sloping gently to the south-east, with a deep ditch covering its front, and its flanks protected by woods and a little brook. From a windmill on the summit of this rise Edward could overlook the whole field of battle. Immediately beneath him lay his reserve, while at the base of the slope was placed the main body of the army in two divisions, that to the right commanded by the young Prince of Wales, Edward "the Black Prince," as he was called, that to the left by the Earl of Northampton. A small ditch protected the English front, and behind it the bowmen were drawn up "in the form of a harrow" with small bombards between them "which with fire threw little iron balls to frighten the horses," the first instance known of the use of artillery in field-warfare.

The halt of the English army took Philip by surprise, and he attempted for a time to check the advance of his army. But the attempt was fruitless and the disorderly host rolled on to the English front. The sight of his enemies indeed stirred Philip's own blood to fury, "for he hated them." The fight began at vespers. The Genoese cross-bowmen were ordered to open the attack, but the men were weary with their march, a sudden storm wetted and rendered useless their bowstrings, and the loud shouts with which they leapt forward to the encounter were met with dogged silence in the English ranks. Their first arrow-flight however brought a terrible reply. So rapid was the English shot "that it seemed as if it snowed." "Kill me these scoundrels," shouted Philip, as the Genoese fell back; and his men-at-arms plunged butchering into their broken ranks while the Counts of Alençon and Flanders at the head of the French knighthood fell hotly on the Prince's line. For an instant his small force seemed lost, and he called his father to support him. But Edward refused to send him aid. "Is he dead, or unhorsed, or so wounded that he cannot help himself?" he asked the envoy. "No, sir," was the reply, "but he is in a hard passage of arms, and sorely needs your help." "Return to those that sent you," said the king, "and bid them not send to me again so long as my son lives! Let the boy win his spurs, for, if God so order it, I will that the day may be his and that the honour may be with

him and them to whom I have given it in charge." Edward could see in fact from his higher ground that all went well. The English bowmen and men-at-arms held their ground stoutly while the Welshmen stabbed the French horses in the melly and brought knight after knight to the ground. Soon the French host was wavering in a fatal confusion. "You are my vassals, my friends," cried the blind John of Bohemia to the German nobles around him, "I pray and beseech you to lead me so far into the fight that I may strike one good blow with this sword of mine!" Linking their bridles together, the little company plunged into the thick of the combat to fall as their fellows were falling. The battle went steadily against the French. At last Philip himself hurried from the field, and the defeat became a rout. Twelve hundred knights and thirty thousand foot-men--a number equal to the whole English force--lay dead upon the ground.

The Yeoman

"God has punished us for our sins," cries the chronicler of St. Denys in a passion of bewildered grief as he tells the rout of the great host which he had seen mustering beneath his abbey walls. But the fall of France was hardly so sudden or so incomprehensible as the ruin at a single blow of a system of warfare, and with it of the political and social fabric which had risen out of that system. Feudalism rested on the superiority of the horseman to the footman, of the mounted noble to the unmounted churl. The real fighting power of a feudal army lay in its knighthood, in the baronage and landowners who took the field, each with his group of esquires and mounted men-at-arms. A host of footmen followed them, but they were ill armed, ill disciplined, and seldom called on to play any decisive part on the actual battle-field. In France, and especially at the moment we have reached, the contrast between the efficiency of these two elements of warfare was more striking than elsewhere. Nowhere was the chivalry so splendid, nowhere was the general misery and oppression of the poor more terribly expressed in the worthlessness of the mob of footmen who were driven by their lords to the camp. In England, on the other hand, the failure of feudalism to win a complete hold on the country was seen in the persistence of the older national institutions which based its defence on the general levy of its freemen. If the foreign kings added to this a system of warlike organization grounded on the service due from its military tenants to the Crown, they were far from regarding this as superseding the

national "fyrd." The Assize of Arms, the Statute of Winchester, show with what care the fyrd was held in a state of efficiency. Its force indeed as an engine of war was fast rising between the age of Henry the Second and that of Edward the Third. The social changes on which we have already dwelt, the facilities given to alienation and the subdivision of lands, the transition of the serf into a copyholder and of the copyholder by redemption of his services into a freeholder, the rise of a new class of "farmers" as the lords ceased to till their demesne by means of bailiffs and adopted the practice of leasing it at a rent or "farm" to one of the customary tenants, the general increase of wealth which was telling on the social position even of those who still remained in villenage, undid more and more the earlier process which had degraded the free ceorl of the English Conquest into the villein of the Norman Conquest, and covered the land with a population of yeomen, some freeholders, some with services that every day became less weighty and already left them virtually free.

The Bow

Such men, proud of their right to justice and an equal law, called by attendance in the county court to a share in the judicial, the financial, and the political life of the realm, were of a temper to make soldiers of a different sort from the wretched serfs who followed the feudal lords of the Continent; and they were equipped with a weapon which as they wielded it was enough of itself to make a revolution in the art of war. The bow, identified as it became with English warfare, was the weapon not of Englishmen but of their Norman conquerors. It was the Norman arrow-flight that decided the day of Senlac. But in the organization of the national army it had been assigned as the weapon of the poorer freeholders who were liable to serve at the king's summons; and we see how closely it had become associated with them in the picture of Chaucer's yeoman. "In his hand he bore a mighty bow." Its might lay not only in the range of the heavy war-shaft, a range we are told of four hundred yards, but in its force. The English archer, taught from very childhood "how to draw, how to lay his body to the bow," his skill quickened by incessant practice and constant rivalry with his fellows, raised the bow into a terrible engine of war. Thrown out along the front in a loose order that alone showed their vigour and self-dependence, the bowmen faced and riddled the splendid line of knighthood as it charged upon them. The galled horses "reeled right rudely."

Their riders found even the steel of Milan a poor defence against the grey-goose shaft. Gradually the bow dictated the very tactics of an English battle. If the mass of cavalry still plunged forward, the screen of archers broke to right and left and the men-at-arms who lay in reserve behind them made short work of the broken and disordered horsemen, while the light troops from Wales and Ireland flinging themselves into the melly with their long knives and darts brought steed after steed to the ground. It was this new military engine that Edward the Third carried to the fields of France. His armies were practically bodies of hired soldiery, for the short period of feudal service was insufficient for foreign campaigns, and yeoman and baron were alike drawn by a high rate of pay. An archer's daily wages equalled some five shillings of our present money. Such payment when coupled with the hope of plunder was enough to draw yeomen from thorp and farm; and though the royal treasury was drained as it had never been drained before the English king saw himself after the day of Crécy the master of a force without rival in the stress of war.

Siege of Calais

To England her success was the beginning of a career of military glory, which fatal as it was destined to prove to the higher sentiments and interests of the nation gave it a warlike energy such as it had never known before. Victory followed victory. A few months after Crécy a Scotch army marched over the border and faced on the seventeenth of October an English force at Neville's Cross. But it was soon broken by the arrow-flight of the English archers, and the Scotch king David Bruce was taken prisoner. The withdrawal of the French from the Garonne enabled Henry of Derby to recover Poitou. Edward meanwhile with a decision which marks his military capacity marched from the field of Crécy to form the siege of Calais. No measure could have been more popular with the English merchant class, for Calais was a great pirate-haven and in a single year twenty-two privateers from its port had swept the Channel. But Edward was guided by weightier considerations than this. In spite of his victory at Sluys the superiority of France at sea had been a constant embarrassment. From this difficulty the capture of Calais would do much to deliver him, for Dover and Calais together bridled the Channel. Nor was this all. Not only would the possession of the town give Edward a base of operations against France, but it afforded an easy means of communication with the only sure

allies of England, the towns of Flanders. Flanders seemed at this moment to be wavering. Its Count had fallen at Crécy, but his son Lewis le Mâle, though his sympathies were as French as his father's, was received in November by his subjects with the invariable loyalty which they showed to their rulers; and his own efforts to detach them from England were seconded by the influence of the Duke of Brabant. But with Edward close at hand beneath the walls of Calais the Flemish towns stood true. They prayed the young Count to marry Edward's daughter, imprisoned him on his refusal, and on his escape to the French Court in the spring of 1347 they threw themselves heartily into the English cause. A hundred thousand Flemings advanced to Cassel and ravaged the French frontier.

The danger of Calais roused Philip from the panic which had followed his defeat, and with a vast army he advanced to the north. But Edward's lines were impregnable. The French king failed in another attempt to dislodge the Flemings, and was at last driven to retreat without a blow. Hopeless of further succour, the town after a year's siege was starved into surrender in August 1347. Mercy was granted to the garrison and the people on condition that six of the citizens gave themselves into the English king's hands. "On them," said Edward with a burst of bitter hatred, "I will do my will." At the sound of the town bell, Jehan le Bel tells us, the folk of Calais gathered round the bearer of these terms, "desiring to hear their good news, for they were all mad with hunger. When the said knight told them his news, then began they to weep and cry so loudly that it was great pity. Then stood up the wealthiest burgess of the town, Master Eustache de St. Pierre by name, and spake thus before all: 'My masters, great grief and mishap it were for all to leave such a people as this is to die by famine or otherwise; and great charity and grace would he win from our Lord who could defend them from dying. For me, I have great hope in the Lord that if I can save this people by my death I shall have pardon for my faults, wherefore will I be the first of the six, and of my own will put myself barefoot in my shirt and with a halter round my neck in the mercy of King Edward.'" The list of devoted men was soon made up, and the victims were led before the king. "All the host assembled together; there was great press, and many bade hang them openly, and many wept for pity. The noble King came with his train of counts and barons to the place, and the Queen followed him, though great with child, to see what there would be. The six citizens knelt down at

once before the King, and Master Eustache spake thus:--'Gentle King, here we be six who have been of the old bourgeoisie of Calais and great merchants; we bring you the keys of the town and castle of Calais, and render them to you at your pleasure. We set ourselves in such wise as you see purely at your will, to save the remnant of the people that has suffered much pain. So may you have pity and mercy on us for your high nobleness' sake.' Certes there was then in that place neither lord nor knight that wept not for pity, nor who could speak for pity; but the King had his heart so hardened by wrath that for a long while he could not reply; than he commanded to cut off their heads. All the knights and lords prayed him with tears, as much as they could, to have pity on them, but he would not hear. Then spoke the gentle knight, Master Walter de Maunay, and said, 'Ha, gentle sire! bridle your wrath; you have the renown and good fame of all gentleness; do not a thing whereby men can speak any villany of you! If you have no pity, all men will say that you have a heart full of all cruelty to put these good citizens to death that of their own will are come to render themselves to you to save the remnant of the people.' At this point the King changed countenance with wrath, and said 'Hold your peace, Master Walter! it shall be none otherwise. Call the headsman. They of Calais have made so many of my men die, that they must die themselves!' Then did the noble Queen of England a deed of noble lowliness, seeing she was great with child, and wept so tenderly for pity that she could no longer stand upright; therefore she cast herself on her knees before her lord the King and spake on this wise: 'Ah, gentle sire, from the day that I passed over sea in great peril, as you know, I have asked for nothing: now pray I and beseech you, with folded hands, for the love of our Lady's Son to have mercy upon them.' The gentle King waited a while before speaking, and looked on the Queen as she knelt before him bitterly weeping. Then began his heart to soften a little, and he said, 'Lady, I would rather you had been elsewhere; you pray so tenderly that I dare not refuse you; and though I do it against my will, nevertheless take them, I give them to you.' Then took he the six citizens by the halters and delivered them to the Queen, and released from death all those of Calais for the love of her; and the good lady bade them clothe the six burgesses and make them good cheer."

CHAPTER III

THE PEASANT REVOLT

1347-1381

Edward the Third

Still in the vigour of manhood, for he was but thirty-five, Edward the Third stood at the height of his renown. He had won the greatest victory of his age. France, till now the first of European states, was broken and dashed from her pride of place at a single blow. The kingdom seemed to lie at Edward's mercy, for Guienne was recovered, Flanders was wholly on his side, and Brittany, where the capture of Charles of Blois secured the success of his rival and the English party which supported him, opened the road to Paris. At home his government was popular, and Scotland, the one enemy he had to dread, was bridled by the capture of her king. How great his renown was in Europe was seen in 1347, when on the death of Lewis of Bavaria the electors offered him the Imperial Crown. Edward was in truth a general of a high order, and he had shown himself as consummate a strategist in the campaign as a tactician in the field. But to the world about him he was even more illustrious as the foremost representative of the showy chivalry of his day. He loved the pomp of tournaments; he revived the Round Table of the fabled Arthur; he celebrated his victories by the creation of a new order of knighthood. He had varied the sterner operations of the siege of Calais by a hand-to-hand combat with one of the bravest of the French knights. A naval picture of Froissart sketches Edward for us as he sailed to meet a Spanish fleet which was sweeping the narrow seas. We see the king sitting on deck in his jacket of black velvet, his head covered by a black beaver hat "which became him well," and calling on Sir John Chandos to troll out the songs he had brought with him from Germany, till the Spanish ships heave in sight and a furious fight begins which ends in a victory that leaves Edward "King of the Seas."

But beneath all this glitter of chivalry lay the subtle, busy diplomatist. None of our kings was so restless a negotiator. From the first hour of Edward's rule the threads of his diplomacy ran over Europe in almost inextricable confusion. And to all who dealt with him he was equally false and tricky. Emperor was played off against Pope and Pope against Emperor, the friendship of the Flemish towns was adroitly used to put a pressure on their counts, the national wrath against the exactions of the Roman See was employed to bridle the French sympathies of the court of Avignon, and when the statutes which it produced had served their purpose they were set aside for a bargain in which King and Pope shared the plunder of the Church between them. His temper was as false in his dealings with his people as in his dealings with the European powers. Edward aired to country and parliament his English patriotism. "Above all other lands and realms," he made his chancellor say, "the King had most tenderly at heart his land of England, a land more full of delight and honour and profit to him than any other." His manners were popular; he donned on occasion the livery of a city gild; he dined with a London merchant. His perpetual parliaments, his appeals to them and to the country at large for counsel and aid, seemed to promise a ruler who was absolutely one at heart with the people he ruled. But when once Edward passed from sheer carelessness and gratification at the new source of wealth which the Parliament opened to a sense of what its power really was becoming, he showed himself as jealous of freedom as any king that had gone before him. He sold his assent to its demands for heavy subsidies, and when he had pocketed the money coolly declared the statutes he had sanctioned null and void. The constitutional progress which was made during his reign was due to his absorption in showy schemes of foreign ambition, to his preference for war and diplomatic intrigue over the sober business of civil administration. The same shallowness of temper, the same showiness and falsehood, ran through his personal character. The king who was a model of chivalry in his dealings with knight and noble showed himself a brutal savage to the burgesses of Calais. Even the courtesy to his Queen which throws its halo over the story of their deliverance went hand in hand with a constant disloyalty to her. When once Philippa was dead his profligacy threw all shame aside. He paraded a mistress as Queen of Beauty through the streets of London, and set her in pomp over tournaments as the Lady of the Sun. The nobles were quick to follow their lord's example. "In those days,"

writes a chronicler of the time, "arose a rumour and clamour among the people that wherever there was a tournament there came a great concourse of ladies, of the most costly and beautiful but not of the best in the kingdom, sometimes forty and fifty in number, as if they were a part of the tournament, ladies clad in diverse and wonderful male apparel, in parti-coloured tunics, with short caps and bands wound cord-wise round their heads, and girdles bound with gold and silver, and daggers in pouches across their body. And thus they rode on choice coursers to the place of tourney; and so spent and wasted their goods and vexed their bodies with scurrilous wantonness that the murmurs of the people sounded everywhere. But they neither feared God nor blushed at the chaste voice of the people."

The Black Death

The "chaste voice of the people" was soon to grow into the stern moral protest of the Lollards, but for the moment all murmurs were hushed by the king's success. The truce which followed the capture of Calais seemed a mere rest in the career of victories which opened before Edward. England was drunk with her glory and with the hope of plunder. The cloths of Caen had been brought after the sack of that town to London. "There was no woman," says Walsingham, "who had not got garments, furs, feather-beds, and utensils from the spoils of Calais and other foreign cities." The court revelled in gorgeous tournaments and luxury of dress; and the establishment in 1346 of the Order of the Garter which found its home in the new castle that Edward was raising at Windsor marked the highest reach of the spurious "Chivalry" of the day. But it was at this moment of triumph that the whole colour of Edward's reign suddenly changed. The most terrible plague the world has ever witnessed advanced from the East, and after devastating Europe from the shores of the Mediterranean to the Baltic swooped at the close of 1348 upon Britain. The traditions of its destructiveness and the panic-struck words of the statutes passed after its visitation have been amply justified by modern research. Of the three or four millions who then formed the population of England more than one-half were swept away in its repeated visitations. Its ravages were fiercest in the greater towns where filthy and undrained streets afforded a constant haunt to leprosy and fever. In the burial-ground which the piety of Sir Walter Maunay purchased for the citizens of London, a spot whose site was afterwards marked by the Charter House, more than fifty thousand corpses

are said to have been interred. Thousands of people perished at Norwich, while in Bristol the living were hardly able to bury the dead. But the Black Death fell on the villages almost as fiercely as on the towns. More than one-half of the priests of Yorkshire are known to have perished; in the diocese of Norwich two-thirds of the parishes changed their incumbents. The whole organization of labour was thrown out of gear. The scarcity of hands produced by the terrible mortality made it difficult for villeins to perform the services due for their lands, and only a temporary abandonment of half the rent by the landowners induced the farmers of their demesnes to refrain from the abandonment of their farms. For a time cultivation became impossible. "The sheep and cattle strayed through the fields and corn," says a contemporary, "and there were none left who could drive them." Even when the first burst of panic was over, the sudden rise of wages consequent on the enormous diminution in the supply of labour, though accompanied by a corresponding rise in the price of food, rudely disturbed the course of industrial employments. Harvests rotted on the ground and fields were left untilled not merely from scarcity of hands but from the strife which now for the first time revealed itself between capital and labour.

Its Social Results

Nowhere was the effect of the Black Death so keenly felt as in its bearing on the social revolution which had been steadily going on for a century past throughout the country. At the moment we have reached the lord of a manor had been reduced over a large part of England to the position of a modern landlord, receiving a rental in money from his tenants and supplying their place in the cultivation of his demesne lands by paid labourers. He was driven by the progress of enfranchisement to rely for the purposes of cultivation on the supply of hired labour, and hitherto this supply had been abundant and cheap. But with the ravages of the Black Death and the decrease of population labour at once became scarce and dear. There was a general rise of wages, and the farmers of the country as well as the wealthier craftsmen of the town saw themselves threatened with ruin by what seemed to their age the extravagant demands of the labour class. Meanwhile the country was torn with riot and disorder. An outbreak of lawless self-indulgence which followed everywhere in the wake of the plague told especially upon the "landless men," workers wandering in search of work who found themselves for the first time masters of the

labour market; and the wandering labourer or artizan turned easily into the "sturdy beggar," or the bandit of the woods. A summary redress for these evils was at once provided by the Crown in a royal proclamation. "Because a great part of the people," runs this ordinance, "and principally of labourers and servants, is dead of the plague, some, seeing the need of their lords and the scarcity of servants, are unwilling to serve unless they receive excessive wages, and others are rather begging in idleness than supporting themselves by labour, we have ordained that any able-bodied man or woman, of whatsoever condition, free or serf, under sixty years of age, not living of merchandise nor following a trade nor having of his own wherewithal to live, either his own land with the culture of which he could occupy himself, and not serving another, shall if so required serve another for such wages as was the custom in the twentieth year of our reign or five or six years before."

Statute of Labourers

It was the failure of this ordinance to effect its ends which brought about at the close of 1349 the passing of the Statute of Labourers. "Every man or woman," runs this famous provision, "of whatsoever condition, free or bond, able in body, and within the age of threescore years, ... and not having of his own whereof he may live, nor land of his own about the tillage of which he may occupy himself, and not serving any other, shall be bound to serve the employer who shall require him to do so, and shall take only the wages which were accustomed to be taken in the neighbourhood where he is bound to serve" two years before the plague began. A refusal to obey was punished by imprisonment. But sterner measures were soon found to be necessary. Not only was the price of labour fixed by the Parliament of 1351 but the labour class was once more tied to the soil. The labourer was forbidden to quit the parish where he lived in search of better paid employment; if he disobeyed he became a "fugitive," and subject to imprisonment at the hands of justices of the peace. To enforce such a law literally must have been impossible, for corn rose to so high a price that a day's labour at the old wages would not have purchased wheat enough for a man's support. But the landowners did not flinch from the attempt. The repeated re-enactment of the law shows the difficulty of applying it and the stubbornness of the struggle which it brought about. The fines and forfeitures which were levied for infractions of its provisions formed a large

source of royal revenue, but so ineffectual were the original penalties that the runaway labourer was at last ordered to be branded with a hot iron on the forehead, while the harbouring of serfs in towns was rigorously put down. Nor was it merely the existing class of free labourers which was attacked by this reactionary movement. The increase of their numbers by a commutation of labour services for money payments was suddenly checked, and the ingenuity of the lawyers who were employed as stewards of each manor was exercised in striving to restore to the landowners that customary labour whose loss was now severely felt. Manumissions and exemptions which had passed without question were cancelled on grounds of informality, and labour services from which they held themselves freed by redemption were again demanded from the villeins. The attempt was the more galling that the cause had to be pleaded in the manor-court itself, and to be decided by the very officer whose interest it was to give judgement in favour of his lord. We can see the growth of a fierce spirit of resistance through the statutes which strove in vain to repress it. In the towns, where the system of forced labour was applied with even more rigour than in the country, strikes and combinations became frequent among the lower craftsmen. In the country the free labourers found allies in the villeins whose freedom from manorial service was questioned. These were often men of position and substance, and throughout the eastern counties the gatherings of "fugitive serfs" were supported by an organized resistance and by large contributions of money on the part of the wealthier tenantry.

Renewal of the War

With plague, famine, and social strife in the land, it was no time for reaping the fruits even of such a victory as Crécy. Luckily for England the pestilence had fallen as heavily on her foe as on herself. A common suffering and exhaustion forced both countries to a truce, and though desultory fighting went on along the Breton and Aquitanian borders, the peace which was thus secured lasted with brief intervals of fighting for seven years. It was not till 1355 that the failure of a last effort to turn the truce into a final peace again drove Edward into war. The campaign opened with a brilliant prospect of success. Charles the Bad, King of Navarre, held as a prince of descent from the house of Valois large fiefs in Normandy; and a quarrel springing suddenly up between him and John, who had now succeeded his father Philip on the throne of France, Charles offered to put

his fortresses into Edward's hands. Master of Cherbourg, Avranches, Pontaudemer, Evreux and Meulan, Mantes, Mortain, Pontoise, Charles held in his hands the keys of France; and Edward grasped at the opportunity of delivering a crushing blow. Three armies were prepared to act in Normandy, Brittany, and Guienne. But the first two, with Edward and Henry of Derby, who had been raised to the dukedom of Lancaster, at their head, were detained by contrary winds, and Charles, despairing of their arrival, made peace with John. Edward made his way to Calais to meet the tidings of this desertion and to be called back to England by news of a recapture of Berwick by the Scots. But his hopes of Norman co-operation were revived in 1356. The treachery of John, his seizure of the King of Navarre, and his execution of the Count of Harcourt who was looked upon as the adviser of Charles in his policy of intrigue, stirred a general rising throughout Normandy. Edward at once despatched troops under the Duke of Lancaster to its support. But the insurgents were soon forced to fall back. Conscious of the danger to which an English occupation of Normandy would expose him, John hastened with a large army to the west, drove Lancaster to Cherbourg, took Evreux, and besieged Breteuil.

The Black Prince

Here however his progress was suddenly checked by news from the south. The Black Prince, as the hero of Crécy was called, had landed in Guienne during the preceding year and won a disgraceful success. Unable to pay his troops, he staved off their demands by a campaign of sheer pillage. While plague and war and the anarchy which sprang up under the weak government of John were bringing ruin on the northern and central provinces of France, the south remained prosperous and at peace. The young prince led his army of freebooters up the Garonne into "what was before one of the fat countries of the world, the people good and simple, who did not know what war was; indeed no war had been waged against them till the Prince came. The English and Gascons found the country full and gay, the rooms adorned with carpets and draperies, the caskets and chests full of fair jewels. But nothing was safe from these robbers. They, and especially the Gascons, who are very greedy, carried off everything." Glutted by the sack of Carcassonne and Narbonne the plunderers fell back to Bordeaux, "their horses so laden with spoil that they could hardly move." Worthier work awaited the Black Prince in the following year. In the plan of

campaign for 1356 it had been arranged that he should march upon the Loire, and there unite with a force under the Duke of Lancaster which was to land in Brittany and push rapidly into the heart of France. Delays however hindered the Prince from starting from Bordeaux till July, and when his march brought him to the Loire the plan of campaign had already broken down. The outbreak in Normandy had tempted the English Council to divert the force under Lancaster from Brittany to that province; and the Duke was now at Cherbourg, hard pressed by the French army under John. But if its original purpose was foiled, the march of the Black Prince on the Loire served still more effectively the English cause. His advance pointed straight upon Paris, and again as in the Crécy campaign John was forced to leave all for the protection of the capital. Hasty marches brought the king to the Loire while Prince Edward still lay at Vierzon on the Cher. Unconscious of John's designs, he wasted some days in the capture of Romorantin while the French troops were crossing the Loire along its course from Orleans to Tours and John with the advance was hurrying through Loches upon Poitiers in pursuit, as he supposed, of the retreating Englishmen. But the movement of the French army, near as it was, was unknown in the English camp; and when the news of it forced the Black Prince to order a retreat the enemy was already far ahead of him. Edward reached the fields north of Poitiers to find his line of retreat cut off and a French army of sixty thousand men interposed between his forces and Bordeaux.

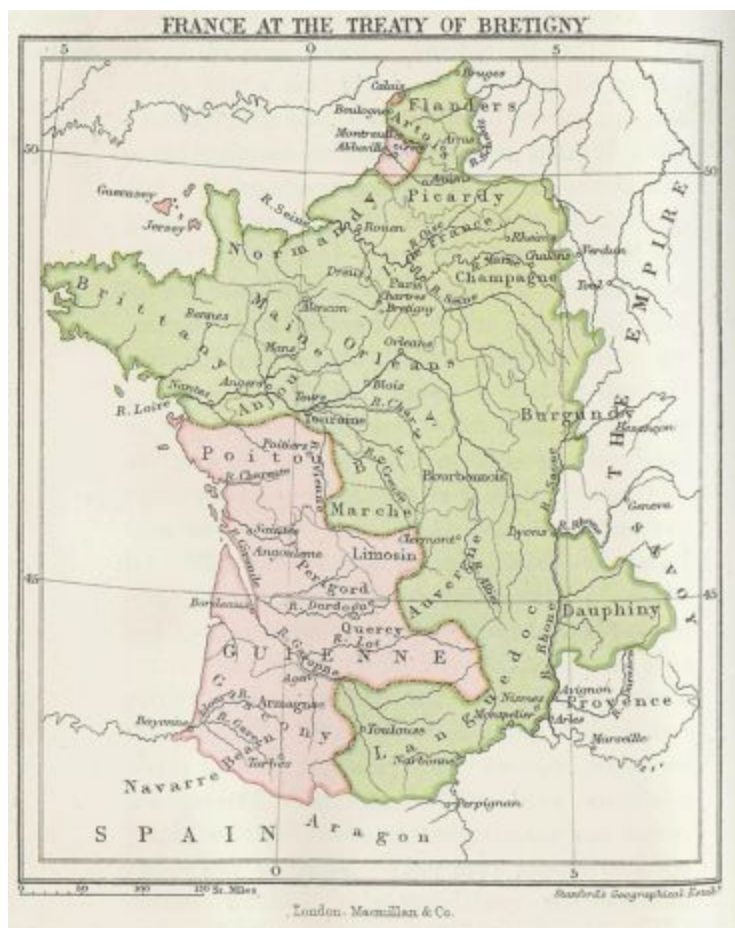
If the Prince had shown little ability in his management of the campaign, he showed tactical skill in the fight which was now forced on him. On the nineteenth of September he took a strong position in the fields of Maupertuis, where his front was covered by thick hedges and approachable only by a deep and narrow lane which ran between vineyards. The vineyards and hedges he lined with bowmen, and drew up his small body of men-at-arms at the point where the lane opened upon the higher plain on which he was himself encamped. Edward's force numbered only eight thousand men, and the danger was great enough to force him to offer in exchange for a free retreat the surrender of his prisoners and of the places he had taken, with an oath not to fight against France for seven years to come. His offers however were rejected, and the battle opened with a charge of three hundred French knights up the narrow lane. But the lane was soon choked with men and horses, while the front ranks of the

advancing army fell back before a galling fire of arrows from the hedgerows. In this moment of confusion a body of English horsemen, posted unseen by their opponents on a hill to the right, charged suddenly on the French flank, and the Prince watching the disorder which was caused by the repulse and surprise fell boldly on their front. The steady shot of the English archers completed the panic produced by this sudden attack. The first French line was driven in, and on its rout the second, a force of sixteen thousand men, at once broke in wild terror and fled from the field. John still held his ground with the knights of the reserve, whom he had unwisely ordered to dismount from their horses, till a charge of the Black Prince with two thousand lances threw this last body into confusion. The French king was taken, desperately fighting; and when his army poured back at noon in utter rout to the gates of Poitiers eight thousand of their number had fallen on the field, three thousand in the flight, and two thousand men-at-arms, with a crowd of nobles, were taken prisoners. The royal captive entered London in triumph, mounted on a big white charger, while the Prince rode by his side on a little black hackney to the palace of the Savoy, which was chosen as John's dwelling, and a truce for two years seemed to give healing-time to France.

Edward and the Scots

With the Scots Edward the Third had less good fortune. Recalled from Calais by their seizure of Berwick, the king induced Balliol to resign into his hands his shadowy sovereignty, and in the spring of 1356 marched upon Edinburgh with an overpowering army, harrying and burning as he marched. But the Scots refused an engagement, a fleet sent with provisions was beaten off by a storm, and the famine-stricken army was forced to fall rapidly back on the border in a disastrous retreat. The trial convinced Edward that the conquest of Scotland was impossible, and by a rapid change of policy which marks the man he resolved to seek the friendship of the country he had wasted so long. David Bruce was released on promise of ransom, a truce concluded for ten years, and the prohibition of trade between the two kingdoms put an end to. But the fulness of this reconciliation screened a dexterous intrigue. David was childless, and Edward availed himself of the difficulty which the young king experienced in finding means of providing the sum demanded for his ransom to bring him over to a proposal which would have united the two countries for ever.

The scheme however was carefully concealed; and it was not till 1363 that David proposed to his Parliament to set aside on his death the claims of the Steward of Scotland to his crown, and to choose Edward's third son, Lionel, Duke of Clarence, as his successor. Though the proposal was scornfully rejected, negotiations were still carried on between the two kings for the realization of this project, and were probably only put an end to by the calamities of Edward's later years.



Peace of Brétigny

In France misery and misgovernment seemed to be doing Edward's work more effectively than arms. The miserable country found no rest in itself. Its routed soldiery turned into free companies of bandits, while the lords captured at Crécy or Poitiers procured the sums needed for their ransom by extortion from the peasantry. The reforms demanded by the States-General which met in this agony of France were frustrated by the treachery of the Regent, John's eldest son Charles, Duke of Normandy, till Paris, impatient

of his weakness and misrule, rose in arms against the Crown. The peasants too, driven mad by oppression and famine, rose in wild insurrection, butchering their lords and firing their castles over the whole face of France. Paris and the Jacquerie, as this peasant rising was called, were at last crushed by treachery and the sword: and, exhausted as it was, France still backed the Regent in rejecting a treaty of peace by which John in 1359 proposed to buy his release. By this treaty Maine, Touraine, and Poitou in the south, Normandy, Guisnes, Ponthieu, and Calais in the west were ceded to the English king. On its rejection Edward in 1360 poured ravaging over the wasted land. Famine however proved its best defence. "I could not believe," said Petrarch of this time, "that this was the same France which I had seen so rich and flourishing. Nothing presented itself to my eyes but a fearful solitude, an utter poverty, land uncultivated, houses in ruins. Even the neighbourhood of Paris showed everywhere marks of desolation and conflagration. The streets are deserted, the roads overgrown with weeds, the whole is a vast solitude." The utter desolation forced Edward to carry with him an immense train of provisions, and thousands of baggage waggons with mills, ovens, forges, and fishing-boats, formed a long train which streamed for six miles behind his army. After a fruitless attempt upon Reims he forced the Duke of Burgundy to conclude a treaty with him by pushing forward to Tonnerre, and then descending the Seine appeared with his army before Paris. But the wasted country forbade a siege, and Edward after summoning the town in vain was forced to fall back for subsistence on the Loire. It was during this march that the Duke of Normandy's envoys overtook him with proposals of peace. The misery of the land had at last bent Charles to submission, and in May a treaty was concluded at Brétigny, a small place to the eastward of Chartres. By this treaty the English king waived his claims on the crown of France and on the Duchy of Normandy. On the other hand, his Duchy of Aquitaine, which included Gascony, Guienne, Poitou, and Saintonge, the Limousin and the Angoumois, Périgord and the counties of Bigorre and Rouergue, was not only restored but freed from its obligations as a French fief and granted in full sovereignty with Ponthieu, Edward's heritage from the second wife of Edward the First, as well as with Guisnes and his new conquest of Calais.

Misery of England

The Peace of Brétigny set its seal upon Edward's glory. But within England itself the misery of the people was deepening every hour. Men believed the world to be ending, and the judgement day to be near. A few months after the Peace came a fresh swoop of the Black Death, carrying off the Duke of Lancaster. The repressive measures of Parliament and the landowners only widened the social chasm which parted employer from employed. We can see the growth of a fierce spirit of resistance both to the reactionary efforts which were being made to bring back labour services and to the enactments which again bound labour to the soil in statutes which strove in vain to repress the strikes and combinations which became frequent in the towns and the more formidable gatherings of villeins and "fugitive serfs" in the country at large. A statute of later date throws light on the nature of the resistance of the last. It tells us that "villeins and holders of land in villeinage withdrew their customs and services from their lords, having attached themselves to other persons who maintained and abetted them, and who under colour of exemplifications from Domesday of the manors and villages where they dwelt claimed to be quit of all manner of services either of their body or of their lands, and would suffer no distress or other course of justice to be taken against them; the villeins aiding their maintainers by threatening the officers of their lords with peril to life and limb as well by open assemblies as by confederacies to support each other." It would seem not only as if the villein was striving to resist the reactionary tendency of the lords of manors to regain his labour service but that in the general overturning of social institutions the copyholder was struggling to make himself a freeholder, and the farmer to be recognized as proprietor of the demesne he held on lease.

John Ball

A more terrible outcome of the general suffering was seen in a new revolt against the whole system of social inequality which had till then passed unquestioned as the divine order of the world. The Peace was hardly signed when the cry of the poor found a terrible utterance in the words of "a mad priest of Kent" as the courtly Froissart calls him, who for twenty years to come found audience for his sermons in spite of interdict and imprisonment in the stout yeomen who gathered round him in the churchyards of Kent. "Mad" as the landowners held him to be, it was in the preaching of John Ball that England first listened to a declaration of the natural equality and

rights of man. "Good people," cried the preacher, "things will never be well in England so long as goods be not in common, and so long as there be villeins and gentlemen. By what right are they whom we call lords greater folk than we? On what grounds have they deserved it? Why do they hold us in serfage? If we all came of the same father and mother, of Adam and Eve, how can they say or prove that they are better than we, if it be not that they make us gain for them by our toil what they spend in their pride? They are clothed in velvet and warm in their furs and their ermines, while we are covered with rags. They have wine and spices and fair bread; and we oat-cake and straw, and water to drink. They have leisure and fine houses; we have pain and labour, the rain and the wind in the fields. And yet it is of us and of our toil that these men hold their state." It was the tyranny of property that then as ever roused the defiance of socialism. A spirit fatal to the whole system of the Middle Ages breathed in the popular rime which condensed the levelling doctrine of John Ball:

"When Adam delved and Eve span,
Who was then the gentleman?"

William Langland

More impressive, because of the very restraint and moderation of its tone, is the poem in which William Langland began at the same moment to embody with a terrible fidelity all the darker and sterner aspects of the time, its social revolt, its moral and religious awakening, the misery of the poor, the selfishness and corruption of the rich. Nothing brings more vividly home to us the social chasm which in the fourteenth century severed the rich from the poor than the contrast between his "Complaint of Piers the Ploughman" and the "Canterbury Tales." The world of wealth and ease and laughter through which the courtly Chaucer moves with, eyes downcast as in a pleasant dream is a far-off world of wrong and of ungodliness to the gaunt poet of the poor. Born probably in Shropshire, where he had been put to school and received minor orders as a clerk, "Long Will," as Langland was nicknamed from his tall stature, found his way at an early age to London, and earned a miserable livelihood there by singing "placebos" and "diriges" in the stately funerals of his day. Men took the moody clerk for a madman; his bitter poverty quickened the defiant pride that made him loth, as he tells us, to bow to the gay lords and dames who rode decked in silver

and minivere along the Cheap or to exchange a "God save you" with the law sergeants as he passed their new house in the Temple. His world is the world of the poor; he dwells on the poor man's life, on his hunger and toil, his rough revelry and his despair, with the narrow intensity of a man who has no outlook beyond it. The narrowness, the misery, the monotony of the life he paints reflect themselves in his verse. It is only here and there that a love of nature or a grim earnestness of wrath quickens his rime into poetry; there is not a gleam of the bright human sympathy of Chaucer, of his fresh delight in the gaiety, the tenderness, the daring of the world about him, of his picturesque sense of even its coarsest contrasts, of his delicate irony, of his courtly wit. The cumbrous allegory, the tedious platitudes, the rimed texts from Scripture which form the staple of Langland's work, are only broken here and there by phrases of a shrewd common sense, by bitter outbursts, by pictures of a broad Hogarthian humour. What chains one to the poem is its deep undertone of sadness: the world is out of joint, and the gaunt rimer who stalks silently along the Strand has no faith in his power to put it right.

Piers Ploughman

Londoner as he is, Will's fancy flies far from the sin and suffering of the great city to a May-morning in the Malvern Hills. "I was weary forwandered and went me to rest under a broad bank by a burn side, and as I lay and leaned and looked in the water I slumbered in a sleeping, it sweyved (sounded) so merry." Just as Chaucer gathers the typical figures of the world he saw into his pilgrim train, so the dreamer gathers into a wide field his army of traders and chafferers, of hermits and solitaires, of minstrels, "japers and jinglers," bidders and beggars, ploughmen that "in setting and in sowing swonken (toil) full hard," pilgrims "with their wenches after," weavers and labourers, burgess and bondman, lawyer and scrivener, court-haunting bishops, friars, and pardoners "parting the silver" with the parish priest. Their pilgrimage is not to Canterbury but to Truth; their guide to Truth neither clerk nor priest but Peterkin the Ploughman, whom they find ploughing in his field. He it is who bids the knight no more wrest gifts from his tenant nor misdo with the poor. "Though he be thine underling here, well may hap in heaven that he be worthier set and with more bliss than thou.... For in charnel at church churles be evil to know, or a knight from a knave there." The gospel of equality is backed by the gospel

of labour. The aim of the Ploughman is to work, and to make the world work with him. He warns the labourer as he warns the knight. Hunger is God's instrument in bringing the idlest to toil, and Hunger waits to work her will on the idler and the waster. On the eve of the great struggle between wealth and labour, Langland stands alone in his fairness to both, in his shrewd political and religious common sense. In the face of the popular hatred which was to gather round John of Gaunt, he paints the Duke in a famous apologue as the cat who, greedy as she might be, at any rate keeps the noble rats from utterly devouring the mice of the people. Though the poet is loyal to the Church, he proclaims a righteous life to be better than a host of indulgences, and God sends His pardon to Piers when priests dispute it. But he sings as a man conscious of his loneliness and without hope. It is only in a dream that he sees Corruption, "Lady Mede," brought to trial, and the world repenting at the preaching of Reason. In the waking life reason finds no listeners. The poet himself is looked upon--he tells us bitterly--as a madman. There is a terrible despair in the close of his later poem, where the triumph of Christ is only followed by the reign of Antichrist; where Contrition slumbers amidst the revel of Death and Sin; and Conscience, hard beset by Pride and Sloth, rouses himself with a last effort, and seizing his pilgrim staff, wanders over the world to find Piers Ploughman.

Præmunire

The strife indeed which Langland would have averted raged only the fiercer as the dark years went by. If the Statutes of Labourers were powerless for their immediate ends, either in reducing the actual rate of wages or in restricting the mass of floating labour to definite areas of employment, they proved effective in sowing hatred between employer and employed, between rich and poor. But this social rift was not the only rift which was opening amidst the distress and misery of the time. The close of William Langland's poem is the prophecy of a religious revolution; and the way for such a revolution was being paved by the growing bitterness of strife between England and the Papacy. In spite of the sharp protests from king and parliament the need for money at Avignon was too great to allow any relaxation in the Papal claims. Almost on the eve of Crécy Edward took the decisive step of forbidding the entry into England of any Papal bulls or documents interfering with the rights of presentation belonging to private patrons. But the tenacity of Rome was far from loosening its grasp on this

source of revenue for all Edward's protests. Crécy however gave a new boldness to the action of the State, and a Statute of Provisors was passed by the Parliament in 1351 which again asserted the rights of the English Church and enacted that all who infringed them by the introduction of Papal "provisors" should suffer imprisonment. But resistance to provisors only brought fresh vexations. The patrons who withstood a Papal nominee in the name of the law were summoned to defend themselves in the Papal Court. From that moment the supremacy of the Papal law over the law of the land became a great question in which the lesser question of provisors merged. The pretension of the Court of Avignon was met in 1353 by a statute which forbade any questioning of judgements rendered in the King's Courts or any prosecution of a suit in foreign courts under pain of outlawry, perpetual imprisonment, or banishment from the land. It was this act of *Præmunire*--as it came in after renewals to be called--which furnished so terrible a weapon to the Tudors in their later strife with Rome. But the Papacy paid little heed to these warnings, and its obstinacy in still receiving suits and appeals in defiance of this statute roused the pride of a conquering people. England was still fresh from her glory at Brétigny when Edward appealed to the Parliament of 1365. Complaints, he said, were constantly being made by his subjects to the Pope as to matters which were cognizable in the King's Courts. The practice of provisors was thus maintained in the teeth of the laws, and "the laws, usages, ancient customs, and franchises of his kingdom were thereby much hindered, the King's crown degraded, and his person defamed." The king's appeal was hotly met. "Biting words," which it was thought wise to suppress, were used in the debate which followed, and the statutes against provisors and appeals were solemnly confirmed.

Wyclif

What gave point to this challenge was the assent of the prelates to the proceedings of the Parliament; and the pride of Urban V. at once met it by a counter-defiance. He demanded with threats the payment of the annual sum of a thousand marks promised by King John in acknowledgement of the suzerainty of the See of Rome. The insult roused the temper of the realm. The king laid the demand before Parliament, and both houses replied that "neither King John nor any king could put himself, his kingdom, nor his people under subjection save with their accord or assent." John's submission had been made "without their assent and against his coronation oath" and

they pledged themselves, should the Pope attempt to enforce his claim, to resist him with all their power. Even Urban shrank from imperilling the Papacy by any further demands, and the claim to a Papal lordship over England was never again heard of. But the struggle had brought to the front a man who was destined to give a far wider scope and significance to this resistance to Rome than any as yet dreamed of. Nothing is more remarkable than the contrast between the obscurity of John Wyclif's earlier life and the fulness and vividness of our knowledge of him during the twenty years which preceded its close. Born in the earlier part of the fourteenth century, he had already passed middle age when he was appointed to the mastership of Balliol College in the University of Oxford and recognized as first among the schoolmen of his day. Of all the scholastic doctors those of England had been throughout the keenest and most daring in philosophical speculation. A reckless audacity and love of novelty was the common note of Bacon, Duns Scotus, and Ockham, as against the sober and more disciplined learning of the Parisian schoolmen, Albert and Thomas Aquinas. The decay of the University of Paris during the English wars was transferring her intellectual supremacy to Oxford, and in Oxford Wyclif stood without a rival. From his predecessor, Bradwardine, whose work as a scholastic teacher he carried on in the speculative treatises he published during this period, he inherited the tendency to a predestinarian Augustinianism which formed the groundwork of his later theological revolt. His debt to Ockham revealed itself in his earliest efforts at Church reform. Undismayed by the thunder and excommunications of the Church, Ockham had supported the Emperor Lewis of Bavaria in his recent struggle, and he had not shrunk in his enthusiasm for the Empire from attacking the foundations of the Papal supremacy or from asserting the rights of the civil power. The spare, emaciated frame of Wyclif, weakened by study and asceticism, hardly promised a reformer who would carry on the stormy work of Ockham; but within this frail form lay a temper quick and restless, an immense energy, an immovable conviction, an unconquerable pride. The personal charm which ever accompanies real greatness only deepened the influence he derived from the spotless purity of his life. As yet indeed even Wyclif himself can hardly have suspected the immense range of his intellectual power. It was only the struggle that lay before him which revealed in the dry and subtle schoolman the founder of our later English prose, a master of popular invective, of irony, of persuasion, a dexterous

politician, an audacious partizan, the organizer of a religious order, the unsparing assailant of abuses, the boldest and most indefatigable of controversialists, the first Reformer who dared, when deserted and alone, to question and deny the creed of the Christendom around him, to break through the tradition of the past, and with his last breath to assert the freedom of religious thought against the dogmas of the Papacy.

"De Dominio Divino."

At the moment of the quarrel with Pope Urban however Wyclif was far from having advanced to such a position as this. As the most prominent of English scholars it was natural that he should come forward in defence of the independence and freedom of the English Church; and he published a formal refutation of the claims advanced by the Papacy to deal at its will with church property in the form of a report of the Parliamentary debates which we have described. As yet his quarrel was not with the doctrines of Rome but with its practices; and it was on the principles of Ockham that he defended the Parliament's refusal of the "tribute" which was claimed by Urban. But his treatise on "The Kingdom of God," "De Dominio Divino," which can hardly have been written later than 1368, shows the breadth of the ground he was even now prepared to take up. In this, the most famous of his works, Wyclif bases his argument on a distinct ideal of society. All authority, to use his own expression, is "founded in grace." Dominion in the highest sense is in God alone; it is God who as the suzerain of the universe deals out His rule in fief to rulers in their various stations on tenure of their obedience to Himself. It was easy to object that in such a case "dominion" could never exist, since mortal sin is a breach of such a tenure and all men sin. But, as Wyclif urged it, the theory is a purely ideal one. In actual practice he distinguishes between dominion and power, power which the wicked may have by God's permission, and to which the Christian must submit from motives of obedience to God. In his own scholastic phrase, so strangely perverted afterwards, here on earth "God must obey the devil." But whether in the ideal or practical view of the matter all power and dominion was of God. It was granted by Him not to one person, His Vicar on earth, as the Papacy alleged, but to all. The king was as truly God's Vicar as the Pope. The royal power was as sacred as the ecclesiastical, and as complete over temporal things, even over the temporalities of the Church, as that of the Church over spiritual things. So far as the question of Church

and State therefore was concerned the distinction between the ideal and practical view of "dominion" was of little account. Wyclif's application of the theory to the individual conscience was of far higher and wider importance. Obedient as each Christian might be to king or priest, he himself as a possessor of "dominion" held immediately of God. The throne of God Himself was the tribunal of personal appeal. What the Reformers of the sixteenth century attempted to do by their theory of Justification by Faith Wyclif attempted to do by his theory of Dominion, a theory which in establishing a direct relation between man and God swept away the whole basis of a mediating priesthood, the very foundation on which the mediaeval church was built.

England and Aquitaine

As yet the full bearing of these doctrines was little seen. But the social and religious excitement which we have described was quickened by the renewal of the war, and the general suffering and discontent gathered bitterness when the success which had flushed England with a new and warlike pride passed into a long series of disasters in which men forgot the glories of Crécy and Poitiers. Triumph as it seemed, the treaty of Brétigny was really fatal to Edward's cause in the south of France. By the cession of Aquitaine to him in full sovereignty the traditional claim on which his strength rested lost its force. The people of the south had clung to their Duke, even though their Duke was a foreign ruler. They had stubbornly resisted incorporation with Northern France. While preserving however their traditional fealty to the descendants of Eleanor they still clung to the equally traditional suzerainty of the kings of France. But the treaty of Brétigny not only severed them from the realm of France, it subjected them to the realm of England. Edward ceased to be their hereditary Duke, he became simply an English king ruling Aquitaine as an English dominion. If the Southerners loved the North-French little, they loved the English less, and the treaty which thus changed their whole position was followed by a quick revulsion of feeling from the Garonne to the Pyrenees. The Gascon nobles declared that John had no right to transfer their fealty to another and to sever them from the realm of France. The city of Rochelle prayed the French king not to release it from its fealty to him. "We will obey the English with our lips," said its citizens, "but our hearts shall never be moved towards them." Edward strove to meet this passion for local

independence, this hatred of being ruled from London, by sending the Black Prince to Bordeaux and investing him in 1362 with the Duchy of Aquitaine. But the new Duke held his Duchy as a fief from the English king, and the grievance of the Southerners was left untouched. Charles V. who succeeded his father John in 1364 silently prepared to reap this harvest of discontent. Patient, wary, unscrupulous, he was hardly crowned before he put an end to the war which had gone on without a pause in Brittany by accepting homage from the claimant whom France had hitherto opposed. Through Bertrand du Guesclin, a fine soldier whom his sagacity had discovered, he forced the king of Navarre to a peace which closed the fighting in Normandy. A more formidable difficulty in the way of pacification and order lay in the Free Companies, a union of marauders whom the disbanding of both armies after the peace had set free to harry the wasted land and whom the king's military resources were insufficient to cope with. It was the stroke by which Charles cleared his realm of these scourges which forced on a new struggle with the English in the south.

Pedro the Cruel

In the judgement of the English court the friendship of Castille was of the first importance for the security of Aquitaine. Spain was the strongest naval power of the western world, and not only would the ports of Guienne be closed but its communication with England would be at once cut off by the appearance of a joint French and Spanish fleet in the Channel. It was with satisfaction therefore that Edward saw the growth of a bitter hostility between Charles and the Castilian king, Pedro the Cruel, through the murder of his wife, Blanche of Bourbon, the French king's sister-in-law. Henry of Trastamara, a bastard son of Pedro's father Alfonso the Eleventh, had long been a refugee at the French court, and soon after the treaty of Brétigny Charles in his desire to revenge this murder on Pedro gave Henry aid in an attempt on the Castilian throne. It was impossible for England to look on with indifference while a dependant of the French king became master of Castille; and in 1362 a treaty offensive and defensive was concluded between Pedro and Edward the Third. The time was not come for open war; but the subtle policy of Charles saw in this strife across the Pyrenees an opportunity both of detaching Castille from the English cause and of ridding himself of the Free Companies. With characteristic caution he dexterously held himself in the background while he made use of the

Pope, who had been threatened by the Free Companies in his palace at Avignon and was as anxious to get rid of them as himself. Pedro's cruelty, misgovernment, and alliance with the Moslem of Cordova served as grounds for a crusade which was proclaimed by Pope Urban; and Du Guesclin, who was placed at the head of the expedition, found in the Papal treasury and in the hope of booty from an unravaged land means of gathering the marauders round his standard. As soon as these Crusaders crossed the Ebro Pedro was deserted by his subjects, and in 1366 Henry of Trastamara saw himself crowned without a struggle at Burgos as king of Castille. Pedro with his two daughters fled for shelter to Bordeaux and claimed the aid promised in the treaty. The lords of Aquitaine shrank from fighting for such a cause, but in spite of their protests and the reluctance of the English council to embark in so distant a struggle Edward held that he had no choice save to replace his ally, for to leave Henry seated on the throne was to leave Aquitaine to be crushed between France and Castille.

Charles the Fifth

The after course of the war proved that in his anticipations of the fatal result of a combination of the two powers Edward was right, but his policy jarred not only against the universal craving for rest, but against the moral sense of the world. The Black Prince however proceeded to carry out his father's design in the teeth of the general opposition. His call to arms robbed Henry of the aid of those English Companies who had marched till now with the rest of the crusaders, but who returned at once to the standard of the Prince; the passes of Navarre were opened with gold, and in the beginning of 1367 the English army crossed the Pyrenees. Advancing to the Ebro the Prince offered battle at Navarete with an army already reduced by famine and disease in its terrible winter march, and Henry with double his numbers at once attacked him. But in spite of the obstinate courage of the Castilian troops the discipline and skill of the English soldiers once more turned the wavering day into a victory. Du Guesclin was taken, Henry fled across the Pyrenees, and Pedro was again seated on his throne. The pay however which he had promised was delayed; and the Prince, whose army had been thinned by disease to a fifth of its numbers and whose strength never recovered from the hardships of this campaign, fell back sick and beggared to Aquitaine. He had hardly returned when his work was undone. In 1368 Henry reentered Castille; its towns threw open their gates; a general

rising chased Pedro from the throne, and a final battle in the spring of 1369 saw his utter overthrow. His murder by Henry's hand left the bastard undisputed master of Castille. Meanwhile the Black Prince, sick and disheartened, was hampered at Bordeaux by the expenses of the campaign which Pedro had left unpaid. To defray his debt he was driven in 1368 to lay a hearth-tax on Aquitaine, and the tax served as a pretext for an outbreak of the long-hoarded discontent. Charles was now ready for open action. He had won over the most powerful among the Gascon nobles, and their influence secured the rejection of the tax in a Parliament of the province which met at Bordeaux. The Prince, pressed by debt, persisted against the counsel of his wisest advisers in exacting it; and the lords of Aquitaine at once appealed to the king of France. Such an appeal was a breach of the treaty of Brétigny in which the French king had renounced his sovereignty over the south; but Charles had craftily delayed year after year the formal execution of the renunciations stipulated in the treaty, and he was still able to treat it as not binding on him. The success of Henry of Trastamara decided him to take immediate action, and in 1369 he summoned the Black Prince as Duke of Aquitaine to meet the appeal of the Gascon lords in his court.

Renewal of the War

The Prince was maddened by the summons. "I will come," he replied, "but with helmet on head, and with sixty thousand men at my back." War however had hardly been declared when the ability with which Charles had laid his plans was seen in his seizure of Ponthieu and in a rising of the whole country south of the Garonne. Du Guesclin returned in 1370 from Spain to throw life into the French attack. Two armies entered Guienne from the east; and a hundred castles with La Réole and Limoges threw open their gates to Du Guesclin. But the march of an English army from Calais upon Paris recalled him from the south to guard the capital at a moment when the English leader advanced to recover Limoges, and the Black Prince borne in a litter to its walls stormed the town and sullied by a merciless massacre of its inhabitants the fame of his earlier exploits. Sickness however recalled him home in the spring of 1371; and the war, protracted by the caution of Charles who forbade his armies to engage, did little but exhaust the energy and treasure of England. As yet indeed the French attack had made small impression on the south, where the English troops stoutly

held their ground against Du Guesclin's inroads. But the protracted war drained Edward's resources, while the diplomacy of Charles was busy in rousing fresh dangers from Scotland and Castille. It was in vain that Edward looked for allies to the Flemish towns. The male line of the Counts of Flanders ended in Count Louis le Mâle; and the marriage of his daughter Margaret with Philip, Duke of Burgundy, a younger brother of the French king, secured Charles from attack along his northern border. In Scotland the death of David Bruce put an end to Edward's schemes for a reunion of the two kingdoms; and his successor, Robert the Steward, renewed in 1371 the alliance with France.

Loss of Aquitaine

Castille was a yet more serious danger; and an effort which Edward made to neutralize its attack only forced Henry of Trastamara to fling his whole weight into the struggle. The two daughters of Pedro had remained since their father's flight at Bordeaux. The elder of these was now wedded to John of Gaunt, Edward's fourth son, whom he had created Duke of Lancaster on his previous marriage with Blanche, a daughter of Henry of Lancaster and the heiress of that house, while the younger was wedded to Edward's fifth son, the Earl of Cambridge. Edward's aim was that of raising again the party of King Pedro and giving Henry of Trastamara work to do at home which would hinder his interposition in the war of Guienne. It was with this view that John of Gaunt on his marriage took the title of king of Castille. But no adherent of Pedro's cause stirred in Spain, and Henry replied to the challenge by sending a Spanish fleet to the Channel. A decisive victory which this fleet won over an English convoy off Rochelle proved a fatal blow to the English cause. It wrested from Edward the mastery of the seas, and cut off all communication between England and Guienne. Charles was at once roused to new exertions. Poitou, Saintonge, and the Angoumois yielded to his general Du Guesclin; and Rochelle was surrendered by its citizens in 1372. The next year saw a desperate attempt to restore the fortune of the English arms. A great army under John of Gaunt penetrated into the heart of France. But it found no foe to engage. Charles had forbidden any fighting. "If a storm rages over the land," said the king coolly, "it disperses of itself; and so will it be with the English." Winter in fact overtook the Duke of Lancaster in the mountains of Auvergne, and a mere fragment of his host reached Bordeaux. The failure of this attack was

the signal for a general defection, and ere the summer of 1374 had closed the two towns of Bordeaux and Bayonne were all that remained of the English possessions in Southern France. Even these were only saved by the exhaustion of the conquerors. The treasury of Charles was as utterly drained as the treasury of Edward; and the kings were forced to a truce.

The Social Strife

Only fourteen years had gone by since the Treaty of Brétigny raised England to a height of glory such as it had never known before. But the years had been years of a shame and suffering which stung the people to madness. Never had England fallen so low. Her conquests were lost, her shores insulted, her commerce swept from the seas. Within she was drained by the taxation and bloodshed of the war. Its popularity had wholly died away. When the Commons were asked in 1354 whether they would assent to a treaty of perpetual peace if they might have it, "the said Commons responded all, and all together, 'Yes, yes!'" The population was thinned by the ravages of pestilence, for till 1369, which saw its last visitation, the Black Death returned again and again. The social strife too gathered bitterness with every effort at repression. It was in vain that Parliament after Parliament increased the severity of its laws. The demands of the Parliament of 1376 show how inoperative the previous Statutes of Labourers had proved. They prayed that constables be directed to arrest all who infringed the Statute, that no labourer should be allowed to take refuge in a town and become an artizan if there were need of his service in the county from which he came, and that the king would protect lords and employers against the threats of death uttered by serfs who refused to serve. The reply of the Royal Council shows that statesmen at any rate were beginning to feel that repression might be pushed too far. The king refused to interfere by any further and harsher provisions between employers and employed, and left cases of breach of law to be dealt with in his ordinary courts of justice. On the one side he forbade the threatening gatherings which were already common in the country, but on the other he forbade the illegal exactions of the employers. With such a reply however the proprietary class were hardly likely to be content. Two years later the Parliament of Gloucester called for a Fugitive-slave Law, which would have enabled lords to seize their serfs in whatever county or town they found

refuge, and in 1379 they prayed that judges might be sent five times a year into every shire to enforce the Statute of Labourers.

Edward and the Parliament

But the strife between employers and employed was not the only rift which was opening in the social structure. Suffering and defeat had stripped off the veil which hid from the nation the shallow and selfish temper of Edward the Third. His profligacy was now bringing him to a premature old age. He was sinking into the tool of his ministers and his mistresses. The glitter and profusion of his court, his splendid tournaments, his feasts, his Table Round, his new order of chivalry, the exquisite chapel of St. Stephen whose frescoed walls were the glory of his palace at Westminster, the vast keep which crowned the hill of Windsor, had ceased to throw their glamour round a king who tricked his Parliament and swindled his creditors. Edward paid no debts. He had ruined the wealthiest bankers of Florence by a cool act of bankruptcy. The sturdier Flemish burghers only wrested payment from him by holding his royal person as their security. His own subjects fared no better than foreigners. The prerogative of "purveyance" by which the king in his progresses through the country had the right of first purchase of all that he needed at fair market price became a galling oppression in the hands of a bankrupt king who was always moving from place to place. "When men hear of your coming," Archbishop Islip wrote to Edward, "everybody at once for sheer fear sets about hiding or eating or getting rid of their geese and chickens or other possessions that they may not utterly lose them through your arrival. The purveyors and servants of your court seize on men and horses in the midst of their field work. They seize on the very bullocks that are at plough or at sowing, and force them to work for two or three days at a time without a penny of payment. It is no wonder that men make dole and murmur at your approach, for, as the truth is in God, I myself, whenever I hear a rumour of it, be I at home or in chapter or in church or at study, nay if I am saying mass, even I in my own person tremble in every limb." But these irregular exactions were little beside the steady pressure of taxation. Even in the years of peace fifteenths and tenths, subsidies on wool and subsidies on leather, were demanded and obtained from Parliament; and with the outbreak of war the royal demands became heavier and more frequent. As failure followed failure the expenses of each campaign increased an ineffectual attempt to relieve Rochelle cost nearly a

million; the march of John of Gaunt through France utterly drained the royal treasury. Nor were these legal supplies all that the king drew from the nation. He had repudiated his pledge to abstain from arbitrary taxation of imports and exports. He sold monopolies to the merchants in exchange for increased customs. He wrested supplies from the clergy by arrangements with the bishops or the Pope. There were signs that Edward was longing to rid himself of the control of Parliament altogether. The power of the Houses seemed indeed as high as ever; great statutes were passed. Those of Provisors and Præmunire settled the relations of England to the Roman Court. That of Treason in 1352 defined that crime and its penalties. That of the Staples in 1353 regulated the conditions of foreign trade and the privileges of the merchant gilds which conducted it. But side by side with these exertions of influence we note a series of steady encroachments by the Crown on the power of the Houses. If their petitions were granted, they were often altered in the royal ordinance which professed to embody them. A plan of demanding supplies for three years at once rendered the annual assembly of Parliament less necessary. Its very existence was threatened by the convocation in 1352 and 1353 of occasional councils with but a single knight from every shire and a single burgess from a small number of the greater towns, which acted as Parliament and granted subsidies.

The Baronage and the Church

What aided Edward above all in eluding or defying the constitutional restrictions on arbitrary taxation, as well as in these more insidious attempts to displace the Parliament, was the lessening of the check which the Baronage and the Church had till now supplied. The same causes which had long been reducing the number of the greater lords who formed the upper house went steadily on. Under Edward the Second little more than seventy were commonly summoned to Parliament; little more than forty were summoned under Edward the Third, and of these the bulk were now bound to the Crown, partly by their employment on its service, partly by their interest in the continuance of the war. The heads of the Baronage too were members of the royal family. Edward had carried out on a far wider scale than before the policy which had been more or less adhered to from the days of Henry the Third, that of gathering up in the hands of the royal house all the greater heritages of the land. The Black Prince was married to Joan of Kent, the heiress of Edward the First's younger son, Earl Edmund of

Woodstock. His marriage with the heiress of the Earl of Ulster brought to the king's second son, Lionel, Duke of Clarence, a great part of the possessions of the de Burghs. Later on the possessions of the house of Bohun passed by like matches to his youngest son, Thomas of Woodstock, and to his grandson, Henry of Lancaster. But the greatest English heritage fell to Edward's third living son, John of Gaunt as he was called from his birth at Ghent during his father's Flemish campaign. Originally created Earl of Richmond, the death of his father-in-law, Henry of Lancaster, and of Henry's eldest daughter, raised John in his wife's right to the Dukedom of Lancaster and the Earldoms of Derby, Leicester, and Lincoln. But while the baronage were thus bound to the Crown, they drifted more and more into an hostility with the Church which in time disabled the clergy from acting as a check on it. What rent the ruling classes in twain was the growing pressure of the war. The nobles and knighthood of the country, already half ruined by the rise in the labour market and the attitude of the peasantry, were pressed harder than ever by the repeated subsidies which were called for by the continuance of the struggle. In the hour of their distress they cast their eyes greedily--as in the Norman and Angevin days--on the riches of the Church. Never had her wealth been greater. Out of a population of some three millions the ecclesiastics numbered between twenty and thirty thousand. Wild tales of their riches floated about the country. They were said to own in landed property alone more than a third of the soil, while their "spiritualities" in dues and offerings amounted to twice the king's revenue. Exaggerated as such statements were, the wealth of the Church was really great; but even more galling to the nobles was its influence in the royal councils. The feudal baronage, flushed with a new pride by its victories at Crécy and Poitiers, looked with envy and wrath at the throng of bishops around the council-board, and attributed to their love of peace the errors and sluggishness which had caused, as they held, the disasters of the war. To rob the Church of wealth and of power became the aim of a great baronial party.

Weakness of the Church

The efforts of the baronage indeed would have been fruitless had the spiritual power of the Church remained as of old. But the clergy were rent by their own dissensions. The higher prelates were busy with the cares of political office, and severed from the lower priesthood by the scandalous inequality between the revenues of the wealthier ecclesiastics and the "poor

parson" of the country. A bitter hatred divided the secular clergy from the regular; and this strife went fiercely on in the Universities. Fitz-Ralf, the Chancellor of Oxford, attributed to the friars the decline which was already being felt in the number of academical students, and the University checked by statute their practice of admitting mere children into their order. The clergy too at large shared in the discredit and unpopularity of the Papacy. Though they suffered more than any other class from the exactions of Avignon, they were bound more and more to the Papal cause. The very statutes which would have protected them were practically set aside by the treacherous diplomacy of the Crown. At home and abroad the Roman See was too useful for the king to come to any actual breach with it. However much Edward might echo the bold words of his Parliament, he shrank from an open contest which would have added the Papacy to his many foes, and which would at the same time have robbed him of his most effective means of wresting aids from the English clergy by private arrangement with the Roman court. Rome indeed was brought to waive its alleged right of appointing foreigners to English livings. But a compromise was arranged between the Pope and the Crown in which both united in the spoliation and enslavement of the Church. The voice of chapters, of monks, of ecclesiastical patrons, went henceforth for nothing in the election of bishops or abbots or the nomination to livings in the gift of churchmen. The Crown recommended those whom it chose to the Pope, and the Pope nominated them to see or cure of souls. The treasuries of both King and Pope profited by the arrangement; but we can hardly wonder that after a betrayal such as this the clergy placed little trust in statutes or royal protection, and bowed humbly before the claims of Rome.

Its Worldliness

But what weakened the clergy most was their severance from the general sympathies of the nation, their selfishness, and the worldliness of their temper. Immense as their wealth was, they bore as little as they could of the common burthens of the realm. They were still resolute to assert their exemption from the common justice of the land, though the mild punishments of the bishops' courts carried as little dismay as ever into the mass of disorderly clerks. But privileged as they thus held themselves against all interference from the lay world without them, they carried on a ceaseless interference with the affairs of this lay world through their control

over wills, contracts and divorces. No figure was better known or more hated than the summoner who enforced the jurisdiction and levied the dues of their courts. By their directly religious offices they penetrated into the very heart of the social life about them. But powerful as they were, their moral authority was fast passing away. The wealthier churchmen with their curled hair and hanging sleeves aped the costume of the knightly society from which they were drawn and to which they still really belonged. We see the general impression of their worldliness in Chaucer's pictures of the hunting monk and the courtly prioress with her love-motto on her brooch. The older religious orders in fact had sunk into mere landowners, while the enthusiasm of the friars had in great part died away and left a crowd of impudent mendicants behind it. Wyclif could soon with general applause denounce them as sturdy beggars, and declare that "the man who gives alms to a begging friar is *ipso facto* excommunicate."

Advance of the Commons

It was this weakness of the Baronage and the Church, and the consequent withdrawal of both as represented in the temporal and spiritual Estates of the Upper House from the active part which they had taken till now in checking the Crown that brought the Lower House to the front. The Knight of the Shire was now finally joined with the Burgess of the Town to form the Third Estate of the realm: and this union of the trader and the country gentleman gave a vigour and weight to the action of the Commons which their House could never have acquired had it remained as elsewhere a mere gathering of burgesses. But it was only slowly and under the pressure of one necessity after another that the Commons took a growing part in public affairs. Their primary business was with taxation, and here they stood firm against the evasions by which the king still managed to baffle their exclusive right of granting supplies by voluntary agreements with the merchants of the Staple. Their steady pressure at last obtained in 1362 an enactment that no subsidy should henceforth be set upon wool without assent of Parliament, while Purveyance was restricted by a provision that payments should be made for all things taken for the king's use in ready money. A hardly less important advance was made by the change of Ordinances into Statutes. Till this time, even when a petition of the Houses was granted, the royal Council had reserved to itself the right of modifying its form in the Ordinance which professed to embody it. It was under colour

of this right that so many of the provisions made in Parliament had hitherto been evaded or set aside. But the Commons now met this abuse by a demand that on the royal assent being given their petitions should be turned without change into Statutes of the Realm and derive force of law from their entry on the Rolls of Parliament. The same practical sense was seen in their dealings with Edward's attempt to introduce occasional smaller councils with parliamentary powers. Such an assembly in 1353 granted a subsidy on wool. The Parliament which met in the following year might have challenged its proceedings as null and void, but the Commons more wisely contented themselves with a demand that the ordinances passed in the preceding assembly should receive the sanction of the Three Estates. A precedent for evil was thus turned into a precedent for good, and though irregular gatherings of a like sort were for a while occasionally held they were soon seen to be fruitless and discontinued. But the Commons long shrank from meddling with purely administrative matters. When Edward in his anxiety to shift from himself the responsibility of the war referred to them in 1354 for advice on one of the numerous propositions of peace, they referred him to the lords of his Council. "Most dreaded lord," they replied, "as to this war and the equipment needful for it we are so ignorant and simple that we know not how nor have the power to devise. Wherefore we pray your Grace to excuse us in this matter, and that it please you with the advice of the great and wise persons of your Council to ordain what seems best for you for the honour and profit of yourself and of your kingdom. And whatsoever shall be thus ordained by assent and agreement on the part of you and your Lords we readily assent to and will hold it firmly established."

Baronage attacks the Church

But humble as was their tone the growing power of the Commons showed itself in significant changes. In 1363 the Chancellor opened Parliament with a speech in English, no doubt as a tongue intelligible to the members of the Lower House. From a petition in 1376 that knights of the shire may be chosen by common election of the better folk of the shire and not merely nominated by the sheriff without due election, as well as from an earlier demand that the sheriffs themselves should be disqualified from serving in Parliament during their term of office, we see that the Crown had already begun not only to feel the pressure of the Commons but to meet it by foisting royal nominees on the constituencies. Such an attempt at

packing the House would hardly have been resorted to had it not already proved too strong for direct control. A further proof of its influence was seen in a prayer of the Parliament that lawyers practising in the King's Courts might no longer be eligible as knights of the shire. The petition marks the rise of a consciousness that the House was now no mere gathering of local representatives, but a national assembly, and that a seat in it could no longer be confined to dwellers within the bounds of this county or that. But it showed also a pressure for seats, a passing away of the old dread of being returned as a representative and a new ambition to gain a place among the members of the Commons. Whether they would or no indeed the Commons were driven forward to a more direct interference with public affairs. From the memorable statute of 1322 their right to take equal part in all matters brought before Parliament had been incontestable, and their waiver of much of this right faded away before the stress of time. Their assent was needed to the great ecclesiastical statutes which regulated the relation of the See of Rome to the realm. They naturally took a chief part in the enactment and re-enactment of the Statute of Labourers. The Statute of the Staple, with a host of smaller commercial and economical measures, was of their origination. But it was not till an open breach took place between the baronage and the prelates that their full weight was felt. In the Parliament of 1371, on the resumption of the war, a noble taunted the Church as an owl protected by the feathers which other birds had contributed, and which they had a right to resume when a hawk's approach threatened them. The worldly goods of the Church, the metaphor hinted, had been bestowed on it for the common weal, and could be taken from it on the coming of a common danger. The threat was followed by a prayer that the chief offices of state, which had till now been held by the leading bishops, might be placed in lay hands. The prayer was at once granted: William of Wykeham, Bishop of Winchester, resigned the Chancellorship, another prelate the Treasury, to lay dependants of the great nobles; and the panic of the clergy was seen in large grants which were voted by both Convocations.

John of Gaunt

At the moment of their triumph the assailants of the Church found a leader in John of Gaunt. The Duke of Lancaster now wielded the actual power of the Crown. Edward himself was sinking into dotage. Of his sons

the Black Prince, who had never rallied from the hardships of his Spanish campaign, was fast drawing to the grave; he had lost a second son by death in childhood; the third, Lionel of Clarence, had died in 1368. It was his fourth son therefore, John of Gaunt, to whom the royal power mainly fell. By his marriage with the heiress of the house of Lancaster the Duke had acquired lands and wealth, but he had no taste for the policy of the Lancastrian house or for acting as leader of the barons in any constitutional resistance to the Crown. His pride, already quickened by the second match with Constance to which he owed his shadowy kingship of Castille, drew him to the throne; and the fortune which placed the royal power practically in his hands bound him only the more firmly to its cause. Men held that his ambition looked to the Crown itself, for the approaching death of Edward and the Prince of Wales left but a boy, Richard, the son of the Black Prince, a child of but a few years old, and a girl, the daughter of the Duke of Clarence, between John and the throne. But the Duke's success fell short of his pride. In the campaign of 1373 he traversed France without finding a foe and brought back nothing save a ruined army to English shores. The peremptory tone in which money was demanded for the cost of this fruitless march while the petitions of the Parliament were set aside till it was granted roused the temper of the Commons. They requested--it is the first instance of such a practice--a conference with the lords, and while granting fresh subsidies prayed that the grant should be spent only on the war. The resentment of the government at this advance towards a control over the actual management of public affairs was seen in the calling of no Parliament through the next two years. But the years were disastrous both at home and abroad. The war went steadily against the English arms. The long negotiations with the Pope which went on at Bruges through 1375, and in which Wyclif took part as one of the royal commissioners, ended in a compromise by which Rome yielded nothing. The strife over the Statute of Labourers grew fiercer and fiercer, and a return of the plague heightened the public distress. Edward was now wholly swayed by Alice Perrers, and the Duke shared his power with the royal mistress. But if we gather its tenor from the complaints of the succeeding Parliament his administration was as weak as it was corrupt. The new lay ministers lent themselves to gigantic frauds. The chamberlain, Lord Latimer, bought up the royal debts and embezzled the public revenue. With Richard Lyons, a merchant through whom the king negotiated with the gild of the Staple, he reaped enormous

profits by raising the price of imports and by lending to the Crown at usurious rates of interest. When the empty treasury forced them to call a Parliament the ministers tampered with the elections through the sheriffs.

The Good Parliament

But the temper of the Parliament which met in 1376, and which gained from after times the name of the Good Parliament, shows that these precautions had utterly failed. Even their promise to pillage the Church had failed to win for the Duke and his party the good will of the lesser gentry or the wealthier burgesses who together formed the Commons. Projects of wide constitutional and social change, of the humiliation and impoverishment of an estate of the realm, were profoundly distasteful to men already struggling with a social revolution on their own estates and in their own workshops. But it was not merely its opposition to the projects of Lancaster and his party among the baronage which won for this assembly the name of the Good Parliament. Its action marked a new period in our Parliamentary history, as it marked a new stage in the character of the national opposition to the misrule of the Crown. Hitherto the task of resistance had devolved on the baronage, and had been carried out through risings of its feudal tenantry. But the misgovernment was now that of the baronage or of a main part of the baronage itself in actual conjunction with the Crown. Only in the power of the Commons lay any adequate means of peaceful redress. The old reluctance of the Lower House to meddle with matters of State was roughly swept away therefore by the pressure of the time. The Black Prince, anxious to secure his child's succession by the removal of John of Gaunt, the prelates with William of Wykeham at their head, resolute again to take their place in the royal councils and to check the projects of ecclesiastical spoliation put forward by their opponents, alike found in it a body to oppose to the Duke's administration. Backed by powers such as these, the action of the Commons showed none of their old timidity or self-distrust. The presentation of a hundred and forty petitions of grievances preluded a bold attack on the royal Council. "Trusting in God, and standing with his followers before the nobles, whereof the chief was John Duke of Lancaster, whose doings were ever contrary," their speaker, Sir Peter de la Mare, denounced the mis-management of the war, the oppressive taxation, and demanded an account of the expenditure. "What do these base and ignoble knights attempt?" cried John of Gaunt. "Do they

think they be kings or princes of the land?" But the movement was too strong to be stayed. Even the Duke was silenced by the charges brought against the ministers. After a strict enquiry Latimer and Lyons were alike thrown into prison, Alice Perrers was banished, and several of the royal servants were driven from the Court. At this moment the death of the Black Prince shook the power of the Parliament. But it only heightened its resolve to secure the succession. His son, Richard of Bordeaux, as he was called from the place of his birth, was now a child of but ten years old; and it was known that doubts were whispered on the legitimacy of his birth and claim. An early marriage of his mother Joan of Kent, a granddaughter of Edward the First, with the Earl of Salisbury had been annulled; but the Lancastrian party used this first match to throw doubts on the validity of her subsequent union with the Black Prince and on the right of Richard to the throne. The dread of Lancaster's ambition is the first indication of the approach of what was from this time to grow into the great difficulty of the realm, the question of the succession to the Crown. From the death of Edward the Third to the death of Charles the First no English sovereign felt himself secure from rival claimants of his throne. As yet however the dread was a baseless one; the people were heartily with the Prince and his child. The Duke's proposal that the succession should be settled in case of Richard's death was rejected; and the boy himself was brought into Parliament and acknowledged as heir of the Crown.

Wyclif and John of Gaunt

To secure their work the Commons ended by obtaining the addition of nine lords with William of Wykeham and two other prelates among them to the royal Council. But the Parliament was no sooner dismissed than the Duke at once resumed his power. His anger at the blow which had been dealt at his projects was no doubt quickened by resentment at the sudden advance of the Lower House. From the Commons who shrank even from giving counsel on matters of state to the Commons who dealt with such matters as their special business, who investigated royal accounts, who impeached royal ministers, who dictated changes in the royal advisers, was an immense step. But it was a step which the Duke believed could be retraced. His haughty will flung aside all restraints of law. He dismissed the new lords and prelates from the Council. He called back Alice Perrers and the disgraced ministers. He declared the Good Parliament no parliament,

and did not suffer its petitions to be enrolled as statutes. He imprisoned Peter de la Mare, and confiscated the possessions of William of Wykeham. His attack on this prelate was an attack on the clergy at large, and the attack became significant when the Duke gave his open patronage to the denunciations of Church property which formed the favourite theme of John Wyclif. To Wyclif such a prelate as Wykeham symbolized the evil which held down the Church. His administrative ability, his political energy, his wealth and the colleges at Winchester and at Oxford which it enabled him to raise before his death, were all equally hateful. It was this wealth, this intermeddling with worldly business, which the ascetic reformer looked upon as the curse that robbed prelates and churchmen of that spiritual authority which could alone meet the vice and suffering of the time. Whatever baser motives might spur Lancaster and his party, their projects of spoliation must have seemed to Wyclif projects of enfranchisement for the Church. Poor and powerless in worldly matters, he held that she would have the wealth and might of heaven at her command. Wyclif's theory of Church and State had led him long since to contend that the property of the clergy might be seized and employed like other property for national purposes. Such a theory might have been left, as other daring theories of the schoolmen had been left, to the disputation of the schools. But the clergy were bitterly galled when the first among English teachers threw himself hotly on the side of the party which threatened them with spoliation, and argued in favour of their voluntary abandonment of all Church property and of a return to their original poverty. They were roused to action when Wyclif came forward as the theological bulwark of the Lancastrian party at a moment when the clergy were freshly outraged by the overthrow of the bishops and the plunder of Wykeham. They forced the king to cancel the sentence of banishment from the precincts of the Court which had been directed against the Bishop of Winchester by refusing any grant of supply in Convocation till William of Wykeham took his seat in it. But in the prosecution of Wyclif they resolved to return blow for blow. In February 1377 he was summoned before Bishop Courtenay of London to answer for his heretical propositions concerning the wealth of the Church.

The Duke of Lancaster accepted the challenge as really given to himself, and stood by Wyclif's side in the Consistory Court at St. Paul's. But no trial took place. Fierce words passed between the nobles and the prelate: the

Duke himself was said to have threatened to drag Courtenay out of the church by the hair of his head; at last the London populace, to whom John of Gaunt was hateful, burst in to their Bishop's rescue, and Wyclif's life was saved with difficulty by the aid of the soldiery. But his boldness only grew with the danger. A Papal bull which was procured by the bishops, directing the University to condemn and arrest him, extorted from him a bold defiance. In a defence circulated widely through the kingdom and laid before Parliament, Wyclif broadly asserted that no man could be excommunicated by the Pope "unless he were first excommunicated by himself." He denied the right of the Church to exact or defend temporal privileges by spiritual censures, declared that a Church might justly be deprived by the king or lay lords of its property for defect of duty, and defended the subjection of ecclesiastics to civil tribunals. It marks the temper of the time and the growing severance between the Church and the nation that, bold as the defiance was, it won the support of the people as of the Crown. When Wyclif appeared at the close of the year in Lambeth Chapel to answer the Archbishop's summons a message from the Court forbade the primate to proceed and the Londoners broke in and dissolved the session.

Death of Edward the Third

Meanwhile the Duke's unscrupulous tampering with elections had packed the Parliament of 1377 with his adherents. The work of the Good Parliament was undone, and the Commons petitioned for the restoration of all who had been impeached by their predecessors. The needs of the treasury were met by a novel form of taxation. To the earlier land-tax, to the tax on personality which dated from the Saladin Tithe, to the customs duties which had grown into importance in the last two reigns, was now added a tax which reached every person in the realm, a poll-tax of a groat a head. In this tax were sown the seeds of future trouble, but when the Parliament broke up in March the Duke's power seemed completely secured. Hardly three months later it was wholly undone. In June Edward the Third died in a dishonoured old age, robbed on his death-bed even of his rings by the mistress to whom he clung, and the accession of his grandson, Richard the Second, changed the whole face of affairs. The Duke withdrew from Court, and sought a reconciliation with the party opposed to him. The men of the Good Parliament surrounded the new king, and a Parliament which

assembled in October took vigorously up its work. Peter de la Mare was released from prison and replaced in the chair of the House of Commons. The action of the Lower House indeed was as trenchant and comprehensive as that of the Good Parliament itself. In petition after petition the Commons demanded the confirmation of older rights and the removal of modern abuses. They complained of administrative wrongs such as the practice of purveyance, of abuses of justice, of the oppressions of officers of the exchequer and of the forest, of the ill state of prisons, of the customs of "maintenance" and "livery" by which lords extended their protection to shoals of disorderly persons and overawed the courts by means of them. Amid ecclesiastical abuses they noted the state of the Church courts, and the neglect of the laws of Provisors. They demanded that the annual assembly of Parliament, which had now become customary, should be defined by law, and that bills once sanctioned by the Crown should be forthwith turned into statutes without further amendment or change on the part of the royal Council. With even greater boldness they laid hands on the administration itself. They not only demanded that the evil counsellors of the last reign should be removed, and that the treasurer of the subsidy on wool should account for its expenditure to the lords, but that the royal Council should be named in Parliament, and chosen from members of either estate of the realm. Though a similar request for the nomination of the officers of the royal household was refused, their main demand was granted. It was agreed that the great officers of state, the chancellor, treasurer, and barons of exchequer should be named by the lords in Parliament, and removed from their offices during the king's "tender years" only on the advice of the lords. The pressure of the war, which rendered the existing taxes insufficient, gave the House a fresh hold on the Crown. While granting a new subsidy in the form of a land and property tax, the Commons restricted its proceeds to the war, and assigned two of their members, William Walworth and John Philpot, as a standing committee to regulate its expenditure. The successor of this Parliament in the following year demanded and obtained an account of the way in which the subsidy had been spent.

Discontent of the people

The minority of the king, who was but eleven years old at his accession, the weakness of the royal council amidst the strife of the baronial factions,

above all the disasters of the war without and the growing anarchy within the realm itself, alone made possible this startling assumption of the executive power by the Houses. The shame of defeat abroad was being added to the misery and discomfort at home. The French war ran its disastrous course. One English fleet was beaten by the Spaniards, a second sunk by a storm; and a campaign in the heart of France ended, like its predecessors, in disappointment and ruin. Meanwhile the strife between employers and employed was kindling into civil war. The Parliament, drawn as it was wholly from the proprietary classes, struggled as fiercely for the mastery of the labourers as it struggled for the mastery of the Crown. The Good Parliament had been as strenuous in demanding the enforcement of the Statute of Labourers as any of its predecessors. In spite of statutes, however, the market remained in the labourers' hands. The comfort of the worker rose with his wages. Men who had "no land to live on but their hands disdained to live on penny ale or bacon, and called for fresh flesh or fish, fried or bake, and that hot and hotter for chilling of their maw." But there were dark shades in this general prosperity of the labour class. There were seasons of the year during which employment for the floating mass of labour was hard to find. In the long interval between harvest-tide and harvest-tide work and food were alike scarce in every homestead of the time. Some lines of William Langland give us the picture of a farm of the day. "I have no penny pullets for to buy, nor neither geese nor pigs, but two green cheeses, a few curds and cream, and an oaten cake, and two loaves of beans and bran baken for my children. I have no salt bacon nor no cooked meat collops for to make, but I have parsley and leeks and many cabbage plants, and eke a cow and a calf, and a cart-mare to draw afield my dung while the drought lasteth, and by this livelihood we must all live till Lammas-tide [August], and by that I hope to have harvest in my croft." But it was not till Lammas-tide that high wages and the new corn bade "Hunger go to sleep," and during the long spring and summer the free labourer and the "waster that will not work but wander about, that will eat no bread but the finest wheat, nor drink but of the best and brownest ale," was a source of social and political danger. "He grieveth him against God and grudgeth against Reason, and then curseth he the King and all his council after such law to allow labourers to grieve." Such a smouldering mass of discontent as this needed but a spark to burst into flame; and the spark was found in the imposition of fresh taxation.

The Poll-Tax

If John of Gaunt was fallen from his old power he was still the leading noble in the realm, and it is possible that dread of the encroachments of the last Parliament on the executive power drew after a time even the new advisers of the Crown closer to him. Whatever was the cause, he again came to the front. But the supplies voted in the past year were wasted in his hands. A fresh expedition against France under the Duke himself ended in failure before the walls of St. Malo, while at home his brutal household was outraging public order by the murder of a knight who had incurred John's anger in the precincts of Westminster. So great was the resentment of the Londoners at this act that it became needful to summon Parliament elsewhere than to the capital; and in 1378 the Houses met at Gloucester. The Duke succeeded in bringing the Lords to refuse those conferences with the Commons which had given unity to the action of the late Parliament, but he was foiled in an attack on the clerical privilege of sanctuary and in the threats which his party still directed against Church property, while the Commons forced the royal Council to lay before them the accounts of the last subsidy and to appoint a commission to examine into the revenue of the Crown. Unhappily the financial policy of the preceding year was persisted in. The check before St. Malo had been somewhat redeemed by treaties with Charles of Evreux and the Duke of Brittany which secured to England the right of holding Cherbourg and Brest; but the cost of these treaties only swelled the expenses of the war. The fresh supplies voted at Gloucester proved insufficient for their purpose, and a Parliament in the spring of 1379 renewed the Poll-tax in a graduated form. But the proceeds of the tax proved miserably inadequate, and when fresh debts beset the Crown in 1380 a return was again made to the old system of subsidies. But these failed in their turn; and at the close of the year the Parliament again fell back on a severer Poll-tax. One of the attractions of the new mode of taxation seems to have been that the clergy, who adopted it for themselves, paid in this way a larger share of the burthens of the state; but the chief ground for its adoption lay, no doubt, in its bringing within the net of the tax-gatherer a class which had hitherto escaped him, men such as the free labourer, the village smith, the village tiler. But few courses could have been more dangerous. The Poll-tax not only brought the pressure of the war home to every household; it goaded into action precisely the class which

was already seething with discontent. The strife between labour and capital was going on as fiercely as ever in country and in town. The landlords were claiming new services, or forcing men who looked on themselves as free to prove they were no villeins by law. The free labourer was struggling against the attempt to exact work from him at low wages. The wandering workman was being seized and branded as a vagrant. The abbey towns were struggling for freedom against the abbey. The craftsmen within boroughs were carrying on the same strife against employer and craft-gild. And all this mass of discontent was being heightened and organized by agencies with which the Government could not cope. The poorer villeins and the free labourers had long since banded together in secret conspiracies which the wealthier villeins supported with money. The return of soldiers from the war threw over the land a host of broken men, skilled in arms, and ready to take part in any rising. The begging friars, wandering and gossiping from village to village and street to street, shared the passions of the class from which they sprang. Priests like Ball openly preached the doctrines of communism. And to these had been recently added a fresh agency, which could hardly fail to stir a new excitement. With the practical ability which marked his character, Wyclif set on foot about this time a body of poor preachers to supply, as he held, the place of those wealthier clergy who had lost their hold on the land. The coarse sermons, bare feet, and russet dress of these "Simple Priests" moved the laughter of rector and canon, but they proved a rapid and effective means of diffusing Wyclif's protests against the wealth and sluggishness of the clergy, and we can hardly doubt that in the general turmoil their denunciation of ecclesiastical wealth passed often into more general denunciations of the proprietary classes.

John Ball

As the spring went by quaint rimes passed through the country, and served as a summons to revolt. "John Ball," ran one, "greeteth you all, and doth for to understand he hath rung your bell. Now right and might, will and skill, God speed every dele." "Help truth," ran another, "and truth shall help you! Now reigneth pride in price, and covetise is counted wise, and lechery withouten shame, and gluttony withouten blame. Envy reigneth with treason, and sloth is take in great season. God do bote, for now is tyme!" We recognize Ball's hand in the yet more stirring missives of "Jack the Miller" and "Jack the Carter." "Jack Miller asketh help to turn his mill

aright. He hath grounden small, small: the King's Son of Heaven he shall pay for all. Look thy mill go aright with the four sailes, and the post stand with steadfastness. With right and with might, with skill and with will; let might help right, and skill go before will, and right before might, so goeth our mill aright." "Jack Carter," ran the companion missive, "prays you all that ye make a good end of that ye have begun, and do well, and aye better and better: for at the even men heareth the day." "Falseness and guile," sang Jack Trewman, "have reigned too long, and truth hath been set under a lock, and falseness and guile reigneth in every stock. No man may come truth to, but if he sing 'si dederō.' True love is away that was so good, and clerks for wealth work them woe. God do bote, for now is time." In the rude jingle of these lines began for England the literature of political controversy: they are the first predecessors of the pamphlets of Milton and of Burke. Rough as they are, they express clearly enough the mingled passions which met in the revolt of the peasants: their longing for a right rule, for plain and simple justice; their scorn of the immorality of the nobles and the infamy of the court; their resentment at the perversion of the law to the cause of oppression.

The Peasant Rising

From the eastern and midland counties the restlessness spread to all England south of the Thames. But the grounds of discontent varied with every district. The actual outbreak began on the 5th of June at Dartford, where a tiler killed one of the collectors of the poll-tax in vengeance for a brutal outrage on his daughter. The county at once rose in arms. Canterbury, where "the whole town was of their mind," threw open its gates to the insurgents who plundered the Archbishop's palace and dragged John Ball from his prison. A hundred thousand Kentishmen gathered round Walter Tyler of Essex and John Hales of Malling to march upon London. Their grievance was mainly a political one. Villeinage was unknown in Kent. As the peasants poured towards Blackheath indeed every lawyer who fell into their hands was put to death; "not till all these were killed would the land enjoy its old freedom again," the Kentishmen shouted as they fired the houses of the stewards and flung the rolls of the manor-courts into the flames. But this action can hardly have been due to anything more than sympathy with the rest of the realm, the sympathy which induced the same men when pilgrims from the north brought news that John of Gaunt was

setting free his bondmen to send to the Duke an offer to make him Lord and King of England. Nor was their grievance a religious one. Lollardry can have made little way among men whose grudge against the Archbishop of Canterbury sprang from his discouragement of pilgrimages. Their discontent was simply political; they demanded the suppression of the poll-tax and better government; their aim was to slay the nobles and wealthier clergy, to take the king into their own hands, and pass laws which should seem good to the Commons of the realm. The whole population joined the Kentishmen as they marched along, while the nobles were paralyzed with fear. The young king--he was but a boy of sixteen--addressed them from a boat on the river; but the refusal of his Council under the guidance of Archbishop Sudbury to allow him to land kindled the peasants to fury, and with cries of "Treason" the great mass rushed on London. On the 13th of June its gates were flung open by the poorer artisans within the city, and the stately palace of John of Gaunt at the Savoy, the new inn of the lawyers at the Temple, the houses of the foreign merchants, were soon in a blaze. But the insurgents, as they proudly boasted, were "seekers of truth and justice, not thieves or robbers," and a plunderer found carrying off a silver vessel from the sack of the Savoy was flung with his spoil into the flames. Another body of insurgents encamped at the same time to the east of the city. In Essex and the eastern counties the popular discontent was more social than political. The demands of the peasants were that bondage should be abolished, that tolls and imposts on trade should be done away with, that "no acre of land which is held in bondage or villeinage be held at higher rate than fourpence a year," in other words for a money commutation of all villein services. Their rising had been even earlier than that of the Kentishmen. Before Whitsuntide an attempt to levy the poll-tax gathered crowds of peasants together, armed with clubs, rusty swords, and bows. The royal commissioners who were sent to repress the tumult were driven from the field, and the Essex men marched upon London on one side of the river as the Kentishmen marched on the other. The evening of the thirteenth, the day on which Tyler entered the city, saw them encamped without its walls at Mile-end. At the same moment Highbury and the northern heights were occupied by the men of Hertfordshire and the villeins of St. Albans, where a strife between abbot and town had been going on since the days of Edward the Second.

Richard the Second

The royal Council with the young king had taken refuge in the Tower, and their aim seems to have been to divide the forces of the insurgents. On the morning of the fourteenth therefore Richard rode from the Tower to Mile-end to meet the Essex men. "I am your King and Lord, good people," the boy began with a fearlessness which marked his bearing throughout the crisis, "what will you?" "We will that you free us for ever," shouted the peasants, "us and our lands; and that we be never named nor held for serfs!" "I grant it," replied Richard; and he bade them go home, pledging himself at once to issue charters of freedom and amnesty. A shout of joy welcomed the promise. Throughout the day more than thirty clerks were busied writing letters of pardon and emancipation, and with these the mass of the Essex men and the men of Hertfordshire withdrew quietly to their homes. But while the king was successful at Mile-end a terrible doom had fallen on the councillors he left behind him. Richard had hardly quitted the Tower when the Kentishmen who had spent the night within the city appeared at its gates. The general terror was shown ludicrously enough when they burst in and taking the panic-stricken knights of the royal household in rough horse-play by the beard promised to be their equals and good comrades in the days to come. But the horse-play changed into dreadful earnest when they found that Richard had escaped their grasp, and the discovery of Archbishop Sudbury and other ministers in the chapel changed their fury into a cry for blood. The Primate was dragged from his sanctuary and beheaded. The same vengeance was wreaked on the Treasurer and the Chief Commissioner for the levy of the hated poll-tax, the merchant Richard Lyons who had been impeached by the Good Parliament. Richard meanwhile had ridden round the northern wall of the city to the Wardrobe near Blackfriars, and from this new refuge he opened his negotiations with the Kentish insurgents. Many of these dispersed at the news of the king's pledge to the men of Essex, but a body of thirty thousand still surrounded Wat Tyler when Richard on the morning of the fifteenth encountered that leader by a mere chance at Smithfield. Hot words passed between his train and the peasant chieftain who advanced to confer with the king, and a threat from Tyler brought on a brief struggle in which the Mayor of London, William Walworth, struck him with his dagger to the ground. "Kill! kill!" shouted the crowd: "they have slain our captain!" But Richard faced the

Kentishmen with the same cool courage with which he faced the men of Essex. "What need ye, my masters?" cried the boy-king as he rode boldly up to the front of the bowmen. "I am your Captain and your King; follow me!" The hopes of the peasants centred in the young sovereign; one aim of their rising had been to free him from the evil counsellors who, as they believed, abused his youth; and at his word they followed him with a touching loyalty and trust till he entered the Tower. His mother welcomed him within its walls with tears of joy. "Rejoice and praise God," Richard answered, "for I have recovered to-day my heritage which was lost and the realm of England!" But he was compelled to give the same pledge of freedom to the Kentishmen as at Mile-end, and it was only after receiving his letters of pardon and emancipation that the yeomen dispersed to their homes.

The general revolt

The revolt indeed was far from being at an end. As the news of the rising ran through the country the discontent almost everywhere broke into flame. There were outbreaks in every shire south of the Thames as far westward as Devonshire. In the north tumults broke out at Beverley and Scarborough, and Yorkshire and Lancashire made ready to rise. The eastern counties were in one wild turmoil of revolt. At Cambridge the townsmen burned the charters of the University and attacked the colleges. A body of peasants occupied St. Albans. In Norfolk a Norwich artizan, called John the Litster or Dyer, took the title of King of the Commons, and marching through the country at the head of a mass of peasants compelled the nobles whom he captured to act as his meat-tasters and to serve him on their knees during his repast. The story of St. Edmundsbury shows us what was going on in Suffolk. Ever since the accession of Edward the Third the townsmen and the villeins of their lands around had been at war with the abbot and his monks. The old and more oppressive servitude had long passed away, but the later abbots had set themselves against the policy of concession and conciliation which had brought about this advance towards freedom. The gates of the town were still in the abbot's hands. He had succeeded in enforcing his claim to the wardship of all orphans born within his domain. From claims such as these the town could never feel itself safe so long as mysterious charters from Pope or King, interpreted cunningly by the wit of the new lawyer class, lay stored in the abbey archives. But the archives

contained other and hardly less formidable documents than these. Untroubled by the waste of war, the religious houses profited more than any other landowners by the general growth of wealth. They had become great proprietors, money-lenders to their tenants, extortionate as the Jew whom they had banished from their land. There were few townsmen of St. Edmund's who had not some bonds laid up in the abbey registry. In 1327 one band of debtors had a covenant lying there for the payment of five hundred marks and fifty casks of wine. Another company of the wealthier burgesses were joint debtors on a bond for ten thousand pounds. The new spirit of commercial activity joined with the troubles of the time to throw the whole community into the abbot's hands.

Saint Edmundsbury

We can hardly wonder that riots, lawsuits, and royal commissions marked the relation of the town and abbey under the first two Edwards. Under the third came an open conflict. In 1327 the townsmen burst into the great house, drove the monks into the choir, and dragged them thence to the town prison. The abbey itself was sacked; chalices, missals, chasubles, tunicles, altar frontals, the books of the library, the very vats and dishes of the kitchen, all disappeared. The monks estimated their losses at ten thousand pounds. But the townsmen aimed at higher booty than this. The monks were brought back from prison to their own chapter-house, and the spoil of their registry, papal bulls and royal charters, deeds and bonds and mortgages, were laid before them. Amidst the wild threats of the mob they were forced to execute a grant of perfect freedom and of a gild to the town as well as of free release to their debtors. Then they were left masters of the ruined house. But all control over town or land was gone. Through spring and summer no rent or fine was paid. The bailiffs and other officers of the abbey did not dare to show their faces in the streets. News came at last that the abbot was in London, appealing for redress to the court, and the whole county was at once on fire. A crowd of rustics, maddened at the thought of revived claims of serfage, of interminable suits of law, poured into the streets of the town. From thirty-two of the neighbouring villages the priests marched at the head of their flocks as on a new crusade. The wild mass of men, women, and children, twenty thousand in all, as men guessed, rushed again on the abbey, and for four November days the work of destruction went on unhindered. When gate, stables, granaries, kitchen, infirmary,

hostelry had gone up in flames, the multitude swept away to the granges and barns of the abbey farms. Their plunder shows what vast agricultural proprietors the monks had become. A thousand horses, a hundred and twenty plough-oxen, two hundred cows, three hundred bullocks, three hundred hogs, ten thousand sheep were driven off, and granges and barns burned to the ground. It was judged afterwards that sixty thousand pounds would hardly cover the loss.

Weak as was the government of Mortimer and Isabella, the appeal of the abbot against this outrage was promptly heeded. A royal force quelled the riot, thirty carts full of prisoners were despatched to Norwich; twenty-four of the chief townsmen with thirty-two of the village priests were convicted as aiders and abettors of the attack on the abbey, and twenty were summarily hanged. Nearly two hundred persons remained under sentence of outlawry, and for five weary years their case dragged on in the King's Courts. At last matters ended in a ludicrous outrage. Irritated by repeated breaches of promise on the abbot's part, the outlawed burgesses seized him as he lay in his manor of Chevington, robbed and bound him, and carried him off to London. There he was hurried from street to street lest his hiding-place should be detected till opportunity offered for shipping him off to Brabant. The Primate and the Pope levelled their excommunications against the abbot's captors in vain, and though he was at last discovered and brought home it was probably with some pledge of the arrangement which followed in 1332. The enormous damages assessed by the royal justices were remitted, the outlawry of the townsmen was reversed, the prisoners were released. On the other hand the deeds which had been stolen were again replaced in the archives of the abbey, and the charters which had been extorted from the monks were formally cancelled.

St. Edmundsbury in 1381

The spirit of townsmen and villeins remained crushed by their failure, and throughout the reign of Edward the Third the oppression against which they had risen went on without a check. It was no longer the rough blow of sheer force; it was the more delicate but more pitiless tyranny of the law. At Richard's accession Prior John of Cambridge in the vacancy of the abbot was in charge of the house. The prior was a man skilled in all the arts of his day. In sweetness of voice, in knowledge of sacred song, his eulogists

pronounced him superior to Orpheus, to Nero, and to one yet more illustrious in the Bury cloister though obscure to us, the Breton Belgabred. John was "industrious and subtle," and subtlety and industry found their scope in suit after suit with the burgesses and farmers around him. "Faithfully he strove," says the monastic chronicler, "with the villeins of Bury for the rights of his house." The townsmen he owned specially as his "adversaries," but it was the rustics who were to show what a hate he had won. On the fifteenth of June, the day of Wat Tyler's fall, the howl of a great multitude round his manor-house at Mildenhall broke roughly on the chauntings of Prior John. He strove to fly, but he was betrayed by his own servants, judged in rude mockery of the law by villein and bondsman, condemned and killed. The corpse lay naked in the open field while the mob poured unresisted into Bury. Bearing the prior's head on a lance before them through the streets, the frenzied throng at last reached the gallows where the head of one of the royal judges, Sir John Cavendish, was already impaled; and pressing the cold lips together in mockery of their friendship set them side by side. Another head soon joined them. The abbey gates were burst open, and the cloister filled with a maddened crowd, howling for a new victim, John Lackenheath, the warder of the barony. Few knew him as he stood among the group of trembling monks, but he courted death with a contemptuous courage. "I am the man you seek," he said, stepping forward; and in a minute, with a mighty roar of "Devil's son! Monk! Traitor!" he was swept to the gallows, and his head hacked from his shoulders. Then the crowd rolled back again to the abbey gate, and summoned the monks before them. They told them that now for a long time they had oppressed their fellows, the burgesses of Bury; wherefore they willed that in the sight of the Commons they should forthwith surrender their bonds and charters. The monks brought the parchments to the market-place; many which were demanded they swore they could not find. A compromise was at last patched up; and it was agreed that the charters should be surrendered till the future abbot should confirm the liberties of the town. Then, unable to do more, the crowd ebbed away.

Close of the rising

A scene less violent, but even more picturesque, went on the same day at St. Albans. William Grindecobbe, the leader of its townsmen, returned with one of the charters of emancipation which Richard had granted after his

interview at Mile-end to the men of Essex and Hertfordshire, and breaking into the abbey precincts at the head of the burghers, forced the abbot to deliver up the charters which bound the town in bondage to his house. But a more striking proof of servitude than any charters could give remained in the millstones which after a long suit at law had been adjudged to the abbey and placed within its cloister as a triumphant witness that no townsman might grind corn within the domain of the abbey save at the abbot's mill. Bursting into the cloister, the burghers now tore the mill-stones from the floor, and broke them into small pieces, "like blessed bread in church," which each might carry off to show something of the day when their freedom was won again. But it was hardly won when it was lost anew. The quiet withdrawal and dispersion of the peasant armies with their charters of emancipation gave courage to the nobles. Their panic passed away. The warlike Bishop of Norwich fell lance in hand on Litster's camp, and scattered the peasants of Norfolk at the first shock. Richard with an army of forty thousand men marched in triumph through Kent and Essex, and spread terror by the ruthlessness of his executions. At Waltham he was met by the display of his own recent charters and a protest from the Essex men that "they were so far as freedom went the peers of their lords." But they were to learn the worth of a king's word. "Villeins you were," answered Richard, "and villeins you are. In bondage you shall abide, and that not your old bondage, but a worse!" The stubborn resistance which he met showed that the temper of the people was not easily broken. The villagers of Billericay threw themselves into the woods and fought two hard fights before they were reduced to submission. It was only by threats of death that verdicts of guilty could be wrung from Essex jurors when the leaders of the revolt were brought before them. Grindecobbe was offered his life if he would persuade his followers at St. Albans to restore the charters they had wrung from the monks. He turned bravely to his fellow-townsmen and bade them take no thought for his trouble. "If I die," he said, "I shall die for the cause of the freedom we have won, counting myself happy to end my life by such a martyrdom. Do then to-day as you would have done had I been killed yesterday." But repression went pitilessly on, and through the summer and the autumn seven thousand men are said to have perished on the gallows or the field.

CHAPTER IV

RICHARD THE SECOND

1381-1400

Results of the Peasant Revolt

Terrible as were the measures of repression which followed the Peasant Revolt, and violent as was the passion of reaction which raged among the proprietary classes at its close, the end of the rising was in fact secured. The words of Grindecobbe ere his death were a prophecy which time fulfilled. Cancel charters of manumission as the council might, serfage was henceforth a doomed and perishing thing. The dread of another outbreak hung round the employer. The attempts to bring back obsolete services quietly died away. The old process of enfranchisement went quietly on. During the century and a half which followed the Peasant Revolt villeinage died out so rapidly that it became a rare and antiquated thing. The class of small freeholders sprang fast out of the wreck of it into numbers and importance. In twenty years more they were in fact recognized as the basis of our electoral system in every English county. The Labour Statutes proved as ineffective as of old in enchainning labour or reducing its price. A hundred years after the Black Death the wages of an English labourer was sufficient to purchase twice the amount of the necessaries of life which could have been obtained for the wages paid under Edward the Third. The incidental descriptions of the life of the working classes which we find in *Piers Ploughman* show that this increase of social comfort had been going on even during the troubled period which preceded the outbreak of the peasants, and it went on faster after the revolt was over. But inevitable as such a progress was, every step of it was taken in the teeth of the wealthier classes. Their temper indeed at the close of the rising was that of men frenzied by panic and the taste of blood. They scouted all notion of concession. The stubborn will of the conquered was met by as stubborn a will in their conquerors. The royal Council showed its sense of the danger of a mere policy of resistance by submitting the question of

enfranchisement to the Parliament which assembled in November 1381 with words which suggested a compromise. "If you desire to enfranchise and set at liberty the said serfs," ran the royal message, "by your common assent, as the King has been informed that some of you desire, he will consent to your prayer." But no thoughts of compromise influenced the landowners in their reply. The king's grant and letters, the Parliament answered with perfect truth, were legally null and void: their serfs were their goods, and the king could not take their goods from them but by their own consent. "And this consent," they ended, "we have never given and never will give, were we all to die in one day." Their temper indeed expressed itself in legislation which was a fit sequel to the Statutes of Labourers. They forbade the child of any tiller of the soil to be apprenticed in a town. They prayed the king to ordain "that no bondman nor bondwoman shall place their children at school, as has been done, so as to advance their children in the world by their going into the church." The new colleges which were being founded at the Universities at this moment closed their gates upon villeins.

Religious reaction

The panic which produced this frenzied reaction against all projects of social reform produced inevitably as frenzied a panic of reaction against all plans for religious reform. Wyclif had been supported by the Lancastrian party till the very eve of the Peasant Revolt. But with the rising his whole work seemed suddenly undone. The quarrel between the baronage and the Church on which his political action had as yet been grounded was hushed in the presence of a common danger. His "poor preachers" were looked upon as missionaries of socialism. The friars charged Wyclif with being a "sower of strife, who by his serpentlike instigation had set the serf against his lord," and though he tossed back the charge with disdain he had to bear a suspicion which was justified by the conduct of some of his followers. John Ball, who had figured in the front rank of the revolt, was falsely-named as one of his adherents, and was alleged to have denounced in his last hour the conspiracy of the "Wyclifites." Wyclif's most prominent scholar, Nicholas Herford, was said to have openly approved the brutal murder of Archbishop Sudbury. Whatever belief such charges might gain, it is certain that from this moment all plans for the reorganization of the Church were confounded in the general odium which attached to the

projects of the peasant leaders, and that any hope of ecclesiastical reform at the hands of the baronage and the Parliament was at an end. But even if the Peasant Revolt had not deprived Wyclif of the support of the aristocratic party with whom he had hitherto cooperated, their alliance must have been dissolved by the new theological position which he had already taken up. Some months before the outbreak of the insurrection he had by one memorable step passed from the position of a reformer of the discipline and political relations of the Church to that of a protester against its cardinal beliefs. If there was one doctrine upon which the supremacy of the Mediæval Church rested, it was the doctrine of Transubstantiation. It was by his exclusive right to the performance of the miracle which was wrought in the mass that the lowliest priest was raised high above princes. With the formal denial of the doctrine of Transubstantiation which Wyclif issued in the spring of 1381 began that great movement of religious revolt which ended more than a century after in the establishment of religious freedom by severing the mass of the Teutonic peoples from the general body of the Catholic Church. The act was the bolder that he stood utterly alone. The University of Oxford, in which his influence had been hitherto all-powerful, at once condemned him. John of Gaunt enjoined him to be silent. Wyclif was presiding as Doctor of Divinity over some disputations in the schools of the Augustinian Canons when his academical condemnation was publicly read, but though startled for the moment he at once challenged Chancellor or doctor to disprove the conclusions at which he had arrived. The prohibition of the Duke of Lancaster he met by an open avowal of his teaching, a confession which closes proudly with the quiet words, "I believe that in the end the truth will conquer."

Rise of Lollardry

For the moment his courage dispelled the panic around him. The University responded to his appeal, and by displacing his opponents from office tacitly adopted his cause. But Wyclif no longer looked for support to the learned or wealthier classes on whom he had hitherto relied. He appealed, and the appeal is memorable as the first of such a kind in our history, to England at large. With an amazing industry he issued tract after tract in the tongue of the people itself. The dry, syllogistic Latin, the abstruse and involved argument which the great doctor had addressed to his academic hearers, were suddenly flung aside, and by a transition which

marks the wonderful genius of the man the schoolman was transformed into the pamphleteer. If Chaucer is the father of our later English poetry, Wyclif is the father of our later English prose. The rough, clear, homely English of his tracts, the speech of the ploughman and the trader of the day though coloured with the picturesque phraseology of the Bible, is in its literary use as distinctly a creation of his own as the style in which he embodied it, the terse vehement sentences, the stinging sarcasms, the hard antitheses which roused the duller mind like a whip. Once fairly freed from the trammels of unquestioning belief, Wyclif's mind worked fast in its career of scepticism. Pardons, indulgences, absolutions, pilgrimages to the shrines of the saints, worship of their images, worship of the saints themselves, were successively denied. A formal appeal to the Bible as the one ground of faith, coupled with an assertion of the right of every instructed man to examine the Bible for himself, threatened the very groundwork of the older dogmatism with ruin. Nor were these daring denials confined to the small circle of scholars who still clung to him. The "Simple Priests" were active in the diffusion of their master's doctrines, and how rapid their progress must have been we may see from the panic-struck exaggerations of their opponents. A few years later they complained that the followers of Wyclif abounded everywhere and in all classes, among the baronage, in the cities, among the peasantry of the countryside, even in the monastic cell itself. "Every second man one meets is a Lollard."

Lollardy at Oxford

"Lollard," a word which probably means "idle babbler," was the nickname of scorn with which the orthodox Churchmen chose to insult their assailants. But this rapid increase changed their scorn into vigorous action. In 1382 Courtenay, who had now become Archbishop, summoned a council at Blackfriars and formally submitted twenty-four propositions drawn from Wyclif's works. An earthquake in the midst of the proceedings terrified every prelate but the resolute Primate; the expulsion of ill humours from the earth, he said, was of good omen for the expulsion of ill humours from the Church; and the condemnation was pronounced. Then the Archbishop turned fiercely upon Oxford as the fount and centre of the new heresies. In an English sermon at St. Frideswide's Nicholas Herford had asserted the truth of Wyclif's doctrines, and Courtenay ordered the Chancellor to silence him and his adherents on pain of being himself treated as a heretic. The

Chancellor fell back on the liberties of the University, and appointed as preacher another Wyclifite, Repyngdon, who did not hesitate to style the Lollards "holy priests," and to affirm that they were protected by John of Gaunt. Party spirit meanwhile ran high among the students. The bulk of them sided with the Lollard leaders, and a Carmelite, Peter Stokes, who had procured the Archbishop's letters, cowered panic stricken in his chamber while the Chancellor, protected by an escort of a hundred townsmen, listened approvingly to Repyngdon's defiance. "I dare go no further," wrote the poor Friar to the Archbishop, "for fear of death"; but he mustered courage at last to descend into the schools where Repyngdon was now maintaining that the clerical order was "better when it was but nine years old than now that it has grown to a thousand years and more." The appearance however of scholars in arms again drove Stokes to fly in despair to Lambeth, while a new heretic in open Congregation maintained Wyclif's denial of Transubstantiation. "There is no idolatry," cried William James, "save in the Sacrament of the Altar." "You speak like a wise man," replied the Chancellor, Robert Rygge. Courtenay however was not the man to bear defiance tamely, and his summons to Lambeth wrested a submission from Rygge which was only accepted on his pledge to suppress the Lollardism of the University. "I dare not publish them, on fear of death," exclaimed the Chancellor when Courtenay handed him his letters of condemnation. "Then is your University an open *fautor* of heretics," retorted the Primate, "if it suffers not the Catholic truth to be proclaimed within its bounds." The royal Council supported the Archbishop's injunction, but the publication of the decrees at once set Oxford on fire. The scholars threatened death against the friars, "crying that they wished to destroy the University." The masters suspended Henry Crump from teaching as a troubler of the public peace for calling the Lollards "heretics." The Crown however at last stepped in to Courtenay's aid, and a royal writ ordered the instant banishment of all favourers of Wyclif with the seizure and destruction of all Lollard books on pain of forfeiture of the University's privileges. The threat produced its effect. Herford and Repyngdon appealed in vain to John of Gaunt for protection; the Duke himself denounced them as heretics against the Sacrament of the Altar, and after much evasion they were forced to make a formal submission. Within Oxford itself the suppression of Lollardism was complete, but with the death of religious freedom all trace of intellectual life suddenly disappears. The century which followed the triumph of

Courtenay is the most barren in its annals, nor was the sleep of the University broken till the advent of the New Learning restored to it some of the life and liberty which the Primate had so roughly trodden out.

Wyclif's Bible

Nothing marks more strongly the grandeur of Wyclif's position as the last of the great schoolmen than the reluctance of so bold a man as Courtenay even after his triumph over Oxford to take extreme measures against the head of Lollardry. Wyclif, though summoned, had made no appearance before the "Council of the Earthquake." "Pontius Pilate and Herod are made friends to-day," was his bitter comment on the new union which proved to have sprung up between the prelates and the monastic orders who had so long been at variance with each other; "since they have made a heretic of Christ, it is an easy inference for them to count simple Christians heretics." He seems indeed to have been sick at the moment, but the announcement of the final sentence roused him to life again. He petitioned the king and Parliament that he might be allowed freely to prove the doctrines he had put forth, and turning with characteristic energy to the attack of his assailants, he asked that all religious vows might be suppressed, that tithes might be diverted to the maintenance of the poor and the clergy maintained by the free alms of their flocks, that the Statutes of Provisors and Præmunire might be enforced against the Papacy, that Churchmen might be declared incapable of secular offices, and imprisonment for excommunication cease. Finally in the teeth of the council's condemnation he demanded that the doctrine of the Eucharist which he advocated might be freely taught. If he appeared in the following year before the convocation at Oxford it was to perplex his opponents by a display of scholastic logic which permitted him to retire without any retraction of his sacramental heresy. For the time his opponents seemed satisfied with his expulsion from the University, but in his retirement at Lutterworth he was forging during these troubled years the great weapon which, wielded by other hands than his own, was to produce so terrible an effect on the triumphant hierarchy. An earlier translation of the Scriptures, in part of which he was aided by his scholar Herford, was being revised and brought to the second form which is better known as "Wyclif's Bible" when death drew near. The appeal of the prelates to Rome was answered at last by a Brief ordering him to appear at the Papal Court. His failing strength exhausted itself in a sarcastic reply which explained that

his refusal to comply with the summons simply sprang from broken health. "I am always glad," ran the ironical answer, "to explain my faith to any one, and above all to the Bishop of Rome; for I take it for granted that if it be orthodox he will confirm it, if it be erroneous he will correct it. I assume too that as chief Vicar of Christ upon earth the Bishop of Rome is of all mortal men most bound to the law of Christ's Gospel, for among the disciples of Christ a majority is not reckoned by simply counting heads in the fashion of this world, but according to the imitation of Christ on either side. Now Christ during His life upon earth was of all men the poorest, casting from Him all worldly authority. I deduce from these premisses as a simple counsel of my own that the Pope should surrender all temporal authority to the civil power and advise his clergy to do the same." The boldness of his words sprang perhaps from a knowledge that his end was near. The terrible strain on energies enfeebled by age and study had at last brought its inevitable result, and a stroke of paralysis while Wyclif was hearing mass in his parish church of Lutterworth was followed on the next day by his death.

The Lollard movement

The persecution of Courtenay deprived the religious reform of its more learned adherents and of the support of the Universities. Wyclif's death robbed it of its head at a moment when little had been done save a work of destruction. From that moment Lollardism ceased to be in any sense an organized movement and crumbled into a general spirit of revolt. All the religious and social discontent of the times floated instinctively to this new centre. The socialist dreams of the peasantry, the new and keener spirit of personal morality, the hatred of the friars, the jealousy of the great lords towards the prelacy, the fanaticism of the reforming zealot were blended together in a common hostility to the Church and a common resolve to substitute personal religion for its dogmatic and ecclesiastical system. But it was this want of organization, this looseness and fluidity of the new movement, that made it penetrate through every class of society. Women as well as men became the preachers of the new sect. Lollardry had its own schools, its own books; its pamphlets were passed everywhere from hand to hand; scurrilous ballads which revived the old attacks of "Goliath" in the Angevin times upon the wealth and luxury of the clergy were sung at every corner. Nobles like the Earl of Salisbury and at a later time Sir John Oldcastle placed themselves openly at the head of the cause and threw open

their gates as a refuge for its missionaries. London in its hatred of the clergy became fiercely Lollard, and defended a Lollard preacher who ventured to advocate the new doctrines from the pulpit of St. Paul's. One of its mayors, John of Northampton, showed the influence of the new morality by the Puritan spirit in which he dealt with the morals of the city. Compelled to act, as he said, by the remissness of the clergy who connived for money at every kind of debauchery, he arrested the loose women, cut off their hair, and carted them through the streets as objects of public scorn. But the moral spirit of the new movement, though infinitely its grander side, was less dangerous to the Church than its open repudiation of the older doctrines and systems of Christendom. Out of the floating mass of opinion which bore the name of Lollardry one faith gradually evolved itself, a faith in the sole authority of the Bible as a source of religious truth. The translation of Wyclif did its work. Scripture, complains a canon of Leicester, "became a vulgar thing, and more open to lay folk and women that knew how to read than it is wont to be to clerks themselves." Consequences which Wyclif had perhaps shrunk from drawing were boldly drawn by his disciples. The Church was declared to have become apostate, its priesthood was denounced as no priesthood, its sacraments as idolatry.

Lollardry and the Church

It was in vain that the clergy attempted to stifle the new movement by their old weapon of persecution. The jealousy entertained by the baronage and gentry of every pretension of the Church to secular power foiled its efforts to make persecution effective. At the moment of the Peasant Revolt Courtenay procured the enactment of a statute which commissioned the sheriffs to seize all persons convicted before the bishops of preaching heresy. But the statute was repealed in the next session, and the Commons added to the bitterness of the blow by their protest that they considered it "in nowise their interest to be more under the jurisdiction of the prelates or more bound by them than their ancestors had been in times past." Heresy indeed was still a felony by the common law, and if as yet we meet with no instances of the punishment of heretics by the fire it was because the threat of such a death was commonly followed by the recantation of the Lollard. But the restriction of each bishop's jurisdiction within the limits of his own diocese made it impossible to arrest the wandering preachers of the new doctrine, and the civil punishment--even if it had been sanctioned by public

opinion--seems to have long fallen into desuetude. Experience proved to the prelates that few sheriffs would arrest on the mere warrant of an ecclesiastical officer, and that no royal court would issue the writ "for the burning of a heretic" on a bishop's requisition. But powerless as the efforts of the Church were for purposes of repression, they were effective in rousing the temper of the Lollards into a bitter fanaticism. The heretics delighted in outraging the religious sense of their day. One Lollard gentleman took home the sacramental wafer and lunched on it with wine and oysters. Another flung some images of the saints into his cellar. The Lollard preachers stirred up riots by the virulence of their preaching against the friars. But they directed even fiercer invectives against the wealth and secularity of the great Churchmen. In a formal petition which was laid before Parliament in 1395 they mingled denunciations of the riches of the clergy with an open profession of disbelief in transubstantiation, priesthood, pilgrimages, and image-worship, and a demand, which illustrates the strange medley of opinions which jostled together in the new movement, that war might be declared unchristian and that trades such as those of the goldsmith or the armourer, which were contrary to apostolical poverty, might be banished from the realm. They contended (and it is remarkable that a Parliament of the next reign adopted the statement) that from the superfluous revenues of the Church, if once they were applied to purposes of general utility, the king might maintain fifteen earls, fifteen hundred knights, and six thousand squires, besides endowing a hundred hospitals for the relief of the poor.

Disasters of the War

The distress of the landowners, the general disorganization of the country, in every part of which bands of marauders were openly defying the law, the panic of the Church and of society at large as the projects of the Lollards shaped themselves into more daring and revolutionary forms, added a fresh keenness to the national discontent at the languid and inefficient prosecution of the war. The junction of the French and Spanish fleets had made them masters of the seas, and what fragments were left of Guienne lay at their mercy. The royal Council strove to detach the House of Luxemburg from the French alliance by winning for Richard the hand of Anne, a daughter of the late Emperor Charles the Fourth who had fled at Crécy, and sister of King Wenzel of Bohemia who was now king of the

Romans. But the marriage remained without political result, save that the Lollard books which were sent into their native country by the Bohemian servants of the new queen stirred the preaching of John Huss and the Hussite wars. Nor was English policy more successful in Flanders. Under Philip van Artevelde, the son of the leader of 1345, the Flemish towns again sought the friendship of England against France, but at the close of 1382 the towns were defeated and their leader slain in the great French victory of Rosbecque. An expedition to Flanders in the following year under the warlike Bishop of Norwich turned out a mere plunder-raid and ended in utter failure. A short truce only gave France the leisure to prepare a counter-blow by the despatch of a small but well-equipped force under John de Vienne to Scotland in 1385. Thirty thousand Scots joined in the advance of this force over the border: and though northern England rose with a desperate effort and an English army penetrated as far as Edinburgh in the hope of bringing the foe to battle, it was forced to fall back without an encounter. Meanwhile France dealt a more terrible blow in the reduction of Ghent. The one remaining market for English commerce was thus closed up, while the forces which should have been employed in saving Ghent and in the protection of the English shores against the threat of invasion were squandered by John of Gaunt in a war which he was carrying on alone the Spanish frontier in pursuit of the visionary crown which he claimed in his wife's right. The enterprise showed that the Duke had now abandoned the hope of directing affairs at home and was seeking a new sphere of activity abroad. To drive him from the realm had been from the close of the Peasant Revolt the steady purpose of the councillors who now surrounded the young king, of his favourite Robert de Vere and his Chancellor Michael de la Pole, who was raised in 1385 to the Earldom of Suffolk. The Duke's friends were expelled from office; John of Northampton, the head of his adherents among the Commons, was thrown into prison; the Duke himself was charged with treason and threatened with arrest. In 1386 John of Gaunt abandoned the struggle and sailed for Spain.

Temper of the Court

Richard himself took part in these measures against the Duke. He was now twenty, handsome and golden-haired, with a temper capable of great actions and sudden bursts of energy but indolent and unequal. The conception of kingship in which he had been reared made him regard the

constitutional advance which had gone on during the war as an invasion of the rights of his Crown. He looked on the nomination of the royal Council and the great officers of state by the two Houses or the supervision of the royal expenditure by the Commons as Infringements on the prerogative which only the pressure of the war and the weakness of a minority had forced the Crown to bow to. The judgement of his councillors was one with that of the king. Vere was no mere royal favourite; he was a great noble and of ancient lineage. Michael de la Pole was a man of large fortune and an old servant of the Crown; he had taken part in the war for thirty years, and had been admiral and captain of Calais. But neither were men to counsel the young king wisely in his effort to obtain independence at once of Parliament and of the great nobles. His first aim had been to break the pressure of the royal house itself, and in his encounter with John of Gaunt he had proved successful. But the departure of the Duke of Lancaster only called to the front his brother and his son. Thomas of Woodstock, the Duke of Gloucester, had inherited much of the lands and the influence of the old house of Bohun. Round Henry, Earl of Derby, the son of John of Gaunt by Blanche of Lancaster, the old Lancastrian party of constitutional opposition was once more forming itself. The favour shown to the followers of Wyclif at the Court threw on the side of this new opposition the bulk of the bishops and Churchmen. Richard himself showed no sympathy with the Lollards, but the action of her Bohemian servants shows the tendencies of his queen. Three members of the royal Council were patrons of the Lollards, and the Earl of Salisbury, a favourite with the king, was their avowed head. The Commons displayed no hostility to the Lollards nor any zeal for the Church; but the lukewarm prosecution of the war, the profuse expenditure of the Court, and above all the manifest will of the king to free himself from Parliamentary control, estranged the Lower House. Richard's haughty words told their own tale. When the Parliament of 1385 called for an enquiry every year into the royal household, the king replied he would enquire when he pleased. When it prayed to know the names of the officers of state, he answered that he would change them at his will.

The Lords Appellant

The burthen of such answers and of the policy they revealed fell on the royal councillors, and the departure of John of Gaunt forced the new opposition into vigorous action. The Parliament of 1386 called for the

removal of Suffolk. Richard replied that he would not for such a prayer dismiss a turnspit of his kitchen. The Duke of Gloucester and Bishop Arundel of Ely were sent by the Houses as their envoys, and warned the king that should a ruler refuse to govern with the advice of his lords and by mad counsels work out his private purposes it was lawful to depose him. The threat secured Suffolk's removal; he was impeached for corruption and maladministration, and condemned to forfeiture and imprisonment. It was only by submitting to the nomination of a Continual Council, with the Duke of Gloucester at its head, that Richard could obtain a grant of subsidies. But the Houses were no sooner broken up than Suffolk was released, and in 1387 the young king rode through the country calling on the sheriffs to raise men against the barons, and bidding them suffer no knight of the shire to be returned for the next Parliament "save one whom the King and his Council chose." The general ill-will foiled both his efforts: and he was forced to take refuge in an opinion of five of the judges that the Continual Council was unlawful, the sentence on Suffolk erroneous, and that the Lords and Commons had no power to remove a king's servant. Gloucester answered the challenge by taking up arms, and a general refusal to fight for the king forced Richard once more to yield. A terrible vengeance was taken on his supporters in the recent schemes. In the Parliament of 1388 Gloucester, with the four Earls of Derby, Arundel, Warwick, and Nottingham, appealed on a charge of high treason Suffolk and De Vere, the Archbishop of York, the Chief Justice Tresilian, and Sir Nicholas Bamber. The first two fled, Suffolk to France, De Vere after a skirmish at Radcot Bridge to Ireland; but the Archbishop was deprived of his see, Bamber beheaded, and Tresilian hanged. The five judges were banished, and Sir Simon Burley with three other members of the royal household sent to the block.

Richard's Rule

At the prayer of the "Wonderful Parliament," as some called this assembly, or as others with more justice "The Merciless Parliament," it was provided that all officers of state should henceforth be named in Parliament or by the Continual Council. Gloucester remained at the head of the latter body, but his power lasted hardly a year. In May 1389 Richard found himself strong enough to break down the government by a word. Entering the Council he suddenly asked his uncle how old he was. "Your highness," answered Gloucester, "is in your twenty-fourth year!" "Then I am old

enough to manage my own affairs," said Richard coolly; "I have been longer under guardianship than any ward in my realm. I thank you for your past services, my lords, but I need them no more." The resolution was welcomed by the whole country; and Richard justified the country's hopes by wielding his new power with singular wisdom and success. He refused to recall De Vere or the five judges. The intercession of John of Gaunt on his return from Spain brought about a full reconciliation with the Lords Appellant. A truce was concluded with France, and its renewal year after year enabled the king to lighten the burthen of taxation. Richard announced his purpose to govern by advice of Parliament; he soon restored the Lords Appellant to his Council, and committed the chief offices of state to great Churchmen like Wykeham and Arundel. A series of statutes showed the activity of the Houses. A Statute of Provisors which re-enacted those of Edward the Third was passed in 1390; the Statute of Præmunire, which punished the obtaining of bulls or other instruments from Rome with forfeiture, in 1393. The lords were bridled anew by a Statute of Maintenance, which forbade their violently supporting other men's causes in courts of justice, and giving "livery" to a host of retainers. The Statute of Uses in 1391, which rendered illegal the devices which had been invented to frustrate that of Mortmain, showed the same resolve to deal firmly with the Church. A reform of the staple and other mercantile enactments proved the king's care for trade. Throughout the legislation of these eight years we see the same tone of coolness and moderation. Eager as he was to win the good-will of the Parliament and the Church, Richard refused to bow to the panic of the landowners or to second the persecution of the priesthood. The demands of the Parliament that education should be denied to the sons of villeins was refused. Lollardry as a social danger was held firmly at bay, and in 1387 the king ordered Lollard books to be seized and brought before the Council. But the royal officers showed little zeal in aiding the bishops to seize or punish the heretical teachers.

French and English

It was in the period of peace which was won for the country by the wisdom and decision of its young king that England listened to the voice of her first great singer. The work of Chaucer marks the final settlement of the English tongue. The close of the great movement towards national unity which had been going on ever since the Conquest was shown in the middle

of the fourteenth century by the disuse, even amongst the nobler classes, of the French tongue. In spite of the efforts of the grammar schools and of the strength of fashion English won its way throughout the reign of Edward the Third to its final triumph in that of his grandson. It was ordered to be used in courts of law in 1362 "because the French tongue is much unknown," and in the following year it was employed by the Chancellor in opening Parliament. Bishops began to preach in English, and the English tracts of Wyclif made it once more a literary tongue. We see the general advance in two passages from writers of Edward's and Richard's reigns. "Children in school," says Higden, a writer of the first period, "against the usage and manner of all other nations be compelled for to leave their own language and for to construe their lessons and their things in French, and so they have since the Normans first came into England. Also gentlemen's children be taught for to speak French from the time that they be rocked in their cradle, and know how to speak and play with a child's toy; and uplandish (or country) men will liken themselves to gentlemen, and strive with, great busyness to speak French for to be more told of." "This manner," adds John of Trevisa, Higden's translator in Richard's time, "was much used before the first murrain (the Black Death of 1349), and is since somewhat changed. For John Cornwal, a master of grammar, changed the lore in grammar school and construing of French into English; and Richard Pencrych learned this manner of teaching of him, as other men did of Pencrych. So that now, the year of our Lord 1385 and of the second King Richard after the Conquest nine, in all the grammar schools of England children leaveth French, and construeth and learneth in English. Also gentlemen have now much left for to teach their children French."

Chaucer

This drift towards a general use of the national tongue told powerfully on literature. The influence of the French romances everywhere tended to make French the one literary language at the opening of the fourteenth century, and in England this influence had been backed by the French tone of the court of Henry the Third and the three Edwards. But at the close of the reign of Edward the Third the long French romances needed to be translated even for knightly hearers. "Let clerks indite in Latin," says the author of the "Testament of Love," "and let Frenchmen in their French also indite their quaint terms, for it is kindly to their mouths; and let us show our

fantasies in such wordes as we learned of our mother's tongue." But the new national life afforded nobler materials than "fantasies" now for English literature. With the completion of the work of national unity had come the completion of the work of national freedom. The vigour of English life showed itself in the wide extension of commerce, in the progress of the towns, and the upgrowth of a free yeomanry. It gave even nobler signs of its activity in the spirit of national independence and moral earnestness which awoke at the call of Wyclif. New forces of thought and feeling which were destined to tell on every age of our later history broke their way through the crust of feudalism in the socialist revolt of the Lollards, and a sudden burst of military glory threw its glamour over the age of Crécy and Poitiers. It is this new gladness of a great people which utters itself in the verse of Geoffrey Chaucer. Chaucer was born about 1340, the son of a London vintner who lived in Thames Street; and it was in London that the bulk of his life was spent. His family, though not noble, seems to have been of some importance, for from the opening of his career we find Chaucer in close connexion with the Court. At sixteen he was made page to the wife of Lionel of Clarence; at nineteen he first bore arms in the campaign of 1359. But he was luckless enough to be made prisoner; and from the time of his release after the treaty of Brétigny he took no further share in the military enterprises of his time. He seems again to have returned to service about the Court, and it was now that his first poems made their appearance, the "Compleynte to Pity" in 1368, and in 1369 the "Death of Blanch the Duchesse," the wife of John of Gaunt who from this time at least may be looked upon as his patron. It may have been to John's influence that he owed his employment in seven diplomatic missions which were probably connected with the financial straits of the Crown. Three of these, in 1372, 1374, and 1378, carried him to Italy. He visited Genoa and the brilliant court of the Visconti at Milan; at Florence, where the memory of Dante, the "great master" whom he commemorates so reverently in his verse, was still living, he may have met Boccaccio; at Padua, like his own clerk of Oxenford, he possibly caught the story of Griseldis from the lips of Petrarca.

His Early Poems

It was these visits to Italy which gave us the Chaucer whom we know. From that hour his work stands out in vivid contrast with the poetic

literature from the heart of which it sprang. The long French romances were the product of an age of wealth and ease, of indolent curiosity, of a fanciful and self-indulgent sentiment. Of the great passions which gave life to the Middle Ages, that of religious enthusiasm had degenerated into the conceits of Mariolatry, that of war into the extravagances of Chivalry. Love indeed remained; it was the one theme of troubadour and trouvreur; but it was a love of refinement, of romantic follies, of scholastic discussions, of sensuous enjoyment--a plaything rather than a passion. Nature had to reflect the pleasant indolence of man; the song of the minstrel moved through a perpetual May-time; the grass was ever green; the music of the lark and the nightingale rang out from field and thicket. There was a gay avoidance of all that is serious, moral, or reflective in man's life: life was too amusing to be serious, too piquant, too sentimental, too full of interest and gaiety and chat. It was an age of talk: "mirth is none," says Chaucer's host, "to ride on by the way dumb as a stone "; and the Trouvreur aimed simply at being the most agreeable talker of his day. His romances, his rimes of Sir Tristram, his Romance of the Rose, are full of colour and fantasy, endless in detail, but with a sort of gorgeous idleness about their very length, the minuteness of their description of outer things, the vagueness of their touch when it passes to the subtler inner world.

It was with this literature that Chaucer had till now been familiar, and it was this which he followed in his earlier work. But from the time of his visits to Milan and Genoa his sympathies drew him not to the dying verse of France but to the new and mighty upgrowth of poetry in Italy. Dante's eagle looks at him from the sun. "Fraunces Petrark, the laureat poete," is to him one "whose rethorique sweete enlumyned al Itail of poetrie." The "Troilus" which he produced about 1382 is an enlarged English version of Boccaccio's "Filostrato"; the Knight's Tale, whose first draft is of the same period, bears slight traces of his Teseide. It was indeed the "Decameron" which suggested the very form of the "Canterbury Tales," the earliest of which, such as those of the Doctor, the Man of Law, the Clerk, the Prioress, the Franklin, and the Squire, may probably be referred like the Parliament of Foules and the House of Fame to this time of Chaucer's life. But even while changing, as it were, the front of English poetry Chaucer preserves his own distinct personality. If he quizzes in the rime of Sir Thopaz the wearisome idleness of the French romance he retains all that was worth

retaining of the French temper, its rapidity and agility of movement, its lightness and brilliancy of touch, its airy mockery, its gaiety and good humour, its critical coolness and self-control. The French wit quickens in him more than in any English writer the sturdy sense and shrewdness of our national disposition, corrects its extravagance, and relieves its somewhat ponderous morality. If on the other hand he echoes the joyous carelessness of the Italian tale, he tempers it with the English seriousness. As he follows Boccaccio all his changes are on the side of purity; and when the Troilus of the Florentine ends with the old sneer at the changeableness of woman Chaucer bids us "look Godward," and dwells on the unchangeableness of Heaven.

The Canterbury Tales

The genius of Chaucer however was neither French nor Italian, whatever element it might borrow from either literature, but English to the core; and from the year 1384 all trace of foreign influence dies away. Chaucer had now reached the climax of his poetic power. He was a busy, practical worker, Comptroller of the Customs in 1374, of the Petty Customs in 1382, a member of the Commons in the Parliament of 1386. The fall of the Duke of Lancaster from power may have deprived him of employment for a time, but from 1389 to 1391 he was Clerk of the Royal Works, busy with repairs and building at Westminster, Windsor, and the Tower. His air indeed was that of a student rather than of a man of the world. A single portrait has preserved for us his forked beard, his dark-coloured dress, the knife and pen-case at his girdle, and we may supplement this portrait by a few vivid touches of his own. The sly, elvish face, the quick walk, the plump figure and portly waist were those of a genial and humorous man; but men jested at his silence, his abstraction, his love of study. "Thou lookest as thou wouldest find an hare," laughs the host, "and ever on the ground I see thee stare." He heard little of his neighbours' talk when office work in Thames Street was over. "Thou goest home to thy own house anon, and also dumb as any stone thou sittest at another book till fully dazed is thy look, and livest thus as an heremite, although," he adds slyly, "thy abstinence is lite," or little. But of this seeming abstraction from the world about him there is not a trace in Chaucer's verse. We see there how keen his observation was, how vivid and intense his sympathy with nature and the men among whom he moved. "Farewell, my book," he cried as spring came after winter and

the lark's song roused him at dawn to spend hours gazing alone on the daisy whose beauty he sang. But field and stream and flower and bird, much as he loved them, were less to him than man. No poetry was over more human than Chaucer's, none ever came more frankly and genially home to men than his "Canterbury Tales."

It was the continuation and revision of this work which mainly occupied him during the years from 1384 to 1391. Its best stories, those of the Miller, the Reeve, the Cook, the Wife of Bath, the Merchant, the Friar, the Nun, the Priest, and the Pardoner, are ascribed to this period, as well as the Prologue. The framework which Chaucer chose--that of a pilgrimage from London to Canterbury--not only enabled him to string these tales together, but lent itself admirably to the peculiar characteristics of his poetic temper, his dramatic versatility and the universality of his sympathy. His tales cover the whole field of mediæval poetry; the legend of the priest, the knightly romance, the wonder-tale of the traveller, the broad humour of the fabliau, allegory and apologue, all are there. He finds a yet wider scope for his genius in the persons who tell these stories, the thirty pilgrims who start in the May morning from the Tabard in Southwark--thirty distinct figures, representatives of every class of English society from the noble to the ploughman. We see the "verray perfight gentil knight" in cassock and coat of mail, with his curly-headed squire beside him, fresh as the May morning, and behind them the brown-faced yeoman in his coat and hood of green with a mighty bow in his hand. A group of ecclesiastics light up for us the mediæval church--the brawny hunt-loving monk, whose bridle jingles as loud and clear as the chapel-bell--the wanton friar, first among the beggars and harpers of the country-side--the poor parson, threadbare, learned, and devout, ("Christ's lore and his apostles twelve he taught, and first he followed it himself")--the summoner with his fiery face--the pardoner with his wallet "bretfull of pardons, come from Rome all hot"--the lively prioress with her courtly French lisp, her soft little red mouth, and "Amor vincit omnia" graven on her brooch. Learning is there in the portly person of the doctor of physic, rich with the profits of the pestilence--the busy serjeant-of-law, "that ever seemed busier than he was"--the hollow-cheeked clerk of Oxford with his love of books and short sharp sentences that disguise a latent tenderness which breaks out at last in the story of Griseldis. Around them crowd types of English industry: the merchant; the franklin in whose

house "it snowed of meat and drink"; the sailor fresh from frays in the Channel; the buxom wife of Bath; the broad-shouldered miller; the haberdasher, carpenter, weaver, dyer, tapestry-maker, each in the livery of his craft; and last the honest ploughman who would dyke and delve for the poor without hire. It is the first time in English poetry that we are brought face to face not with characters or allegories or reminiscences of the past, but with living and breathing men, men distinct in temper and sentiment as in face or costume or mode of speech; and with this distinctness of each maintained throughout the story by a thousand shades of expression and action. It is the first time, too, that we meet with the dramatic power which not only creates each character but combines it with its fellows, which not only adjusts each tale or jest to the temper of the person who utters it but fuses all into a poetic unity. It is life in its largeness, its variety, its complexity, which surrounds us in the "Canterbury Tales." In some of the stories indeed, which were composed no doubt at an earlier time, there is the tedium of the old romance or the pedantry of the schoolman; but taken as a whole the poem is the work not of a man of letters but of a man of action. Chaucer has received his training from war, courts, business, travel--a training not of books but of life. And it is life that he loves--the delicacy of its sentiment, the breadth of its farce, its laughter and its tears, the tenderness of its Griseldis or the Smollett-like adventures of the miller and the clerks. It is this largeness of heart, this wide tolerance, which enables him to reflect man for us as none but Shakspeare has ever reflected him, and to do this with a pathos, a shrewd sense and kindly humour, a freshness and joyousness of feeling, that even Shakspeare has not surpassed.

The French Marriage

The last ten years of Chaucer's life saw a few more tales added to the Pilgrimage and a few poems to his work; but his power was lessening, and in 1400 he rested from his labours in his last home, a house in the garden of St. Mary's Chapel at Westminster. His body rests within the Abbey church. It was strange that such a voice should have awakened no echo in the singers that follow, but the first burst of English song died as suddenly in Chaucer as the hope and glory of his age. He died indeed at the moment of a revolution which was the prelude to years of national discord and national suffering. Whatever may have been the grounds of his action, the rule of Richard the Second after his assumption of power had shown his capacity

for self-restraint. Parted by his own will from the counsellors of his youth, calling to his service the Lords Appellant, reconciled alike with the baronage and the Parliament, the young king promised to be among the noblest and wisest rulers that England had seen. But the violent and haughty temper which underlay this self-command showed itself from time to time. The Earl of Arundel and his brother the bishop stood in the front rank of the party which had coerced Richard in his early days; their influence was great in the new government. But a strife between the Earl and John of Gaunt revived the king's resentment at the past action of this house; and at the funeral of Anne of Bohemia in 1394 a fancied slight roused Richard to a burst of passion. He struck the Earl so violently that the blow drew blood. But the quarrel was patched up, and the reconciliation was followed by the elevation of Bishop Arundel to the vacant Primacy in 1396. In the preceding year Richard had crossed to Ireland and in a short autumn campaign reduced its native chiefs again to submission. Fears of Lollard disturbances soon recalled him, but these died at the king's presence, and Richard was able to devote himself to the negotiation of a marriage which was to be the turning-point of his reign. His policy throughout the recent years had been a policy of peace. It was war which rendered the Crown helpless before the Parliament, and peace was needful if the work of constant progress was not to be undone. But the short truces, renewed from time to time, which he had as yet secured were insufficient for this purpose, for so long as war might break out in the coming year the king's hands were tied. The impossibility of renouncing the claim to the French crown indeed made a formal peace impossible, but its ends might be secured by a lengthened truce, and it was with a view to this that Richard in 1396 wedded Isabella, the daughter of Charles the Sixth of France. The bride was a mere child, but she brought with her a renewal of the truce for five-and-twenty years.

Change of Richard's temper

The match was hardly concluded when the veil under which Richard had shrouded his real temper began to be dropped. His craving for absolute power, such as he witnessed in the Court of France, was probably intensified from this moment by a mental disturbance which gathered strength as the months went on. As if to preclude any revival of the war Richard had surrendered Cherbourg to the king of Navarre and now gave back Brest to the Duke of Brittany. He was said to have pledged himself at

his wedding to restore Calais to the king of France. But once freed from all danger of such a struggle the whole character of his rule seemed to change. His court became as crowded and profuse as his grandfather's. Money was recklessly borrowed and as recklessly squandered. The king's pride became insane, and it was fed with dreams of winning the Imperial crown through the deposition of Wenzel of Bohemia. The councillors with whom he had acted since his resumption of authority saw themselves powerless. John of Gaunt indeed still retained influence over the king. It was the support of the Duke of Lancaster after his return from his Spanish campaign which had enabled Richard to hold in check the Duke of Gloucester and the party that he led; and the anxiety of the young king to retain this support was seen in his grant of Aquitaine to his uncle, and in the legitimation of the Beauforts, John's children by a mistress, Catherine Swinford, whom he married after the death of his second wife. The friendship of the Duke brought with it the adhesion of one even more important, his son Henry, the Earl of Derby. As heir through his mother, Blanche of Lancaster, to the estates and influence of the Lancastrian house, Henry was the natural head of a constitutional opposition, and his weight was increased by a marriage with the heiress of the house of Bohun. He had taken a prominent part in the overthrow of Suffolk and De Vere, and on the king's resumption of power he had prudently withdrawn from the realm on a vow of Crusade, had touched at Barbary, visited the Holy Sepulchre, and in 1390 sailed for Dantzic and taken part in a campaign against the heathen Prussians with the Teutonic Knights. Since his return he had silently followed in his father's track. But the counsels of John of Gaunt were hardly wiser than of old; Arundel had already denounced his influence as a hurtful one; and in the events which were now to hurry quickly on he seems to have gone hand in hand with the king.

Richard's Tyranny

A new uneasiness was seen in the Parliament of 1397, and the Commons prayed for a redress of the profusion of the Court. Richard at once seized on the opportunity for a struggle. He declared himself grieved that his subjects should "take on themselves any ordinance or governance of the person of the King or his hostel or of any persons of estate whom he might be pleased to have in his company." The Commons were at once overawed; they owned that the cognizance of such matters belonged wholly to the king, and

gave up to the Duke of Lancaster the name of the member, Sir Thomas Haxey, who had brought forward this article of their prayer. The lords pronounced him a traitor, and his life was only saved by the fact that he was a clergyman and by the interposition of Archbishop Arundel. The Earl of Arundel and the Duke of Gloucester at once withdrew from Court. They stood almost alone, for of the royal house the Dukes of Lancaster and York with their sons the Earls of Derby and Rutland were now with the king, and the old coadjutor of Gloucester, the Earl of Nottingham, was in high favour with him. The Earl of Warwick alone joined them, and he was included in a charge of conspiracy which was followed by the arrest of the three. A fresh Parliament in September was packed with royal partizans, and Richard moved boldly to his end. The pardons of the Lords Appellant were revoked. Archbishop Arundel was impeached and banished from the realm, he was transferred by the Pope to the See of St. Andrews, and the Primacy given to Roger Walden. The Earl of Arundel, accused before the Peers under John of Gaunt as High Steward, was condemned and executed in a single day. Warwick, who owned the truth of the charge, was condemned to perpetual imprisonment. The Duke of Gloucester was saved from a trial by a sudden death in his prison at Calais. A new Parliament at Shrewsbury in the opening of 1398 completed the king's work. In three days it declared null the proceedings of the Parliament of 1388, granted to the king a subsidy on wool and leather for his life, and delegated its authority to a standing committee of eighteen members from both Houses with power to continue their sittings even after the dissolution of the Parliament and to "examine and determine all matters and subjects which had been moved in the presence of the king with all the dependencies thereof."

Henry of Lancaster

In a single year the whole colour of Richard's government had changed. He had revenged himself on the men who had once held him down, and his revenge was hardly taken before he disclosed a plan of absolute government. He had used the Parliament to strike down the Primate as well as the greatest nobles of the realm and to give him a revenue for life which enabled him to get rid of Parliament itself, for the Permanent Committee which it named were men devoted, as Richard held, to his cause. John of Gaunt was at its head, and the rest of its lords were those who had backed the king in his blow at Gloucester and the Arundels. Two however were

excluded. In the general distribution of rewards which followed Gloucester's overthrow the Earl of Derby had been made Duke of Hereford, the Earl of Nottingham Duke of Norfolk. But at the close of 1397 the two Dukes charged each other with treasonable talk as they rode between Brentford and London, and the Permanent Committee ordered the matter to be settled by a single combat. In September 1398 the Dukes entered the lists; but Richard forbade the duel, sentenced the Duke of Norfolk to banishment for life, and Henry of Lancaster to exile for ten years. As Henry left London the streets were crowded with people weeping for his fate; some followed him even to the coast. But his withdrawal removed the last check on Richard's despotism. He forced from every tenant of the Crown an oath to recognize the acts of his Committee as valid, and to oppose any attempts to alter or revoke them. Forced loans, the sale of charters of pardon to Gloucester's adherents, the outlawry of seven counties at once on the plea that they had supported his enemies and must purchase pardon, a reckless interference with the course of justice, roused into new life the old discontent. Even this might have been defied had not Richard set an able and unscrupulous leader at its head. Leave had been given to Henry of Lancaster to receive his father's inheritance on the death of John of Gaunt, in February 1399. But an ordinance of the Continual Committee annulled this permission and Richard seized the Lancastrian estates. Archbishop Arundel at once saw the chance of dealing blow for blow. He hastened to Paris and pressed the Duke to return to England, telling him how all men there looked for it, "especially the Londoners, who loved him a hundred times more than they did the king." For a while Henry remained buried in thought, "leaning on a window overlooking a garden"; but Arundel's pressure at last prevailed, he made his way secretly to Brittany, and with fifteen knights set sail from Vannes.

Ireland and the Pale

What had really decided him was the opportunity offered by Richard's absence from the realm. From the opening of his reign the king's attention had been constantly drawn to his dependent lordship of Ireland. More than two hundred years had passed away since the troubles which followed the murder of Archbishop Thomas forced Henry the Second to leave his work of conquest unfinished, and the opportunity for a complete reduction of the island which had been lost then had never returned. When Henry quitted

Ireland indeed Leinster was wholly in English hands, Connaught bowed to a nominal acknowledgement of the English overlordship, and for a while the work of conquest seemed to go steadily on. John de Courcy penetrated into Ulster and established himself at Downpatrick; and Henry planned the establishment of his youngest son, John, as Lord of Ireland. But the levity of the young prince, who mocked the rude dresses of the native chieftains and plucked them in insult by the beard, soon forced his father to recall him; and in the continental struggle which soon opened on the Angevin kings, as in the constitutional struggle within England itself which followed it, all serious purpose of completing the conquest of Ireland was forgotten. Nothing indeed but the feuds and weakness of the Irish tribes enabled the adventurers to hold the districts of Drogheda, Dublin, Wexford, Waterford, and Cork, which formed what was thenceforth known as "the English Pale." In all the history of Ireland no event has proved more disastrous than this half-finished conquest. Had the Irish driven their invaders into the sea, or the English succeeded in the complete reduction of the island, the misery of its after ages might have been avoided. A struggle such as that in which Scotland drove out its conquerors might have produced a spirit of patriotism and national union which would have formed a people out of the mass of warring clans. A conquest such as that in which the Normans made England their own would have spread at any rate the law, the order, the civilization of the conquering country over the length and breadth of the conquered. Unhappily Ireland, while powerless to effect its entire deliverance, was strong enough to hold its assailants partially at bay. The country was broken into two halves whose conflict has never ceased. So far from either giving elements of civilization or good government to the other, conqueror and conquered reaped only degradation from the ceaseless conflict. The native tribes lost whatever tendency to union or social progress had survived the invasion of the Danes. Their barbarism was intensified by their hatred of the more civilized intruders. But these intruders themselves, penned within the narrow limits of the Pale, brutalized by a merciless conflict, cut off from contact with the refining influences of a larger world, sank rapidly to the level of the barbarism about them: and the lawlessness, the ferocity, the narrowness of feudalism broke out unchecked in this horde of adventurers who held the land by their sword.

English and Irish

From the first the story of the English Pale was a story of degradation and anarchy. It needed the stern vengeance of John, whose army stormed its strongholds and drove its leading barons into exile, to preserve even their fealty to the English Crown. John divided the Pale into counties and ordered the observance of the English law; but the departure of his army was the signal for a return of the disorder he had trampled under foot. Between Englishmen and Irishmen went on a ceaseless and pitiless war. Every Irishman without the Pale was counted by the English settlers an enemy and a robber whose murder found no cognizance or punishment at the hands of the law. Half the subsistence of the English barons was drawn from forays across the border, and these forays were avenged by incursions of native marauders which carried havoc at times to the very walls of Dublin. Within the Pale itself the misery was hardly less. The English settlers were harried and oppressed by their own baronage as much as by the Irish marauders, while the feuds of the English lords wasted their strength and prevented any effective combination either for common conquest or common defence. So utter seemed their weakness that Robert Bruce saw in it an opportunity for a counter-blow at his English assailants, and his victory at Bannockburn was followed up by the despatch of a Scotch force to Ireland with his brother Edward at its head. A general rising of the Irish welcomed this deliverer; but the danger drove the barons of the Pale to a momentary union, and in 1316 their valour was proved on the bloody field of Athenree by the slaughter of eleven thousand of their foes and the almost complete annihilation of the sept of the O'Connors. But with victory returned the old anarchy and degradation. The barons of the Pale sank more and more into Irish chieftains. The Fitz-Maurices, who became Earls of Desmond and whose vast territory in Minister was erected into a County Palatine, adopted the dress and manners of the natives around them. The rapid growth of this evil was seen in the ruthless provisions by which Edward the Third strove to check it in his Statute of Kilkenny. The Statute forbade the adoption of the Irish language or name or dress by any man of English blood: it enforced within the Pale the exclusive use of English law, and made the use of the native or Brehon law, which was gaining ground, an act of treason; it made treasonable any marriage of the Englishry with persons of Irish race, or any adoption of English children by Irish foster-fathers.

Richard in Ireland

But stern as they were these provisions proved fruitless to check the fusion of the two races, while the growing independence of the Lords of the Pale threw off all but the semblance of obedience to the English government. It was this which stirred Richard to a serious effort for the conquest and organization of the island. In 1386 he granted the "entire dominion" of Ireland with the title of its Duke to Robert de Vere on condition of his carrying out its utter reduction. But the troubles of the reign soon recalled De Vere, and it was not till the truce with France had freed his hands that the king again took up his projects of conquest. In 1394 he landed with an army at Waterford, and received the general submission of the native chieftains. But the Lords of the Pale held sullenly aloof; and Richard had no sooner quitted the island than the Irish in turn refused to carry out their promise of quitting Leinster, and engaged in a fresh contest with the Earl of March, whom the king had proclaimed as his heir and left behind him as his lieutenant in Ireland. In the summer of 1398 March was beaten and slain in battle: and Richard resolved to avenge his cousin's death and complete the work he had begun by a fresh invasion. He felt no apprehension of danger. At home his triumph seemed complete. The death of Norfolk, the exile of Henry of Lancaster, left the baronage without heads for any rising. He ensured, as he believed, the loyalty of the great houses by the hostages of their blood whom he carried with him, at whose head was Henry of Lancaster's son, the future Henry the Fifth. The refusal of the Percies, the Earl of Northumberland and his son Henry Percy or Hotspur, to obey his summons might have warned him that danger was brewing in the north. Richard however took little heed. He banished the Percies, who withdrew into Scotland; and sailed for Ireland at the end of May, leaving his uncle the Duke of York regent in his stead.

Landing of Henry

The opening of his campaign was indecisive, and it was not till fresh reinforcements arrived at Dublin that the king could prepare for a march into the heart of the island. But while he planned the conquest of Ireland the news came that England was lost. Little more than a month had passed after his departure when Henry of Lancaster entered the Humber and landed at Ravenspur. He came, he said, to claim his heritage; and three of his Yorkshire castles at once threw open their gates. The two great houses of the north joined him at once. Ralph Neville, the Earl of Westmoreland, had

married his half-sister; the Percies came from their exile over the Scottish border. As he pushed quickly to the south all resistance broke down. The army which the Regent gathered refused to do hurt to the Duke; London called him to her gates; and the royal Council could only march hastily on Bristol in the hope of securing that port for the King's return. But the town at once yielded to Henry's summons, the Regent submitted to him, and with an army which grew at every step the Duke marched upon Cheshire, where Richard's adherents were gathering in arms to meet the king. Contrary winds had for a while kept Richard ignorant of his cousin's progress, and even when the news reached him he was in a web of treachery. The Duke of Albemarle, the son of the Regent Duke of York, was beside him, and at his persuasion the King abandoned his first purpose of returning at once, and sent the Earl of Salisbury to Conway while he himself waited to gather his army and fleet. The six days he proposed to gather them in became sixteen, and the delay proved fatal to his cause. As no news came of Richard the Welshmen who flocked to Salisbury's camp dispersed on Henry's advance to Chester. Henry was in fact master of the realm at the opening of August when Richard at last sailed from Waterford and landed at Milford Haven.

Richard's capture

Every road was blocked, and the news that all was lost told on the thirty thousand men he brought with him. In a single day but six thousand remained, and even these dispersed when it was found that the King had ridden off disguised as a friar to join the force which he believed to be awaiting him in North Wales with Salisbury at its head. He reached Caernarvon only to find this force already disbanded, and throwing himself into the castle despatched his kinsmen, the Dukes of Exeter and Surrey, to Chester to negotiate with Henry of Lancaster. But they were detained there while the Earl of Northumberland pushed forward with a picked body of men, and securing the castles of the coast at last sought an interview with Richard at Conway. The King's confidence was still unbroken. He threatened to raise a force of Welshmen and to put Lancaster to death. Deserted as he was indeed, a King was in himself a power, and only the treacherous pledges of the Earl induced him to set aside his plans for a reconciliation to be brought about in Parliament and to move from Conway on the promise of a conference with Henry at Flint. But he had no sooner reached the town than he found himself surrounded by Lancaster's forces. "I

am betrayed," he cried, as the view of his enemies burst on him from the hill; "there are pennons and banners in the valley." But it was too late for retreat. Richard was seized and brought before his cousin. "I am come before my time," said Lancaster, "but I will show you the reason. Your people, my lord, complain that for the space of twenty years you have ruled them harshly: however, if it please God, I will help you to rule them better." "Fair cousin," replied the King, "since it pleases you, it pleases me well." Then, breaking in private into passionate regrets that he had ever spared his cousin's life, he suffered himself to be carried a prisoner along the road to London.

END OF VOL. II.

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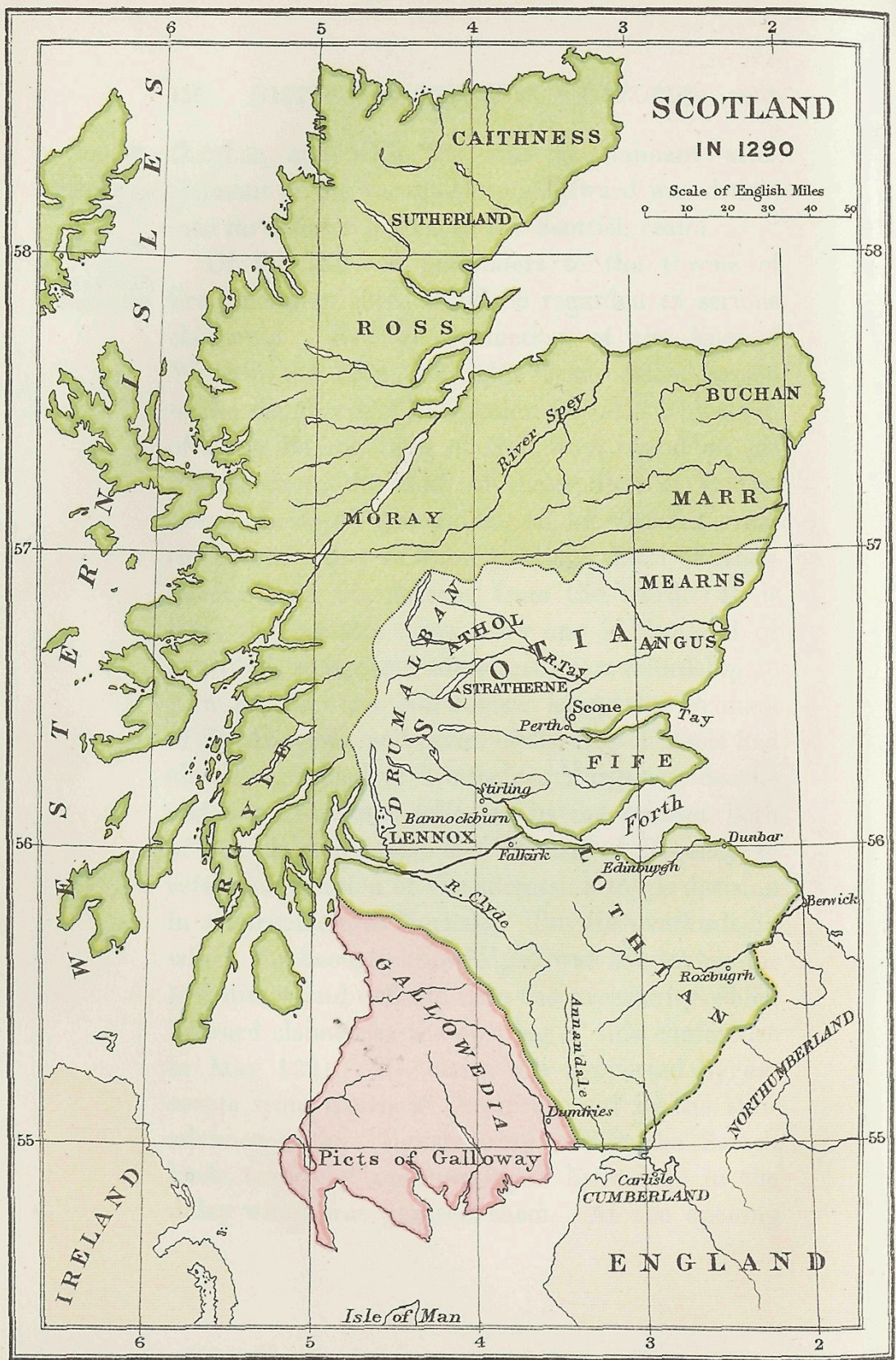
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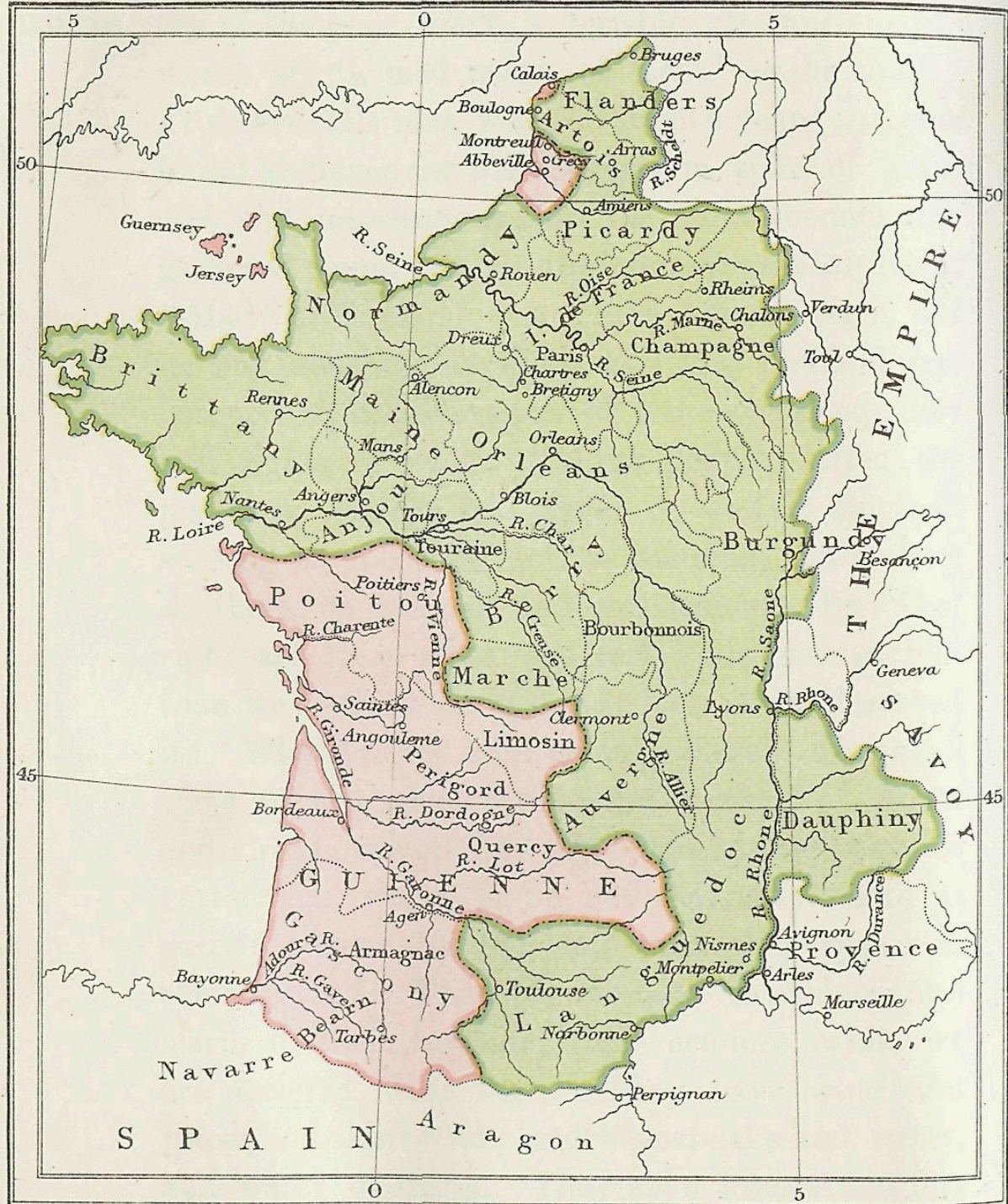
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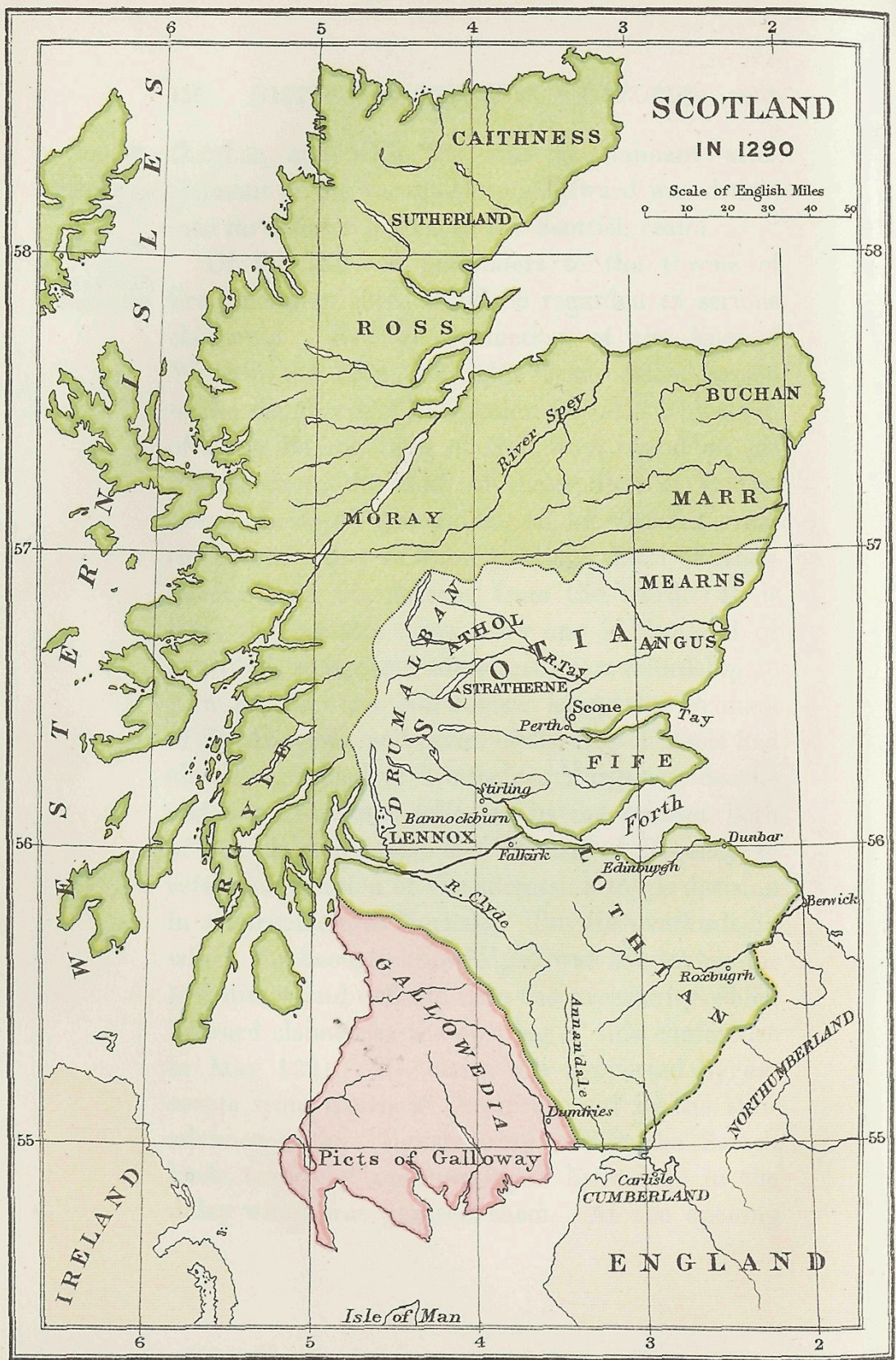
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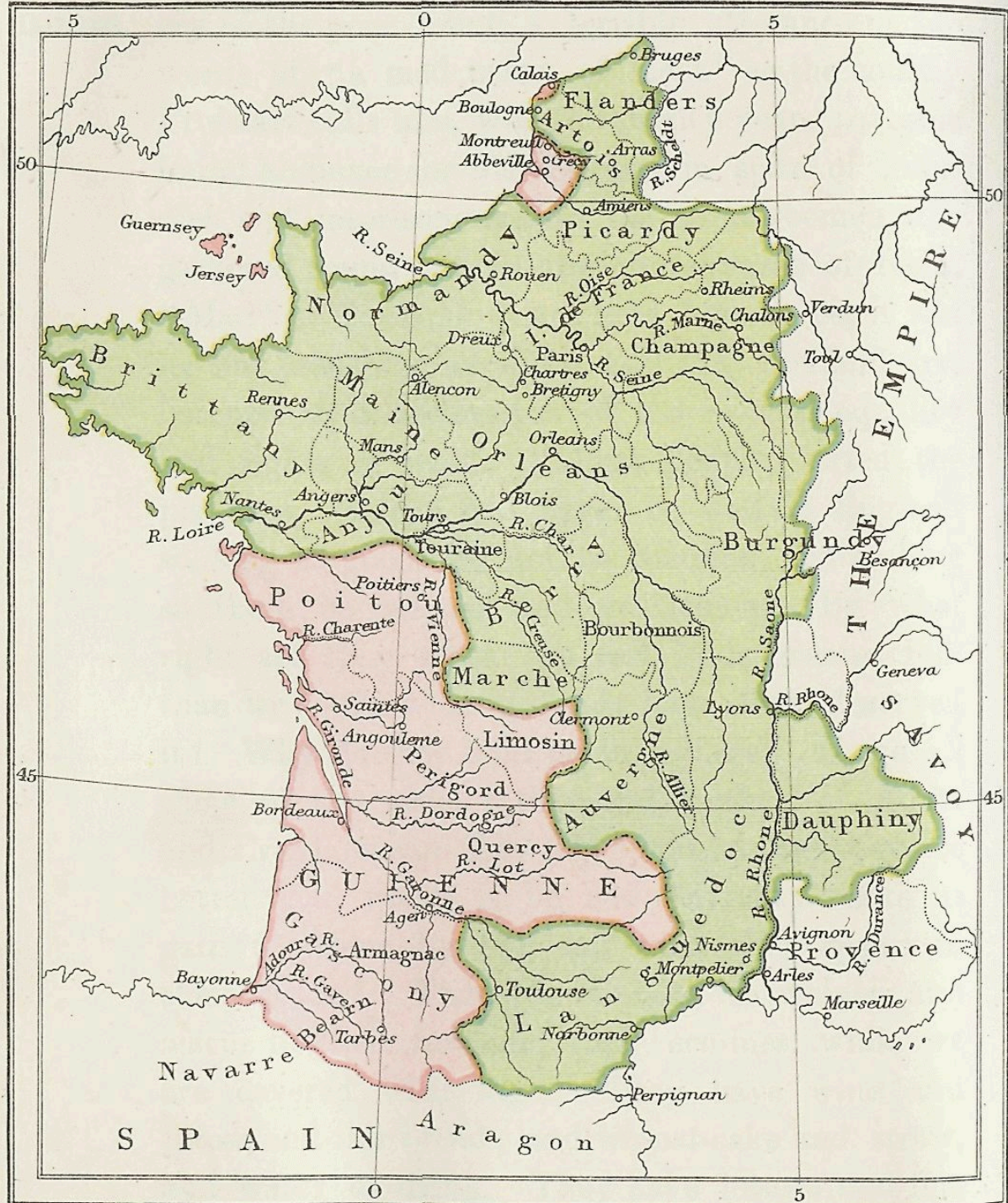
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